

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[121 NE3d 283, 97 NYS3d 655]

In the Matter of DELKAP MANAGEMENT, INC., et al., Respondents, v NEW YORK STATE DIVISION OF HUMAN RIGHTS, Appellant, et al., Respondent.

Decided March 26, 2019

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 30, 2016, in a proceeding pursuant to CPLR article 78 and Executive Law § 298. The Appellate Division judgment, insofar as appealed from, (1) granted the petition to review a determination of respondent New York State Division of Human Rights, which had adopted the recommendation and findings of an administrative law judge made after a hearing, to the extent of annulling so much of the determination as (a) adopted the finding that petitioners/cross respondents discriminated against the complainant on the basis of her disability, (b) awarded the complainant compensatory damages in the sum of \$5,000 and punitive damages in the sum of \$10,000, and (c) assessed a civil penalty upon each petitioner/cross respondent payable to the State of New York in the sum of \$5,000; and (2) remitted the matter to respondent for the imposition of (a) a new award for compensatory damages in an amount not to exceed the sum of \$2,500, (b) a new award for punitive damages in an amount not to exceed the sum of \$2,500, and (c) a new civil penalty upon each petitioner/cross respondent payable to the State of New York in an amount not to exceed the sum of \$2,000.

Matter of Delkap Mgt., Inc. v New York State Div. of Human Rights, 144 AD3d 1148, reversed.

HEADNOTE

Civil Rights — Discrimination Based on Disability — Judicial Review

In a proceeding pursuant to CPLR article 78 and Executive Law § 298 seeking to review a determination of respondent New York State Division of Human Rights, which adopted the finding of an administrative law judge, made after a hearing, that petitioners/cross respondents discriminated against the complainant on the basis of her disability, the Appellate Division erroneously set aside a portion of the agency's determination. Accordingly, the Appellate Division judgment, insofar as appealed from, was reversed, the petition dismissed in its entirety, and cross petition granted to the extent that respondent's determination was confirmed.

APPEARANCES OF COUNSEL

Caroline J. Downey, General Counsel, New York State Division of Human Rights, Bronx (*Toni Ann Hollifield* of counsel), for appellant.

Sperber Denenberg & Kahan, P.C., New York City (*Jacqueline Handel-Harbour* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), judgment, insofar as appealed from, reversed, with costs, petition dismissed in its entirety, and cross petition granted to the extent that the determination of the New York State Division of Human Rights is confirmed. The Appellate Division erroneously set aside a portion of the agency's determination.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey and Wilson; Judges Garcia and Feinman dissent and vote to affirm, insofar as appealed from, for reasons stated by the Appellate Division (*see Matter of Delkap Mgt., Inc. v New York State Div. of Human Rights*, 144 AD3d 1148 [2016]).

[123 NE3d 244, 99 NYS3d 760]

In the Matter of STEPHEN SCHOONMAKER, Appellant, v NEW YORK STATE DEPARTMENT OF MOTOR VEHICLES, Respondent.

Decided March 26, 2019

SUMMARY

APPEAL from a judgment of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 3, 2018, in a proceeding pursuant to CPLR article 78. The Appellate Division, with two Justices dissenting, (1) confirmed a determination of the New York State Department of Motor Vehicles Administrative Appeals Board, which had affirmed a determination of an administrative law judge, which, after a hearing, found that petitioner refused to submit to a chemical test in violation of Vehicle and Traffic Law § 1194 and revoked his driver's license; (2) denied the petition; and (3) dismissed the proceeding on the merits.

Matter of Schoonmaker v New York State Dept. of Motor Vehs., 165 AD3d 677, affirmed.

HEADNOTE

Motor Vehicles — Chemical Tests — Refusal — Revocation of Operator's License

Respondent New York State Department of Motor Vehicles' determination revoking petitioner's driver's license for refusing to submit to a chemical test in violation of Vehicle and Traffic Law § 1194 was supported by substantial evidence. At the administrative hearing, the arresting police officer's testimony, articulating credible facts to support a reasonable belief that petitioner violated Vehicle and Traffic Law § 1128 (a) (failure to remain in lane), established that he had probable cause to stop petitioner's vehicle. The officer pulled over the vehicle after observing it make an erratic movement, leaving the paved roadway and then returning to its original lane of travel. During the stop, he noticed that petitioner smelled of alcohol and exhibited signs of inebriation. After failing field sobriety tests and a preliminary breath test given at the scene, at the precinct, petitioner refused to take a chemical test despite receiving appropriate warnings.

APPEARANCES OF COUNSEL

Jaroslawicz & Jaros, PLLC, New York City (*David Tolchin* of counsel), and *Law Offices of Michael Pollok, PLLC*, Red Hook (*Michael S. Pollok* of counsel), for appellant.

Letitia James, Attorney General, New York City (*David Lawrence III, Barbara D. Underwood* and *Steven C. Wu* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The judgment of the Appellate Division should be affirmed, with costs.

Whether an agency determination is supported by substantial evidence is solely an issue of law (*see Matter of Kelly v Safir*, 96

NY2d 32, 38-39 [2001]) and, here, substantial evidence supports respondent's determination revoking petitioner's driver's license for refusing to submit to a chemical test in violation of Vehicle and Traffic Law § 1194. At the administrative hearing, testimony was elicited that, while on patrol at 1:00 a.m. on December 22, 2013, a police officer observed petitioner's vehicle "make an erratic movement off the right side of the road, crossing the fog line and [moving] off the shoulder [with the vehicle's] right front tire." Once the vehicle left the paved roadway—and with the right-hand turn signal on—the officer saw the vehicle immediately move left, returning to its original lane of travel. After observing that there was no animal or other obstruction of the roadway that would have explained the "erratic jerking action," the police officer pulled the vehicle over. During the stop, the officer noticed that petitioner smelled of alcohol and exhibited other signs of inebriation. Petitioner admitted that he "had a few drinks" and asked the officer to give him a ride home, failing field sobriety tests and a preliminary breath test given at the scene. At the precinct, despite receiving the appropriate warnings, petitioner refused to take a chemical test, resulting in an administrative license revocation hearing. The police officer's testimony at the hearing, articulating credible facts to support a reasonable belief that petitioner violated Vehicle and Traffic Law § 1128 (a) (failure to remain in lane), provided substantial evidence that he had probable cause to stop petitioner's vehicle (*see People v Guthrie*, 25 NY3d 130, 133 [2015]; *People v Robinson*, 97 NY2d 341, 353-354 [2001]). Any negative or adverse inference that was drawn from petitioner's failure to testify at the administrative revocation hearing was permissible (*see* 15 NYCRR 127.5 [b]).

RIVERA, J. (dissenting). As explained by the dissent below (*Matter of Schoonmaker v New York State Dept. of Motor Vehs.*, 165 AD3d 677, 679-681 [2d Dept 2018, Brathwaite Nelson, J., dissenting]), the officer's testimony did not provide reasonable grounds to believe there had been a violation of the Vehicle and Traffic Law and therefore, for the reasons stated in my dissent in *People v Guthrie* (25 NY3d 130, 140-149 [2015, Rivera, J., dissenting]), the officer's mistaken belief that there was a violation cannot form the basis for a lawful stop.

Chief Judge DiFiore and Judges Stein, Fahey, Garcia, Wilson and Feinman concur; Judge Rivera dissents in an opinion.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), judgment affirmed, with costs, in a memorandum.

[123 NE3d 246, 99 NYS3d 762]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIMOTHY MARTIN, Appellant.

Argued February 14, 2019; decided March 28, 2019

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 21, 2017. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Melissa C. Jackson, J., at *Darden* hearing; Richard D. Carruthers, J., at pretrial proceedings, jury trial and sentencing), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the third degree, criminal possession of a controlled substance in the fifth degree and criminally using drug paraphernalia in the second degree (two counts).

People v Martin, 147 AD3d 587, affirmed.

HEADNOTE

Crimes — Harmless and Prejudicial Error — Admission of Statements under Pedigree Exception

The Appellate Division order affirming a judgment that had convicted defendant of various drug crimes was affirmed where, assuming, without deciding, that the trial court erroneously permitted testimony of defendant's response to custodial interrogation by police during the execution of a search warrant that he lived at the target premises as falling within the pedigree exception to *Miranda* requirements and CPL 710.30, such error was harmless. Given the jury's inability to reach a verdict on charges related to drugs found in an interior hallway closet of the apartment, the jury could not have relied on defendant's statement that he lived there to conclude that he possessed the drugs found in the bedroom where he was initially discovered by police, but not the drugs found outside that bedroom. The evidence of defendant's guilt was overwhelming and there was no reasonable possibility that, but for the error, the jury might have acquitted defendant of possession for the drugs in the bedroom.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Megan Byrne* and *Samuel E. Steinbock-Pratt* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Alexander Michaels and Eleanor J. Ostrow of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant Timothy Martin challenges his conviction of criminal possession of a controlled substance in the third degree (Penal Law § 220.16 [1]), criminal possession of a controlled substance in the fifth degree (Penal Law § 220.06 [5]), and two counts of criminally using drug paraphernalia in the second degree (Penal Law § 220.50 [2], [3]). Assuming, without deciding, that Supreme Court erroneously permitted testimony of defendant's response to custodial interrogation by police during the execution of a search warrant that he lived at the target premises as falling within the pedigree exception to the requirements of *Miranda v Arizona* (384 US 436 [1966]) and CPL 710.30, such error was harmless (see *Pennsylvania v Muniz*, 496 US 582, 601-602 [1990]; *People v Rodney*, 85 NY2d 289, 293 [1995]).

Police found defendant alone in a bedroom with drugs and drug paraphernalia in plain view. Police also found four other adults and defendant's son elsewhere in the apartment, and more drugs in an interior hallway closet. Given the jury's inability to reach a verdict on the charges related to the drugs found in the closet, the jury could not have relied on defendant's statement that he lived in the apartment to conclude that he possessed the drugs found in the bedroom where he was discovered, but not the drugs found outside this bedroom. As the evidence of defendant's guilt was overwhelming and there is no reasonable possibility that, but for the error, the jury might have acquitted defendant of possession for the drugs in the bedroom where he was initially found by police, any error was harmless (*People v Crimmins*, 36 NY2d 230, 237 [1975]).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson concur; Judge Feinman taking no part.

Order affirmed, in a memorandum.

[122 NE3d 51, 98 NYS3d 534]

RANDALL M. HINTON, Appellant, v VILLAGE OF PULASKI, Respondent.

Decided February 21, 2019

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered April 27, 2018. The Appellate Division affirmed an order of the Supreme Court, Oswego County (James W. McCarthy, J., op 59 Misc 3d 1220[A], 2016 NY Slip Op 51912[U] [2016]), which had granted defendant's motion for summary judgment dismissing the complaint.

Hinton v Village of Pulaski, 160 AD3d 1446, affirmed.

HEADNOTE

Municipal Corporations — Sidewalks — Prior Notice of Defective Condition — Stairway Connecting Public Road to Municipal Parking Lot

In a personal injury action arising from plaintiff's fall while descending an exterior stairway that connected a public road to a municipal parking lot, the courts below correctly held that the stairway at issue functionally fulfilled the same purpose as a standard sidewalk, and therefore plaintiff was required to show that defendant village received prior written notice of the allegedly defective condition under the village code, which required prior written notice as a prerequisite to an action for personal injury sustained as a result of a defect in "any street, highway, bridge, culvert, sidewalk or crosswalk" (*see also* Village Law § 6-628). Since defendant established that plaintiff failed to plead or prove prior written notice, and plaintiff did not raise a triable issue of fact in opposition, summary judgment was properly awarded to defendant.

APPEARANCES OF COUNSEL

D.J. & J.A. Cirando, PLLC, Syracuse (*John A. Cirando* of counsel), for appellant.

Gerber Ciano Kelly Brady LLP, Garden City (*Brian W. McElhenny* of counsel), for respondent.

Association of Towns of the State of New York, Albany (*Sarah Brancatella* of counsel), and *New York State Conference of Mayors and Municipal Officials*, Albany (*Wade Beltramo* of counsel), for New York State Conference of Mayors and Municipal Officials and another, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

The Village of Pulaski Code provides, in relevant part, that “[n]o civil action shall be maintained” against defendant Village of Pulaski for personal injury sustained as a result of a defect in “any street, highway, bridge, culvert, sidewalk or crosswalk” unless prior written notice of the alleged defect is provided to the Village (Village of Pulaski Code § 122-14; *see also* Village Law § 6-628). Plaintiff commenced this action against the Village after he fell while descending an exterior stairway that connects a public road to a municipal parking lot. The Village did not receive prior written notice of the alleged defect before plaintiff commenced suit, and the Village moved for summary judgment dismissing the complaint. Supreme Court granted the motion (59 Misc 3d 1220[A], 2016 NY Slip Op 51912[U] [Sup Ct, Oswego County 2016]), and the Appellate Division unanimously affirmed (160 AD3d 1446 [4th Dept 2018]).

In *Woodson v City of New York*, this Court determined that a stairway may be classified as a sidewalk for purposes of a prior written notice statute if it “functionally fulfills the same purpose that a standard sidewalk would serve” (93 NY2d 936, 937-938 [1999], citing *Donnelly v Village of Perry*, 88 AD2d 764, 765 [4th Dept 1982] [holding that steps between a roadway and public sidewalk were “the equivalent of a sidewalk” because they “provide(d) a passageway for the public”], and *Youngblood v Village of Cazenovia*, 118 Misc 2d 1020, 1022 [Sup Ct, Madison County 1982] [holding that steps are “essentially sidewalks laid on slopes, often connecting two stretches of sidewalk”], *affd on op below* 93 AD2d 962 [3d Dept 1983]; *see also Groninger v Village of Mamaroneck*, 17 NY3d 125, 129 [2011] [parking lot served the “functional purpose” of a highway, thereby triggering a notice requirement]). In the 20 years since *Woodson* was decided, the legislature—“though fully capable of corrective action”—has done nothing to “signal disapproval” of this interpretation (*Matter of Acevedo v New York State Dept. of Motor Vehs.*, 29 NY3d 202, 225 [2017]). As the identical question has been long since resolved by this Court, the present case involves the application of settled precedent—not statutory interpretation (*see Matter of State Farm Mut. Auto. Ins. Co. v Fitzgerald*, 25 NY3d 799, 819-820 [2015]

[noting that an “extraordinary and compelling justification is needed to overturn precedents involving statutory interpretation” because, “if the precedent or precedents have misinterpreted the legislative intention embodied in a statute, the Legislature’s competency to correct the misinterpretation is readily at hand” (citation, internal quotation marks and brackets omitted)]; *Matter of Eckart*, 39 NY2d 493, 499-500 [1976] [“Generally, once the courts have interpreted a statute any change in the rule will be left to the Legislature, particularly where the courts’ interpretation is a long standing one”]; *Heyert v Orange & Rockland Util.*, 17 NY2d 352, 360 [1966] [noting that “established precedents are not lightly to be set aside” because “the remedy (is) ordinarily with the Legislature” (citation and internal quotation marks omitted)]; *see also People v Taylor*, 9 NY3d 129, 148 [2007] [“Stare decisis is deeply rooted in the precept that we are bound by a rule of law—not the personalities that interpret the law”]]. We see no compelling reason to overrule our long-standing precedent.*

The courts below correctly applied *Woodson* in holding that the stairway at issue “functionally fulfills the same purpose” as a standard sidewalk, and therefore plaintiff was required to show that the Village received prior written notice of the allegedly defective condition (*Woodson*, 93 NY2d at 938). In its motion for summary judgment, the Village established that plaintiff failed to plead or prove prior written notice. Plaintiff did not raise a triable issue of fact in opposition, and therefore summary judgment was properly awarded to the Village. Plaintiff’s remaining arguments lack merit or are unpreserved for review.

WILSON, J. (dissenting). In this case, we ask: is a stairway a “sidewalk”? Conventions of normal English, legislative policy, and the invention of the escalator would answer “no.” But through the alchemy of a “functional equivalence” test conjured from *Woodson v City of New York* (93 NY2d 936, 937 [1999]), one can buy a sidewalk to heaven, climb the sidewalk to the stars, and build a sidewalk to paradise (with a new slab every day). Indeed, while on the subject of alchemy, if Harry Potter was set in New York, his Dursley abode would no doubt change to a cupboard under the sidewalk.

This is a personal injury action in which Randall Hinton fell

* Nor do we agree that the test derived from *Woodson* (and applied again in *Groninger*) is limited to an examination of whether a defect would cause “more or less the same kind of injuries” (dissenting op at 941).

down an (allegedly) negligently-maintained stairway. In Village Law § 6-628, the legislature gave villages what amounts to “prior written notice” protection from certain negligence actions, providing, in relevant part, that “[n]o civil action shall be maintained against [a] village for damages or injuries to person or property sustained in consequence of any street, highway, bridge, culvert, sidewalk or crosswalk being defective [or] unsafe” absent prior written notice.

By holding that the stairway in this case is a “sidewalk,” the majority rewrites the Village Law to provide that the prior written notice rule applies to actions seeking damages for personal injuries allegedly sustained as a consequence of a defective village stairway—even though the legislature specifically declined to include stairways in the list of municipal passageways to which prior written notice protection applies “evinced an intent to exclude any others not mentioned” (*Walker v Town of Hempstead*, 84 NY2d 360, 367 [1994]). “[I]t is not within the province of this court to rewrite the enactments of the Legislature” (*Matter of Chase Natl. Bank v Guardian Realities, Inc.*, 283 NY 350, 360 [1940]; accord *Matter of Wolpoff v Cuomo*, 80 NY2d 70, 79 [1992]). I respectfully dissent because I cannot agree with either the majority’s revision of Village Law § 6-628 or its conclusion that this stairway is a sidewalk.

I.

The Village of Pulaski is a town of a few thousand people in Oswego County, NY, about 10 minutes’ drive from Lake Ontario. This is fishing country, and the heart of this fishing county is the Salmon River.

“Unique in the Northeast, the Salmon River is an angler’s mecca. Thousands of trophy Chinook and coho salmon, steelhead, rainbows and brown trout, driven by the urge to spawn, run its length each year. Twelve miles of classic riffes, pools and runs are accessible to those who would test its waters with rod and reel” (Oswego County Tourism, *Visit Oswego County, New York: Where to Fish*, <http://visitoswegocounty.com/fishing-hunting/fishing/where-to-fish/> [last accessed Feb. 19, 2019]).

Locals will tell you that one of the best fishing spots on the Salmon River is the “Black Hole,” on the west end of Pulaski. The south bank is part of a salmon run, but the north bank is

public (*id.*). At the peak of the season, hundreds of anglers ply the waters at the Black Hole. The throng regularly blocked the streets, so the Village installed signage directing anglers to park in an adjacent car park normally used by the Village Department of Public Works (DPW). From there, anglers must walk down a stairway, cross Riverview Drive, and walk further down the undeveloped bank before they reach the Black Hole. That stairway (many pictures of which are in the parties' submissions) is the subject of this appeal. It is a "railway tie" stairway, made of compacted earth nosed with recycled railway ties, many of which still include the rusted nails they once had. The stairs are steep, irregularly spaced, with the space between the nosings made of grasses and muddy strands with potholes and muddy clumps (which were exacerbated due to a recent heavy rain). The railings were rickety and wooden, and at a low height; there was also less railing on one side than the other. The stairway was built by the Village.

Mr. Hinton, the plaintiff in this case, is a licensed fishing guide and owns a fishing lodge. He makes his living renting out rooms to anglers and taking them fishing. On October 19, 2013, at the height of the season, finding his schedule unexpectedly free, he decided to spend the afternoon fishing without clients. Although Mr. Hinton preferred less congested spots, he decided to give the Black Hole a try. He drove to the DPW parking lot as the signs instructed, gathered his things, and started down the stairway. About a third of the way down, he tripped—possibly over a rut in the stairs or one of the spikes protruding from the stairs—and went down head over heels. He broke his left ankle, severely injured his knee and suffered various sprains. As he explained in his deposition "[m]y fishing season ended on that day," costing him both medical bills and his livelihood. Faced with those serious financial consequences, Mr. Hinton sued the Village, alleging that the Village had allowed the stairs to deteriorate and become a hazard to members of the public, and that his injuries were caused by the Village's negligent maintenance of the stairway.

In response the Village argued, among other things, that even if Mr. Hinton was injured as a result of the Village's negligence, he must lose, because Village Law § 6-628 provides that "[n]o civil action shall be maintained against the village for damages or injuries to person or property sustained in consequence of any street, highway, bridge, culvert, sidewalk or crosswalk being defective, out of repair, unsafe, dangerous or

obstructed” absent prior written notice.¹ Both Supreme Court (59 Misc 3d 1220[A], 2016 NY Slip Op 51912[U] [2016]) and the Appellate Division (160 AD3d 1446 [2018]) agreed; we granted leave to appeal.

II.

On its face, Village Law § 6-628 is inapplicable to this case: there is no dispute that Mr. Hinton fell on the stairway. However, in *Woodson v City of New York* (93 NY2d 936, 937 [1999])—a memorandum decision devoid of facts—the Court held that because “[t]he stairway *in this case* functionally fulfills the same purpose that a standard sidewalk would serve on flat topography, except that it is vertical instead of horizontal” (emphasis added), that particular stairway was a “sidewalk” for purposes of a statute, General Municipal Law § 50-e (4), with text largely similar to the Village Law section at issue here.

That sentence has spawned a jurisprudence applying what we have come to call the “functional equivalence test,” where if a court thinks something not on the Village Law § 6-628 list is sufficiently like something on that list, it rewrites the statute to include it. Thus in *Groninger v Village of Mamaroneck* (17 NY3d 125 [2011]), we held that a parking lot “serves the functional purpose of a highway” (*id.* at 129 [internal quotation marks omitted]) because “[i]t was owned and maintained by the Village and was accessible to the general public for vehicular travel” (*id.*), even though, as the three dissenting Judges in that case explained at length, highways—accommodating moving vehicles—and parking lots—accommodating stationary vehicles—had precisely the opposite “functional purpose” (*id.* at 134 [Lippman, Ch. J., dissenting]).

In this case, the lower courts and majority have created a sort of transitive property of traversable surfaces. There was nothing resembling a sidewalk to which the stairway connected, but, said the lower courts, because the Court of Appeals previously held that a parking lot was “functionally equivalent” to a highway, it follows that the stairway, which was connected to this “highway,” was a “sidewalk.” By conclud-

1. Laws dealing with other forms of local governments or governmental bodies have analogous language (see General Municipal Law § 50-e [4] [“street, highway, bridge, culvert, sidewalk or crosswalk”]; Town Law § 65-a [4] [“highway, bridge, culvert or sidewalk”]; Second Class Cities Law § 244 [“street, highway, bridge, culvert, sidewalk or crosswalk”]; Highway Law § 139 [1] [“road, highway, bridge or culvert”]).

ing that a slapdash stairway is a sidewalk because they both have the same “functional purpose,” conveying people from place to place, the Court expands a single fact-specific determination into an erroneous doctrine.

We need principles, not “one of these things is/is not like the other” reasoning, that can help lower courts apply the specific list of Village Law § 6-628 and its sister statutes. By disposing of this case as it does today, the Court deprives the lower courts—and itself—of the opportunity to examine *Woodson* thoughtfully. As I explain, if the result in *Woodson* is correct, it is only so when understood in light of its peculiar facts. To understand why *Woodson* does not resolve this case, we need to return to first principles of statutory interpretation.

“When presented with a question of statutory interpretation, our primary consideration is to ascertain and give effect to the intention of the Legislature” (*Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653, 660 [2006] [internal quotation marks omitted]). “We begin with the plain language of the statute, which is the clearest indicator of legislative intent” (*Matter of T-Mobile Northeast, LLC v DeBellis*, 32 NY3d 594, 607 [Dec. 13, 2018]). “[W]hen the statutory language is clear and unambiguous, it should be construed so as to give effect to the plain meaning of the words used” (*People v Pabon*, 28 NY3d 147, 152 [2016]). “Words of ordinary import in a statute are to be given their usual and commonly understood meaning, unless it is clear from the statutory language that a different meaning was intended” (*We’re Assoc. Co. v Cohen, Stracher & Bloom*, 65 NY2d 148, 151 [1985]).

If those mantras, reliably repeated in most of our statutory interpretation cases, had any application here, Mr. Hinton would win. Village Law § 6-628 immunizes villages from suits alleging injuries “sustained in consequence of any street, highway, bridge, culvert, sidewalk or crosswalk being defective, out of repair, unsafe, dangerous or obstructed” without prior notice. No one argues that the stairway here is a highway, bridge, culvert, or crosswalk. In 1927, when Village Law § 6-628 was approved, and indeed since at least 1739, “sidewalk” meant “[a] paved footpath alongside a street or road, usually slightly raised above the level of the road surface” (Oxford English Dictionary [2019], sidewalk). No one looking at the site of Mr. Hinton’s fall would call it a sidewalk.

Likewise, the canons of construction bear out the intuition that the legislature meant “sidewalk” when it wrote “sidewalk,”

rather than some broader term. In a case interpreting the analogous General Municipal Law § 50-e (4), we explained that “we can only construe the Legislature’s enumeration of six, specific locations in the exception (i.e., streets, highways, bridges, culverts, sidewalks or crosswalks) as evincing an intent to exclude any others not mentioned” (*Walker v Town of Hempstead*, 84 NY2d 360, 367 [1994], citing McKinney’s Cons Laws of NY, Book 1, Statutes § 240).² *Noscitur a sociis*, “the familiar canon of construction [in which] we ordinarily interpret the meaning of an ambiguous word in relation to the meanings of adjacent words” (*Matter of Kese Indus. v Roslyn Torah Found.*, 15 NY3d 485, 491 [2010]), does not apply here because “sidewalk” is not ambiguous, and even if it were, *noscitur a sociis* aims to limit the range of meanings of a set of words, not expand them (see e.g. *Matter of Avella v City of New York*, 29 NY3d 425, 436 [2017]; cf. McKinney’s Cons Laws of NY, Book 1, Statutes § 240; Bryan A. Garner & Antonin Scalia, *Reading Law* at 197; William N. Eskridge Jr., *Interpreting Law: A Primer on How to Read Statutes and the Constitution* at 76 [2016]). None of the six words in Village Law § 6-628 deals with stairways unless viewed in the abstract, and if the legislature wanted to describe village infrastructure more abstractly it surely knew how to do so (see e.g. Village Law § 6-602 [describing “streets and public grounds of a village” (emphasis added)]).

“Where, as here, the legislative language is clear, we have no occasion to examine extrinsic evidence to discover legislative intent” (*Makinen v City of New York*, 30 NY3d 81, 85 [2017] [brackets and ellipsis omitted]). However, what little extrinsic legislative evidence exists provides no support whatever for a “functional equivalence” test or any expansion of the meaning of the word “sidewalk.” As near as can be determined, Village Law § 6-628’s listing of “street, highway, bridge, culvert,

2. Indeed, Bryan A. Garner and the late Justice Antonin Scalia praised *Johnson v City of Laconia* (141 NH 379, 379-381, 684 A2d 500, 501-502 [1996]) as a correct result of the application of the *expressio unius* canon. There, the New Hampshire Supreme Court interpreted New Hampshire Revised Statutes Annotated § 231:92-a that immunized municipalities from “damages arising from insufficiencies or hazards on public highways, bridges, or sidewalks” to exclude a public parking lot; “because the law specified three types of public property but omitted all others, the immunity did not bar the lawsuit” (Bryan A. Garner & Antonin Scalia, *Reading Law: The Interpretation of Legal Texts* at 110-111 [2012]; cf. *Yates v United States*, 574 US 528, —, 135 S Ct 1074, 1093 [2015] [treating *Reading Law* as persuasive authority]).

sidewalk or crosswalk” descends directly³ from various “local laws” passed by the legislature in the late nineteenth century to limit the liability of villages in the wake of our landmark decision in *Saulsbury v Village of Ithaca* (94 NY 27 [1883]). In *Saulsbury*, we held that because the charter of the municipal corporation in that case obliged the village to repair “sidewalks,” it was liable for injuries occasioned by an omission on its part to repair or remove a sidewalk which had been, for a sufficient length of time to charge it with notice, in so defective a condition as to be dangerous for travel (*id.*).

The prior notice laws were—and indeed have always been—intensely controversial and carefully limited.⁴ Not one of those local laws reached “stairways” and in not one of the cases

3. Village Law § 6-628 began its life as section 341-a of the Village Law of 1927 (L 1927, ch 650, § 42), having been recodified (with amendments not relevant here) in 1972 (L 1972, ch 892, § 3). The 1927 law’s language, however, was itself a wholesale import from the Second Class Cities Law, copied in an effort to harmonize various laws pertaining to municipalities (*see* L 1927, ch 650, Bill Jacket). For present purposes, the prior notice provision appears to have been first added to the Second Class Cities Law in 1906, as part of the Uniform Charter of Cities of the Second Class (L 1906, ch 473), and today (after yet another recodification) can be found at Second Class Cities Law § 244; it reads (and read) almost identically to the Village Law provision (“street, highway, bridge, culvert, sidewalk or crosswalk”). The 1906 law in turn was adopted to iron out inconsistencies in local laws that had cropped up over the preceding quarter-century, and incorporated common charter amendments (which in those days required action from the state legislature) so as to develop a uniform rule.

4. In response to one of the first of such laws, adopted by the legislature in 1881 and applying solely to the City of Cohoes (L 1881, ch 183, § 1 [(t)he city of Cohoes shall not be liable for the damage or injury sustained by any person in consequence of any street, highway, bridge, culvert, sidewalk or crosswalk in said city being out of repair, unsafe, (or) dangerous]), a major treatise on negligence in New York declared “[t]he City of Cohoes has, as appears by the reports, been the most negligently administered city in all the state. It seems to have found a new way of escaping the penalty, by making the law to wink at the carelessness of its officials” (John Brooks Leavitt, *Law of Negligence in New York* at 419 [1895] [reviewing *McNally v City of Cohoes*, 127 NY 350, 353 (1891)]). Likewise, a bill of identical wording introduced in 1892 pertaining to the then-City of Brooklyn (the five boroughs consolidated only in 1898) was condemned by the *New York Times* as “in keeping with the wild, untamed vagaries of this present Legislature.” (The State Legislature, *Unique Brooklyn Sidewalks Bill*, *NY Times* at 3 [Mar. 4, 1892], available at <https://www.nytimes.com/1892/03/04/archives/the-state-legislature-he-insurance-bill-restored-to-life-the.html>). Discussion of the careful balance struck when the Village Law prior notice provision was reviewed can be found in the Memoranda of Joint Legislative Committee on Municipal Tort Liability (1957 NY Legis Ann at 205-207). A more contemporary controversy over (successful) efforts by New York City to incorporate almost identical language into its ordinances is thoroughly documented in Terri J. Frank,

(n. cont’d)

decided until well into the later twentieth century did a court apply those or analogous provisions in the general laws to cover trips and falls down “stairways.” Indeed, the prior notice statutes were adopted in the heyday of the presumption against derogation of the common law, where the Court declared “the rule to be well established and almost universally acted on, that statutes changing the common law must be strictly construed, and that the common law must be held no further abrogated than the clear import of the language used in the statutes absolutely requires” (*Fitzgerald v Quann*, 109 NY 441, 445 [1888]). All agree that prior notice statutes derogate the common law (*Gorman v Town of Huntington*, 12 NY3d 275, 279 [2009]); the legislature knew full well that in this context when it said “sidewalk” that term would be construed to mean what it says, and nothing more.

III.

Text, context, structure, history, even statutory canons of construction provide no foundation for a “functional equivalence” test that takes a list of six specific items of built environment and allows them to encompass a list of different, tangentially related other items. The majority does not deny this point, but argues that “the present case involves the application of settled precedent—not statutory interpretation” (majority mem at 932). If *Woodson v City of New York* (93 NY2d 936 [1999]), the sole substantive citation in the majority’s opinion, truly stood for the proposition the majority cites it for—that prior notice statutes permitted such free association of concepts and statutory terms—it would have represented a radical break from centuries of this Court’s common-law jurisprudence as well as a sudden and uncharacteristic departure from our settled principles of statutory interpretation—and all in a terse memorandum.⁵ I do not believe our Court would be so cavalier with its own precedents. *Woodson* must mean something different, then, than what the majority says it means here. Once we understand it in its context, it becomes clear why it does not control this case.

In *Woodson*, we held that “when stairs are integrated with, or serve as part of, a connected standard sidewalk, they plainly

Note, *New York City’s Pothole Law: In Need of Repair* (10 Fordham Urb LJ 323 [1982]).

5. I note, as did the dissenters in *Groninger* (17 NY3d at 133), that *Woodson* did not engage in the thoughtful statutory analysis that once characterized our prior notice decisions, like *Walker*.

fall within the meaning of that already existing category” (*id.* at 937). Distinguishing *Walker v Town of Hempstead*, where we held that a paddleball court was not covered by the prior notice statute in question (84 NY2d at 368), we explained in *Woodson* that

“a paddleball court is functionally different from each of the six locations enumerated in General Municipal Law § 50-e (4) [which is identical, as relevant here, to Village Law § 6-628]. The stairway in this case functionally fulfills the same purpose that a standard sidewalk would serve on flat topography, except that it is vertical instead of horizontal” (*Woodson*, 93 NY2d at 938).

The stairway down which Mr. Hinton fell was not “integrated with, or [a] part of, a connected standard sidewalk” (*id.* at 937). Thus *Woodson* does not, on its own terms, determine the result here.

Although the Court in *Woodson* nowhere explained its basis for interposing a functional equivalence test on words it had previously held in *Walker* to be exclusive, a review of the record and briefing in that case reveals the underlying rationale for the Court’s opinion. The stairway at issue in *Woodson* connected the Julius Richman Memorial Park to Valentine Avenue in the Bronx. At the time of the suit, the stairway was relatively short, shallow, and perfunctory, comprising shallow concrete steps up a short, gentle incline connecting two concrete sidewalks. Crucially, the steps could have been replaced with a simple pavement ramp with the same result. What mattered was not merely that the stairway in *Woodson* served the same purpose as a standard sidewalk (making it easier for people to travel from place to place), but had the same functional potential to injure someone if defectively maintained: a person who tripped and fell on that stairway would experience more or less the same kind of injuries as a person who tripped on a hypothetical sidewalk ramp. The same could be said of our decision in *Groninger v Village of Mamaronock* (17 NY3d 125, 129 [2011]) where the injuries one would incur owing to defects in a “highway” (the term at issue in that case) are the same kind of injuries one would incur owing to defects in a parking lot (where the plaintiff in *Groninger* tripped and fell).

What could make *Woodson* and *Groninger* consistent with *Walker*, in other words, is that they were faithful to the

underlying purpose of the statute—to limit somewhat municipalities’ duty to detect flaws in their infrastructure, but only for those items of infrastructure that, even when unrepaired, present modest danger to the user.⁶ Thus a playground would be properly excluded from the reach of the prior notice law because its potential to injure its intended users is much greater than the items on the list—a small child is much likelier to be injured from a fall off a slide than such a child might be from a tumble on the sidewalk. Unimproved trails that have been cut through municipal parks are likewise distinguishable from sidewalks and roads not because they are comprised of a material other than concrete but because they present a different, and greater, injury potential than their more uniform infrastructural cousins (see e.g. *Quackenbush v City of Buffalo*, 43 AD3d 1386, 1388 [4th Dept 2007] [“reject-(ing) the City’s contention that the unimproved trail or path upon which (the) plaintiff was injured (wa)s the functional equivalent of a sidewalk” (internal quotation marks omitted)]; *Iannuzzi v Town of Wallkill*, 54 AD3d 812, 813 [2d Dept 2008] [holding that an unpaved dirt path in a public park was not a sidewalk]; see also *Cieszynski v Town of Clifton Park*, 124 AD3d 1039, 1040-1041 [3d Dept 2015] [applying similar reasoning and holding that an unimproved grassy area could not be considered the functional equivalent of either a highway or sidewalk for purposes of a prior written notice statute])—as well, of course, as falling very far outside even a generously expanded “plain meaning” of any of the six statutory terms at issue in this case.

6. Because of that purpose (as well as the statutory text), we have held that prior notice statutes do not cover acts of municipal “affirmative negligence.” Municipalities are liable for dangerous hazards they affirmatively create, rather than allow to happen through neglect, even if their creations are included on the prior notice list, on the theory that such “a hazard was foreseeable, insofar as the municipality created it by, for example, digging an unmarked ditch in a road or neglecting to cover a street drain” (*San Marco v Village/Town of Mount Kisco*, 16 NY3d 111, 117 [2010]). Therefore, for example, in *San Marco* we reversed a grant of summary judgment when plaintiffs showed the municipality’s negligent snow plowing allowed black ice to form where it would not otherwise have formed. I note that Mr. Hinton argues in this Court that the Village affirmatively created the hazard by building an inherently dangerous stairway. However, that argument was not made in the trial court (in which Mr. Hinton argued only that the Village had failed to maintain the stairway) and is therefore not preserved for our review (*Matter of McGovern v Mount Pleasant Cent. Sch. Dist.*, 25 NY3d 1051, 1053 [2015]).

The majority—having extended *Woodson* well beyond its limited holding—ignores this discussion of what the functional equivalence test in *Woodson* meant and instead declares (without analysis) that only overruling *Woodson* would justify a different outcome in this case. The stare decisis reach of *Woodson* covers stairs integrated with a connected sidewalk, possessing the same injury potential as a sidewalk, but not other stairs. Expanding *Woodson*, without any articulated justification or analysis, is not “the application of settled precedent” (majority mem at 932) but the creation of a new doctrine that all stairs are sidewalks, or perhaps that some are, with no rule as to how to sort them beyond a mantra (“functionally equivalent”) that raises more questions in its bare form than it answers. That the legislature has not “signal[ed] disapproval” (majority mem at 932) of *Woodson* is of no moment. Ignoring a holding that a few steps connecting two sidewalks are a “sidewalk” implies nothing about the legislature’s view of whether, as the majority seems to affirm today, all stairways are always sidewalks.

The problem with the expanded “functional equivalence” test the majority endorses is that it considers all elements of a sidewalk’s “function” except the one that mattered most to the legislature—its function as a source of injury. *Woodson* recognized that some stairways may well possess the same injury profile as the common sidewalk, or be so closely integrated into existing sidewalk infrastructure as to be effectively indistinguishable from it. But most stairways are much more hazardous than sidewalks. “[F]alls are the leading cause of non-fatal injury in the US, and are associated with significant morbidity and mortality among older adults” (Danielle Herbert Blazewick et al., *Stair-related injuries treated in United States emergency departments*, 36 Am J Emergency Med 608, 608 [2018]) and “[s]tairways are a common location for falls, and they result in a disproportionate risk of death or severe injury” (Jesse V. Jacobs, *A Review of stairway falls and stair negotiation: Lessons learned and future needs to reduce injury*, 49 Gait & Posture 159, 159 [2016]). Almost two million people were admitted to emergency rooms for stairway-related injuries incurred on stairways outside the home between 1990 and 2012 (Blazewick, *supra* at 610). Those injuries were incurred in large part because of characteristics possessed by stairways and not sidewalks: lack of vertical uniformity of the steps, rickety handrails, and missing nosings—all characteris-

tics, it appears, of the stairway in this case. Of course, whether a particular stairway is functionally equivalent to the injury potential of a sidewalk is a fact-intensive inquiry. But consideration of injury potential is the only way to make the “functional equivalence” test consistent with the purpose of the legislature in approving these prior notice statutes.

The majority’s conclusion has regrettable real-world consequences. Village Law § 6-628 and other prior notice statutes “[p]ractically . . . result in limiting a locality’s duty of care” (*Poirier v City of Schenectady*, 85 NY2d 310, 314 [1995]). Today, by declaring the stairs at issue in this case are a “sidewalk,” the Court deprives Mr. Hinton and others like him of the opportunity to prove whether municipalities are negligent in constructing or maintaining stairways that cause injuries. As a result, local governments will have less incentive to maintain their potentially dangerous stairways, making all of us less safe.

The plaintiff in this case does not ask us to overrule *Woodson* and I have no occasion here to consider whether *Woodson* “leads to an unworkable rule, or . . . creates more questions than it resolves, [and therefore] may ultimately be better served by a new rule” (*cf. People v Taylor*, 9 NY3d 129, 149 [2007]). *Woodson* did not resolve the question in this case, which I posed at the start: does the word “sidewalk” mean “stairway”? It does not; I therefore dissent.

Chief Judge DiFiore and Judges Rivera, Stein, Garcia and Feinman concur; Judge Wilson dissents in an opinion in which Judge Fahey concurs.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF
COURT OF APPEALS OR ON CONSENT**

(March 1, 2019 through March 31, 2019)

Rabbinowitz v Robert C.
Gottlieb, P.C.

1st Dept: 167 AD3d 410

3/13/19

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APPEALS WITHDRAWN AND DISCONTINUED

(March 1, 2019 through March 31, 2019)

Niagara Mohawk Power Corp. v Allied Healthcare Prods., Inc.	3d Dept: 137 AD3d 1539	3/5/19
Nicke v Schwartzapfel Partners, P.C.	2d Dept: 148 AD3d 1168	3/6/19

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(March 1, 2019 through March 31, 2019)

People v Adams	1st Dept: 169 AD3d 412 (Bronx)	denied 3/27/19 (Wilson, J.)
People v Alam (Russell)	1st Dept: 168 AD3d 495 (NY 2/27/04)	denied 3/22/19 (Fahey, J.)
People v Alam (Russell)	1st Dept: 168 AD3d 495 (NY 6/14/16)	denied 3/22/19 (Fahey, J.)
People v Alejo	1st Dept: 168 AD3d 485 (NY)	denied 3/12/19 (Fahey, J.)
People v Alexander	2d Dept: 168 AD3d 755 (Queens)	denied 3/27/19 (Feinman, J.)
People v Almonte	1st Dept: 168 AD3d 417 (NY)	denied 3/20/19 (Stein, J.)
People v Altamirano	2d Dept: 168 AD3d 870 (Suffolk)	denied 3/13/19 (Feinman, J.)
People v Alvarez	2d Dept: 168 AD3d 1090 (Kings)	denied 3/27/19 (Feinman, J.)
People v Anderson	App Div, 3d Dept: 2019 NY Slip Op 60664(U) (Albany)	denied 3/27/19 (Feinman, J.)
People v Arroyo	4th Dept: 167 AD3d 1537 (Erie)	denied 3/27/19 (Garcia, J.)
People v Ataroua	1st Dept: 168 AD3d 466 (Bronx)	denied 3/12/19 (Fahey, J.)
People v Ayala-Gonzalez	4th Dept: 167 AD3d 1536 (Erie)	denied 3/25/19 (Stein, J.)
People v Baez	App Div, 2d Dept: 2019 NY Slip Op 63498(U) (Queens)	dismissed 3/28/19 (Wilson, J.)
People v Banga	3d Dept: 168 AD3d 1185 (Schenectady)	denied 3/13/19 (Feinman, J.)
People v Baride	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 139(A) (Queens)	denied 3/11/19 (Feinman, J.)
People v Barnes	4th Dept: 167 AD3d 1589 (Niagara)	denied 3/21/19 (Stein, J.)
People v Barrett	1st Dept: 168 AD3d 497 (NY)	denied 3/27/19 (DiFiore, Ch. J.)
People v Barthelmy	2d Dept: 168 AD3d 871 (Kings)	denied 3/22/19 (Fahey, J.)
People v Benjamin	2d Dept: 168 AD3d 967 (Kings)	denied 3/28/19 (Feinman, J.)

People v Benton	4th Dept: 167 AD3d 1522 (Onondaga)	denied 3/28/19 (Wilson, J.)
People v Bollers	2d Dept: 168 AD3d 872 (Kings)	denied 3/26/19 (Garcia, J.)
People v Boomer	App Div, 3d Dept: 2018 NY Slip Op 91887(U) (Albany)	denied 3/22/19 (DiFiore, Ch. J.)
People v Brandon G.	2d Dept: 169 AD3d 714 (Kings)	denied 3/22/19 (Feinman, J.)
People v Bresiac	App Term, 1st Dept: 62 Misc 3d 138(A) (NY)	denied 3/27/19 (Wilson, J.)
People v Brito	1st Dept: 167 AD3d 516 (NY)	denied 3/12/19 (Fahey, J.)
People v Busreth	3d Dept: 167 AD3d 1089 (Saratoga)	denied 3/20/19 (Rivera, J.)
People v Camber	4th Dept: 167 AD3d 1558 (Onondaga)	denied 3/29/19 (Wilson, J.)
People v Campbell	1st Dept: 168 AD3d 428 (NY)	denied 3/27/19 (Wilson, J.)
People v Carew	2d Dept: 167 AD3d 1032 (Queens)	denied 3/12/19 (Fahey, J.)
People v Cargill	2d Dept: 168 AD3d 873 (Queens)	denied 3/11/19 (Rivera, J.)
People v Carter	2d Dept: 168 AD3d 873 (Kings)	denied 3/12/19 (DiFiore, Ch. J.)
People v Castro	1st Dept: 166 AD3d 448 (NY)	denied 3/18/19 (Stein, J.)
People v Cea	App Term, 2d Dept, 9th & 10th Jud Dists: 62 Misc 3d 130(A) (Suffolk)	dismissed 3/11/19 (Rivera, J.)
People v Ceballos	1st Dept: 167 AD3d 497 (NY)	denied 3/20/19 (Stein, J.)
People v Chandler	2d Dept: 167 AD3d 1033 (Kings)	denied 3/26/19 (Garcia, J.)
People v Charlet	2d Dept: 169 AD3d 712 (Kings)	denied 3/27/19 (Rivera, J.)
People v Chunicarchi	App Term, 2d Dept, 2d, 11th & 13th Just Dists: 62 Misc 3d 139(A) (Queens)	denied 3/20/19 (Stein, J.)
People v Cimino	App Div, 4th Dept, 1/11/19 (Monroe)	dismissed 3/22/19 (Rivera, J.)
People v Clark	2d Dept: 167 AD3d 1035 (Kings)	denied 3/12/19 (Fahey, J.)
People v Cole	3d Dept: 166 AD3d 1219 (Montgomery)	denied 3/1/19 (Wilson, J.)
People v Colon	2d Dept: 168 AD3d 969 (Kings)	denied 3/26/19 (Wilson, J.)
People v Combs	1st Dept: 168 AD3d 478 (NY)	denied 3/28/19 (Wilson, J.)
People v Craft	4th Dept: 167 AD3d 1588 (Niagara)	denied 3/27/19 (Wilson, J.)
People v Cruz	1st Dept: 168 AD3d 561 (NY)	denied 3/1/19 (Rivera, J.)

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People v Cummings	1st Dept: 167 AD3d 533 (NY)	denied 3/26/19 (Garcia, J.)
People v Cutaia	4th Dept: 167 AD3d 1534 (Niagara)	denied 3/27/19 (Garcia, J.)
People v Damon	4th Dept: 169 AD3d 1373 (Niagara)	denied 3/26/19 (Garcia, J.)
People v Daniels (Robert)	3d Dept: 167 AD3d 1088 (Saratoga)	denied 3/20/19 (Stein, J.)
People v Daniels (Robert)	3d Dept: 167 AD3d 1087 (Schenectady)	denied 3/20/19 (Stein, J.)
People v DeJesus	1st Dept: 169 AD3d 445 (Bronx)	denied 3/21/19 (Stein, J.)
People v Deleon	1st Dept: 166 AD3d 542 (NY)	denied 3/12/19 (Fahey, J.)
People v Depetris	4th Dept: 167 AD3d 1590 (Niagara)	denied 3/28/19 (Wilson, J.)
People v Dickenson	2d Dept: 164 AD3d 1358 (Nassau)	denied reconsideration 3/11/19 (Feinman, J.)
People v Dickerson	2d Dept: 168 AD3d 971 (Kings)	denied 3/22/19 (Fahey, J.)
People v Dickson-Eason	App Div, 3d Dept: 2019 NY Slip Op 60668(U) (Albany)	dismissed 3/11/19 (Feinman, J.)
People v Diendere	1st Dept: 167 AD3d 413 (NY)	denied 3/27/19 (Wilson, J.)
People v Dillon	4th Dept: 167 AD3d 1564 (Onondaga)	denied 3/27/19 (Feinman, J.)
People v DiValentino	2d Dept: 166 AD3d 645 (Orange)	denied 3/12/19 (Fahey, J.)
People v Dixon	1st Dept: 168 AD3d 639 (NY)	denied 3/27/19 (Garcia, J.)
People v D.M.	2d Dept: 168 AD3d 879 (Kings)	denied 3/11/19 (Feinman, J.)
People v Dobbins	2d Dept: 167 AD3d 931 (Nassau)	denied 3/28/19 (Feinman, J.)
People v Donely	1st Dept: 168 AD3d 563 (NY)	denied 3/18/19 (Stein, J.)
People v Douce	App Term, 1st Dept: 62 Misc 3d 143(A) (NY)	denied 3/25/19 (Stein, J.)
People v Edison	2d Dept: 167 AD3d 769 (Nassau)	denied 3/14/19 (DiFiore, Ch. J.)
People v Ellis	4th Dept: 167 AD3d 1565 (Monroe)	denied 3/22/19 (DiFiore, Ch. J.)
People v Ervine	App Div, 1st Dept: 2018 NY Slip Op 74644(U) (Bronx)	denied 3/26/19 (Garcia, J.)
People v Escamilla	2d Dept: 168 AD3d 758 (Kings)	denied 3/25/19 (DiFiore, Ch. J.)
People v Faircloth	2d Dept: 162 AD3d 789 (Dutchess)	denied 3/14/19 (Rivera, J.)

People v Febo	1st Dept: 167 AD3d 451 (NY)	denied 3/8/19 (DiFiore, Ch. J.)
People v Felton	1st Dept: 168 AD3d 494 (NY)	denied 3/12/19 (Fahey, J.)
People v Fernandez	2d Dept: 168 AD3d 973 (Queens)	denied 3/21/19 (Feinman, J.)
People v Fick	4th Dept: 167 AD3d 1484 (Livingston)	denied 3/26/19 (Garcia, J.)
People v Fitzhugh	2d Dept: 167 AD3d 933 (Kings)	denied 3/11/19 (Rivera, J.)
People v Flea	3d Dept: 168 AD3d 1225 (Ulster)	denied 3/21/19 (Feinman, J.)
People v Flee	3d Dept: 168 AD3d 1225 (Ulster)	denied 3/21/19 (Feinman, J.)
People v G	4th Dept: 167 AD3d 1465 (Cattaraugus)	denied 3/21/19 (Stein, J.)
People v Gannon (Sally)	App Term, 1st Dept: 62 Misc 3d 138(A) (NY)	denied 3/25/19 (DiFiore, Ch. J.)
People v Gannon (Zafira)	App Term, 1st Dept: 62 Misc 3d 138(A) (NY)	denied 3/25/19 (DiFiore, Ch. J.)
People v Gerratt J.	App Term, 1st Dept: 62 Misc 3d 141(A) (NY)	denied 3/26/19 (Garcia, J.)
People v Gibson	App Div, 4th Dept, 1/10/19 (Erie)	dismissed 3/11/19 (Rivera, J.)
People v Gilley	3d Dept: 163 AD3d 1156 (Albany)	denied 3/15/19 (Fahey, J.)
People v Gomez	2d Dept: 168 AD3d 874 (Queens)	denied 3/26/19 (Wilson, J.)
People v Gonzalez (Douglas)	App Term, 2d Dept, 9th & 10th Jud Dists: 62 Misc 3d 130(A) (Orange)	denied 3/21/19 (Feinman, J.)
People v Gonzalez (Justin)	App Term, 1st Dept: 62 Misc 3d 141(A) (NY)	denied 3/20/19 (Rivera, J.)
People v Gonzalez (Justin)	1st Dept: 168 AD3d 427 (NY)	denied 3/19/19 (DiFiore, Ch. J.)
People v Grand Pubar El Bey	3d Dept: 167 AD3d 1087 (Schenectady)	denied 3/20/19 (Stein, J.)
People v Graves	2d Dept: 168 AD3d 875 (Kings)	denied 3/18/19 (Stein, J.)
People v Green	1st Dept: 168 AD3d 545 (NY)	denied 3/20/19 (Rivera, J.)
People v Griffin	2d Dept: 168 AD3d 760 (Kings)	denied 3/27/19 (Garcia, J.)
People v Guzman (Jose)	1st Dept: 168 AD3d 562 (NY)	denied 3/11/19 (Rivera, J.)
People v Guzman (Luis)	1st Dept: 168 AD3d 528 (NY)	denied 3/26/19 (Garcia, J.)
People v Guzy	3d Dept: 167 AD3d 1230 (Chenango)	denied 3/4/19 (Wilson, J.)
People v Hackett (Patrick)	App Div, 4th Dept: 2019 NY Slip Op 62937(U) (Genesee)	dismissed 3/15/19 (DiFiore, Ch. J.)

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People v Hackett (Patrick)	4th Dept: 166 AD3d 1483 (Genesee)	denied reconsideration 3/25/19 (DiFiore, Ch. J.)
People v Hampton	1st Dept: 168 AD3d 559 (NY)	denied 3/26/19 (Garcia, J.)
People v Harris (Eric)	App Div, 4th Dept, 12/3/18 (Seneca)	dismissed 3/1/19 (Stein, J.)
People v Harris (Michelle)	1st Dept: 166 AD3d 553 (NY)	denied 3/14/19 (Fahey, J.)
People v Harvey	4th Dept: 167 AD3d 1574 (Monroe)	denied 3/13/19 (Feinman, J.)
People v Hayes	2d Dept: 168 AD3d 875 (Kings)	denied 3/11/19 (Feinman, J.)
People v Henry	3d Dept: 166 AD3d 1213 (Chemung)	denied 3/13/19 (Fahey, J.)
People v Higgins	1st Dept: 168 AD3d 417 (NY)	denied 3/12/19 (Fahey, J.)
People v Hodges	1st Dept: 168 AD3d 630 (NY)	denied 3/22/19 (Fahey, J.)
People v Hoke	4th Dept: 167 AD3d 1549 (Ontario)	denied 3/26/19 (Rivera, J.)
People v Holden (Randall)	4th Dept: 167 AD3d 1550 (Ontario)	denied 3/11/19 (Feinman, J.) (Appeal No. 1)
People v Holden (Randall)	4th Dept: 167 AD3d 1550 (Ontario)	denied 3/11/19 (Feinman, J.) (Appeal No. 2)
People v Holden (Randall)	4th Dept: 167 AD3d 1551 (Ontario)	denied 3/11/19 (Feinman, J.) (Appeal No. 3)
People v Holguin	2d Dept: 168 AD3d 1096 (Nassau)	denied 3/29/19 (DiFiore, Ch. J.)
People v Holmes	2d Dept: 167 AD3d 1039 (Kings)	denied 3/25/19 (Stein, J.)
People v Huger	2d Dept: 167 AD3d 1042 (Kings)	denied 3/21/19 (DiFiore, Ch. J.)
People v Jack	2d Dept: 168 AD3d 763 (Kings)	denied 3/1/19 (Rivera, J.)
People v Javi	4th Dept: 167 AD3d 1536 (Erie)	denied 3/25/19 (Stein, J.)
People v Jimenez	4th Dept: 167 AD3d 1573 (Jefferson)	denied 3/27/19 (Feinman, J.)
People v Johnson (Chamia)	4th Dept: 169 AD3d 1480 (Niagara)	denied 3/27/19 (Feinman, J.)
People v Johnson (Isa)	2d Dept: 165 AD3d 1287 (Kings)	denied 3/11/19 (Rivera, J.)
People v Johnson (Michael)	4th Dept: 169 AD3d 1366 (Erie)	denied 3/27/19 (Garcia, J.) (Appeal No. 1)
People v Johnson (William)	4th Dept: 167 AD3d 1512 (Ontario)	denied 3/26/19 (Rivera, J.)

People v Jones (Jahmarley)	2d Dept: 166 AD3d 803 (Queens)	denied 3/27/19 (Garcia, J.)
People v Jones (Markese)	3d Dept: 167 AD3d 1073 (Schenectady)	denied 3/25/19 (Stein, J.)
People v Jones (Stephanie)	3d Dept: 166 AD3d 1394 (Albany)	denied 3/4/19 (Wilson, J.)
People v Jordan	2d Dept: 167 AD3d 1044 (Westchester)	denied 3/12/19 (Fahey, J.)
People v Kader	App Term, 1st Dept: 62 Misc 3d 143(A) (NY)	denied 3/20/19 (Rivera, J.)
People v King	1st Dept: 168 AD3d 584 (NY)	denied 3/26/19 (Wilson, J.)
People v Knox	3d Dept: 167 AD3d 1324 (Ulster)	denied 3/27/19 (Wilson, J.)
People v Kocot	2d Dept: 167 AD3d 940 (Dutchess)	denied 3/26/19 (Garcia, J.)
People v Lancaster	2d Dept: 166 AD3d 807 (Kings)	denied 3/26/19 (Garcia, J.)
People v Leslie (Ezra)	App Div, 2d Dept: 2018 NY Slip Op 75904(U) (Suffolk)	denied reconsideration 3/14/19 (Rivera, J.)
People v Leslie (Ezra)	App Div, 2d Dept: 2018 NY Slip Op 87991(U) (Suffolk)	denied reconsideration 3/14/19 (Rivera, J.)
People v Lewis	2d Dept: 167 AD3d 1045 (Orange)	denied 3/26/19 (Garcia, J.)
People v Linares	3d Dept: 167 AD3d 1067 (Albany)	denied 3/5/19 (Wilson, J.)
People v Lombardo	4th Dept: 169 AD3d 1361 (Niagara)	denied 3/28/19 (Wilson, J.)
People v Loney	2d Dept: 164 AD3d 523 (Kings)	granted 3/1/19 (Wilson, J.)
People v Lopez	2d Dept: 168 AD3d 879 (Queens)	denied 3/11/19 (Feinman, J.)
People v Lora	1st Dept: 168 AD3d 440 (NY)	denied 3/12/19 (Fahey, J.)
People v Love	App Div, 2d Dept: 2018 NY Slip Op 91625(U) (Suffolk)	dismissed 3/26/19 (Garcia, J.)
People v Lumpkin	1st Dept: 169 AD3d 406 (NY)	denied 3/25/19 (DiFiore, Ch. J.)
People v Maldonado (Jonathan)	2d Dept: 167 AD3d 1046 (Westchester)	denied 3/27/19 (Garcia, J.)
People v Maldonado (Manuel)	2d Dept: 167 AD3d 1047 (Westchester)	denied 3/27/19 (Garcia, J.)
People v Mandes	2d Dept: 168 AD3d 764 (Kings)	denied 3/27/19 (Stein, J.)
People v Manning	2d Dept: 168 AD3d 982 (Kings)	denied 3/13/19 (Feinman, J.)

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People v Manzembe-Udekwa	County Ct, 9/7/18 (Steuben)	denied reconsideration 3/21/19 (Stein, J.)
People v Marte	1st Dept: 167 AD3d 409 (NY)	denied 3/1/19 (Stein, J.)
People v Martinez	1st Dept: 168 AD3d 412 (Bronx)	denied 3/25/19 (Stein, J.)
People v Maull	4th Dept: 167 AD3d 1465 (Cattaraugus)	denied 3/21/19 (Stein, J.)
People v McCray	2d Dept: 166 AD3d 907 (Dutchess)	denied 3/25/19 (Stein, J.)
People v McDonald	1st Dept: 167 AD3d 430 (Bronx)	denied 3/4/19 (Stein, J.)
People v McMillon	4th Dept: 167 AD3d 1589 (Monroe)	denied 3/20/19 (Rivera, J.)
People v Mendoza	2d Dept: 169 AD3d 717 (Queens)	denied 3/26/19 (Rivera, J.)
People v Mijo	4th Dept: 167 AD3d 1536 (Erie)	denied 3/25/19 (Stein, J.)
People v Miller (Daniel)	2d Dept: 166 AD3d 812 (Nassau)	denied 3/22/19 (Fahey, J.)
People v Miller (Maurice)	3d Dept: 160 AD3d 1040 (Rensselaer)	denied reconsideration 3/20/19 (Rivera, J.)
People v Mizrahi	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 139(A) (Richmond)	denied 3/21/19 (Feinman, J.)
People v Mohamed	1st Dept: 168 AD3d 563 (NY)	denied 3/12/19 (DiFiore, Ch. J.)
People v Moller	1st Dept: 168 AD3d 425 (NY)	denied 3/1/19 (Stein, J.)
People v Moncrieft	2d Dept: 168 AD3d 982 (Kings)	denied 3/20/19 (Rivera, J.)
People v Montgomery	App Term, 1st Dept: 62 Misc 3d 138(A) (NY)	denied 3/20/19 (Rivera, J.)
People v Moore (Darryl)	2d Dept: 163 AD3d 722 (Queens)	denied 3/27/19 (Wilson, J.)
People v Moore (Gregory)	3d Dept: 167 AD3d 1158 (Schenectady)	denied 3/12/19 (Fahey, J.)
People v Moore (Melvin)	4th Dept: 167 AD3d 1589 (Monroe)	denied 3/13/19 (DiFiore, Ch. J.)
People v Mora	2d Dept: 168 AD3d 986 (Queens)	denied 3/26/19 (Garcia, J.)
People v Moreno-Grantini	1st Dept: 167 AD3d 471 (NY)	denied 3/20/19 (Rivera, J.)
People v Morrow	4th Dept: 167 AD3d 1516 (Steuben)	denied 3/19/19 (Stein, J.)
People v Muriqi	County Ct, 9/6/18 (Steuben)	denied reconsideration 3/21/19 (Stein, J.)

People v Murphy	1st Dept: 168 AD3d 632 (NY)	denied 3/26/19 (Garcia, J.)
People v Myers (Kenneth)	2d Dept: 168 AD3d 986 (Kings)	denied 3/22/19 (Fahey, J.)
People v Myers (Theodore)	4th Dept: 167 AD3d 1573 (Steuben)	denied 3/19/19 (Stein, J.)
People v Nance	App Div, 4th Dept, 1/3/19 (Erie)	dismissed 3/29/19 (Garcia, J.)
People v Napier	1st Dept: 168 AD3d 445 (NY)	denied 3/20/19 (Rivera, J.)
People v Napolitano	County Ct, 1/28/19 (Erie)	denied 3/28/19 (Feinman, J.)
People v Neilson	2d Dept: 167 AD3d 779 (Orange)	denied 3/25/19 (Stein, J.)
People v Ne Ne	3d Dept: 168 AD3d 1185 (Schenectady)	denied 3/13/19 (Feinman, J.)
People v Nikaj	1st Dept: 168 AD3d 609 (NY)	denied 3/20/19 (Rivera, J.)
People v Nikiteas	4th Dept: 167 AD3d 1556 (Monroe)	denied 3/27/19 (Wilson, J.)
People v Nunez	1st Dept: 168 AD3d 421 (NY)	denied 3/28/19 (Wilson, J.)
People v Okoli	App Term, 2d Dept, 9th & 10th Jud Dists: 61 Misc 3d 149(A) (Nassau)	denied 3/26/19 (Garcia, J.)
People v Ortiz (Anthony)	2d Dept: 167 AD3d 658 (Queens)	denied 3/4/19 (Wilson, J.)
People v Ortiz (Randy)	1st Dept: 168 AD3d 463 (NY)	denied 3/13/19 (DiFiore, Ch. J.)
People v Pabon	1st Dept: 167 AD3d 460 (NY)	denied 3/27/19 (Garcia, J.)
People v Panico	County Ct, 1/29/19 (Steuben)	denied 3/21/19 (Stein, J.)
People v Pek	1st Dept: 168 AD3d 526 (NY)	denied 3/14/19 (Rivera, J.)
People v Perez (Jose)	1st Dept: 168 AD3d 475 (NY)	denied 3/12/19 (Fahey, J.)
People v Perez (Rafael)	1st Dept: 167 AD3d 479 (Bronx)	denied 3/6/19 (Wilson, J.)
People v Perry	1st Dept: 168 AD3d 522 (NY)	denied 3/12/19 (Fahey, J.)
People v Phipps	2d Dept: 168 AD3d 881 (Queens)	denied 3/27/19 (Feinman, J.)
People v Pinto	2d Dept: 167 AD3d 659 (Queens)	denied 3/26/19 (Garcia, J.)
People v Power	1st Dept: 168 AD3d 416 (NY)	denied 3/26/19 (Garcia, J.)
People v Pubar	3d Dept: 167 AD3d 1087 (Schenectady)	denied 3/20/19 (Stein, J.)
People v Raad	2d Dept: 166 AD3d 907 (Rockland)	denied 3/26/19 (Garcia, J.)

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People v Rabito	4th Dept: 167 AD3d 1536 (Erie)	denied 3/25/19 (Stein, J.)
People v Rajbar	2d Dept: 168 AD3d 883 (Queens)	denied 3/26/19 (Garcia, J.)
People v Raspa	1st Dept: 167 AD3d 456 (NY)	denied 3/26/19 (Stein, J.)
People v Reddick	App Term, 1st Dept: 61 Misc 3d 147(A) (NY)	denied 3/27/19 (Garcia, J.)
People v Reese	3d Dept: 166 AD3d 1057 (Ulster)	denied 3/12/19 (Fahey, J.)
People v Rice	1st Dept: 168 AD3d 582 (Bronx)	denied 3/29/19 (DiFiore, Ch. J.)
People v Rickenbacker	3d Dept: 168 AD3d 1315 (Sullivan)	denied 3/20/19 (Rivera, J.)
People v Rivera (Jose)	1st Dept: 168 AD3d 520 (NY)	denied 3/25/19 (Stein, J.)
People v Rivera (Robert)	1st Dept: 168 AD3d 556 (Bronx)	denied 3/26/19 (Garcia, J.)
People v Robbins	County Ct, 1/8/19 (Tompkins)	denied 3/13/19 (Feinman, J.)
People v Robertson	1st Dept: 167 AD3d 451 (NY)	denied 3/22/19 (DiFiore, Ch. J.)
People v Robinson	1st Dept: 168 AD3d 605 (NY)	denied 3/20/19 (Rivera, J.)
People v Rodriguez (Anthony)	App Term, 2d Dept, 9th & 10th Jud Dists: 2018 NY Slip Op 92259(U) (Dutchess)	dismissed 3/8/19 (DiFiore, Ch. J.)
People v Rodriguez (Jeramie)	1st Dept: 166 AD3d 562 (Bronx)	denied 3/11/19 (DiFiore, Ch. J.)
People v Rosario	1st Dept: 162 AD3d 470 (NY)	denied 3/27/19 (Garcia, J.)
People v Rousseau	App Term, 2d Dept, 9th & 10th Jud Dists: 62 Misc 3d 127(A) (Suffolk)	denied 3/22/19 (Fahey, J.)
People v Russell	App Div, 4th Dept, 11/13/18 (Cayuga)	dismissed 3/20/19 (Stein, J.)
People v Sam	2d Dept: 164 AD3d 1379 (Kings)	denied reconsideration 3/1/19 (Stein, J.)
People v Sanders	2d Dept: 161 AD3d 1015 (Kings)	denied 3/12/19 (Fahey, J.)
People v Sarita-Sanchez	App Term, 1st Dept: 62 Misc 3d 138(A) (NY)	denied 3/13/19 (DiFiore, Ch. J.)
People v Scott	2d Dept: 161 AD3d 901 (Orange)	denied 3/12/19 (DiFiore, Ch. J.)
People v Seck	2d Dept: 167 AD3d 782 (Richmond)	denied 3/11/19 (Rivera, J.)
People v Shamsuddin	3d Dept: 167 AD3d 1334 (Albany)	denied 3/11/19 (Feinman, J.)
People v Shureb	County Ct, 9/7/18 (Steuben)	denied reconsideration 3/21/19 (Stein, J.)

People v Silver	3d Dept: 168 AD3d 1225 (Ulster)	denied 3/21/19 (Feinman, J.)
People v Simmons	1st Dept: 168 AD3d 548 (NY)	denied 3/21/19 (Stein, J.)
People v Simpson (Precious)	App Term, 2d Dept, 9th & 10th Jud Dists: 61 Misc 3d 148(A) (Westchester)	denied 3/1/19 (Stein, J.)
People v Simpson (Theodore)	App Div, 1st Dept: 2018 NY Slip Op 85535(U) (Bronx)	denied 3/21/19 (DiFiore, Ch. J.)
People v Singleton	App Div, 4th Dept, 12/19/18 (Ontario)	dismissed 3/26/19 (Wilson, J.)
People v Smalls	1st Dept: 168 AD3d 575 (NY)	denied 3/18/19 (Stein, J.)
People v Smith (John)	2d Dept: 167 AD3d 944 (Kings)	denied 3/12/19 (Fahey, J.)
People v Smith (Vincent)	4th Dept: 167 AD3d 1505 (Erie)	denied 3/21/19 (DiFiore, Ch. J.)
People v Spasoff	2d Dept: 168 AD3d 886 (Westchester)	denied 3/22/19 (Feinman, J.)
People v Spruill	2d Dept: 164 AD3d 1270 (Kings)	denied 3/5/19 (Rivera, J.)
People v Steele	4th Dept: 167 AD3d 1514 (Monroe)	denied 3/29/19 (Rivera, J.)
People v Sutton (Aaron)	2d Dept: 167 AD3d 947 (Queens)	denied 3/27/19 (Garcia, J.)
People v Sutton (Charles)	2d Dept: 167 AD3d 947 (Suffolk)	denied 3/11/19 (Rivera, J.)
People v Thomas (Bernard)	4th Dept: 167 AD3d 1589 (Erie)	denied 3/21/19 (DiFiore, Ch. J.)
People v Thomas (Richard)	2d Dept: 168 AD3d 766 (Queens)	denied 3/12/19 (Fahey, J.)
People v Thompson	2d Dept: 168 AD3d 771 (Richmond)	denied 3/12/19 (Fahey, J.)
People v Tolbert	1st Dept: 168 AD3d 498 (Bronx)	denied 3/27/19 (Wilson, J.)
People v Torres	2d Dept: 168 AD3d 887 (Queens)	denied 3/12/19 (DiFiore, Ch. J.)
People v Tutti	3d Dept: 168 AD3d 1185 (Schenectady)	denied 3/13/19 (Feinman, J.)
People v Tyler	4th Dept: 166 AD3d 1556 (Erie)	denied reconsideration 3/19/19 (DiFiore, Ch. J.)
People v Ullah	1st Dept: 166 AD3d 471 (NY)	denied 3/18/19 (Stein, J.)
People v Utak	App Term, 2d Dept, 9th & 10th Jud Dists: 62 Misc 3d 140(A) (Westchester)	denied 3/12/19 (Fahey, J.)
People v Valachovic	3d Dept: 163 AD3d 1351 (Montgomery)	denied 3/20/19 (Rivera, J.)
People v Vaquero	2d Dept: 168 AD3d 1000 (Kings)	denied 3/27/19 (Garcia, J.)
People v Vasquez	3d Dept: 168 AD3d 1185 (Schenectady)	denied 3/13/19 (Feinman, J.)

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People v Vecchio	2d Dept: 168 AD3d 1000 (Queens)	denied 3/19/19 (DiFiore, Ch. J.)
People v Vega	4th Dept: 167 AD3d 1468 (Orleans)	denied 3/25/19 (DiFiore, Ch. J.)
People v Venzen	1st Dept: 168 AD3d 457 (NY)	denied 3/29/19 (Wilson, J.)
People v Vias	2d Dept: 167 AD3d 950 (Richmond)	denied 3/21/19 (Stein, J.)
People v Vicente	2d Dept: 167 AD3d 951 (Suffolk)	denied 3/12/19 (Fahey, J.)
People v Villanueva	2d Dept: 168 AD3d 769 (Queens)	denied 3/21/19 (DiFiore, Ch. J.)
People v Walcott	2d Dept: 168 AD3d 888 (Kings)	denied 3/28/19 (Feinman, J.)
People v Walker	4th Dept: 167 AD3d 1502 (Monroe)	denied 3/27/19 (Garcia, J.)
People v Ward	1st Dept: 168 AD3d 432 (NY)	denied 3/21/19 (Stein, J.)
People v Warner	4th Dept: 167 AD3d 1492 (Oneida)	denied 3/26/19 (Garcia, J.)
People v Washington	1st Dept: 168 AD3d 439 (NY)	denied 3/26/19 (Garcia, J.)
People v Watkins	3d Dept: 166 AD3d 1239 (Warren)	denied 3/19/19 (Stein, J.)
People v Weaver	3d Dept: 167 AD3d 1238 (Albany)	denied 3/26/19 (Garcia, J.)
People v Wilcott	1st Dept: 168 AD3d 478 (NY)	denied 3/25/19 (Stein, J.)
People v Williams (Devon)	2d Dept: 168 AD3d 770 (Kings)	denied 3/12/19 (Fahey, J.)
People v Williams (Leroy)	2d Dept: 165 AD3d 848 (Kings)	denied 3/19/19 (DiFiore, Ch. J.)
People v Williams (Michael)	App Div, 3d Dept: 2019 NY Slip Op 61955(U) (Albany)	denied 3/26/19 (Garcia, J.)
People v Williams (Ronald)	App Term, 1st Dept: 62 Misc 3d 137(A) (Bronx)	denied 3/26/19 (Garcia, J.)
People v Wilson (Jeremy)	1st Dept: 168 AD3d 598 (NY)	denied 3/25/19 (DiFiore, Ch. J.)
People v Wilson (Kaseem)	1st Dept: 167 AD3d 478 (NY)	denied 3/29/19 (DiFiore, Ch. J.)
People v Wilson (Lamont)	App Term, 1st Dept: 62 Misc 3d 137(A) (NY)	denied 3/12/19 (DiFiore, Ch. J.)
People v Wilson (Scott)	2d Dept: 168 AD3d 889 (Suffolk)	denied 3/20/19 (Stein, J.)
People v Winfrey	1st Dept: 168 AD3d 422 (NY)	denied 3/11/19 (Rivera, J.)
People v Young	2d Dept: 168 AD3d 771 (Richmond)	denied 3/12/19 (Fahey, J.)
People v Zurek	4th Dept: 166 AD3d 1539 (Oneida)	denied 3/26/19 (Garcia, J.)

[123 NE3d 255, 99 NYS3d 771]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALEXIS RODRIGUEZ, Appellant.

Decided April 2, 2019

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered August 9, 2018. The Appellate Division affirmed a judgment of the Schenectady County Court (Matthew J. Sypniewski, J.), which had convicted defendant, upon his plea of guilty, of assault in the first degree.

People v Rodriguez, 164 AD3d 1024, affirmed.

HEADNOTE

Crimes — Plea Bargaining — Enforcement of Agreement — Scope of Cooperation Agreement

In a prosecution for murder and assault, where defendant confessed to the crimes and explained that they were retaliation for a prior invasion of his home by the murder victim and others and then entered into a written cooperation agreement in exchange for a favorable sentence, the trial court properly determined that defendant's refusal to testify in connection with the home invasion prosecution against an associate of the murder victim, who was also an alleged perpetrator of the home invasion, violated the express terms of his cooperation agreement. The plain language of the agreement whereby defendant promised to "cooperate completely and truthfully . . . on all matters in which his cooperation [was] requested, including but not limited to" the prosecution of his accomplices on charges related to the murder and assault, was objectively susceptible to but one interpretation. The trial court, therefore, did not abuse its discretion by denying defendant's motion to withdraw his guilty plea based on his claimed subjective misinterpretation of the agreement or by concluding, to the contrary, that defendant reasonably understood that his cooperation in the home invasion prosecution was required. When defendant signed the agreement, he already had testified to the associate's involvement in the home invasion before the grand jury in the murder and assault prosecution, and he also had assisted the police with their investigation of the home invasion by identifying that individual in a photo array.

APPEARANCES OF COUNSEL

Law Office of Paul J. Connolly, Delmar (*Paul J. Connolly* of counsel), for appellant.

Robert M. Carney, District Attorney, Schenectady (*Peter Willis* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. As part of a plea agreement and in exchange for a favorable sentence, defendant entered into a written cooperation agreement whereby he promised to “cooperate completely and truthfully with law enforcement authorities, including the police and the District Attorney’s Office, on all matters in which his cooperation is requested, including but not limited to the prosecution of [defendant’s accomplices] on charges related to the murder of Jose Sanchez and the assault of [Sanchez’s brother].” Prior to entering into the cooperation agreement, defendant had confessed to his involvement in the Sanchez murder and assault, explaining that the crimes were retaliation for a prior invasion of defendant’s home by Sanchez and his associates, including Jose Marin. When defendant signed the agreement, he already had testified to Marin’s involvement in the home invasion before the grand jury in the Sanchez matter, and he also had assisted the police with their investigation of the home invasion by identifying Marin in a photo array.

The cooperation agreement cautioned defendant that a “failure to fully and successfully cooperate” would result in forfeiture of the sentencing promise and imposition of an enhanced sentence. Before County Court accepted his guilty plea, defendant confirmed on the record that he understood this aspect of the cooperation agreement. Defendant pleaded guilty to murder and assault, and he was subsequently sentenced on the murder count. Upon consent of the parties, sentencing on the assault count was postponed until defendant had fulfilled his obligations under the cooperation agreement. Before imposition of that sentence, the District Attorney’s Office requested that defendant testify against Marin in connection with the prosecution of the home invasion. Defendant refused.

On this record, County Court did not err when it determined that defendant’s refusal to testify against Marin violated the express terms of his cooperation agreement. The plain language of the agreement was objectively susceptible to but one interpretation (*see People v Cataldo*, 39 NY2d 578, 580 [1976]). County Court, therefore, did not abuse its discretion by denying defendant’s motion to withdraw his guilty plea based on his claimed subjective misinterpretation of the agreement or by concluding, to the contrary, that defendant reasonably understood that his cooperation in the Marin prosecution was required (*see id.*; *see also People v Collier*, 22 NY3d 429, 433 [2013]). Defendant’s ineffective assistance of counsel argument

likewise lacks merit (*see People v Manor*, 27 NY3d 1012, 1014 [2016]).

RIVERA, J. (dissenting). This appeal presents an open question that this Court has never addressed: what interpretive standards apply to the terms of a cooperation agreement when, as here, a defendant claims to have neither intended nor understood the agreement to include the People's demand for assistance with an unspecified criminal investigation or prosecution? Rather than tackle that issue head on, the majority affirms the Appellate Division's order in a single sentence analysis that is short on reasoning and creates confusion in this undeveloped area. Our constitutional role is to provide guidance to our state's courts and bar by providing clear rules of legal analysis. In the case of cooperation agreements, those bargained-for promises are subject to our traditional rules of contract interpretation. Applying those rules here, I conclude that defendant's cooperation agreement is limited in scope to the crimes for which he pleaded guilty. Therefore, defendant did not violate the agreement when he refused to testify against an individual charged with a different, prior crime against defendant and his family. Accordingly, it was error for County Court to deny defendant's motion to withdraw his guilty plea upon that court's refusal to sentence defendant to the concurrent terms he bargained for. I dissent.¹

I.

The Cooperation Agreement, Defendant's Sentence and the Motion to Withdraw his Guilty Plea

Defendant Alexis Rodriguez and his family were victims of a

1. Defendant stresses that "[t]his appeal presents issues concerning the construction of plea agreements, by which the overwhelming majority of criminal prosecutions in this state are resolved," that it specifically raises the important issue of how a court is to construe a cooperation agreement that purports to require a defendant's unlimited cooperation, and that resolution of these issues is of especially great significance to defendant since it determines whether he serves 20 years to life or 40 years to life in prison. To that end, defendant objects to placement of his appeal on our alternative review track (*see* Rules of Ct of Appeals [22 NYCRR] § 500.11 [b]). As I have previously stated, once a majority of the Court chooses to maintain the appeal on the sua sponte merits review (SSM) track, notwithstanding a party's objection, we must consider the issues in the posture presented (*see Matter of Luis P.*, 32 NY3d 1165, 1167 n 2 [2018, Rivera, J., dissenting]). For the reasons I discuss in this dissent, based on the record and the SSM letter submissions, I would reverse the Appellate Division.

home invasion burglary arising from a dispute between defendant and Jose Sanchez. Defendant owed money to Sanchez for his help registering and insuring a minivan. Sanchez and three accomplices—Sanchez's two brothers and a man later identified as Victor Marin—entered defendant's home and brandished weapons at defendant and his family. Defendant told the men to take the minivan in place of the money he owed, which they did. Before leaving, Marin threatened defendant and his family that anyone who reported the incident to the police would be killed.

About a month later, defendant and three accomplices armed with guns went to Sanchez's house intending to retrieve the vehicle. A fight ensued, during which defendant's accomplices fought and stabbed one of Sanchez's brothers. One of the accomplices then stabbed Sanchez, another shot him multiple times, and after Sanchez fell to the ground, defendant shot Sanchez several more times.

Defendant was arrested for Sanchez's murder and the stabbing and beating of Sanchez's brother. Defendant confessed and told the police about the home invasion to explain the motive for his crimes. The People offered a plea bargain to defendant that required his cooperation with law enforcement. During the negotiations but before signing a written agreement, defendant was shown a photo array from which he identified Marin as a participant in the home invasion. Defendant previously knew Marin only by nickname. Defendant also waived immunity and testified before a grand jury regarding Sanchez's murder. During this testimony defendant again described his motive for the murder as the home invasion and stated that Marin was one of the participants in that prior crime. The People explained to the grand jury that defendant's testimony was relevant only as to the motive behind the murder of Sanchez and the assault on Sanchez's brother. Nevertheless, based on that testimony, the People successfully requested the grand jury consider charges against Marin for burglary in the first degree.

Thereafter, defendant signed a written plea and cooperation agreement. The agreement provides, in relevant part, that

“Defendant will cooperate completely and truthfully with law enforcement authorities, including the police and the District Attorney's Office, on all matters in which his cooperation is requested,

including but not limited to the prosecution of [defendant's accomplices] on charges related to the murder of Jose Sanchez and the assault of [Sanchez's brother]."

The agreement also stated that "Defendant hereby verifies, and it is a condition of this agreement, that his Grand Jury testimony . . . regarding this murder and assault was truthful. It is a condition of this agreement that he agree to look at photo array compilations in an attempt to identify the other two accomplices."

Pursuant to the agreement, defendant would plead guilty to murder in the second degree and assault in the first degree. In exchange for his plea and cooperation, he would be sentenced to 20 years to life in prison on the murder count and a concurrent sentence of 20 years in prison, followed by five years' post-release supervision on the assault count. If defendant failed to comply with the cooperation agreement, he would be sentenced to a consecutive term of 10 to 20 years in prison on his plea to the assault. Accordingly, upon defendant's plea, the court sentenced him to 20 years to life in prison for the murder conviction and adjourned sentencing on the assault conviction pending defendant's compliance with the cooperation agreement.

Approximately 10 months after entering into the cooperation agreement and pleading guilty, the People requested that defendant testify against Marin in Marin's burglary trial for the home invasion committed against defendant and his family. Defendant refused to testify. He maintained that the agreement did not require this testimony and he was afraid for his family's safety.

After the court warned defendant that it would view the cooperation agreement as requiring him to testify in Marin's trial, defendant filed a motion to withdraw his guilty plea on the ground that the plea was not knowing, intelligent, and voluntary. Defendant attested by affidavit that he had a justifiable belief that the cooperation agreement only required him to cooperate in the murder and assault prosecution and had he known the People would require him to testify at a public trial regarding the burglary and home invasion he would have rejected the agreement out of concern for his family's safety. In opposition to the motion, the People conceded that the agreement does not mention Marin or the home invasion, but they

argued that because defendant picked Marin out of an array and mentioned him in his grand jury testimony the agreement should be read to include his cooperation on “the case in which his family were victims.” County Court denied defendant’s motion, noting the broad language in the agreement, and that defendant had already cooperated in the “case” against Marin. The court further concluded that defendant violated the terms of the agreement by refusing to testify, and therefore it imposed a consecutive term of 20 years in prison for the assault conviction.

The Appellate Division, with two Justices dissenting, affirmed the judgment convicting defendant upon his guilty plea to assault in the first degree (*People v Rodriguez*, 164 AD3d 1024 [3d Dept 2018]). The majority held that the cooperation agreement “did not limit [defendant’s] obligation to cooperate with the People solely with respect to Sanchez’s murder and the assault of Sanchez’s brother, but rather applied to ‘all matters in which his cooperation [was] requested’ ” (*id.* at 1026). The majority rejected defendant’s argument that the agreement’s language was “fatally overbroad” because, according to the majority, the two crimes were “inextricably intertwined” (*id.*). The two dissenting Justices concluded that the cooperation agreement did not include defendant’s public testimony at Marin’s trial because defendant testified about the home invasion in the grand jury solely to explain the motive for the assault and murder and had made it clear to law enforcement from the very beginning that Sanchez and Marin had threatened to kill his family if he reported the home invasion (*id.* at 1027-1028 [Lynch, J., dissenting]). Therefore, because defendant did not violate the cooperation agreement, consecutive sentences should not have been imposed (*id.*). One of the dissenting Justices granted defendant leave to appeal to this Court (32 NY3d 943 [2018]).

II.

Applicable Legal Standards

Defendant argues that the cooperation agreement, by its plain terms, encompasses only defendant’s cooperation as to the murder and assault crimes because it includes no mention of the home invasion. Defendant further maintains that even if construction of the agreement required consideration of extrinsic evidence, a review of the circumstances surrounding

the formation of the agreement establishes that defendant and the People understood that defendant was agreeing to cooperate solely in the prosecution of the murder and assault.

The People respond that “[t]he agreement clearly contemplated [defendant’s] continued cooperation and explicitly expanded the scope of the cooperation so that the People would be free to utilize [defendant] as a witness whenever he was needed, and for any crime for which he was needed.” Under the People’s interpretation of the agreement, defendant should have known that the police and prosecutor would seek his cooperation on crimes that he had already discussed with them, which included the home invasion.²

The Court has never articulated the standard by which a court may interpret the terms and conditions of a defendant’s cooperation agreement with the People. Such agreements set forth the understanding between a defendant and the State as to the bargained-for promises of the respective parties. In return for a defendant’s cooperation with a criminal investigation and prosecution, the defendant gains something meaningful in exchange. Here, it is undisputed that the People and defendant intended that, if he cooperated in accordance with the agreement, the court would run his second-degree murder and first-degree assault sentences concurrently, but any violation would result in consecutive sentences for these two counts. To that end, upon defendant’s plea, the court sentenced him on the murder count and adjourned the sentence on the assault count to ensure defendant’s compliance with the agreement. The cooperation agreement has all the hallmarks of a bargained-for promise and should be subject to traditional rules of contract interpretation. The application of contract doctrine to a cooperation agreement is supported by prior case law recognizing that a defendant is entitled to the contractual remedy of specific performance of a plea bargain (*People v McConnell*, 49 NY2d 340, 343 [1980]). Thus, there is no principled reason to adopt different interpretive rules to a cooperation agreement which sets the terms by which defendant agrees to plea.

2. The People’s alternative argument that the Court lacks jurisdiction to consider this appeal because it is a mixed question of fact and law with record support is easily disposed of as wholly without merit. The proper interpretation of a cooperation agreement—like any contract or bargained-for promise—is a question of law reviewable by this Court (see e.g. *Burlington Ins. Co. v NYC Tr. Auth.*, 29 NY3d 313, 321 [2017]).

“The best evidence of what parties to a written agreement intend is what they say in their writing” (*Slamow v Del Col*, 79 NY2d 1016, 1018 [1992]). Under long-standing rules of contract interpretation, “[w]here the terms of a contract are clear and unambiguous, the intent of the parties must be found within the four corners of the contract, giving a practical interpretation to the language employed and reading the contract as a whole” (*Ellington v EMI Music, Inc.*, 24 NY3d 239, 244 [2014], citing *Greenfield v Philles Records*, 98 NY2d 562, 569 [2002], and *W.W.W. Assoc. v Giancontieri*, 77 NY2d 157, 162-163 [1990]). The agreement is unambiguous if the language it uses has “a definite and precise meaning, unattended by danger of misconception in the purport of the [agreement] itself, and concerning which there is no reasonable basis for a difference of opinion” (*Breed v Insurance Co. of N. Am.*, 46 NY2d 351, 355 [1978]). However, where the agreement is ambiguous, a court may look beyond the four corners of the parties’ agreement (*Greenfield*, 98 NY2d at 569). “[E]vidence outside the four corners of the document . . . is admissible only if a court finds ambiguity in the contract. As a general rule, extrinsic evidence is inadmissible to alter or add a provision to a written agreement” (*Schron v Troutman Sanders LLP*, 20 NY3d 430, 436 [2013]).

III.

The Scope of the Cooperation Agreement

Defendant persuasively argues that he did not understand the cooperation agreement to encompass his testimony at Marin’s burglary trial. First, because the agreement does not reference the home invasion or Marin, and second, even apart from the language itself, the circumstances surrounding formation of the agreement establish that defendant would not have understood that he was required to assist in prosecuting Marin.

A. Plain Language of the Agreement

As is obvious from the plain language of the cooperation agreement, and undisputed by the People, the writing does not expressly mention the home invasion or Marin. Yet, and in notable contrast, the agreement unambiguously explains that defendant must cooperate with law enforcement in the investigation and prosecution of the murder and assault. Specifically, the agreement refers to the “pending case”—the murder and

assault prosecution—and the prosecution of defendant’s accomplices to these crimes. Further, the agreement required that defendant look at a photo array to identify his “two accomplices” from the murder and assault, which he previously identified only by their nicknames, but makes no mention of Marin or the prior crime.

Nor can the agreement’s condition that defendant’s grand jury testimony “regarding this murder and assault was truthful” be read to mean that defendant was required to testify in a separate public trial in another case against someone who was not an accomplice and not even present during the murder and assault. The fact that in the grand jury defendant referenced the home invasion to explain his motive for the crimes to which he eventually pleaded guilty does not affect the analysis since even the People instructed the grand jury to consider that testimony solely for purposes of deciding whether to charge on the murder and assault.

The absence of specific language referencing a particular promise ordinarily ends the inquiry as the court may not rewrite a contract to include terms the parties have expressly omitted (*Greenfield*, 98 NY2d at 569-570 [“if the agreement on its face is reasonably susceptible of only one meaning, a court is not free to alter the contract to reflect its personal notions of fairness and equity”]). Silence is not an invitation to judicial redrafting.

B. Extrinsic Evidence of Defendant’s Agreed to Promises

In an effort to fit their proposed broad interpretation within the confines of our contract interpretive rules, the People point to a catchall requirement in the agreement that provides defendant will cooperate “on all matters in which his cooperation is requested, including but not limited to” the murder and assault prosecution. The People argue this phrase establishes that defendant would cooperate with law enforcement in the home invasion investigation and prosecution because defendant understood that at a minimum this language referred to all the crimes he had discussed with the police and District Attorney’s office up to that point.

This language cannot operate as the People claim because the text is overbroad and vague, and also because it relies on an interpretation contradicted by defendant’s statements and the events surrounding the contract formation. As to the first deficiency, reading the language as the People suggest would

render the agreement a nullity (see e.g. *Benjamin Rush Empls. United v McCarthy*, 76 NY2d 781, 782 [1990]). There is no severance provision that would salvage such a flawed agreement.

As to the second deficiency, the People are hard pressed to establish that defendant understood he was promising to publicly testify against Marin in exchange for concurrent sentences for the murder and assault crimes. Assuming, arguendo, the catchall language renders the scope of the agreement ambiguous, under our rules of contract we then consider the circumstances surrounding the formation of the agreement to determine the parties' understanding at that time to determine whether they have a shared intent as to the meaning of the terms. In other words, we look to see if there exists the proverbial "meeting of the minds" (*Stonehill Capital Mgt. LLC v Bank of the W.*, 28 NY3d 439, 448 [2016], quoting *Farago v Burke*, 262 NY 229, 231 [1933]; see also *Matter of Express Indus. & Term. Corp. v New York State Dept. of Transp.*, 93 NY2d 584, 589 [1999] ["there must be a manifestation of mutual assent sufficiently definite to assure that the parties are truly in agreement with respect to all material terms"]). Here, there was no shared understanding for anything other than defendant's cooperation with the crimes he and his accomplices committed against Sanchez and his brother.

As thoroughly discussed by the Appellate Division dissent, the circumstances surrounding the formation of this agreement do not establish that defendant—or the People at the time—understood the agreement to require the defendant's cooperation in the investigation and prosecution of the home invasion. As the dissent below reasoned, the omission of any mention of Marin in the cooperation agreement "is consistent with the main focus of the police investigation, which was to identify and prosecute the accomplices involved in the murder and assault of Sanchez and his brother" (*Rodriguez*, 164 AD3d at 1027). In the grand jury, the People made abundantly clear on the record that defendant was being asked about the home invasion only because it was relevant to the murder of Sanchez and the assault on Sanchez's brother. Significantly, although the cooperation agreement eventually signed by defendant mirrored a prior draft that predated his grand jury testimony, the final agreement never mentioned Marin. It is implausible to read the agreement to require defendant's public testimony against Marin for the home invasion when at the time of de-

fendant's confession he had informed police that Sanchez and Marin had threatened to kill his family if any of them reported the home invasion. Indeed, defendant has never filed a complaint against Marin, and the only times he mentioned him was to the police and in the secrecy of the grand jury proceedings to explain his motive for his own crimes. Finally, defendant refused to testify at Marin's burglary trial over concerns for his family's safety and even after the court explicitly warned him that he faced an additional 20 years in prison for not testifying. Defendant surely would not have entered an agreement to plead guilty knowing at the time that he could never fulfill the promise without endangering his family, thus ensuring an added two decades of incarceration without any commensurate benefit.

IV.

Defendant's Motion to Withdraw His Plea

As I have explained, the cooperation agreement cannot be construed to require defendant's testimony against Marin. The majority disagrees, pronouncing without further explanation that the "agreement was objectively susceptible to but one interpretation" (majority mem at 957). The majority's citation to *People v Cataldo* (39 NY2d 578 [1976]) sheds no light on the standards or analysis that lead to this conclusion, and the reference, like the majority "opinion," fails to provide guiding principles for courts to interpret such agreements in the future. *Cataldo* is particularly inapt because it is a memorandum order devoid of a single citation and does not even involve a cooperation agreement. The Court in *Cataldo* held that a defendant may not withdraw a plea where the court complies with the promises it made when it accepted the plea (*id.* at 580). In *Cataldo*, the trial court explained the exact terms of the bargain at the time of the plea, which, as relevant to the appeal, included the court's promise that if the Probation Department recommended a term of imprisonment, the court would follow the recommendation, with a maximum not in excess of five years. The court then imposed the indeterminate term of imprisonment with a five-year maximum recommended by the Department. *Cataldo* is not applicable here where the question presented is the proper interpretation of an agreement that the People argue, in part, requires consideration beyond the four corners of the document.

The majority's citation to *People v Manor* (27 NY3d 1012 [2016]) appears to suggest that case supports County Court's denial of defendant's motion to withdraw. *Manor* is another easily distinguishable memorandum opinion which involved a defendant's motion to withdraw his guilty plea on the ground that he was under the influence of alcohol and marijuana at the time of the plea (*id.* at 1013). The question presented in *Manor* was whether County Court abused its discretion in denying defendant's motion without a hearing. This Court held there was no abuse of discretion because defendant had a fair opportunity to argue the motion on written submissions, family coercion was not grounds to withdraw the plea, and defendant was silent at the time of the plea as to his alleged use of alcohol and drugs. The appeal did not require the Court to interpret the plea agreement—thus, not even by analogy is the case applicable here.

Under the cooperation agreement, defendant entered a guilty plea for the murder and assault charges in exchange for a specified term of concurrent sentences. He did so without understanding that the sentencing promise was conditioned on his testimony against Marin at Marin's burglary trial. Thus, County Court erred when it refused to impose a concurrent sentence on the ground that defendant violated a term not encompassed by the agreement, and the Appellate Division erroneously upheld defendant's conviction on the same reasoning. Defendant should have been sentenced to a concurrent sentence on the assault conviction, or his motion to withdraw the plea should have been granted.

Chief Judge DiFiore and Judges Stein, Fahey, Garcia and Feinman concur; Judge Rivera dissents in an opinion in which Judge Wilson concurs.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

A. ANONYMOUS, Appellant, v MOUNT SINAI HOSPITAL, Respondent, et al., Defendant.

Submitted February 19, 2019; decided April 2, 2019

Reported below, 164 AD3d 1167.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 32 NY3d 913 (2019)].

BOARD OF DIRECTORS OF WINDSOR OWNERS CORP., Respondent,
v ELAINE PLATT, Appellant.

Submitted February 19, 2019; decided April 2, 2019

Reported below, 161 AD3d 637.

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 1133 (2019)].

In the Matter of LISA BROWN, Appellant, v WILLIAM J. BRATTON, as Commissioner of the New York City Police, et al., Respondents.

Submitted February 11, 2019; decided April 2, 2019

Reported below, 166 AD3d 421.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

EMIGRANT BANK, Formerly Known as EMIGRANT SAVINGS BANK, Plaintiff, v WANG REAL PROPERTY, LLC, et al., Appellants, et al., Defendants. 41ST ROAD PROPERTIES, LLC, Nonparty Respondent.

Submitted January 28, 2019; decided April 2, 2019

Reported below, 2018 NY Slip Op 91504(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of Will of SYDNEY H. FIELDS, Deceased. RICHARD FIELDS, Appellant, v DIANA PALMERI, Respondent.

Submitted February 11, 2019; decided April 2, 2019

Reported below, 2018 NY Slip Op 84318(U); 2018 NY Slip Op 91716(U).

On the Court's own motion, appeal, insofar as taken from the September 2018 Appellate Division order, dismissed, without costs, as untimely (*see* CPLR 5513 [a]); appeal, insofar as taken from the December 2018 Appellate Division order, dismissed, without costs, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution. Motion, insofar as it seeks leave to appeal from the September 2018 Appellate Division order, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal from the December 2018 Appellate Division order, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ROYAL DANNIEL HALL, Appellant, v DEBRA BEN-ZIGER, as Records Officer for the State Police, Respondent.

Submitted February 11, 2019; decided April 2, 2019

Reported below, 163 AD3d 1382.

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 909 (2018)].

In the Matter of L&M BUS CORP. et al., Respondents, v NEW YORK CITY DEPT. OF EDUC. et al., Appellants.

Submitted January 28, 2019; decided April 2, 2019

Reported below, 167 AD3d 454.

Motion by Local 1181-1061, Amalgamated Transit Union, AFL-CIO, for leave to appear amicus curiae on the motion for leave to appeal herein granted and the memorandum is accepted as filed.

MALOU MANANGHAYA, as Administratrix of the Estate of TRISTAN MICHAEL MANANGHAYA, Deceased, et al., Respondents, v BRONX-LEBANON HOSPITAL CENTER, Respondent-Appellant, et al., Defendant.

NAPOLI TRANSPORTATION, INC., Third-Party Plaintiff-Respondent, v AGGREKO, LLC, Third-Party Defendant-Appellant-Respondent. (And Another Third-Party Action.)

Submitted January 22, 2019; decided April 2, 2019

Reported below, 165 AD3d 117.

Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

TEDDY MOORE, Appellant, v FRANK GUERRA, Defendant, and
CITY OF NEW YORK et al., Respondents.

Submitted February 11, 2019; decided April 2, 2019

Reported below, 2019 NY Slip Op 61208(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TAMARKUA GARLAND, Appellant.

Submitted February 11, 2019; decided April 2, 2019

Reported below, 155 AD3d 527.

Motion for reargument denied [*see* 32 NY3d 1094 (2018)].

In the Matter of DENNIS W. QUIRK, Appellant, v JONATHAN LIPPMAN, Respondent.

Submitted February 4, 2019; decided April 2, 2019

Reported below, 156 AD3d 516.

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 911 (2018)]. Motion for ancillary relief dismissed as moot.

Chief Judge DiFIORE taking no part.

[123 NE3d 263, 99 NYS3d 779]

In the Matter of LURLYN A. WINCHESTER, a Justice of the
Monroe Town Court, Orange County.

Decided April 2, 2019

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), of whether the Honorable Lurlyn A. Winchester should be removed from the office of Justice of Monroe Town Court, Orange County.

HEADNOTE**Judges — Removal from Office**

The Court of Appeals, on its own motion, removed a Town Court Justice from office pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8).

OPINION OF THE COURT**MEMORANDUM.**

On the Court's own motion, it is determined that Lurlyn A. Winchester is removed pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8).

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur.

[123 NE3d 264, 99 NYS3d 780]

In the Matter of the Claim of SHELLY A. GROVER, Appellant, v
STATE INSURANCE FUND, Respondent. WORKERS' COMPENSA-
TION BOARD, Respondent.

Decided May 2, 2019

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered October 4, 2018. The Appellate Division, with two Justices dissenting, affirmed a decision of the Workers' Compensation Board which had ruled that claimant's injury did not arise out of and in the course of her employment and denied her claim for workers' compensation benefits.

Matter of Grover v State Ins. Fund, 165 AD3d 1329, affirmed.

HEADNOTE**Workers' Compensation — Injuries Arising out of and in Course of Employment**

The Appellate Division properly concluded that on the record, substantial evidence supported the Workers' Compensation Board's determination that claimant's injury was not compensable.

APPEARANCES OF COUNSEL

Bronk & Somers, P.C., Rochester (*Mark C. Somers* of counsel), for appellant.

Hamberger & Weiss LLP, Rochester (*Joseph P. DeCoursey* of counsel), for State Insurance Fund, respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. On this record, substantial evidence supports the Workers' Compensation Board's determination that claimant's injury is not compensable.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

[124 NE3d 162, 100 NYS3d 612]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PERRY
PENDELL, Appellant.

Decided March 21, 2019

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered August 23, 2018. The Appellate Division order, insofar as appealed from, affirmed so much of a judgment of the Columbia County Court (Richard M. Koweeck, J.), as had convicted defendant, upon a jury verdict, of rape in the second degree (nine counts), criminal sexual act in the second degree, possessing a sexual performance by a child (count 20 of indictment No. 13-017) and criminal solicitation in the second degree.

People v Pendell, 164 AD3d 1063, affirmed.

HEADNOTE**Crimes — Evidence — Photographic Evidence — Authentication**

In a prosecution for rape in the second degree and related crimes, the trial court did not abuse its discretion in admitting into evidence contested photographs, as they were sufficiently authenticated through the testimony of the complainant and the law enforcement agents who extracted them from defendant's cell phone and computers.

APPEARANCES OF COUNSEL

Hug Law, PLLC, Albany (*Matthew C. Hug* of counsel), for appellant.

Paul Czajka, District Attorney, Hudson (*Trevor O. Flike* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed. The contested photographs were sufficiently authenticated through the testimony of the complainant and the law enforcement agents who extracted the photographs from the defendant's cell phone and computers (*see People v Byrnes*, 33 NY2d 343, 347 [1974]). Accordingly, County Court did not abuse its discretion in admitting the evidence. Defendant's remaining arguments lack merit.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, affirmed, in a memorandum.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(April 1, 2019 through April 30, 2019)

Benzemann v Citibank N.A.

1st Dept: 149 AD3d 586

4/9/19

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(April 1, 2019 through April 30, 2019)

People v Acevedo
(Henry)

1st Dept: 168 AD3d 545 (NY)

denied 4/4/19
(Wilson, J.)

People v Acevedo (Mark)	App Div, 1st Dept: 2019 NY Slip Op 61368(U) (NY)	dismissed 4/15/19 (Fahey, J.)
People v Ackerman	App Div, 3d Dept: 2018 NY Slip Op 82636(U) (Albany)	denied reconsideration 4/12/19 (Wilson, J.)
People v Agee	App Div, 4th Dept: 2019 NY Slip Op 62908(U) (Cayuga)	dismissed 4/30/19 (Stein, J.)
People v Aguayo	2d Dept: 168 AD3d 1090 (Kings)	denied 4/2/19 (Fahey, J.)
People v Alfonso	1st Dept: 169 AD3d 428 (Bronx)	denied 4/3/19 (Garcia, J.)
People v Allende (Marcelino)	1st Dept: 168 AD3d 464 (NY)	granted 4/2/19 (Rivera, J.)
People v Allende (Marcelino)	1st Dept: 168 AD3d 464 (NY)	denied 4/2/19 (Rivera, J.)
People v Alnutt	App Div, 3d Dept: 2019 NY Slip Op 61072(U) (Fulton)	denied 4/22/19 (Fahey, J.)
People v Alvarez	1st Dept: 169 AD3d 568 (NY)	denied 4/26/19 (DiFiore, Ch. J.)
People v Arevalo	2d Dept: 168 AD3d 1091 (Nassau)	denied 4/2/19 (Fahey, J.)
People v Arline	4th Dept: 169 AD3d 1371 (Wyoming)	denied 4/22/19 (DiFiore, Ch. J.)
People v Ash	App Div, 2d Dept: 2019 NY Slip Op 62561(U) (Kings)	dismissed 4/25/19 (Feinman, J.)
People v "Bados"	2d Dept: 169 AD3d 924 (Dutchess)	denied 4/25/19 (Feinman, J.)
People v Bailey	2d Dept: 167 AD3d 924 (Queens)	denied 4/16/19 (Rivera, J.)
People v Balkum	4th Dept: 169 AD3d 1358 (Monroe)	denied 4/25/19 (Stein, J.)
People v Banks	2d Dept: 169 AD3d 711 (Kings)	denied 4/30/19 (DiFiore, Ch. J.)
People v Bates	1st Dept: 168 AD3d 617 (NY)	denied 4/2/19 (Fahey, J.)
People v Batista	1st Dept: 168 AD3d 602 (NY)	denied 4/11/19 (Stein, J.)
People v Bowens	2d Dept: 167 AD3d 927 (Richmond)	denied 4/23/19 (DiFiore, Ch. J.)
People v Boyle	App Term, 1st Dept: 62 Misc 3d 148(A) (NY)	denied 4/25/19 (Garcia, J.)
People v Brandon B.	App Term, 1st Dept: 62 Misc 3d 138(A) (Bronx)	denied 4/11/19 (Stein, J.)
People v Breedy	1st Dept: 170 AD3d 414 (NY)	denied 4/22/19 (Fahey, J.)
People v Briggs	4th Dept: 169 AD3d 1369 (Onondaga)	denied 4/24/19 (Wilson, J.)
People v Brown	2d Dept: 169 AD3d 817 (Queens)	denied 4/10/19 (Feinman, J.)

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People v Butter	4th Dept: 169 AD3d 1521 (Monroe)	denied 4/25/19 (Feinman, J.)
People v Butts	2d Dept: 170 AD3d 880 (Kings)	denied 4/25/19 (Feinman, J.)
People v Cambridge	2d Dept: 168 AD3d 1092 (Kings)	denied 4/12/19 (Wilson, J.)
People v Carryl	2d Dept: 169 AD3d 818 (Kings)	denied 4/15/19 (Fahey, J.)
People v Clark	2d Dept: 169 AD3d 916 (Kings)	denied 4/29/19 (Feinman, J.)
People v Clayton	4th Dept: 169 AD3d 1360 (Niagara)	denied 4/24/19 (Wilson, J.)
People v Clyburn-Dawson	4th Dept: 169 AD3d 1460 (Monroe)	denied 4/19/19 (Rivera, J.)
People v Colon-Colon	4th Dept: 169 AD3d 187 (Genesee)	denied 4/16/19 (Rivera, J.)
People v Corsini	App Term, 1st Dept: 61 Misc 3d 128(A) (NY)	denied 4/2/19 (Stein, J.)
People v Covington	2d Dept: 169 AD3d 835 (Kings)	denied 4/24/19 (Rivera, J.)
People v Cruz	1st Dept: 170 AD3d 467 (NY)	denied 4/26/19 (DiFiore, Ch. J.)
People v Dance, John	4th Dept: 169 AD3d 1500 (Ontario)	denied 4/25/19 (Garcia, J.)
People v Daniels	App Term, 1st Dept: 62 Misc 3d 146(A) (Bronx)	denied 4/22/19 (Fahey, J.)
People v Darden	1st Dept: 169 AD3d 619 (Bronx)	denied 4/22/19 (Fahey, J.)
People v Davis	1st Dept: 168 AD3d 616 (NY)	denied 4/16/19 (Rivera, J.)
People v DeJesus	2d Dept: 169 AD3d 712 (Queens)	denied 4/2/19 (Stein, J.)
People v Dennis (Andre)	1st Dept: 168 AD3d 644 (NY)	denied 4/2/19 (Fahey, J.)
People v Dennis (Denise)	1st Dept: 168 AD3d 644 (NY)	denied 4/2/19 (Fahey, J.)
People v Dyson	2d Dept: 169 AD3d 917 (Kings)	denied 4/15/19 (Fahey, J.)
People v Elijah R.	2d Dept: 168 AD3d 766 (Richmond)	denied 4/10/19 (DiFiore, Ch. J.)
People v Ellison	4th Dept: 169 AD3d 1373 (Monroe)	denied 4/30/19 (Wilson, J.)
People v Evans	2d Dept: 169 AD3d 824 (Queens)	denied 4/12/19 (Wilson, J.)
People v Faller	3d Dept: 166 AD3d 1380 (Clinton)	denied 4/22/19 (DiFiore, Ch. J.)
People v Fassino	2d Dept: 169 AD3d 921 (Suffolk)	denied 4/24/19 (Fahey, J.)
People v Flores (Fermin)	1st Dept: 169 AD3d 418 (NY)	denied 4/16/19 (DiFiore, Ch. J.)

People v Flores (Jonathan)	App Term, 2d Dept, 9th & 10th Jud Dists: 62 Misc 3d 46 (Nassau)	denied 4/11/19 (Wilson, J.)
People v Foster	App Term, 1st Dept: 62 Misc 3d 137(A) (Bronx)	denied 4/8/19 (Rivera, J.)
People v Freeman (Lamont)	4th Dept: 169 AD3d 1513 (Monroe)	denied 4/22/19 (DiFiore, Ch. J.)
People v Freeman (Rodger)	2d Dept: 164 AD3d 1257 (Kings)	denied reconsideration 4/15/19 (Fahey, J.)
People v Freire	2d Dept: 168 AD3d 973 (Queens)	denied 4/10/19 (Feinman, J.)
People v Friday	App Term, 1st Dept: 62 Misc 3d 143(A) (Bronx)	denied 4/16/19 (Rivera, J.)
People v Fulgencio	2d Dept: 168 AD3d 1094 (Westchester)	denied 4/24/19 (Stein, J.)
People v Gee	4th Dept: 169 AD3d 1367 (Niagara)	denied 4/4/19 (Wilson, J.)
People v Gibbs	4th Dept: 167 AD3d 1580 (Monroe)	denied 4/4/19 (Wilson, J.)
People v Gigliotti	4th Dept: 169 AD3d 1478 (Monroe)	denied 4/25/19 (Garcia, J.)
People v Glasgow	2d Dept: 169 AD3d 825 (Kings)	denied 4/16/19 (Rivera, J.)
People v Goldwire	3d Dept: 168 AD3d 1286 (Broome)	denied 4/25/19 (Feinman, J.)
People v Gordon (Keiyon)	1st Dept: 169 AD3d 598 (NY)	denied 4/30/19 (Stein, J.)
People v Gordon (Tyrone)	2d Dept: 169 AD3d 714 (Suffolk)	granted 4/22/19 (Wilson, J.)
People v Grant (Markland)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 63 Misc 3d 15 (Kings)	dismissed 4/10/19 (Feinman, J.)
People v Grant (Markland)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 147(A) (Kings)	denied 4/12/19 (Feinman, J.)
People v Greene	2d Dept: 169 AD3d 715 (Suffolk)	denied 4/10/19 (Feinman, J.)
People v Griffin	4th Dept: 166 AD3d 1543 (Monroe)	denied reconsideration 4/25/19 (Garcia, J.)
People v Hairston	2d Dept: 167 AD3d 935 (Westchester)	denied 4/8/19 (Rivera, J.)
People v Hall (Dequan)	2d Dept: 168 AD3d 761 (Kings)	denied 4/19/19 (Wilson, J.)
People v Hall (Quinntez)	4th Dept: 169 AD3d 1379 (Ontario)	denied 4/22/19 (DiFiore, Ch. J.)
People v Hannan	1st Dept: 169 AD3d 510 (NY)	denied 4/15/19 (Fahey, J.)
People v Hardy	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 63 Misc 3d 6 (Queens)	granted 4/18/19 (Fahey, J.)
People v Harrell	1st Dept: 168 AD3d 591 (NY)	denied 4/8/19 (Rivera, J.)

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People v Harris (Eric)	App Div, 4th Dept, 12/3/18 (Seneca)	denied reconsideration 4/30/19 (Stein, J.)
People v Harris (Nicholas)	2d Dept: 169 AD3d 924 (Dutchess)	denied 4/25/19 (Feinman, J.)
People v Hayes	1st Dept: 168 AD3d 489 (NY)	denied 4/24/19 (Fahey, J.)
People v Henderson	4th Dept: 169 AD3d 1521 (Monroe)	denied 4/25/19 (Feinman, J.)
People v Hernandez (Christopher)	App Term, 1st Dept: 62 Misc 3d 143(A) (NY)	denied 4/2/19 (Fahey, J.)
People v Hernandez (Jose)	1st Dept: 169 AD3d 549 (NY)	denied 4/18/19 (Stein, J.)
People v Hernandez (Thomas)	2d Dept: 167 AD3d 936 (Queens)	denied 4/3/19 (Feinman, J.)
People v Hines	4th Dept: 169 AD3d 1500 (Ontario)	denied 4/25/19 (Garcia, J.)
People v Holmes	App Term, 1st Dept: 62 Misc 3d 138(A) (NY)	denied 4/25/19 (Garcia, J.)
People v Hunt	App Div, 4th Dept, 1/10/19 (Onondaga)	denied reconsideration 4/10/19 (DiFiore, Ch. J.)
People v Hurley	App Div, 3d Dept: 2018 NY Slip Op 88135(U) (Franklin)	denied reconsideration 4/25/19 (Feinman, J.)
People v Hyland	2d Dept: 168 AD3d 1096 (Nassau)	denied 4/16/19 (Rivera, J.)
People v J-5	3d Dept: 166 AD3d 1222 (Schenectady)	granted 4/26/19 (DiFiore, Ch. J.)
People v Jackson (Deryck)	1st Dept: 168 AD3d 473 (NY)	denied 4/22/19 (Fahey, J.)
People v Jackson (Luke)	1st Dept: 168 AD3d 636 (NY)	denied 4/16/19 (Rivera, J.)
People v Jackson (Michael)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 61 Misc 3d 136(A) (Kings)	denied 4/10/19 (Feinman, J.)
People v Jacquez	2d Dept: 169 AD3d 827 (Kings)	denied 4/10/19 (Feinman, J.)
People v Javier	1st Dept: 168 AD3d 644 (NY)	dismissed 4/29/19 (Stein, J.)
People v Jiggetts	1st Dept: 168 AD3d 507 (NY)	denied 4/2/19 (Garcia, J.)
People v Joseph (Christopher)	1st Dept: 169 AD3d 430 (NY)	denied 4/25/19 (Garcia, J.)
People v Joseph (Gyasi)	2d Dept: 168 AD3d 877 (Kings)	denied 4/2/19 (Fahey, J.)
People v Joseph (Kethlie)	2d Dept: 169 AD3d 926 (Suffolk)	denied 4/24/19 (Fahey, J.)
People v Kelly	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 148(A) (Queens)	denied 4/25/19 (Garcia, J.)

People v Kester	4th Dept: 169 AD3d 1353 (Erie)	denied 4/29/19 (DiFiore, Ch. J.)
People v Keyshawn T.	2d Dept: 169 AD3d 833 (Kings)	denied 4/25/19 (Feinman, J.)
People v Khamisi	App Term, 1st Dept: 62 Misc 3d 145(A) (NY)	denied 4/26/19 (DiFiore, Ch. J.)
People v Knight	1st Dept: 169 AD3d 493 (NY)	denied 4/25/19 (Garcia, J.)
People v Knox	1st Dept: 170 AD3d 434 (NY)	denied 4/24/19 (Rivera, J.)
People v Koch	2d Dept: 168 AD3d 977 (Nassau)	denied 4/25/19 (Garcia, J.)
People v Lappe	2d Dept: 169 AD3d 927 (Suffolk)	denied 4/24/19 (Fahey, J.)
People v Larkins	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 147(A) (Kings)	denied 4/22/19 (Fahey, J.)
People v Law	2d Dept: 169 AD3d 929 (Nassau)	denied 4/26/19 (DiFiore, Ch. J.)
People v Lecler	App Term, 1st Dept: 62 Misc 3d 141(A) (NY)	denied 4/15/19 (Fahey, J.)
People v Lostumbo	App Div, 4th Dept, 12/3/18 (Onondaga)	denied reconsideration 4/9/19 (Feinman, J.)
People v MacLaren	County Ct, 10/25/18 (Delaware)	dismissed 4/18/19 (Rivera, J.)
People v Macon	4th Dept: 169 AD3d 1439 (Monroe)	denied 4/11/19 (Stein, J.)
People v Mallet (Antonio)	App Div, 1st Dept: 2018 NY Slip Op 86751(U) (Bronx)	denied 4/22/19 (DiFiore, Ch. J.)
People v Mallet (Antonio)	1st Dept: 168 AD3d 542 (Bronx)	denied 4/22/19 (DiFiore, Ch. J.)
People v Marshall	4th Dept: 166 AD3d 1543 (Monroe)	denied 4/19/19 (Wilson, J.)
People v Martinez (Anthony)	App Div, 2d Dept: 2019 NY Slip Op 60718(U) (Kings)	dismissed 4/2/19 (Fahey, J.)
People v Martinez (Kevin)	1st Dept: 167 AD3d 465 (NY)	denied 4/25/19 (Feinman, J.)
People v Martinez (Pedro)	2d Dept: 167 AD3d 941 (Queens)	denied 4/30/19 (Wilson, J.)
People v McBee	2d Dept: 169 AD3d 929 (Orange)	denied 4/19/19 (Wilson, J.)
People v McDonald	1st Dept: 169 AD3d 442 (Bronx)	denied 4/12/19 (Wilson, J.)
People v McKinnon	4th Dept: 169 AD3d 1460 (Onondaga)	denied 4/29/19 (DiFiore, Ch. J.)
People v McLaughlin	4th Dept: 169 AD3d 1438 (Niagara)	denied 4/23/19 (Wilson, J.)
People v Mejia	2d Dept: 169 AD3d 715 (Queens)	denied 4/16/19 (Rivera, J.)

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People v Mercado	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 63 Misc 3d 1 (Richmond)	denied 4/23/19 (DiFiore, Ch. J.)
People v Mercer	3d Dept: 169 AD3d 1112 (Ulster)	denied 4/16/19 (Rivera, J.)
People v Miller	App Div, 4th Dept, 1/10/19 (Monroe)	dismissed 4/9/19 (Feinman, J.)
People v Mitchell	3d Dept: 166 AD3d 1233 (Fulton)	denied 4/2/19 (Fahey, J.)
People v Monforte	3d Dept: 166 AD3d 1222 (Schenectady)	granted 4/26/19 (DiFiore, Ch. J.)
People v Moore (Malik)	3d Dept: 169 AD3d 1110 (Albany)	denied 4/25/19 (Garcia, J.)
People v Moore (Melvin)	4th Dept: 167 AD3d 1589 (Monroe)	denied reconsideration 4/26/19 (DiFiore, Ch. J.)
People v Moore (Patrick)	2d Dept: 168 AD3d 1102 (Kings)	denied 4/26/19 (Fahey, J.)
People v Morales	App Term, 1st Dept: 62 Misc 3d 137(A) (Bronx)	denied 4/25/19 (Garcia, J.)
People v Muhammad	1st Dept: 168 AD3d 549 (Bronx)	denied 4/4/19 (Wilson, J.)
People v Musaid	1st Dept: 168 AD3d 526 (NY)	denied 4/25/19 (Garcia, J.)
People v Niang	App Term, 1st Dept: 62 Misc 3d 146(A) (NY)	denied 4/26/19 (DiFiore, Ch. J.)
People v Nieves	3d Dept: 166 AD3d 1380 (Clinton)	denied 4/22/19 (DiFiore, Ch. J.)
People v Nunes	3d Dept: 168 AD3d 1187 (Schenectady)	denied 4/2/19 (Rivera, J.)
People v Ordenana	App Term, 1st Dept: 61 Misc 3d 155(A) (Bronx)	denied 4/19/19 (Wilson, J.)
People v Ortega	1st Dept: 169 AD3d 510 (Bronx)	denied 4/24/19 (Rivera, J.)
People v Ortiz (Anthony)	4th Dept: 167 AD3d 1562 (Monroe)	denied 4/22/19 (Stein, J.)
People v Ortiz (Jose)	1st Dept: 168 AD3d 482 (Bronx)	denied 4/24/19 (Fahey, J.)
People v Pacheco	1st Dept: 168 AD3d 548 (Bronx)	denied 4/4/19 (Wilson, J.)
People v Pagan	2d Dept: 169 AD3d 718 (Kings)	denied 4/10/19 (Feinman, J.)
People v Page	4th Dept: 166 AD3d 1472 (Erie)	granted 4/3/19 (Wilson, J.)
People v Palmer (O'Neil)	1st Dept: 169 AD3d 490 (NY)	denied 4/25/19 (Garcia, J.)
People v Palmer (Ruashawn)	2d Dept: 169 AD3d 933 (Kings)	denied 4/30/19 (Wilson, J.)
People v Parris	4th Dept: 170 AD3d 1536 (Monroe)	denied 4/16/19 (Rivera, J.)

People v Parsons	4th Dept: 169 AD3d 1425 (Monroe)	denied 4/25/19 (Feinman, J.)
People v Parwez	App Term, 1st Dept: 62 Misc 3d 144(A) (NY)	denied 4/25/19 (Garcia, J.)
People v Peak	1st Dept: 170 AD3d 465 (NY)	denied 4/16/19 (Rivera, J.)
People v Peaks	2d Dept: 169 AD3d 718 (Kings)	denied 4/4/19 (Wilson, J.)
People v Perez (Julio)	2d Dept: 168 AD3d 988 (Kings)	denied 4/30/19 (Wilson, J.)
People v Perez (Manuel)	2d Dept: 168 AD3d 881 (Queens)	denied 4/3/19 (Garcia, J.)
People v Perez (Victor)	2d Dept: 169 AD3d 720 (Kings)	denied 4/22/19 (Fahey, J.)
People v Perkins	3d Dept: 166 AD3d 1285 (Schenectady)	denied 4/2/19 (Stein, J.)
People v Peryea	3d Dept: 169 AD3d 1120 (Clinton)	denied 4/2/19 (Fahey, J.)
People v Peters	1st Dept: 166 AD3d 500 (NY)	denied 4/26/19 (DiFiore, Ch. J.)
People v Petrone	2d Dept: 168 AD3d 989 (Queens)	denied 4/22/19 (DiFiore, Ch. J.)
People v Pina-Rodriguez	1st Dept: 170 AD3d 491 (NY)	denied 4/30/19 (Wilson, J.)
People v Poindexter	4th Dept: 169 AD3d 1352 (Monroe)	denied 4/25/19 (Garcia, J.)
People v Popoola	App Term, 1st Dept: 62 Misc 3d 146(A) (NY)	denied 4/25/19 (Garcia, J.)
People v Powell	2d Dept: 166 AD3d 660 (Queens)	granted 4/26/19 (Rivera, J.)
People v Ramirez (Daniel)	App Term, 1st Dept: 62 Misc 3d 146(A) (NY)	denied 4/22/19 (Fahey, J.)
People v Ramirez (Yunnel)	1st Dept: 169 AD3d 566 (Bronx)	denied 4/26/19 (DiFiore, Ch. J.)
People v Ravosa	1st Dept: 167 AD3d 529 (NY)	denied 4/4/19 (Wilson, J.)
People v Rivera	1st Dept: 169 AD3d 576 (NY)	denied 4/30/19 (DiFiore, Ch. J.)
People v Rivers	App Div, 2d Dept: 2019 NY Slip Op 60035(U) (Kings)	dismissed 4/25/19 (Garcia, J.)
People v Rizzuto	1st Dept: 167 AD3d 531 (NY)	denied 4/22/19 (DiFiore, Ch. J.)
People v Rodriguez (Carlos)	1st Dept: 167 AD3d 446 (NY)	denied 4/10/19 (DiFiore, Ch. J.)
People v Rodriguez (Hugo)	1st Dept: 169 AD3d 410 (NY)	denied 4/30/19 (Wilson, J.)
People v Rosa-Gomez	2d Dept: 169 AD3d 831 (Queens)	denied 4/10/19 (Feinman, J.)
People v Rosario	4th Dept: 169 AD3d 1481 (Onondaga)	denied 4/25/19 (Feinman, J.)

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People v Rozier	1st Dept: 169 AD3d 526 (Bronx)	denied 4/22/19 (DiFiore, Ch. J.)
People v Russell	3d Dept: 167 AD3d 1326 (Ulster)	denied 4/25/19 (Garcia, J.)
People v Sampson	4th Dept: 169 AD3d 1364 (Jefferson)	denied 4/22/19 (DiFiore, Ch. J.)
People v Sanchez	1st Dept: 169 AD3d 500 (NY)	denied 4/15/19 (Fahey, J.)
People v Sass	1st Dept: 169 AD3d 536 (NY)	denied 4/25/19 (Garcia, J.)
People v Sawyer	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 140(A) (Kings)	denied 4/2/19 (Fahey, J.)
People v Seador	1st Dept: 169 AD3d 619 (NY)	denied 4/19/19 (Rivera, J.)
People v Shabazz	App Div, 3d Dept: 2018 NY Slip Op 88135(U) (Franklin)	denied reconsideration 4/25/19 (Feinman, J.)
People v Shortell	App Div, 3d Dept: 2019 NY Slip Op 64285(U) (Clinton)	dismissed 4/29/19 (Feinman, J.)
People v Simser	2d Dept: 168 AD3d 884 (Kings)	denied 4/22/19 (DiFiore, Ch. J.)
People v Sosa-Campana	1st Dept: 167 AD3d 464 (NY)	denied 4/30/19 (DiFiore, Ch. J.)
People v Soto	2d Dept: 169 AD3d 937 (Kings)	denied 4/24/19 (Rivera, J.)
People v Spencer	2d Dept: 169 AD3d 722 (Nassau)	denied 4/26/19 (Feinman, J.)
People v Staten-Jackson (Bryan)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 139(A), 2019 NY Slip Op 50050(U) (Kings)	denied 4/4/19 (Wilson, J.)
People v Staten-Jackson (Bryan)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 139(A), 2019 NY Slip Op 50051(U) (Kings)	denied 4/4/19 (Wilson, J.)
People v Steele	3d Dept: 168 AD3d 1276 (Schenectady)	denied 4/3/19 (Garcia, J.)
People v Stendardo	4th Dept: 169 AD3d 1447 (Monroe)	denied 4/26/19 (DiFiore, Ch. J.)
People v Sylvester	App Term, 1st Dept: 62 Misc 3d 146(A) (NY)	denied 4/25/19 (Garcia, J.)
People v Szatanek	4th Dept: 169 AD3d 1448 (Oswego)	denied 4/25/19 (Feinman, J.)
People v Tanner	2d Dept: 169 AD3d 1068 (Kings)	denied 4/24/19 (Rivera, J.)
People v Tatis	1st Dept: 170 AD3d 45 (Bronx)	denied 4/25/19 (Garcia, J.)
People v Taylor (Devon)	1st Dept: 168 AD3d 468 (Bronx)	denied 4/3/19 (Stein, J.)
People v Taylor (Jeffrey)	1st Dept: 170 AD3d 494 (NY)	denied 4/29/19 (Stein, J.)
People v Torres (Carlos)	1st Dept: 169 AD3d 506 (Bronx)	denied 4/16/19 (Rivera, J.)

People v Torres (Jason)	1st Dept: 169 AD3d 562 (NY)	denied 4/19/19 (Wilson, J.)
People v Torress	App Div, 4th Dept, 2/1/19 (Monroe)	denied 4/30/19 (DiFiore, Ch. J.)
People v Toure	1st Dept: 169 AD3d 439 (Bronx)	denied 4/5/19 (Wilson, J.)
People v Triplett	App Div, 1st Dept: 2017 NY Slip Op 95153(U) (NY)	dismissed 4/12/19 (DiFiore, Ch. J.)
People v Tucker	4th Dept: 169 AD3d 1368 (Monroe)	denied 4/10/19 (Feinman, J.)
People v Velasquez	2d Dept: 168 AD3d 768 (Westchester)	denied 4/19/19 (Wilson, J.)
People v Ventura (Mark)	App Term, 2d Dept, 9th & 10th Jud Dists: 63 Misc 3d 130(A) (Putnam)	denied 4/18/19 (Stein, J.)
People v Ventura (Ricky)	App Term, 2d Dept, 9th & 10th Jud Dists: 63 Misc 3d 39 (Putnam)	denied 4/18/19 (Stein, J.)
People v Viera	2d Dept: 164 AD3d 1277 (Kings)	denied reconsideration 4/15/19 (Fahey, J.)
People v Walker	1st Dept: 169 AD3d 587 (NY)	denied 4/25/19 (Garcia, J.)
People v Walton	2d Dept: 168 AD3d 1001 (Westchester)	denied 4/10/19 (Feinman, J.)
People v Ward (Anthony)	2d Dept: 169 AD3d 833 (Nassau)	denied 4/16/19 (Rivera, J.)
People v Ward (Claude)	2d Dept: 168 AD3d 1107 (Kings)	denied 4/12/19 (Feinman, J.)
People v Warren	2d Dept: 168 AD3d 770 (Suffolk)	denied 4/16/19 (Rivera, J.)
People v Washington	App Div, 3d Dept: 2019 NY Slip Op 63290(U) (Broome)	dismissed 4/25/19 (Garcia, J.)
People v Watkins	App Div, 1st Dept: 2019 NY Slip Op 61701(U) (Bronx)	dismissed 4/25/19 (Stein, J.)
People v Watson (Anthony)	4th Dept: 169 AD3d 1526 (Erie)	denied 4/10/19 (Feinman, J.)
People v Watson (Earl)	2d Dept: 157 AD3d 914 (Kings)	denied 4/2/19 (Fahey, J.)
People v Webb	2d Dept: 167 AD3d 953 (Queens)	denied 4/19/19 (Wilson, J.)
People v Weber	4th Dept: 169 AD3d 1372 (Erie)	denied 4/30/19 (Wilson, J.)
People v Wellington	4th Dept: 169 AD3d 1440 (Herkimer)	denied 4/11/19 (Wilson, J.)
People v Williams (Anton)	2d Dept: 168 AD3d 1002 (Suffolk)	denied 4/2/19 (Fahey, J.)
People v Williams (James)	2d Dept: 169 AD3d 835 (Kings)	denied 4/24/19 (Rivera, J.)
People v Wilson	App Div, 1st Dept: 2018 NY Slip Op 90111(U) (Bronx)	denied reconsideration 4/25/19 (Garcia, J.)

People v Winston	4th Dept: 169 AD3d 1361 (Monroe)	denied 4/25/19 (Garcia, J.)
People v Woods	App Div, 3d Dept: 2019 NY Slip Op 62008(U) (Albany)	dismissed 4/12/19 (Wilson, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL
Decisions of Appellate Division Justices *

(April 1, 2019 through April 30, 2019)

People v Alston	1st Dept: 169 AD3d 1 (NY)	granted 4/30/19 (Renwick, J.)
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[124 NE3d 247, 100 NYS3d 697]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BORIS
BROWN, Appellant.

Argued March 19, 2019; decided May 2, 2019

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 21, 2017. The Appellate Division affirmed (1) a judgment of the Supreme Court, New York County (Bonnie G. Wittner, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree and criminal possession of a weapon in the second degree (two counts); and (2) an order of that court which had denied defendant's CPL 440.10 motion to vacate the judgment.

People v Brown, 155 AD3d 509, modified.

HEADNOTES

Crimes — Appeal — Matters Reviewable — Mixed Question of Law and Fact — Challenge to Photographic Array

1. Defendant's judgment of conviction did not warrant reversal on the basis of the suppression court's decision that an accidental viewing of his photograph by a witness to the events surrounding the underlying shooting was not police-arranged. Whether a photo display is unduly suggestive is a mixed question of law and fact and review by the Court of Appeals is limited to whether there is support in the record for the finding of the courts below. Here, such support existed. Moreover, the suppression court found the identification to be otherwise reliable.

* Includes only applications that were granted.

Crimes — Vacatur of Judgment of Conviction — Improper Summary Denial of CPL 440.10 Motion — Possible Conflict of Interest Arising from Concurrent Representation

2. The Supreme Court abused its discretion in determining that a hearing was not warranted to address the allegations contained in defendant's CPL 440.10 motion regarding his trial attorney's concurrent representation of a witness to the crimes, on unrelated charges, and whether any conflict of interest existed warranting reversal of his judgment of conviction. Upon a CPL 440.10 motion, the court must consider "all papers of both parties . . . and . . . all documentary evidence or information, if any, . . . for the purpose of ascertaining whether the motion is determinable without a hearing to resolve questions of fact" (CPL 440.30 [1] [a]). A court may deny a motion to vacate a judgment of conviction without conducting a hearing in certain specific circumstances (*see* CPL 440.30 [4]). Here, although defendant had informed Supreme Court during a pretrial conflicts inquiry that he or his family had hired his trial attorney, he alleged in his postconviction motion that the witness paid the attorney to represent defendant, resulting in an undisclosed and "unwaivable" conflict, and that the attorney failed to explain any possible conflict of interest related to the witness's payment of defendant's legal fees. Furthermore, defendant submitted an affirmation from his current appellate counsel, who relayed details of a conversation he affirmed he had with the trial attorney about the payment of defendant's legal fees, and recorded prison phone calls, which purportedly corroborated defendant's allegation that the witness hired and paid for his trial attorney.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (David J. Klem of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Sylvia Wertheimer and Alan Gadlin of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified in accordance with this memorandum and, as so modified, affirmed. The Appellate Division properly affirmed the judgment of conviction, however, a hearing is required on the CPL 440.10 motion.

In the early morning hours of October 3, 2010, defendant fired into a courtyard at the AK Houses in Manhattan. He killed a 17-year-old victim and wounded another bystander. The shooting was apparently in response to an earlier robbery.

Defendant and his codefendant, Devon Coughman, were arrested and charged with various crimes, including depraved indifference murder, felony murder, felony assault, attempted robbery, and two counts of weapon possession. Jeffrey Chabrowe was hired to represent defendant. While defendant's case was pending, Ahmed Salaam, who had been present at

the shooting and the earlier robbery, was arrested on unrelated charges. Salaam hired Chabrowe to represent him in that case.

After being informed of a potential conflict related to Chabrowe's concurrent representation of defendant and Salaam, Supreme Court appointed conflict counsel to advise defendant and conducted a conflicts inquiry pursuant to *People v Gomborg* (38 NY2d 307 [1975]). The People indicated that although Salaam was present at the scene of the murder, they were not planning to call him as a witness. Additionally, Coughman's attorney represented that he was also not likely to call Salaam to testify. Conflict counsel recounted to the court that he met with defendant and explained to him that Salaam was "represented [by Chabrowe] in some unrelated case" and "may be called by the co-defendant" to testify. Conflict counsel informed the court that he discussed with defendant "the potential conflict and the problems that arise, should that happen" and that defendant indicated that he understood and wished to waive the conflict. The court then engaged in its own inquiry of defendant, who again expressed his desire to waive any conflict. The court accepted the waiver and the case proceeded to trial with Chabrowe acting as defendant's counsel.

Defendant was found guilty and sentenced to 25 years to life in prison for depraved indifference murder and to two concurrent seven-year prison terms on the weapon possession counts. The weapon possession sentences were set to run consecutively to the sentence for murder, for an aggregate sentence of 32 years to life in prison.

Defendant subsequently moved to set aside his conviction pursuant to CPL 440.10, contending that he was denied his constitutional right to effective, conflict-free representation. With respect to the concurrent representation that was the subject of the conflict inquiry conducted by Supreme Court, defendant alleged that the only conflict explained to him was that his attorney would be prohibited from cross-examining Salaam if he were called as a witness. Although defendant had informed the trial court during the *Gomborg* inquiry that he or his family had hired Chabrowe, he alleged that Salaam paid Chabrowe to represent defendant, resulting in an undisclosed and "unwaivable" conflict, and that Chabrowe failed to explain any possible conflict of interest related to Salaam's payment of defendant's legal fees. In addition to his own affidavit, defendant submitted an affirmation from his current appellate counsel, who relayed details of a conversation he affirmed he

had with Chabrowe about the payment of defendant's legal fees. Defendant also relied on recorded prison phone calls, which purportedly corroborate defendant's allegation that Salaam hired and paid for his attorney. Defendant concluded by noting that "[s]hould the factual allegations set forth in defendant's motion be controverted by the People, then the Court should order a hearing to resolve those issues of fact."

In response, the People dismissed the allegations in appellate counsel's affirmation as hearsay and concluded that "defendant's claims are unsupported by sworn allegations and there is no reasonable possibility they are true." The People also argued that even assuming defendant's allegations were true, there was no conflict of interest, and in the alternative, the conflict was potential, not actual, and was waived by defendant. In this respect, the People contend that even if there was a potential conflict that was not waived, "it is due to defendant's unjustifiable failure to adduce the pertinent facts on the record." Supreme Court made no findings of fact or conclusions of law and denied the motion in a one sentence order, stating: "[d]efendant's motion pursuant to CPL 440.10 is denied without a hearing for the reasons set forth at great length in the People's opposing [papers]."

On direct appeal, defendant challenged the decision of the suppression court that an accidental viewing of defendant's photograph by a witness to the events surrounding the shooting was not police-arranged and argued that the court erred in imposing consecutive sentences. The Appellate Division affirmed the judgment of conviction and the denial of defendant's CPL 440.10 motion in a single order (*People v Brown*, 155 AD3d 509, 509-510 [1st Dept 2017]). The Court held that "the record supports the conclusion that" Chabrowe had a "potential conflict of interest" that was "validly waived" (*id.* at 509). A Judge of this Court granted leave to appeal (31 NY3d 1079 [2018]).

[1] "[W]hether a photo [display] is unduly suggestive is a mixed question of law and fact and our review is limited to whether there is support in the record for the finding" of the courts below (*see People v Holley*, 26 NY3d 514, 524 [2015]). Here, such support exists. Moreover, the suppression court found the identification to be otherwise reliable. Defendant's remaining contentions on direct appeal are without merit. Accordingly, we affirm so much of the Appellate Division's order affirming defendant's judgment of conviction.

With respect to defendant's CPL 440.10 motion, this Court has categorized conflicts of interest as either actual or potential. An actual conflict of interest arises when an attorney "ha[s] divided and incompatible loyalties within the same matter necessarily preclusive of single-minded advocacy" (*People v Cortez*, 22 NY3d 1061, 1068 [2014, Lippman, Ch. J., concurring]). A potential conflict, on the other hand, is one that may never be realized (*see People v Solomon*, 20 NY3d 91, 95-96 [2012]; *People v Ortiz*, 76 NY2d 652, 656-657 [1990]; *see also Cuyler v Sullivan*, 446 US 335, 350 [1980]). When alerted to a conflict, the trial court must ascertain whether the defendant "has an awareness of the potential risks involved in that course and has knowingly chosen it" (*People v Mattison*, 67 NY2d 462, 468 [1986]). At least some actual and all potential conflicts may be waived (*see People v Sanchez*, 21 NY3d 216, 223 [2013]; *Solomon*, 20 NY3d at 96). Because a potential conflict presents only the possibility for conflict, however, even absent an effective waiver, "it is the defendant's heavy burden to show that a potential conflict actually operated on the defense" (*Sanchez*, 21 NY3d at 223 [internal quotation marks and citation omitted]). Whether a conflict operates on the defense is a mixed question of law and fact (*People v Ennis*, 11 NY3d 403, 411 [2008]; *People v Harris*, 99 NY2d 202, 210 [2002]).

[2] Upon a CPL 440.10 motion, the court must consider "all papers of both parties . . . and . . . all documentary evidence or information, if any, . . . for the purpose of ascertaining whether the motion is determinable without a hearing to resolve questions of fact" (CPL 440.30 [1] [a]; *see People v Jones*, 24 NY3d 623, 634 [2014]). A court may deny a motion to vacate a judgment of conviction without conducting a hearing in certain specific circumstances (*see* CPL 440.30 [4]). We review the summary denial of a CPL 440.10 motion under an abuse of discretion standard (*People v Wright*, 27 NY3d 516, 520 [2016]). On this record, we conclude that Supreme Court abused its discretion in determining that a hearing was not warranted to address the allegations contained in defendant's CPL 440.10 motion regarding Chabrowe's representation of defendant and whether any conflict of interest existed warranting reversal.

STEIN, J. (dissenting). Because defendant failed to raise a question of fact warranting a hearing on his CPL 440.10 motion, I respectfully dissent insofar as the majority holds that Supreme Court abused its discretion in summarily resolving the motion.

Defendant was convicted of depraved indifference murder and two counts of criminal possession of a weapon after he fired a gun into a crowded courtyard, killing the 17-year-old victim and wounding another bystander. Thereafter, he filed a CPL 440.10 motion to set aside his conviction on the ground that he was deprived of his right to conflict-free representation at trial. Defendant asserted that his trial counsel, Jeffrey Chabrowe, operated “under an actual and unwaived conflict of interest” because he concurrently represented Ahmed Salaam—who was with defendant at the time of the shooting and during an earlier robbery—in an unrelated matter. Although defendant had expressly informed Supreme Court, during a pretrial *Gomberg* inquiry (see *People v Gomberg*, 38 NY2d 307 [1975]) regarding the concurrent representation, that defendant or his family hired Chabrowe, he included an affidavit with his post-conviction motion swearing that, in fact, Salaam had hired Chabrowe to be defendant’s lawyer and had paid him on defendant’s behalf. Defendant did not provide an affirmation from Chabrowe, but his counsel on the CPL 440.10 motion swore that he had spoken with Chabrowe, who confirmed that he had “received . . . money from Salaam and believed that the money came from Salaam, not [defendant] or his family,” and that he had not discussed any conflict of interest with defendant arising from that arrangement. Counsel also stated, without providing the source of the information (see CPL 440.30 [1]), that the concurrent representation of Salaam on the unrelated matter continued throughout the pendency of defendant’s trial and that Chabrowe has represented a number of Salaam’s other associates.

When a defendant moves to vacate a judgment of conviction—here, on the ground that the judgment was obtained in violation of his constitutional right to conflict-free counsel (see CPL 440.10 [1] [h])—“CPL 440.30 contemplates that a court will in the first instance determine on written submissions whether the motion can be decided without a hearing” (*People v Satterfield*, 66 NY2d 796, 799 [1985]). It is fundamental that “[a] judgment of conviction is presumed valid, and the party challenging its validity . . . has a burden of coming forward with allegations sufficient to create an issue of fact” (*People v Session*, 34 NY2d 254, 255-256 [1974]). Thus, as we have explained, “[o]nce the parties have filed papers and all documentary evidence or information has been submitted, the court is obligated to consider the submitted material ‘for the purpose of ascertaining whether the motion is determinable

without a hearing to resolve questions of fact’ ” (*People v Jones*, 24 NY3d 623, 634 [2014] [emphasis added], quoting CPL 440.30 [1] [a]; compare *People v Samandarov*, 13 NY3d 433, 439-440 [2009], with *People v Thomas*, 144 AD3d 1596, 1597 [4th Dept 2016])). When the CPL 440.10 motion cannot be summarily resolved, the court “must conduct a hearing and make findings of fact essential to the determination thereof” (CPL 440.30 [5] [emphasis added]). Moreover, “[a]t such a hearing, the defendant has the burden of proving by a preponderance of the evidence every fact essential to support the motion” (CPL 440.30 [6] [emphasis added]).

The parties in this case now agree that there are no questions of fact warranting a hearing. Nevertheless, the majority concludes that Supreme Court abused its discretion in determining that a hearing was not warranted. In so doing, the majority has necessarily determined that defendant has raised a question of fact (see CPL 440.30 [1], [5], [6]); however, the majority does not identify the factual dispute between defendant and the People that purportedly exists (cf. *Jones*, 24 NY3d at 636). In my view, the record discloses no such question of fact. The only relevant fact outside the record on appeal presented by defendant on his CPL 440.10 motion is that Salaam allegedly paid Chabrowe to represent defendant, but that allegation is directly contrary to defendant’s express representations to the trial court during the *Gomberg* inquiry (cf. *People v Ferreras*, 70 NY2d 630, 631 [1987]). “[T]he court [is] not required to credit defendant’s evidence of fraud”—particularly, his own, utterly unexplained, fraud on the trial court—“that [is] self-serving and uncorroborated” because the “court does not have ‘to accept every sworn allegation as true’ ” (*People v Chu-Joi*, 26 NY3d 1105, 1106-1107 [2015], quoting *People v White*, 309 NY 636, 641 [1956], cert denied 352 US 849 [1956]). Under these circumstances, “[t]he failure to include an affirmation from [trial] counsel, or an explanation for the failure to do so, . . . warrant[s] the summary denial of . . . defendant’s post-conviction motion” (*People v Wright*, 27 NY3d 516, 522 [2016]; see *People v Morales*, 58 NY2d 1008, 1009 [1983]; *People v Scott*, 10 NY2d 380, 381-382 [1961]).

In short, “[t]he motion is based upon the existence or occurrence of facts and the moving papers do not contain sworn allegations” that actually “substantiat[e] or tend[] to substantiate all the essential facts, as required by [CPL 440.30 (1)]” (CPL 440.30 [4] [b]; cf. *People v Coleman*, 10 AD3d 487, 487-

488 [1st Dept 2004]). Therefore, I would hold that Supreme Court did not abuse its discretion in summarily resolving defendant's motion.

Chief Judge DiFIORE and Judges RIVERA, FAHEY, GARCIA, WILSON and FEINMAN concur. Judge STEIN dissents in part and votes to affirm in an opinion.

Order modified in accordance with the memorandum herein and, as so modified, affirmed.

[125 NE3d 803, 102 NYS3d 138]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NICHOLAS HILL, Appellant.

Argued March 20, 2019; decided May 2, 2019

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 30, 2017. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Gregory Carro, J., at suppression hearing; Rena K. Uviller, J., at plea and sentencing), which had convicted defendant, upon a plea of guilty, of criminal possession of a controlled substance in the third degree.

People v Hill, 150 AD3d 627, reversed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Encounter Rising Beyond Level-One Request

Police officers, having observed defendant exit and reenter a building in a public housing development several times, possessed the requisite objective credible reason to approach him and ask briefly about his identity, destination, or reason for being in the area. However, after defendant explained that he was visiting a friend who lived in the building, and provided his identification, the encounter rose beyond a level-one request for information, which the People failed to justify as lawful. An officer took defendant's identification to the eleventh floor of the building to verify whether the occupant of the apartment defendant identified knew him, while another officer instructed defendant to "stand right there" under the watch of two officers, and when the first officer returned, having determined that the occupant of the apartment did not know defendant, defendant was arrested for trespassing. Accordingly, defendant's motion to suppress drugs recovered from his person during a search incident to his arrest was granted.

APPEARANCES OF COUNSEL

Janet E. Sabel, The Legal Aid Society, New York City (Susan Epstein and Justine M. Luongo of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (John T. Hughes and Alice Wiseman of counsel), for respondent.

The Bronx Defenders, Bronx (Shakeer Rahman, Jenn Rolnick Borchetta and Johanna B. Steinberg of counsel), The Center for Constitutional Rights, New York City (Darius Charney and Britney Wilson of counsel), NAACP Legal Defense and Educational Fund, Inc., New York City (Sherrilyn A. Ifill, Samuel Spital and Jin Hee Lee of counsel), and New York Civil Liberties Union, New York City (Mariana Kovel and Jordan Wells of counsel), for The Bronx Defenders and others, amici curiae.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, the motion to suppress granted and the indictment dismissed.

Defendant Nicholas Hill was approached by New York Police Department officers after they observed him exiting and reentering a building in a New York City Housing Authority development several times. Upon the officers' request, defendant explained that he was visiting a friend who lived in the building. The officers asked defendant for his identification, which he provided. An officer then took defendant's identification to the eleventh floor of the building to verify whether the occupant of the apartment defendant identified knew him.* Another officer instructed defendant to "stand right there" under the watch of two officers. When the first officer returned, having determined that the occupant of the apartment did not know defendant, defendant was arrested for trespassing. At the precinct, officers conducted a search of defendant's person incident to his arrest and recovered 42 bags of crack cocaine from his groin area.

Defendant moved to suppress the evidence on the ground that the police encounter constituted a level-three seizure under *People v De Bour* (40 NY2d 210 [1976]) and was not justified by a requisite reasonable suspicion. The People contended

* Defendant contends he told the officers a different apartment number than the one they visited, and it is undisputed that the occupant across the hall from the one the police visited was the friend to whom defendant referred. Our decision does not depend on whether defendant provided the correct apartment number to the police.

that the encounter was a level-one request for information under *De Bour*, for which the officers had a requisite objective credible reason. After a hearing, the suppression court denied defendant's motion, concluding that the encounter was an appropriately justified level-one inquiry because defendant was free to leave until he was arrested, and that there was probable cause to support his arrest for trespassing once the arresting officers learned that he was unknown to the apartment's occupant. Defendant pleaded guilty to possession of a controlled substance in the third degree. The Appellate Division, holding that the trial court properly denied defendant's motion to suppress, affirmed the judgment.

At the suppression hearing, the People justified the officers' interaction with defendant purely on the ground that it was a level-one inquiry supported by an objective credible reason. At its inception, this was "a general, nonthreatening encounter in which an individual is approached for an articulable reason and asked briefly about his or her identity, destination, or reason for being in the area" (*People v Hollman*, 79 NY2d 181, 191 [1992]). That request implicated only level one of *De Bour* (*see id.*) and required only an objective credible reason to make basic inquiries of defendant (*De Bour*, 40 NY2d at 223). On this record, the initial inquiry was justified.

However, the record demonstrates that the encounter thereafter rose beyond a level-one request for information, which the People failed to justify as lawful. Consequently, the People have failed to preserve any argument that the encounter in this case was justified under levels two or three of *De Bour*.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson concur; Judge Feinman taking no part.

Order reversed, defendant's motion to suppress granted and indictment dismissed, in a memorandum.

In the Matter of HASSAN M.G. ALAMIN, a Licensed Legal Consultant, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS, Respondent.

Decided May 2, 2019

Reported below, 165 AD3d 88.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

EDSTAN S. BALGOBIN, Appellant, v STATE OF NEW YORK, Respondent.

Decided May 2, 2019

Reported below, 168 AD3d 1158.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

CAYUGA NATION, by and through its Lawful Governing Body, CAYUGA NATION COUNCIL, Respondent, v SAMUEL CAMPBELL et al., Appellants, and COUNTY OF SENECA, Intervenor.

Submitted April 22, 2019; decided May 2, 2019

Reported below, 163 AD3d 1500.

Motion by Tonawanda Seneca Nation et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, eight copies filed, and the brief submitted in digital format within seven days.

CENTER FOR JUDICIAL ACCOUNTABILITY, INC., et al., Appellants, v ANDREW M. CUOMO, as Governor of the State of New York, et al., Respondents.

Decided May 2, 2019

Reported below, 167 AD3d 1406; 2018 NY Slip Op 91965(U); 2018 NY Slip Op 88755(U); 2018 NY Slip Op 87059(U); 2018 NY Slip Op 80077(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, insofar as taken on behalf of Center for Judicial Accountability, Inc. by Elena Ruth Sassower, upon the ground that Sassower is not Center for Judicial Accountability, Inc.'s authorized legal representative (*see* CPLR 321 [a]); and, insofar as taken by Elena Ruth Sassower on her own behalf from the December 27, 2018 Appellate Division order affirming the final judgment, upon the ground that no substantial constitutional

question is directly involved and, from the remaining Appellate Division orders, upon the ground that such orders do not finally determine the action within the meaning of the Constitution.

Chief Judge DiFIORE taking no part.

In the Matter of JOAN SHEEN CUNNINGHAM, Respondent, v
TRUSTEES OF ST. PATRICK'S CATHEDRAL et al., Appellants.

Submitted March 5, 2019; decided May 2, 2019

Reported below, 170 AD3d 402.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

ECHO WESTLEY DIXON, Appellant, v ANDREW M. CUOMO,
Governor, et al., Respondents.

Decided May 2, 2019

Reported below, 169 AD3d 1363.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

E.V., Respondent-Appellant, v R.V., Respondent. G.V., Nonparty
Appellant-Respondent.

Submitted April 1, 2019; decided May 2, 2019

Reported below, 165 AD3d 736.

Motion by Domestic Violence Legal Empowerment and Appeals Project et al. for leave to appear amici curiae on E.V.'s motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of JORDAN R. ORANGE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; YON R.-W., Appellant, et al., Respondent. (Proceeding No. 1.)

In the Matter of GRANT R. ORANGE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; YON R.-W., Appellant, et al., Respondent. (Proceeding No. 2.)

Decided May 2, 2019

Reported below, 162 AD3d 671.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that appellant has failed to demonstrate timeliness as required by the Rules of the Court of Appeals (*see* Rules of Ct of Appeals [22 NYCRR] §§ 500.9, 500.10).

In the Matter of L&M BUS CORP. et al., Respondents, v NEW YORK CITY DEPT. OF EDUCATION et al., Appellants.

Submitted April 1, 2019; decided May 2, 2019

Reported below, 167 AD3d 454.

Motion by Reliant Transportation, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [a] [3]).

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Decided May 2, 2019

Reported below, 2019 NY Slip Op 60317(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the orders appealed from do not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted February 25, 2019; decided May 2, 2019

Reported below, 2011 NY Slip Op 77315(U); 2011 NY Slip Op 72320(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted March 25, 2019; decided May 2, 2019

Reported below, 2017 NY Slip Op 83903(U).

Motion for reargument of so much of this Court's February 20, 2018 order as decided the motion for leave to appeal from an August 25, 2017 Appellate Division order dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 30 NY3d 1102 (2018)]. Motion for poor person relief dismissed as academic.

MICHELLE NAPPI, Appellant, v COMMUNITY ACCESS, INC., et al., Respondents.

Submitted February 19, 2019; decided May 2, 2019

Reported below, 169 AD3d 535.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

In the Matter of TYMOTHY M. PARMENTER, Respondent, v JULIE E. NASH, Appellant.

Submitted March 4, 2019; decided May 2, 2019

Reported below, 166 AD3d 1475.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEVIN
CHAPMAN, Appellant.

Submitted April 8, 2019; decided May 2, 2019

Reported below, 168 AD3d 1315.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID
M. HOLZ, Appellant.

Submitted April 15, 2019; decided May 2, 2019

Reported below, 167 AD3d 1417.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAMEE
McCULLUM, Appellant.

Submitted April 15, 2019; decided May 2, 2019

Reported below, 159 AD3d 8.

Motion by The Community Development Project of the Urban Justice Center et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DON P.
SIPP, Appellant.

Submitted April 22, 2019; decided May 2, 2019

Reported below, 169 AD3d 1423.

Motion for assignment of counsel granted and J. Scott Porter, Esq., 78 Cayuga Street, Seneca Falls, NY 13148-1229 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DER-
RICK ULETT, Appellant.

Submitted April 29, 2019; decided May 2, 2019

Reported below, 153 AD3d 945.

Motion by The Bronx Defenders et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE
VELEZ, Appellant.

Submitted April 1, 2019; decided May 2, 2019

Reported below, 164 AD3d 622.

Motion for assignment of counsel granted and Paul Skip Lai-
sure, Esq., Appellate Advocates, 111 John Street, 9th Floor,
New York, NY 10038 assigned as counsel to the appellant on
the appeal herein.

In the Matter of MATTHEW PINNEY, Appellant, v MATTHEW VAN
HOUTEN, as District Attorney of Tompkins County, et al.,
Respondents, et al., Respondents.

Submitted April 8, 2019; decided May 2, 2019

Reported below, 168 AD3d 1293.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal denied. Motion for
a stay dismissed as academic.

STEVEN PLAVIN, Appellant, v GROUP HEALTH INCORPORATED, Re-
spondent.

Decided May 2, 2019

See — F3d —, 2019 WL 1965741, 2019 US App LEXIS 13573.

Certification of questions by the United States Court of Ap-
peals for the Third Circuit, pursuant to section 500.27 of the
Rules of Practice of the Court of Appeals (22 NYCRR 500.27),
accepted and the issues presented are to be considered after
briefing and argument.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

In the Matter of MARK S. PURCELL et al., Appellants, v NEW YORK STATE TAX APPEALS TRIBUNAL et al., Respondents.

Decided May 2, 2019

Reported below, 167 AD3d 1101.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of SIR D.C. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; TAMARAH C., Appellant, et al., Respondent. (Proceeding No. 1.)

In the Matter of HAILE J.C. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; TAMARAH C., Appellant, et al., Respondent. (Proceeding No. 2.)

In the Matter of JESSE G., JR. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; TAMARAH C., Appellant, et al., Respondent. (Proceeding No. 3.)

Submitted March 4, 2019; decided May 2, 2019

Reported below, 168 AD3d 726.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of STATE OF NEW YORK, Respondent, v WALTER J.R., Appellant.

Submitted February 25, 2019; decided May 2, 2019

Reported below, 165 AD3d 1267.

Motion for reargument of motion for leave to appeal denied [see 32 NY3d 913 (2019)].

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SUTTON 58 ASSOCIATES LLC, Appellant, v PHILIP PILEVSKY, et al., Respondents.

Submitted February 19, 2019; decided May 2, 2019

Reported below, 168 AD3d 477.

Motion for leave to appeal denied as unnecessary.

HESHAM TAHA, Appellant, v ABIER ELZEMITY, Respondent.

Submitted February 25, 2019; decided May 2, 2019

Reported below, 2019 NY Slip Op 60352(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JOHN L. WESLOWSKI, Appellant, v PATRICIA ZUGIBE, as County Attorney, et al., Respondents, et al., Defendant.

Decided May 2, 2019

Reported below, 167 AD3d 972.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

LARRY WILLIAMS, Appellant, v STATE OF NEW YORK, Respondent.

Decided May 2, 2019

Reported below, 2019 NY Slip Op 65441(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

XIANG FU HE, Appellant, v TROON MANAGEMENT, INC., et al., Respondents.

Submitted April 22, 2019; decided May 2, 2019

Reported below, 157 AD3d 586.

Motion by Defense Association of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

[125 NE3d 815, 102 NYS3d 150]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HASSAN RKEIN, Appellant.

Argued March 27, 2019; decided May 7, 2019

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered July 13, 2017. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Rena K. Uviller, J., at jury trial; Robert M. Stolz, J., at sentencing), which had convicted defendant, upon a jury verdict, of assault in the second degree and assault in the third degree.

People v Rkein, 152 AD3d 434, affirmed.

HEADNOTE

Crimes — Justification — Use of Deadly Physical Force — Second-Degree Assault with Dangerous Instrument

In a prosecution arising from an altercation in which defendant struck the complainant on the head with a pint glass, defendant was not entitled to a deadly force justification charge with respect to a charge of second-degree assault by means of a dangerous instrument (Penal Law § 120.05 [2]). Based on the record, in order to convict defendant of that charge, the jury would necessarily determine that defendant employed deadly, rather than ordinary, physical force. The evidence at trial, including video surveillance, showed that, at the time defendant employed deadly physical force, the complainant had merely pushed defendant and then rested his hands at his sides while another person attempted to separate him from defendant. Defendant could not have reasonably believed that the complainant was using or about to use deadly physical force (Penal Law § 35.15 [2]).

APPEARANCES OF COUNSEL

Christina A. Swarns, Office of the Appellate Defender, New York City (*Mandy E. Jaramillo* and *Eunice C. Lee* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Jared Wolkowitz* and *Karen Schlossberg* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Defendant's request for a justification instruction with respect to the second-degree assault charge was properly denied. On this record, the trial court appropriately determined that, if the jury convicted defendant of second-degree assault by means of a dangerous instrument (Penal Law § 120.05 [2]), it necessarily determined that defendant employed deadly, rather than ordinary, physical force by striking the complainant on the head with a pint glass (*see People v Vega*, 33 NY3d 1002 [2019] [decided today]). The trial court also properly determined that no reasonable view of the evidence supported a deadly force justification charge. The evidence at trial—including video surveillance of the altercation—shows that, at the time defendant employed deadly physical force, the complainant had merely pushed defendant, albeit with “pretty strong force,” and then rested his hands at his sides while a female patron attempted to separate the two men. Because defendant could not have reasonably believed that the complainant was using or about to use deadly physical force (Penal Law § 35.15 [2]; *Matter of Y.K.*, 87 NY2d 430, 433-434 [1996]), he was not entitled to a deadly force justification charge.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur.

Order affirmed, in a memorandum.

[125 NE3d 805, 102 NYS3d 140]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FIDEL VEGA, Appellant.

Argued March 26, 2019; decided May 7, 2019

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 14, 2017. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Michael J. Obus, J., on pretrial motions; A. Kirke Bartley, Jr., J., at jury trial and sentencing), as amended, which had convicted defendant, upon a jury verdict, of burglary in the first degree (two counts), assault in the second degree (two counts) and endangering the welfare of a child.

People v Vega, 155 AD3d 462, affirmed.

HEADNOTES

Crimes — Justification — Jury Instruction — Crime Containing Dangerous Instrument Element

1. A defendant charged with a crime containing a dangerous instrument element may, in a rare case, be entitled to a jury instruction on the justified use of non-deadly (or “ordinary”) physical force. While deadly physical force requires force which, under the circumstances in which it is used, is readily capable of causing death or other serious physical injury, and a dangerous instrument is defined as an instrument which, under the circumstances in which it is used, attempted to be used or threatened to be used, is readily capable of causing death or other serious physical injury, there is no per se rule regarding which justification instructions are appropriate based solely on the fact that the defendant has been charged with second-degree assault with a dangerous instrument (Penal Law § 120.05 [2]). Rather, the trial court must determine whether any reasonable view of the evidence would permit the factfinder to conclude that defendant’s conduct was justified, and, if so, which instructions are applicable.

Crimes — Justification — Jury Instruction — Second-Degree Assault with Dangerous Instrument

2. In a prosecution arising from defendant beating the victim with a belt, wherein one count of second-degree assault required the People to prove that with intent to cause physical injury to the victim, defendant caused such injury by means of a dangerous instrument, i.e., the belt with a metal buckle (Penal Law § 120.05 [2]), the jury instruction regarding justification did not require reversal. The trial court instructed the jury on the justified use of non-deadly physical force in connection with the lesser included offense of third-degree assault, which does not contain a dangerous instrument element (Penal Law § 120.00 [1]), and, at the People’s request, instructed the jury that if it found beyond a reasonable doubt that defendant used a dangerous instrument, then it should apply the legal rules pertaining to the justified use of deadly physical force (Penal Law § 35.15 [2]). There was no reasonable view of the evidence that defendant merely “attempted” or “threatened” to use the belt in a manner readily capable of causing death or serious physical injury (Penal Law § 10.00 [13]) but that he did not “use” it in that manner (Penal Law § 10.00 [11]), under the statutory definitions of “dangerous instrument” and “deadly physical force.”

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Arielle I. Reid* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*David P. Stromes* and *Karen Schlossberg* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was charged with several crimes for beating the victim with a belt, including two counts of assault in the second

degree. One count of assault in the second degree required the People to prove that with intent to cause physical injury to the victim, defendant caused such injury by means of a dangerous instrument, i.e., the belt with a metal buckle (*see* Penal Law § 120.05 [2]). Defendant raised a justification defense at trial, on the basis of his proffered defense of a third person (*see generally* Penal Law § 35.15). The trial court instructed the jury on the justified use of non-deadly physical force in connection with the lesser included offense of assault in the third degree, which does not contain a dangerous instrument element (*see* Penal Law § 120.00 [1]). At the People's request, the court also instructed the jury that if it found beyond a reasonable doubt that defendant used a dangerous instrument, then it should apply the legal rules pertaining to the justified use of deadly physical force (*see generally* Penal Law § 35.15 [2]).

The Penal Law defines “[d]eadly physical force” as “physical force which, under the circumstances in which it is used, is readily capable of causing death or other serious physical injury” (Penal Law § 10.00 [11]). A “[d]angerous instrument” is defined as “any instrument, article, or substance . . . which, under the circumstances in which it is used, attempted to be used or threatened to be used, is readily capable of causing death or other serious physical injury” (*id.* § 10.00 [13]). Defendant argues that the statutory definitions, while similar, are not identical and that a jury may convict a defendant of a crime containing a dangerous instrument element without necessarily concluding that the defendant used deadly physical force.

[1] Although it would be a rare case—particularly where, as here, the charge is assault in the second degree—we do not rule out the possibility that a defendant may be entitled to a jury instruction on the justified use of non-deadly (or “ordinary”) physical force, even though the defendant is charged with a crime containing a dangerous instrument element (*see e.g. People v Powell*, 101 AD3d 1369, 1371-1373 [3d Dept 2012], *lv denied* 21 NY3d 1019 [2013]; *People v Griffith*, 254 AD2d 753, 753-754 [4th Dept 1998]; *People v Ogodor*, 207 AD2d 461, 461-463 [2d Dept 1994]). There is no per se rule regarding which justification instructions are appropriate based solely on the fact that the defendant has been charged with second-degree assault with a dangerous instrument. Instead, as in every case where the defendant requests a justification charge, trial courts must view the record in the light most favorable to

the defendant and determine whether any reasonable view of the evidence would permit the factfinder to conclude that the defendant's conduct was justified, and, if so, which instructions are applicable (see *People v Petty*, 7 NY3d 277, 284 [2006]; *People v McManus*, 67 NY2d 541, 549 [1986]).¹

[2] Under the particular circumstances of this case, the jury instruction does not require reversal (see *People v Valentin*, 29 NY3d 57, 61 [2017]). Viewing the record in the light most favorable to defendant, there is no reasonable view of the evidence that defendant merely “attempted” or “threatened” to use the belt in a manner readily capable of causing death or serious physical injury (Penal Law § 10.00 [13]) but that he did not “use” it in that manner (*id.* § 10.00 [11]).

Defendant's contentions regarding the legal sufficiency of the evidence pertaining to the two counts of burglary in the first degree are partially unpreserved² and the remaining are without merit. Defendant preserved his contention regarding defense counsel's attempt to cross-examine the victim with respect to her alleged mental health history, but under the circumstances of this case, we conclude that the trial court did not abuse its discretion as a matter of law.

GARCIA, J. (concurring). I agree with the majority's conclusion that, because the jury convicted defendant of second-degree assault by means of a dangerous instrument (Penal Law § 120.05 [2]), it necessarily determined that defendant employed deadly, rather than ordinary, physical force, and therefore the trial court's instruction was proper. I do not, however, endorse the majority's suggestion that a jury may convict a defendant of second-degree assault by means of a dangerous instrument while simultaneously concluding that the defendant used less than deadly physical force. Not only is that proposition dubious as a legal matter, it sweeps beyond the facts presented by this appeal.

1. If a trial court determines, viewing the record in the light most favorable to the defendant, that there is no reasonable view of the evidence that the defendant used anything less than deadly force, the court may instruct the jury solely on the justified use of deadly physical force if that instruction is warranted, in keeping with the “well-settled principle that a justification charge is not warranted where there is no reasonable view of the evidence to support it” (*Powell*, 101 AD3d at 1373; see e.g. *People v Garcia*, 59 AD3d 211, 212 [1st Dept 2009], *lv denied* 12 NY3d 853 [2009]).

2. Specifically, defendant failed to preserve his contention that the victim's bedroom was not a “separately secured or occupied” unit within the meaning of Penal Law § 140.00 (2) (see *People v Hawkins*, 11 NY3d 484, 492 [2008]).

The Penal Law defines “deadly physical force” as “physical force which, under the circumstances in which it *is used*, is readily capable of causing death or other serious physical injury” (Penal Law § 10.00 [11] [emphasis added]). A “dangerous instrument,” by contrast, is defined as “any instrument, article or substance . . . which, under the circumstances in which it *is used, attempted to be used or threatened to be used*, is readily capable of causing death or other serious physical injury” (*id.* § 10.00 [13] [emphasis added]). Given the textual discrepancy between the two statutes, defendant asserts that a defendant convicted of second-degree assault with a dangerous instrument might still be entitled to a jury instruction on the justified use of non-deadly physical force.

That analysis, however, omits the final, critical step: plugging the “dangerous instrument” definition into the assault statute. In order to convict defendant of second-degree assault, the jury was required to find not only that defendant’s belt constituted a “dangerous instrument,” but also that defendant’s use (or “attempted” or “threatened” use) of the dangerous instrument constituted second-degree assault (Penal Law § 120.05 [2]). That inquiry, in turn, required the jury to conclude that, with intent to cause physical injury, defendant actually “*cause[d]*” physical injury “*by means of* . . . a dangerous instrument” (Penal Law § 120.05 [2] [emphasis added]). In other words, to commit second-degree assault under Penal Law § 120.05 (2), a defendant must necessarily employ a “dangerous instrument”—an instrument “readily capable of causing death or other serious physical injury” (Penal Law § 10.00 [13])—in a manner that ultimately caused physical injury (Penal Law § 120.05 [2]). That, it seems, would inevitably constitute deadly physical force.

Moreover, we have repeatedly made clear that the Penal Law’s “deadly physical force” provision is not concerned with the “consequence[s] of [a] defendant’s conduct or what he intended,” but rather with “the nature of the risk created” (*People v Magliato*, 68 NY2d 24, 29 [1986]). In *Magliato*, for instance, we held that the defendant’s defensive conduct—“intended merely to scare off an assailant or to keep him at bay”—placed the assailant in “such imminent danger of grave bodily injury or death” that it constituted “deadly physical force” (*id.* at 26). Put differently, even where a defendant merely “attempt[s]” or “threaten[s]” to use a dangerous instrument, a jury would presumably find that the defendant employed deadly physical force by virtue of the instrument’s

capacity to imminently cause death or other serious physical injury.

As a result, it would be the rare case indeed where a defendant commits second-degree assault by means of a dangerous instrument, yet somehow does not employ deadly physical force. Tellingly, the majority offers no example of this seemingly impossible scenario.* While we need not foreclose the possibility that such a case might theoretically arise, I would certainly not foreclose the possibility that, in reality, it never will.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, WILSON and FEINMAN concur; Judge GARCIA concurs in result in an opinion.

Order affirmed, in a memorandum.

STEPHANE COSMAN CONNERY et al., Respondents, v BURTON S. SULTAN, Appellant.

Submitted February 25, 2019; decided May 7, 2019

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 1139 (2019)]. Motion for other relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

Judge FEINMAN taking no part.

FIRST CHOICE PLUMBING CORP. et al., Respondents, v MILLER LAW OFFICES, PLLC, Appellant.

Submitted February 25, 2019; decided May 7, 2019

Reported below, 164 AD3d 756.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

* In fact, the majority appears to apply a “per se rule” that a defendant convicted of second-degree assault by means of a dangerous instrument must necessarily employ deadly physical force, at least where “there is no reasonable view of the evidence that [the] defendant merely ‘attempted’ or ‘threatened’” to use the dangerous instrument (majority mem at 1005).

LAWRENCE KINGSLEY, Appellant, v 300 W. 106TH ST. CORP., Respondent. (And a Third-Party Action.)

Submitted February 25, 2019; decided May 7, 2019

Reported below, 162 AD3d 420.

Motion for reargument denied [*see* 32 NY3d 1134 (2019)].

WITOLD OPALINSKI, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted March 11, 2019; decided May 7, 2019

Reported below, 164 AD3d 1354.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PRINCE OPARAJI et al., Appellants, v LAWRENCE T. YABLON et al., Respondents.

Submitted March 11, 2019; decided May 7, 2019

Reported below, 2018 NY Slip Op 83909(U).

Motion for reargument by appellant Maurice Oparaji of motion for leave to appeal denied [*see* 32 NY3d 1142 (2019)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE PEREZ, Appellant.

Submitted April 15, 2019; decided May 7, 2019

Reported below, 162 AD3d 1083.

Motion to dismiss appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANDRE DURHAM, Appellant, v ANTHONY J. ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, Respondent.

Submitted April 15, 2019; decided May 7, 2019

Reported below, 170 AD3d 1634.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* GARY H. MOORE,
Appellant, v SUPERINTENDENT OF MID-STATE CORRECTIONAL
FACILITY, Respondent.

Submitted March 11, 2019; decided May 7, 2019

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

JAMES PETTUS, Appellant, v BOYD, RICHARDS, PARKER & COLON-
NELLI, P.L., et al., Respondents.

Submitted March 4, 2019; decided May 7, 2019

Motion for reconsideration of this Court's January 10, 2019 dismissal order denied [*see* 32 NY3d 1137 (2019)].

In the Matter of SHALOM BAYIT, LLC, Respondent, v KALMON
GLOVIN et al., Appellants.

Submitted February 25, 2019; decided May 7, 2019

Reported below, 58 Misc 3d 155(A), 2018 NY Slip Op 50190(U).

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain a motion for leave to appeal from an order of the Appellate Division entered in a proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

PHILIP R. SHAW, Appellant, v KRAMER LEVIN NAFTALIS & FRANKEL LLP et al., Respondents.

Submitted January 28, 2019; decided May 7, 2019

Reported below, 167 AD3d 481.

On the Court's own motion, appeal dismissed, without costs, insofar as taken from so much of the Appellate Division order as affirmed the March 2018 judgment upon the ground that no substantial constitutional question is directly involved and

otherwise dismissed upon the ground that the remainder of the order does not finally determine the action within the meaning of the Constitution. Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the March 2018 judgment, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the order does not finally determine the action within the meaning of the Constitution.

In the Matter of STATE OF NEW YORK, Respondent, v NATHANIEL W., for Civil Management Pursuant to Article 10 of the Mental Hygiene Law, Appellant.

Submitted March 11, 2019; decided May 7, 2019

Reported below, 166 AD3d 1523.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

VILLAGE OF SOLVAY, Respondent, v RANA J. ZAHRAN et al., Appellants.

Submitted February 19, 2019; decided May 7, 2019

Reported below, 164 AD3d 1613 (Appeal No. 1).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JERRY ADAMS, Appellant, v KENNETH THOMPSON, Respondent.

Submitted April 1, 2019; decided May 9, 2019

Reported below, 2018 NY Slip Op 72456(U), 2018 NY Slip Op 86192(U).

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 1190 (2019)].

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted March 25, 2019; decided May 9, 2019

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602). Motion for poor person relief dismissed as academic.

AGNIESZKA CHEN, Respondent, v WILLIAM CHEN, Appellant.

Submitted March 4, 2019; decided May 9, 2019

Reported below, 164 AD3d 1668 (Appeal Nos. 1 and 2).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

NORMAN R. COLON, Appellant, v PORSCHE OF ROSLYN, Defendant, and PORSCHE LEASING, LTD., et al., Respondents.

Submitted March 4, 2019; decided May 9, 2019

Reported below, 164 AD3d 747.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 32 NY3d 913 (2019)].

JOHNATHAN JOHNSON, Appellant, v DAVID BILOW, Prison Guard, et al., Respondents.

Submitted March 25, 2019; decided May 9, 2019

Reported below, 2019 NY Slip Op 62621(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief etc. dismissed as academic.

JOHNATHAN JOHNSON, Appellant, v DONALD UHLER, Respondent.

Submitted March 25, 2019; decided May 9, 2019

On the Court's own motion, appeal transferred without costs, to the Appellate Division, Third Department, upon the ground

that a direct appeal does not lie (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602). Motion for poor person relief dismissed as academic.

In the Matter of CYNTHIA MANOCHERIAN et al., Appellants, v ZONING BOARD OF APPEALS OF THE TOWN OF NEW CASTLE et al., Respondents. (Proceeding No. 1.)

In the Matter of LAURA HOUSTON WHITLINGER et al., Appellants, v ZONING BOARD OF APPEALS OF THE TOWN OF NEW CASTLE et al., Respondents. (Proceeding No. 2.)

Submitted March 11, 2019; decided May 9, 2019

Reported below, 2019 NY Slip Op 60933(U).

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 1185 (2019)].

In the Matter of SALVATORE MISTRETTA, Appellant, v DONALD F. KANE, as Commissioner of Nassau County Police Department, et al., Respondents.

Submitted March 25, 2019; decided May 9, 2019

Reported below, 251 AD2d 418.

Motion for reconsideration of this Court's February 14, 2019 dismissal order denied [*see* 32 NY3d 1185 (2019)]. Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of SALVATORE MISTRETTA, Appellant, v DONALD F. KANE, as Commissioner of Nassau County Police Department, et al., Respondents.

Submitted March 25, 2019; decided May 9, 2019

Reported below, 251 AD2d 418.

Motion by Vincent J. Grande III for leave to file a brief amicus curiae on petitioner's motion denied.

In the Matter of SCOTT MYERS, Appellant, v BARBARA J. FIALA,
as Commissioner, New York State Department of Motor
Vehicles, Respondent.

Submitted March 25, 2019; decided May 9, 2019

Reported below, 2019 NY Slip Op 62615(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CERIOUS-
DELMARR McCRAY, Appellant, v DARWIN LACLAIR, as Su-
perintendent of Franklin Correctional Facility, Respon-
dent.

Submitted March 25, 2019; decided May 9, 2019

Reported below, 161 AD3d 1490.

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 1143 (2019)].

SAMUEL POPKOFF, Appellant, v EXTRA SPACE MANAGEMENT, INC.,
Respondent.

Submitted April 1, 2019; decided May 9, 2019

Reported below, 2019 NY Slip Op 63905(U).

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this action commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

In the Matter of CHARLES ROCHESTER, Appellant, v NEW YORK
STATE DIVISION OF HUMAN RIGHTS et al., Respondents.

Submitted March 18, 2019; decided May 9, 2019

Reported below, 2019 NY Slip Op 61240(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

JOHN STEVENS, Respondent, v JUDITH STEPANSKI et al., Defendants, and GREENVILLE INN, INC., Appellant.

Submitted March 18, 2019; decided May 9, 2019

Reported below, 164 AD3d 935.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[125 NE3d 830, 102 NYS3d 165]

In the Matter of JAMAEEL BURSCH, Appellant, v PURCHASE COLLEGE OF THE STATE UNIVERSITY OF NEW YORK et al., Respondents.

Decided June 6, 2019

SUMMARY

APPEAL from a judgment of the Appellate Division of the Supreme Court in the Second Judicial Department, entered September 19, 2018, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Westchester County). The Appellate Division judgment, insofar as appealed from, with two Justices dissenting, (1) confirmed a determination of respondent Purchase College of the State University of New York which had upheld a decision of its Disciplinary Hearing Committee finding that petitioner committed disciplinary violations and expelled him from the school; (2) denied the petition; and (3) dismissed the proceeding on the merits.

Matter of Bursch v Purchase Coll. of the State Univ. of N.Y., 164 AD3d 1324, reversed.

HEADNOTE

Colleges and Universities — Disciplinary Proceedings — Denial of Hearing Adjournment Request Abuse of Discretion

In a CPLR article 78 proceeding brought by petitioner student enrolled at respondent college, who was accused of multiple disciplinary violations including sexual assault of another student, the petition insofar as it sought to annul respondents' disciplinary determination was granted and the matter remitted to the Appellate Division with directions to remand to respondents for a new disciplinary hearing. Under the particular circumstances, respondents abused their discretion as a matter of law by failing to grant petitioner's requested three-hour adjournment of his scheduled administrative hearing so that his attorney could attend the proceeding.

APPEARANCES OF COUNSEL

Brill Legal Group, P.C., Hempstead (*Peter E. Brill* of counsel), for appellant.

Letitia James, Attorney General, New York City (*Seth M. Rokosky* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division insofar as appealed from should be reversed, with costs, and the petition insofar as it sought to annul respondents' disciplinary determination granted and the matter remitted to the Appellate Division with directions to remand to respondents for a new disciplinary hearing. Petitioner, a student enrolled at respondent Purchase College of the State University of New York, was accused of multiple disciplinary violations including sexual assault of another student. Petitioner requested a three-hour adjournment of his scheduled administrative hearing so that his attorney could attend the proceeding. Respondents denied this request. Under the particular circumstances of this case, we find respondents abused their discretion as a matter of law by failing to grant the requested adjournment (*see Matter of Abdur-Raheem v Mann*, 85 NY2d 113, 124 [1995]). Petitioner's remaining arguments need not be reached and any other contentions raised below have been abandoned.

Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur; Chief Judge DiFIORE taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order insofar as appealed from reversed, with costs, and petition insofar as it sought to annul respondents' disciplinary determination granted and matter remitted to the Appellate Division, Second

Department, with directions to remand to respondents for a new disciplinary hearing, in a memorandum.

[125 NE3d 829, 102 NYS3d 164]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MONIQUE
ESPOSITO, Respondent.

Decided June 6, 2019

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, entered August 3, 2018. The Appellate Term (1) reversed, on the law, a judgment of the Criminal Court of the City of New York, Richmond County (Raymond Rodriguez, J.), which had convicted defendant, upon a jury verdict, of common-law driving while intoxicated and resisting arrest; and (2) dismissed the information.

People v Esposito, 60 Misc 3d 60, reversed.

HEADNOTE

Motor Vehicles — Operating Vehicle while Under Influence of Alcohol or Drugs — Sufficiency of Accusatory Instrument

The order of the Appellate Term reversing a trial court judgment which had convicted defendant of common-law driving while intoxicated and resisting arrest was reversed and the case remitted to the Appellate Term for consideration of the facts and issues raised, but not determined, on the appeal to that Court. The factual allegations in the accusatory instrument were sufficient to support the inference that defendant was the operator of the vehicle involved in the accident and, thus, Appellate Term erroneously dismissed the accusatory instrument on that ground.

APPEARANCES OF COUNSEL

Michael E. McMahon, District Attorney, Staten Island (*Alexander Fumelli* and *Morrie I. Kleinbart* of counsel), for appellant.

Paul Skip Laisure, Appellate Advocates, New York City (*Michael Arthus* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to the Appellate Term, Second Depart-

ment, Second, Eleventh and Thirteenth Judicial Districts, for consideration of the facts and issues raised, but not determined, on the appeal to that court. The factual allegations in the accusatory instrument were sufficient to support the inference that defendant was the operator of the vehicle involved in the accident and, thus, Appellate Term erroneously dismissed the accusatory instrument on that ground.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.

[125 NE3d 831, 102 NYS3d 166]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENDEL R. GREGORY, Appellant.

Decided June 6, 2019

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 18, 2018. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Barry Kron, J.), which had convicted defendant, upon a jury verdict, of burglary in the second degree (three counts), attempted burglary in the second degree, criminal possession of stolen property in the fifth degree (two counts) and petit larceny (two counts). The appeal to the Appellate Division brought up for review the denial by that Supreme Court (Joel L. Blumenfeld, J.), after a hearing, of those branches of defendant's omnibus motion which were to suppress physical evidence and his statements to law enforcement officials.

People v Gregory, 163 AD3d 847, affirmed.

HEADNOTES

Crimes — Right to Representation Pro Se — Denial of Request — Malingering

1. The trial court did not abuse its discretion in denying defendant's request to proceed pro se, inasmuch as defendant engaged in conduct which would prevent the fair and orderly exposition of the issues. The trial court had concluded—based upon, among other things, its own observations of defendant's conduct throughout lengthy proceedings and the testimony of defendant's attending physician—that defendant engaged in malingering insofar as he was competent to proceed but persisted in his efforts to avoid trial.

Crimes — Appeal — Matters Reviewable — Reasonable Suspicion of Criminality

2. The existence of record support for the determination of the courts below that the pursuit of defendant by the police was justified by a reasonable suspicion of criminal activity foreclosed further review by the Court of Appeals of that issue.

APPEARANCES OF COUNSEL

Paul Skip Laisure, Appellate Advocates, New York City, for appellant.

John M. Ryan, Acting District Attorney, Kew Gardens (*John F. McGoldrick* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

[1, 2] The order of the Appellate Division should be affirmed. The trial court concluded—based upon, among other things, its own observations of defendant’s conduct throughout these lengthy proceedings and the testimony of defendant’s attending physician—that defendant engaged in malingering insofar as he was competent to proceed but persisted in his efforts to avoid trial. Inasmuch as defendant “engaged in conduct which would prevent the fair and orderly exposition of the issues,” we conclude that the trial court did not abuse its discretion in denying defendant’s request to proceed pro se (*People v McIntyre*, 36 NY2d 10, 17 [1974]). Moreover, the existence of record support for the determination of the courts below that the pursuit of defendant by the police was justified by a “reasonable suspicion” of criminal activity forecloses our further review of that issue (*People v De Bour*, 40 NY2d 210, 223 [1976]; see *People v Martinez*, 80 NY2d 444, 447-448 [1992]).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[125 NE3d 822, 102 NYS3d 157]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v VINCENT MEYERS, Appellant.

Decided May 9, 2019

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 27, 2018. The Appellate Division affirmed a judgment of the Supreme Court, Nassau County (Jerald S. Carter, J.), which had convicted defendant, upon a jury verdict, of robbery in the second degree (two counts), assault in the second degree, criminal possession of stolen property in the fourth degree, criminal possession of stolen property in the fifth degree, criminal mischief in the fourth degree (two counts) and harassment in the second degree. In a prior order entered March 22, 2017 (148 AD3d 1057 [2017]), the Appellate Division remitted the matter to the Supreme Court for a reconstruction hearing regarding the item in the court file denominated “Court Exhibit # XIV,” and thereafter a report to the Appellate Division, and held the appeal in abeyance in the interim. The Supreme Court filed its report.

People v Meyers, 162 AD3d 1074, affirmed.

HEADNOTE**Crimes — Appeal — Discovery of Purported Jury Note — Reconstruction Hearing**

Where appellate counsel discovered a purported jury note, marked as an exhibit, in the court file maintained by the county clerk, while preparing defendant’s appeal, and the Appellate Division directed Supreme Court to conduct a reconstruction hearing to clarify whether the exhibit was, in fact, a jury note requesting further information or instruction from the court pursuant to CPL 310.30, after which the trial court concluded that the exhibit was a draft or derelict note that was discarded by the jury and never submitted to the court, the subsequent Appellate Division order that affirmed the judgment convicting defendant was affirmed. Where the record does not establish that counsel was provided meaningful notice of the contents of a substantive jury note, the sole remedy is reversal and a new trial, not a reconstruction hearing. However, the purpose of the reconstruction hearing at issue here was not to determine whether the court complied with the counsel notice requirements of CPL 310.30 and *People v O’Rama* (78 NY2d 270 [1991]). Instead, the hearing was to determine whether, in the first instance, the exhibit reflected a “jury . . . request [to] the court for further instruction or information” (CPL 310.30) such that those obligations were triggered. Moreover, the finding of the courts below, following the reconstruction hearing, that the exhibit was a draft note that the jury discarded was supported by the record and, thus, beyond further review by the Court of Appeals.

APPEARANCES OF COUNSEL

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Madeline Singas, District Attorney, Mineola (Pamela Kelly-Pincus of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. While preparing defendant's appeal, counsel discovered a purported jury note, marked as Court Exhibit XIV, in the court file maintained by the County Clerk. Significant ambiguity existed in the record concerning the circumstances in which the exhibit was marked and entered into the court file, including ambiguity as to whether the jury sent the exhibit to the court or, instead, began drafting it but discarded it in favor of sending other, substantially similar notes. The purported note was sequentially marked after the jury note stating that the jury had reached a verdict and was duplicative of other jury notes undisputedly received and read into the record by the court. Further, no other reference to the exhibit existed on the record or in the court file. The Appellate Division directed Supreme Court to conduct a reconstruction hearing to clarify whether Exhibit XIV was, in fact, a jury note requesting further information or instruction from the court pursuant to CPL 310.30 (148 AD3d 1057 [2d Dept 2017]). After the hearing, the trial court concluded that Exhibit XIV was a draft or derelict note that was discarded by the jury and never submitted to the court.

We recently held that where the record does not establish that counsel was provided meaningful notice of the contents of a substantive jury note, "the sole remedy is reversal and a new trial," not a reconstruction hearing (*People v Parker*, 32 NY3d 49, 62 [2018]). However, the purpose of the reconstruction hearing at issue here was not to determine whether the court complied with the counsel notice requirements of CPL 310.30 and *People v O'Rama* (78 NY2d 270, 276 [1991]). Instead, the hearing was to determine whether, in the first instance, Exhibit XIV reflected a "jury . . . request [to] the court for further instruction or information" (CPL 310.30) such that those obligations were triggered. Moreover, the finding of the courts below, following the reconstruction hearing, that Exhibit XIV was a draft note that the jury discarded is supported by the record and, thus, beyond our further review. Finally, defendant failed to demonstrate that he was denied effective assistance of counsel.

GARCIA, J. (concurring in result). Less than a year ago, in *People v Parker*, we held that, in the absence of affirmative record proof that the trial court provided a verbatim account of every jury note, “the *sole remedy* is reversal and a new trial” (32 NY3d 49, 62 [2018] [emphasis added]). No matter how strongly the record suggested that defense counsel was, in fact, given meaningful notice of each note, reconstruction of the record is not permitted to ascertain the existence—or nonexistence—of error. Reversal, and only reversal, must result. That was our short-lived *Parker* rule.

Here, as in *Parker*, defendant asserted that the trial court failed to satisfy its meaningful notice requirement after defense counsel discovered a jury note that was never mentioned at trial. But unlike in *Parker*, the Appellate Division directed Supreme Court to conduct a hearing to “assess all the circumstances” regarding the inquiry (*People v Meyers*, 148 AD3d 1057, 1057 [2d Dept 2017]). Supreme Court then held a reconstruction hearing, where a number of witnesses testified: two jurors, the court clerk, the judge’s law secretary, defendant’s trial counsel, and the trial prosecutor. Following that hearing, Supreme Court concluded that the inquiry was “a derelict note discarded by the jury,” and therefore no error had occurred. The Appellate Division affirmed (162 AD3d 1074 [2d Dept 2018]).

With that knowledge now in hand, *Parker*’s application would yield an absurd result: automatic reversal of defendant’s convictions because of a jury note that was not properly read into the record, even though we now know—although we should not know (*Parker*, 32 NY3d at 62)—that it was not a jury note at all. Though I agree that we should avoid that senseless outcome, I do not agree that *Parker*’s per se reversal rule is somehow inapplicable. The trouble with *Parker*’s application stems not from the facts of this case; it stems from *Parker* itself.

I.

The Court’s dilemma in this case is a familiar one. In *People v O’Rama*, the Court first applied the “mode of proceedings” exception to cases involving deviations from CPL 310.30’s jury note procedure (78 NY2d 270, 279 [1991]). Until then, the mode of proceedings doctrine had comprised a “very narrow” exception to our preservation rule (*People v Patterson*, 39 NY2d 288, 295 [1976]) that was reserved for “the most fundamental flaws” (*People v Becoats*, 17 NY3d 643, 651 [2011]). Because mode of

proceedings errors carry extreme and mandatory consequences—immunity from the rules governing preservation, waiver, and harmless error—the doctrine had historically been confined to a “tightly circumscribed class” of cases (*People v Kelly*, 5 NY3d 116, 120 [2005]). In a single sentence of dicta, the *O’Rama* Court changed that.

The results were harsh and widespread. Applying *O’Rama*, the Appellate Divisions began reversing convictions based on unpreserved claims in any case where the record failed to show adequate compliance with CPL 310.30. Countless reversals resulted (see *People v Morrison*, 32 NY3d 951, 960-962 [2018, Garcia, J., dissenting] [collecting cases]). Meanwhile, *O’Rama* faced sharp criticism for its “cursory rationale” that “[d]id not seem very persuasive” (*People v Walston*, 23 NY3d 986, 991 [2014, Smith, J., concurring]).

Facing this backlash, the Court began to scale back *O’Rama*’s sweeping rule. In *People v Nealon*, for instance, we held that preservation was required where the trial court provided notice of the contents of a jury note, but failed to consult defense counsel before responding to the jury’s inquiry (26 NY3d 152, 160-162 [2016]). Similarly, in *People v Mack*, we rejected the defendant’s claim that a mode of proceedings error had occurred where defense counsel had meaningful notice of the jury’s inquiries, but the trial court accepted the jury’s verdict without first providing a response (27 NY3d 534, 537 [2016]). In both *Nealon* and *Mack*, we held that a defendant is required to preserve his claim of error where “the trial court fails to provide a meaningful response to a substantive jury note but satisfies its meaningful notice obligations” (*Mack*, 27 NY3d at 539; *Nealon*, 26 NY3d at 160-161). Although meaningful notice and a meaningful response had each been deemed a “core responsibility” under *O’Rama*, the Court began treating the errors quite differently—one required preservation, while the other did not.

Those decisions were harshly criticized for skirting *O’Rama*’s mandate. The dissenters in both cases lamented the Court’s unprincipled and haphazard abandonment of one of *O’Rama*’s two core tenets (see *Mack*, 27 NY3d at 545-547 [Rivera, J., dissenting]; *Nealon*, 26 NY3d at 164 [Lippman, Ch. J., dissenting]). Indeed, not long before, this Court had reinforced that “[a] court’s failure to supply a meaningful notice or response constitutes error affecting the mode of proceedings, and therefore presents a question of law for appellate review even

in the absence of timely objection” (*People v Alcide*, 21 NY3d 687, 692 [2013] [emphasis added]; see also *People v Taylor*, 26 NY3d 217, 228 [2015, Rivera, J., concurring] [noting that the trial court’s “failure to fulfil these responsibilities constitutes a mode of proceedings error, which does not require preservation”]). Following our lead, the Appellate Divisions were, prior to *Nealon* and *Mack*, consistently excusing preservation failures wherever the trial record did not demonstrate compliance with either of the court’s two duties: the duty to provide meaningful notice of a jury note, or the duty to respond (see *People v Mack*, 117 AD3d 1450, 1451 [1st Dept 2014]; *People v Nealon*, 116 AD3d 886, 887 [2d Dept 2014]; see also *People v McGuire*, 101 AD3d 1386 [3d Dept 2012]; *People v Lockley*, 84 AD3d 836 [2d Dept 2011]). In *Nealon* and *Mack*, however, we sharply reversed course.

Compounding the confusion, the Court based its new dichotomy on the notion that, where the trial court complies with its meaningful notice requirement, defense counsel is equipped with “all the knowledge required to make an objection,” and thus preservation is required (*Nealon*, 26 NY3d at 162). But meaningful notice, we maintained, required far more than “objection-enabling” notice of the error (*id.* at 166 [Lippman, Ch. J., dissenting] [noting that “objection-enabling notice is not enough to meet the trial court’s core notice obligation”]); anything short of a “verbatim” reading “in open court” would not suffice (*Mack*, 27 NY3d at 542). Despite the Court’s promise that “lack of notice is the key determinant in classifying a particular procedure as a mode of proceedings error”—since “counsel generally cannot object to an error of which he or she is unaware” (*id.* at 541)—we continued to mandate reversal, regardless of preservation, even in cases where “counsel was made aware of the existence of the note” (see *Walston*, 23 NY3d at 990 [emphasis added]).

Shortly after *Nealon* and *Mack*, the Court was offered another opportunity to scale back the damage of *O’Rama*. In *People v Parker*, the record did not contain a verbatim reading of two jury notes, but it strongly “support[ed] the conclusion that the parties and the court discussed the content of the jury notes . . . at an off-the-record proceeding” (*Parker*, 32 NY3d at 62 [DiFiore, Ch. J., dissenting]). Because of the record’s ambiguity, the People asserted that a reconstruction hearing—rather than automatic reversal—was the appropriate remedy

in order to determine whether or not defense counsel had received meaningful notice of the notes.*

The Court declined that invitation, instead holding that, “where the record does not establish compliance with CPL 310.30, the sole remedy is reversal and a new trial” (*Parker*, 32 NY3d at 62; *see also Morrison*, 32 NY3d at 952 [“The trial court’s failure to provide counsel with meaningful notice of a substantive jury note is a mode of proceedings error that requires reversal”]). “[I]t is the court’s responsibility,” we held, to ensure “specific, record proof” of *O’Rama* compliance for “each note,” and accordingly, in the absence of affirmative record proof, “a mode of proceedings error occur[s] requiring reversal” (*Parker*, 32 NY3d at 60-61). The *Parker* per se reversal rule thus “operates without regard to the specific facts of whether counsel actually received meaningful notice of the content of the jury note” (*Parker*, 32 NY3d at 66 [DiFiore, Ch. J., dissenting]); record ambiguity, by itself, warrants reversal. As a result of *Parker*’s holding, the Court reversed convictions in three cases, “even though the record d[id] not conclusively establish that [an] error occurred, and in fact suggest[ed] that it did not” (*Morrison*, 32 NY3d at 974 [Garcia, J., dissenting]; *see also Parker*, 32 NY3d at 62).

II.

The instant appeal presents a straightforward application of *Parker*. While reviewing the court file, defense counsel discovered a juror inquiry that was never mentioned at trial. The inquiry was written on a form entitled “JURY NOTE.” It was signed by the foreperson and labeled with a date and time. It was marked by the court clerk as a court exhibit. And it contained a substantive jury request: it asked the court to “clarify . . . the term ‘evidence’ ” and to explain whether “the victim’s test[imony]” was “considered direct evidence.” It further expressed one juror’s concern that the jury had deadlocked—also a substantive announcement.

Put differently, defendant asserted an *O’Rama* error of the most egregious variety: he had no notice of the existence of the

* At that time, the Appellate Division departments were routinely remitting for reconstruction hearings when faced with a record ambiguity regarding *O’Rama* compliance (*see People v Meyers*, 148 AD3d 1057 [2d Dept 2017]; *People v Mitchell*, 129 AD3d 404 [1st Dept 2015]; *People v Williams*, 113 AD3d 1116 [4th Dept 2014]; *People v Kahley*, 105 AD3d 1322 [4th Dept 2013]; *People v Russo*, 283 AD2d 910 [4th Dept 2001]; *People v Martinez*, 186 AD2d 14 [1st Dept 1992]).

note, much less notice of its verbatim contents. Perhaps, defendant alleged, the note was lost in transit from the jury to the judge; or perhaps it was addressed during an off-the-record proceeding; or perhaps the trial judge responded to the note without mentioning it to counsel—all plausible scenarios, and all reversible *O’Rama* errors. Invoking our holding in *Parker*, defendant asserts on appeal that the record does not affirmatively establish compliance with the trial court’s meaningful notice requirement, and he is therefore entitled to the “sole remedy” of mandatory reversal (*Parker*, 32 NY3d at 62).

A.

Despite the gravity of defendant’s allegations, the majority agrees that automatic reversal was properly sidestepped based on a then-unproven assertion that the inquiry was a draft, rather than an actual jury note. Because of “[s]ignificant ambiguity” in the record, the majority contends, reconstruction was permitted “not to determine whether the court complied with the counsel notice requirements,” but rather to ascertain whether those requirements were triggered at all (majority mem at 1020).

First, the majority points out, the note was “sequentially marked after the jury note stating that the jury had reached a verdict” (majority mem at 1020). To be sure, those circumstances are atypical, perhaps signaling record ambiguity. But the note was also marked with a date and time—about four hours *prior* to the jury’s verdict announcement. In addition, while the note was irregularly numbered by the court clerk, it was not the only note marked out of order. In fact, at least two other jury notes—genuine jury notes, not drafts—were similarly marked out of sequence. And another court exhibit, Supreme Court found, was also inaccurately marked subsequent to the verdict. Even “real” jury notes, it turns out, can be misnumbered.

Next, the majority emphasizes that the note was “duplicative” of other notes that were undisputedly sent out by the jury (majority mem at 1020). Again, that may be true. But “real” jury notes frequently request (or convey) redundant information. In fact, in this case, at least two other jury notes were largely duplicative of one another; one note asked the court to “define the first (2) charges,” and a subsequent note again asked the court to, among other things, “re-read to the jury the description of counts 1 [and] 2.” Deadlock announcements in

particular—like the one in the note at issue—are often sent out more than once during prolonged jury deliberations (e.g. *People v Britton*, 31 NY3d 1019, 1022 [2018] [jury reported a deadlock more than once]; *Matter of Rivera v Firetog*, 11 NY3d 501, 504 [2008] [same]; *People v Aponte*, 2 NY3d 304, 306 [2004] [same]; *People v O’Rama*, 78 NY2d 270, 275 [1991] [same]; *Matter of Pastrana v Baker*, 55 NY2d 315, 317 [1982] [same]). In other words, while redundancy might mean that the note had been discarded, it might also signal persisting juror confusion.

The majority lastly notes that “no other reference” to the jury’s inquiry existed on the record (majority mem at 1020). But the record’s silence concerning a “real” jury note, while not ideal, is also not unheard of. Indeed, in *People v Hanson*, the trial transcript similarly did not show that the court was made aware of two jury notes (24 NY3d 294, 298 [2014]). Despite that ambiguity, the Court in *Hanson* held that a mode of proceedings error had occurred and reversed the defendant’s convictions outright, reasoning that the record failed to “indicate compliance with adequate procedures under *O’Rama*” (*id.* at 300). Reconstruction, we held, was not an available remedy, noting that “reviewing courts ‘cannot assume’ that the proper procedure was utilized,” and that precedent “impose[d] an affirmative obligation on a trial court to create a record of compliance under CPL 310.30 and *O’Rama*” (*id.* at 300). Here, too, the record was “bereft of any evidence” that the note was “actually received by the Supreme Court” (*People v Hanson*, 100 AD3d 771, 771 [2d Dept 2012]) or, as the majority puts it, there was “[s]ignificant ambiguity . . . in the record concerning the circumstances in which the exhibit was marked and entered into the court file” (majority mem at 1020). Yet somehow, in this case, automatic reversal is unwarranted.

B.

Of course, with the benefit of a reconstruction hearing, we now know that no error occurred. But the opposite outcome was at least equally possible: the hearing might have shown that the inquiry was, in fact, an unmentioned jury note, amounting to a particularly grievous CPL 310.30 violation. The exact same scenario was presented in *Parker*: reconstruction might have shown that meaningful notice was provided, or it might have confirmed that notice was lacking. The entire point of *Parker*’s holding was that we should not—and could not—

find out. Ordering reconstruction hearings, the *Parker* Court noted, would “ignore our case law” and “imperil one of the foundations of *O’Rama*: the necessity that courts fulfill their core responsibility of providing counsel with notice of the precise contents of a jury note” (*Parker*, 32 NY3d at 61-62).

Notably, had defendant asserted an *O’Rama* error of a lesser degree, he presumably would have been entitled to automatic reversal of his convictions. For instance, had the trial court read the note nearly verbatim but failed to mention a single word, defendant would have secured an outright reversal (see *Walston*, 23 NY3d at 988). Automatic reversal would similarly be required if the trial court had provided defendant verbatim notice of the note’s precise contents during an off-the-record proceeding, and simply failed to so indicate on the record (see *Parker*, 32 NY3d at 66 n 2 [DiFiore, Ch. J., dissenting]). Yet where the record substantiates a defendant’s claim that he received no notice whatsoever of a jury note’s existence, automatic reversal is no longer available. The import of that holding—the greater the error, the lesser the relief—is loaded with unfairness.

The majority’s new rule also telegraphs a clear formula for evading the dictates of *Parker* whenever a note is not mentioned at trial. So long as any good-faith reading of the record suggests that a jury note may have been a “draft or derelict note” (majority mem at 1020), reconstruction is permitted to determine whether or not an *O’Rama* error occurred. Going forward, then, *Parker*’s generous “sole remedy” applies only in the context of lesser *O’Rama* errors involving partial but incomplete notice; a complete failure to provide any notice whatsoever is now subject to reconstruction.

At bottom, the majority’s strained attempt to circumvent *Parker* hinges on an arbitrary and unsupported distinction. While I concur in the majority’s ends—limiting *Parker*’s reach—I am not persuaded by its means.

III.

I remain convinced that the *O’Rama* rule—exacerbated by *Parker*—is unfair and unworkable, generating contorted holdings aimed at avoiding absurd results. We can only hope that, sooner rather than later, the legislature will finally relieve us (see *Morrison*, 32 NY3d at 974 [Garcia, J., dissenting]).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Wilson and Feinman concur; Judge Garcia concurs in result in an opinion.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(May 1, 2019 through May 31, 2019)

People v Abdur-Rahman	3d Dept: 168 AD3d 1268 (Albany)	denied 5/7/19 (Fahey, J.)
People v Acevedo (Andrew)	2d Dept: 171 AD3d 776 (Queens)	denied 5/28/19 (DiFiore, Ch. J.)
People v Acevedo (Brandon)	1st Dept: 168 AD3d 627 (Bronx)	denied 5/28/19 (DiFiore, Ch. J.)
People v Acevedo (Hector)	App Div, 3d Dept: 2019 NY Slip Op 61954(U) (Albany)	denied 5/7/19 (Fahey, J.)
People v Adams	4th Dept: 167 AD3d 1448 (Monroe)	denied 5/10/19 (DiFiore, Ch. J.)
People v Alexander	1st Dept: 168 AD3d 619 (Bronx)	denied 5/28/19 (DiFiore, Ch. J.)
People v Allen (Curt)	County Ct, 3/26/19 (Onondaga)	denied 5/24/19 (Rivera, J.)
People v Allen (Doran)	1st Dept: 169 AD3d 453 (Bronx)	denied 5/28/19 (DiFiore, Ch. J.)
People v Althiser (Ronnie)	App Div, 3d Dept: 2019 NY Slip Op 62662(U) (Otsego)	dismissed 5/7/19 (Fahey, J.)
People v Althiser (Ronnie)	App Div, 3d Dept: 2019 NY Slip Op 63275(U) (Otsego)	denied 5/7/19 (Fahey, J.)
People v Alvarracin	App Div, 2d Dept: 2019 NY Slip Op 63497(U) (Queens)	dismissed 5/2/19 (Rivera, J.)
People v Anderson	2d Dept: 170 AD3d 878 (Queens)	denied 5/24/19 (Feinman, J.)
People v Andre	1st Dept: 168 AD3d 457 (NY)	denied 5/3/19 (Wilson, J.)
People v Bah (Malick)	1st Dept: 171 AD3d 437 (Bronx)	denied 5/29/19 (Garcia, J.)
People v Bah (Rafael)	App Term, 1st Dept: 63 Misc 3d 126(A) (NY)	denied 5/14/19 (Fahey, J.)
People v Barlow	1st Dept: 169 AD3d 600 (NY)	denied 5/30/19 (Garcia, J.)
People v Barr	4th Dept: 169 AD3d 1427 (Monroe)	denied 5/9/19 (Stein, J.)
People v Battle	App Term, 1st Dept: 2019 NY Slip Op 50296(U) (NY)	denied 5/28/19 (DiFiore, Ch. J.)
People v Bellamy (Omar)	4th Dept: 170 AD3d 1652 (Jefferson)	denied 5/22/19 (Rivera, J.) (Appeal No. 1)

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People v Bellamy (Omar)	4th Dept: 170 AD3d 1653 (Oswego)	denied 5/13/19 (Rivera, J.) (Appeal No. 2)
People v Bencome	1st Dept: 168 AD3d 603 (NY)	denied 5/3/19 (Stein, J.)
People v Benjamin	1st Dept: 170 AD3d 566 (NY)	denied 5/16/19 (Rivera, J.)
People v Benoit	1st Dept: 169 AD3d 543 (NY)	denied 5/1/19 (Wilson, J.)
People v Bermudez	2d Dept: 171 AD3d 777 (Nassau)	denied 5/31/19 (DiFiore, Ch. J.)
People v Bethune	App Term, 1st Dept: 62 Misc 3d 146(A) (NY)	denied 5/14/19 (Fahey, J.)
People v Bisha	App Term, 1st Dept: 62 Misc 3d 146(A) (NY)	denied 5/3/19 (Wilson, J.)
People v Bookard	2d Dept: 169 AD3d 816 (Kings)	denied 5/3/19 (Stein, J.)
People v Bowers	App Div, 2d Dept: 2019 NY Slip Op 64783(U) (Queens)	dismissed 5/10/19 (DiFiore, Ch. J.)
People v Bowman	1st Dept: 170 AD3d 498 (NY)	denied 5/9/19 (Rivera, J.)
People v Brodeur	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 140(A) (Kings)	denied 5/13/19 (Stein, J.)
People v Brooks	App Term, 1st Dept: 62 Misc 3d 69 (NY)	denied 5/13/19 (Rivera, J.)
People v Brown (DeJuan)	2d Dept: 169 AD3d 914 (Kings)	denied 5/30/19 (Garcia, J.)
People v Brown (Dwight)	1st Dept: 170 AD3d 561 (NY)	denied 5/30/19 (Garcia, J.)
People v Brown (James)	3d Dept: 170 AD3d 1375 (Essex)	denied 5/31/19 (DiFiore, Ch. J.)
People v Brown (Lasean)	3d Dept: 169 AD3d 1258 (Schenectady)	denied 5/30/19 (Garcia, J.)
People v Bullock	App Term, 1st Dept: 63 Misc 3d 126(A) (NY)	denied 5/30/19 (Garcia, J.)
People v Cahill	4th Dept: 170 AD3d 1619 (Onondaga)	denied 5/31/19 (DiFiore, Ch. J.)
People v Canela	1st Dept: 170 AD3d 630 (NY)	denied 5/29/19 (Fahey, J.)
People v Capeles	2d Dept: 168 AD3d 968 (Rockland)	denied 5/14/19 (Fahey, J.)
People v Carmona	1st Dept: 168 AD3d 499 (Bronx)	denied 5/13/19 (Stein, J.)
People v Carrasquillo	4th Dept: 170 AD3d 1592 (Onondaga)	denied 5/24/19 (Feinman, J.)
People v Cartagena	1st Dept: 170 AD3d 451 (NY)	denied 5/30/19 (Garcia, J.)
People v Castro	3d Dept: 170 AD3d 1286 (Washington)	denied 5/30/19 (Garcia, J.)
People v Chambers	2d Dept: 168 AD3d 1092 (Richmond)	denied 5/3/19 (DiFiore, Ch. J.)

People v Charles	2d Dept: 171 AD3d 781 (Kings)	denied 5/23/19 (Fahey, J.)
People v Cherry	1st Dept: 170 AD3d 590 (NY)	denied 5/30/19 (Wilson, J.)
People v Chin	2d Dept: 169 AD3d 916 (Kings)	denied 5/13/19 (Rivera, J.)
People v Church	4th Dept: 170 AD3d 1523 (Onondaga)	denied 5/16/19 (Rivera, J.)
People v Cohen	1st Dept: 170 AD3d 493 (NY)	denied 5/7/19 (Fahey, J.)
People v Contreras	2d Dept: 170 AD3d 1034 (Westchester)	denied 5/21/19 (Fahey, J.)
People v Cordova	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 148(A) (Queens)	denied 5/29/19 (Fahey, J.)
People v Crowe	2d Dept: 167 AD3d 1036 (Rockland)	denied 5/2/19 (Feinman, J.)
People v Cruz	1st Dept: 154 AD3d 429 (Bronx)	denied 5/9/19 (Rivera, J.)
People v Danielson	3d Dept: 170 AD3d 1430 (Chenango)	denied 5/21/19 (Fahey, J.)
People v Davis	2d Dept: 170 AD3d 745 (Kings)	denied 5/21/19 (Fahey, J.)
People v Delossantos	App Term, 1st Dept: 62 Misc 3d 141(A) (Bronx)	denied 5/7/19 (DiFiore, Ch. J.)
People v Deowasarran	2d Dept: 170 AD3d 1036 (Suffolk)	denied 5/30/19 (Garcia, J.)
People v DeShields	2d Dept: 169 AD3d 823 (Queens)	denied 5/14/19 (DiFiore, Ch. J.)
People v Destiny B.	2d Dept: 171 AD3d 777 (Kings)	denied 5/24/19 (Feinman, J.)
People v Diaz (Isabelino)	App Div, 3d Dept: 2019 NY Slip Op 60669(U) (Sullivan)	dismissed 5/3/19 (Wilson, J.)
People v Diaz (Richard)	1st Dept: 169 AD3d 502 (Bronx)	denied 5/21/19 (Fahey, J.)
People v Diaz (Tara)	2d Dept: 171 AD3d 784 (Queens)	denied 5/24/19 (Feinman, J.)
People v Dix	4th Dept: 170 AD3d 1575 (Niagara)	denied 5/15/19 (Rivera, J.)
People v Dorsey	1st Dept: 170 AD3d 417 (NY)	denied 5/10/19 (Wilson, J.)
People v Dupree	2d Dept: 170 AD3d 881 (Queens)	denied 5/14/19 (Fahey, J.)
People v Espinal	1st Dept: 170 AD3d 457 (NY)	denied 5/28/19 (DiFiore, Ch. J.)
People v Faircloth	2d Dept: 162 AD3d 789 (Dutchess)	denied reconsideration 5/13/19 (Rivera, J.)
People v Feddiman	4th Dept: 169 AD3d 1499 (Oneida)	denied 5/30/19 (Garcia, J.)

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People v Ferguson	4th Dept: 170 AD3d 1518 (Niagara)	denied 5/24/19 (Feinman, J.)
People v Fields	2d Dept: 166 AD3d 897 (Queens)	denied reconsideration 5/28/19 (Stein, J.)
People v Fontanez	2d Dept: 171 AD3d 789 (Queens)	denied 5/29/19 (Wilson, J.)
People v Fyffe	App Term, 1st Dept: 63 Misc 3d 126(A) (Bronx)	denied 5/29/19 (Garcia, J.)
People v Gabbidon	App Div, 2d Dept: 2019 NY Slip Op 64043(U) (Dutchess)	dismissed 5/3/19 (DiFiore, Ch. J.)
People v Galagan	1st Dept: 170 AD3d 435 (NY)	denied 5/7/19 (Fahey, J.)
People v Galarza	App Term, 1st Dept: 62 Misc 3d 144(A) (NY)	denied 5/3/19 (Stein, J.)
People v Gazoo	App Div, 3d Dept: 2019 NY Slip Op 62652(U) (Ulster)	denied 5/3/19 (Stein, J.)
People v Gentles	1st Dept: 171 AD3d 471 (Bronx)	withdrawn 5/21/19 (Fahey, J.)
People v Gomez	App Term, 1st Dept: 63 Misc 3d 138(A) (Bronx)	denied 5/31/19 (DiFiore, Ch. J.)
People v Gonzalez (Anthony)	1st Dept: 170 AD3d 558 (NY)	denied 5/17/19 (Wilson, J.)
People v Gonzalez (Douglas)	App Term, 2d Dept, 9th & 10th Jud Dists: 62 Misc 3d 130(A) (Orange)	denied reconsideration 5/31/19 (Feinman, J.)
People v Gould	1st Dept: 170 AD3d 547 (NY)	denied 5/9/19 (Rivera, J.)
People v Grant (Elijah)	2d Dept: 171 AD3d 791 (Kings)	denied 5/31/19 (Feinman, J.)
People v Grant (Jeryl)	2d Dept: 170 AD3d 888 (Richmond)	denied 5/31/19 (DiFiore, Ch. J.)
People v Greer	4th Dept: 170 AD3d 1538 (Erie)	denied 5/24/19 (Feinman, J.)
People v Gumbs	App Div, 1st Dept: 2015 NY Slip Op 89556(U) (NY)	dismissed 5/1/19 (Stein, J.)
People v Hamlett	1st Dept: 168 AD3d 546 (NY)	denied 5/21/19 (Stein, J.)
People v Harrington	3d Dept: 170 AD3d 1338 (Albany)	denied 5/31/19 (DiFiore, Ch. J.)
People v Harris (Dijon)	App Div, 2d Dept: 2019 NY Slip Op 63889(U) (Kings)	dismissed 5/7/19 (Fahey, J.)
People v Harris (Gary)	1st Dept: 168 AD3d 568 (NY)	denied 5/10/19 (DiFiore, Ch. J.)
People v Harvey	4th Dept: 170 AD3d 1675 (Monroe)	denied 5/22/19 (Stein, J.)
People v Hatcher	3d Dept: 168 AD3d 1313 (Broome)	denied 5/10/19 (DiFiore, Ch. J.)
People v Hazell	App Term, 1st Dept: 62 Misc 3d 151(A) (NY)	denied 5/29/19 (Fahey, J.)

People v Headley	2d Dept: 170 AD3d 746 (Kings)	denied 5/9/19 (Rivera, J.)
People v Hemans	2d Dept: 170 AD3d 1039 (Queens)	denied 5/24/19 (Feinman, J.)
People v Hemphill	4th Dept: 170 AD3d 1528 (Niagara)	denied 5/30/19 (Garcia, J.)
People v Henry	1st Dept: 170 AD3d 484 (Bronx)	denied 5/30/19 (Garcia, J.)
People v Herbin	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 61 Misc 3d 150(A) (Kings)	denied 5/30/19 (Garcia, J.)
People v Hernandez	App Term, 2d Dept, 9th & 10th Jud Dists: 62 Misc 3d 9 (Suffolk)	dismissed 5/30/19 (Fahey, J.)
People v Hill (Quentin)	4th Dept: 170 AD3d 1620 (Erie)	denied 5/24/19 (Feinman, J.)
People v Hill (Quinton)	4th Dept: 170 AD3d 1620 (Erie)	denied 5/24/19 (Feinman, J.)
People v Holley	4th Dept: 170 AD3d 1530 (Erie)	denied 5/30/19 (Garcia, J.)
People v Hopper	4th Dept: 170 AD3d 1523 (Onondaga)	denied 5/23/19 (Wilson, J.)
People v Huger	2d Dept: 167 AD3d 1042 (Kings)	denied reconsideration 5/31/19 (DiFiore, Ch. J.)
People v Jasquez	1st Dept: 170 AD3d 537 (NY)	denied 5/30/19 (Garcia, J.)
People v Johnson	2d Dept: 165 AD3d 1168 (Kings)	denied 5/6/19 (Stein, J.)
People v Jones (Ahmed)	2d Dept: 171 AD3d 1091 (Kings)	denied 5/30/19 (Feinman, J.)
People v Jones (Jemal)	3d Dept: 168 AD3d 1313 (Broome)	denied 5/10/19 (DiFiore, Ch. J.)
People v Jones (Leon)	2d Dept: 169 AD3d 925 (Nassau)	denied 5/24/19 (Feinman, J.)
People v Jordan	1st Dept: 168 AD3d 458 (NY)	denied 5/23/19 (DiFiore, Ch. J.)
People v Kahley	4th Dept: 169 AD3d 1464 (Monroe)	denied 5/3/19 (Feinman, J.)
People v Kaplan	3d Dept: 168 AD3d 1229 (Warren)	denied 5/14/19 (Feinman, J.)
People v Kelvin N.	1st Dept: 170 AD3d 564 (NY)	denied 5/31/19 (DiFiore, Ch. J.)
People v King	2d Dept: 170 AD3d 1041 (Westchester)	denied 5/24/19 (Feinman, J.)
People v Kobbah	1st Dept: 168 AD3d 562 (Bronx)	denied 5/9/19 (Stein, J.)
People v Kulakov	App Div, 3d Dept: 2019 NY Slip Op 64796(U) (Franklin)	dismissed 5/29/19 (Garcia, J.)
People v Lankford	4th Dept: 170 AD3d 1620 (Onondaga)	denied 5/22/19 (Stein, J.)

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People v Larbie	1st Dept: 171 AD3d 421 (NY)	denied 5/29/19 (Wilson, J.)
People v Lewis	3d Dept: 167 AD3d 158 (Greene)	denied 5/9/19 (Rivera, J.)
People v Lopez	1st Dept: 168 AD3d 418 (NY)	denied 5/31/19 (DiFiore, Ch. J.)
People v Lozano	1st Dept: 170 AD3d 505 (NY)	denied 5/2/19 (Rivera, J.)
People v Lucious	App Term, 1st Dept: 62 Misc 3d 145(A) (NY)	denied 5/15/19 (Stein, J.)
People v Mack	2d Dept: 168 AD3d 1100 (Rockland)	denied 5/13/19 (Rivera, J.)
People v Madigan	4th Dept: 169 AD3d 1467 (Steuben)	denied 5/9/19 (Stein, J.)
People v McAdams	1st Dept: 170 AD3d 549 (NY)	denied 5/30/19 (Garcia, J.)
People v McCorkle	1st Dept: 171 AD3d 510 (Bronx)	denied 5/28/19 (DiFiore, Ch. J.)
People v McCoy	3d Dept: 169 AD3d 1260 (Chemung)	denied 5/15/19 (DiFiore, Ch. J.)
People v McIntosh	App Term, 1st Dept: 62 Misc 3d 152(A) (NY)	denied 5/29/19 (Fahey, J.)
People v McKenzie	1st Dept: 169 AD3d 557 (NY)	denied 5/2/19 (Rivera, J.)
People v McKinney	4th Dept: 170 AD3d 1507 (Onondaga)	denied 5/30/19 (Garcia, J.)
People v Mendez	3d Dept: 169 AD3d 1255 (Albany)	denied 5/31/19 (DiFiore, Ch. J.)
People v Mercado	App Div, 2d Dept: 2019 NY Slip Op 63502(U) (Westchester)	dismissed 5/3/19 (Stein, J.)
People v Merchant	4th Dept: 170 AD3d 1651 (Onondaga)	denied 5/17/19 (Wilson, J.)
People v Middlebrooks	4th Dept: 167 AD3d 1483 (Erie)	denied reconsideration 5/23/19 (Wilson, J.)
People v Milliman	4th Dept: 122 AD3d 1437 (Cayuga)	denied 5/30/19 (Garcia, J.)
People v Mitchell (Stephen)	App Div, 2d Dept: 2019 NY Slip Op 66165(U) (Kings)	dismissed 5/29/19 (Feinman, J.)
People v Mitchell (Stephen)	App Div, 2d Dept: 2019 NY Slip Op 66166(U) (Kings)	dismissed 5/29/19 (Feinman, J.)
People v Mohan	2d Dept: 169 AD3d 1061 (Queens)	denied 5/14/19 (Fahey, J.)
People v Morales	1st Dept: 171 AD3d 519 (Bronx)	denied 5/13/19 (Rivera, J.)
People v Morris	3d Dept: 161 AD3d 1219 (Albany)	denied 5/9/19 (Stein, J.)
People v Moye	2d Dept: 170 AD3d 1198 (Westchester)	denied 5/29/19 (Wilson, J.)

People v Murphy	2d Dept: 168 AD3d 880 (Kings)	denied 5/3/19 (Stein, J.)
People v Myers	2d Dept: 170 AD3d 891 (Queens)	denied 5/30/19 (Feinman, J.)
People v Nabi	2d Dept: 165 AD3d 1292 (Queens)	denied 5/10/19 (DiFiore, Ch. J.)
People v Najera	2d Dept: 170 AD3d 753 (Rockland)	denied 5/28/19 (DiFiore, Ch. J.)
People v Newborn (Keith)	App Div, 2d Dept: 2017 NY Slip Op 72219(U) (Suffolk)	dismissed 5/29/19 (Garcia, J.)
People v Newborn (Keith)	App Div, 2d Dept: 2017 NY Slip Op 82408(U) (Suffolk)	dismissed 5/29/19 (Garcia, J.)
People v Neysmith	1st Dept: 168 AD3d 626 (NY)	denied 5/9/19 (Stein, J.)
People v Nichols	1st Dept: 170 AD3d 529 (NY)	denied 5/14/19 (DiFiore, Ch. J.)
People v Nunez (Jose)	1st Dept: 167 AD3d 521 (NY)	denied 5/23/19 (Rivera, J.)
People v Nunez (Miguel)	1st Dept: 170 AD3d 581 (Bronx)	denied 5/14/19 (Fahey, J.)
People v Nunez-Gibbs	1st Dept: 170 AD3d 581 (Bronx)	denied 5/14/19 (Fahey, J.)
People v Orta	2d Dept: 169 AD3d 932 (Richmond)	denied 5/3/19 (Stein, J.)
People v Ortega	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 147(A) (Queens)	denied 5/14/19 (Fahey, J.)
People v Ortiz	2d Dept: 170 AD3d 755 (Suffolk)	denied 5/9/19 (Stein, J.)
People v Pacini	App Term, 1st Dept: 63 Misc 3d 126(A) (NY)	denied 5/3/19 (Wilson, J.)
People v Parsley	2d Dept: 168 AD3d 987 (Westchester)	denied 5/7/19 (Wilson, J.)
People v Pascall	2d Dept: 164 AD3d 1265 (Kings)	denied* 5/15/19 (Rivera, J.)
People v Patel (Amit)	2d Dept: 169 AD3d 934 (Queens)	denied 5/1/19 (Stein, J.)
People v Patel (Amit)	2d Dept: 169 AD3d 935 (Queens)	denied 5/1/19 (Stein, J.)
People v Pearson	App Div, 4th Dept, 2/18/19 (Oneida)	dismissed 5/3/19 (Stein, J.)
People v Pena	App Term, 1st Dept: 61 Misc 3d 134(A) (Bronx)	granted 5/14/19 (Garcia, J.)
People v Pietoso	3d Dept: 168 AD3d 1276 (Tompkins)	denied 5/30/19 (Garcia, J.)
People v Pinkney	1st Dept: 170 AD3d 584 (Bronx)	denied 5/17/19 (Wilson, J.)
People v Porter	3d Dept: 168 AD3d 1283 (Broome)	denied 5/24/19 (Feinman, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Velez* (164 AD3d 622 [2d Dept 2018], *lv granted* 32 NY3d 1129 [2018]).

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People v Ramos-Mondroy	1st Dept: 169 AD3d 494 (NY)	denied 5/3/19 (Wilson, J.)
People v Ransom	2d Dept: 170 AD3d 1199 (Nassau)	denied 5/23/19 (Fahey, J.)
People v Reyes	2d Dept: 169 AD3d 721 (Suffolk)	denied 5/29/19 (DiFiore, Ch. J.)
People v Rivera	2d Dept: 171 AD3d 802 (Kings)	denied 5/30/19 (Feinman, J.)
People v Rodgers	1st Dept: 170 AD3d 460 (NY)	denied 5/3/19 (Stein, J.)
People v Rodriguez (Gloria)	1st Dept: 170 AD3d 553 (NY)	denied 5/7/19 (Fahey, J.)
People v Rodriguez (Nelson)	App Div, 2d Dept: 2019 NY Slip Op 64519(U) (Kings)	dismissed 5/14/19 (Feinman, J.)
People v Romero	App Div, 2d Dept: 2019 NY Slip Op 63898(U) (Suffolk)	dismissed 5/13/19 (Rivera, J.)
People v Sanders	2d Dept: 171 AD3d 802 (Queens)	denied 5/30/19 (Garcia, J.)
People v Santiago	2d Dept: 168 AD3d 989 (Kings)	denied 5/6/19 (Stein, J.)
People v Sell	App Div, 4th Dept, 3/6/19 (Erie)	dismissed 5/13/19 (Rivera, J.)
People v Serrano	2d Dept: 166 AD3d 1020 (Kings)	denied 5/2/19 (Rivera, J.)
People v Shapiro	1st Dept: 170 AD3d 515 (NY)	denied 5/29/19 (Garcia, J.)
People v Shevach	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 64 Misc 3d 130(A) (Kings)	denied 5/2/19 (Feinman, J.)
People v Simpkins	2d Dept: 170 AD3d 757 (Nassau)	denied 5/23/19 (Rivera, J.)
People v Simpson	App Div, 3d Dept: 2019 NY Slip Op 62652(U) (Ulster)	denied 5/3/19 (Stein, J.)
People v Sinclair	4th Dept: 170 AD3d 1527 (Niagara)	denied 5/31/19 (DiFiore, Ch. J.)
People v Singletary	1st Dept: 170 AD3d 489 (NY)	denied 5/7/19 (Fahey, J.)
People v Singleton-Pradia	4th Dept: 170 AD3d 1518 (Monroe)	denied 5/24/19 (Feinman, J.) (Appeal No. 2)
People v Slater	App Div, 3d Dept: 2019 NY Slip Op 62658(U) (Sullivan)	dismissed 5/10/19 (DiFiore, Ch. J.)
People v Small	App Div, 2d Dept: 2019 NY Slip Op 64520(U) (Westchester)	dismissed 5/24/19 (Feinman, J.)
People v Smith (Joe)	4th Dept: 170 AD3d 1564 (Erie)	denied 5/2/19 (Feinman, J.)
People v Smith (Marvin)	1st Dept: 171 AD3d 498 (NY)	denied 5/31/19 (Stein, J.)
People v Snow	3d Dept: 170 AD3d 1276 (Chemung)	denied 5/23/19 (Rivera, J.)
People v Stahl	4th Dept: 167 AD3d 1555 (Ontario)	denied 5/9/19 (Stein, J.)

People v Syphrett	1st Dept: 170 AD3d 431 (NY)	denied 5/21/19 (Fahey, J.)
People v Thomas (Derrick)	3d Dept: 169 AD3d 1255 (Albany)	denied 5/31/19 (DiFiore, Ch. J.)
People v Thomas (Warren)	App Div, 1st Dept: 2018 NY Slip Op 67902(U) (Bronx)	dismissed 5/21/19 (Fahey, J.)
People v Thompson	1st Dept: 170 AD3d 545 (NY)	denied 5/22/19 (DiFiore, Ch. J.)
People v Truitt	4th Dept: 170 AD3d 1591 (Onondaga)	denied 5/31/19 (Stein, J.)
People v Valdez	1st Dept: 170 AD3d 600 (NY)	denied 5/21/19 (Fahey, J.)
People v Veloz	App Term, 1st Dept: 63 Misc 3d 138(A) (Bronx)	denied 5/16/19 (Rivera, J.)
People v Vickers	3d Dept: 168 AD3d 1268 (Albany)	denied 5/7/19 (Fahey, J.)
People v Villa-Ruiz	App Term, 1st Dept: 63 Misc 3d 126(A) (NY)	denied 5/13/19 (Rivera, J.)
People v Wade	2d Dept: 166 AD3d 912 (Queens)	denied 5/9/19 (Rivera, J.)
People v Walker (Curry)	1st Dept: 170 AD3d 599 (NY)	denied 5/29/19 (Garcia, J.)
People v Walker (Kenneth)	2d Dept: 169 AD3d 1070 (Queens)	denied 5/30/19 (Garcia, J.)
People v Walker (Malcolm)	4th Dept: 170 AD3d 1528 (Onondaga)	denied 5/3/19 (Wilson, J.)
People v Walker (Michael)	2d Dept: 169 AD3d 723 (Richmond)	denied 5/15/19 (Stein, J.)
People v Walton	2d Dept: 168 AD3d 1103 (Kings)	denied 5/6/19 (Stein, J.)
People v Washington	4th Dept: 170 AD3d 1608 (Erie)	denied 5/29/19 (DiFiore, Ch. J.)
People v Watson	1st Dept: 170 AD3d 409 (NY)	denied 5/7/19 (Fahey, J.)
People v Whiting	4th Dept: 170 AD3d 1654 (Erie)	denied 5/13/19 (Rivera, J.)
People v Williams (Larry)	2d Dept: 170 AD3d 1046 (Nassau)	denied 5/31/19 (Stein, J.)
People v Williams (Terrell)	2d Dept: 168 AD3d 1108 (Queens)	denied 5/9/19 (Rivera, J.)
People v Wilson (Brian)	4th Dept: 170 AD3d 1532 (Onondaga)	denied 5/9/19 (Rivera, J.)
People v Wilson (Curtis)	4th Dept: 170 AD3d 1527 (Monroe)	denied 5/31/19 (DiFiore, Ch. J.)
People v Woods	3d Dept: 166 AD3d 1298 (Albany)	denied 5/2/19 (Feinman, J.)
People v Wynn	App Div, 1st Dept: 2018 NY Slip Op 86142(U) (NY)	denied 5/1/19 (Stein, J.)
People v Young	4th Dept: 167 AD3d 1448 (Monroe)	denied 5/10/19 (DiFiore, Ch. J.)

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People v Yu

1st Dept: 167 AD3d 521 (NY)

denied 5/22/19
(Rivera, J.)

CLAUDINE BEAUCHEMIN et al., Appellants, v AUTOBUS FLEUR DE
LYS, INC., et al., Respondents, et al., Defendants.

Submitted February 19, 2019; decided June 6, 2019

Reported below, 166 AD3d 1122.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

BILL BIRDS, INC., et al., Appellants, v STEIN LAW FIRM, P.C., et
al., Respondents.

Submitted June 3, 2019; decided June 6, 2019

Reported below, 164 AD3d 635.

Motion by Andrew Lavoott Bluestone, Esq., for leave to file a
brief amicus curiae on the appeal herein granted and the
proposed brief is accepted as filed. Two copies of the brief must
be served, nine copies filed, and the brief submitted in digital
format within seven days.

BILL BIRDS, INC., et al., Appellants, v STEIN LAW FIRM, P.C., et
al., Respondents.

Submitted June 3, 2019; decided June 6, 2019

Reported below, 164 AD3d 635.

Motion by Jeffrey A. Jannuzzo, Esq., for leave to file a brief
amicus curiae on the appeal herein granted and the proposed
brief is accepted as filed. The brief must be submitted in digital
format within seven days.

BENEDICTA BRITO, Respondent, v RAFAEL GOMEZ et al., Appel-
lants.

Submitted May 28, 2019; decided June 6, 2019

Reported below, 168 AD3d 1.

Motion for a stay denied.

In the Matter of SHEM CARTER, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Decided June 6, 2019

Reported below, 166 AD3d 1189.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

JACINTHE CLAUDE et al., Appellants, v AUTOBUS FLEUR DE LYS, INC., et al., Respondents, et al., Defendants.

Submitted February 19, 2019; decided June 6, 2019

Reported below, 166 AD3d 1120.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Appointment of a Guardian for EUGENE DAVID COLELLO, Pursuant to SCPA Article 17-A. MICHELLE A. COLELLO, Respondent, v EUGENE G. COLELLO, Appellant. LISA J. ALLEN, Esq., et al., Respondents. (Appeal No. 1.)

In the Matter of the Appointment of a Guardian for EUGENE DAVID COLELLO, Pursuant to SCPA Article 17-A. MICHELLE A. COLELLO, Respondent, v EUGENE G. COLELLO, Appellant. LISA J. ALLEN, Esq., et al., Respondents. (Appeal No. 2.)

In the Matter of the Appointment of a Guardian for EUGENE DAVID COLELLO, Pursuant to SCPA Article 17-A. MICHELLE A. COLELLO, Respondent, v EUGENE G. COLELLO, Appellant. LISA J. ALLEN, Esq., et al., Respondents. (Appeal No. 3.)

Submitted April 22, 2019; decided June 6, 2019

Reported below, 167 AD3d 1445.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

In the Matter of MICHAEL A. DEEM, Appellant, v JOHN P. COLANGELO, a Justice of the Supreme Court, County of Westchester, et al., Respondents.

Decided June 6, 2019

Reported below, 2019 NY Slip Op 67739(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge DiFIORE taking no part.

FREEDOM MORTGAGE CORPORATION, Appellant, v HERSCHEL ENGEL, Respondent, et al., Defendants.

Submitted April 8, 2019; decided June 6, 2019

Reported below, 163 AD3d 631.

Motion, insofar as it seeks leave to appeal as against defendant Herschel Engel, granted; motion for leave to appeal otherwise dismissed upon the ground that as to the remaining defendants the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JACQUELINE HAROUNIAN, an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT, Respondent.

Submitted May 3, 2019; decided June 6, 2019

Reported below, 2019 NY Slip Op 63870(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

HSBC BANK USA, Appellant, v BETTY LUGO, Respondent, et al., Defendants.

Decided June 6, 2019

Reported below, 127 AD3d 502.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JUSTICE L. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; JESSICA L., Appellant, et al., Respondent. (Proceeding No. 1.)

In the Matter of ALAYSIA L. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; JESSICA L., Appellant, et al., Respondent. (Proceeding No. 2.)

In the Matter of ZAMAHRI L. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; JESSICA L., Appellant, et al., Respondent. (Proceeding No. 3.)

In the Matter of SAMIYAH L. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; JESSICA L., Appellant, et al., Respondent. (Proceeding No. 4.)

In the Matter of TYRIEK L. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; JESSICA L., Appellant, et al., Respondent. (Proceeding No. 5.)

Submitted March 11, 2019; decided June 6, 2019

Reported below, 168 AD3d 1057.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of LACEY J. LORIMER, Appellant, v BRETT J. LORIMER, Respondent.

Submitted February 11, 2019; decided June 6, 2019

Reported below, 167 AD3d 1263.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law (*see* CPLR 5601 [a]). Motion for leave to appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MARCELINO ALLENDE, Respondent.

Submitted May 6, 2019; decided June 6, 2019

Reported below, 168 AD3d 464.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICKEY ALSTON, Appellant.

Submitted May 28, 2019; decided June 6, 2019

Reported below, 169 AD3d 1.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MIGUEL CARO, Appellant.

Submitted May 6, 2019; decided June 6, 2019

Reported below, 162 AD3d 546.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWARD HARDY, Appellant.

Submitted May 13, 2019; decided June 6, 2019

Reported below, 63 Misc 3d 6.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HOWARD POWELL, Appellant.

Submitted May 20, 2019; decided June 6, 2019

Reported below, 166 AD3d 660.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ARIEL GARCIA, Appellant, v ANTHONY ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, et al., Respondents.

Submitted April 1, 2019; decided June 6, 2019

Reported below, 167 AD3d 199.

Motion for reargument of motion for leave to appeal denied [see 32 NY3d 1192 (2019)].

In the Matter of RONALD KENDELL G., III, and Another, Infants. JANET G., Appellant; SAINT DOMINIC'S FAMILY SERVICES, Respondent.

Submitted March 25, 2019; decided June 6, 2019

Reported below, 169 AD3d 558.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of SAMANTHA F. and Others, Infants. EDWIN F., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

Submitted March 18, 2019; decided June 6, 2019

Reported below, 169 AD3d 549.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge FEINMAN taking no part.

In the Matter of CAMMIE L. SIMMES, Respondent, v WILLIAM HOTALING, Appellant. (Proceeding No. 1.)

In the Matter of WILLIAM HOTALING, Appellant, v CAMMIE L. SIMMES, Respondent. (Proceeding No. 2.) (And Another Related Proceeding.)

Submitted April 22, 2019; decided June 6, 2019

Reported below, 166 AD3d 1329.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as affirmed Family Court's dismissal of appellant's petitions to enforce a prior Family Court order, dismissed upon the ground that such portion of the order does not finally determine the proceedings within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of JONATHAN R. STEINBERG, an Attorney, Appellant. ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Decided June 6, 2019

Reported below, 167 AD3d 206.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge FEINMAN taking no part.

CAMERON WINKLEVOSS et al., Appellants, v TODD STEINBERG, an Individual, Respondent.

Decided June 6, 2019

Reported below, 170 AD3d 618.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

XIANG FU HE, Appellant, v TROON MANAGEMENT, INC., et al.,
Respondents.

Submitted May 28, 2019; decided June 6, 2019

Reported below, 157 AD3d 586.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, one copy filed, and the brief submitted in digital format within seven days.

ANNA AYBAR et al., Respondents, v JOSE A. AYBAR, JR., et al.,
Defendants, and FORD MOTOR COMPANY et al., Respon-
dents. U.S. TIRES AND WHEELS OF QUEENS, LLC, Nonparty
Appellant.

Submitted March 11, 2019; decided June 11, 2019

Reported below, 169 AD3d 137.

Motion for leave to appeal dismissed upon the ground that movant is not a party aggrieved (*see* CPLR 5511).

MICHAEL CHENKIN, Appellant, v PUBLIC ADMINISTRATOR OF NEW
YORK COUNTY, Respondent.

Submitted April 15, 2019; decided June 11, 2019

Reported below, 163 AD3d 410.

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 1191 (2019)].

ESTATE OF ALEXANDER CALDERWOOD, Appellant, v ACE GROUP
INTERNATIONAL LLC et al., Respondents.

Submitted April 8, 2019; decided June 11, 2019

Reported below, 169 AD3d 552.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ROSEMARIE A. HERMAN et al., Appellants, v 36 GRAMERCY PARK REALTY ASSOCIATES, LLC, et al., Respondents, et al., Defendants. 36 GRAMERCY PARK REALTY ASSOCIATES, LLC, et al., Respondents, v ROSEMARIE A. HERMAN, Appellant.

Submitted April 1, 2019; decided June 11, 2019

Reported below, 165 AD3d 405.

Motion for leave to appeal dismissed upon the ground that the Appellate Division order sought to be appealed from does not finally determine the actions within the meaning of the Constitution and the judgments entered pursuant to the parties' conditional stipulation do not finally determine the actions for purposes of this Court's jurisdiction.

EDLON HOUSEN, Appellant, v BOSTON MARKET CORPORATION et al., Respondents, et al., Defendants.

Submitted April 15, 2019; decided June 11, 2019

Reported below, 166 AD3d 593.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RAUL ILLESCAS, Appellant, v ADAM WILKINS, Respondent.

Submitted March 18, 2019; decided June 11, 2019

Reported below, 2019 NY Slip Op 61471(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

JERRY L. JOHNSON, Appellant, v STATE OF NEW YORK, Respondent.

Submitted April 15, 2019; decided June 11, 2019

Reported below, 2017 NY Slip Op 76547(U).

Motion for reargument of motion for leave to appeal denied [see 32 NY3d 1191 (2019)].

JPMORGAN CHASE BANK, NATIONAL ASSOCIATION, Respondent, v
ROSS R. CALIGURI, Also Known as ROSS CALIGURI, Appel-
lant, et al., Defendants.

Submitted April 22, 2019; decided June 11, 2019

Reported below, 168 AD3d 819.

Motion, deemed to be seeking leave to appeal (*see* CPLR 5512) from the February 2019 Supreme Court judgment of foreclosure and sale pursuant to CPLR 5602 (a) (1) (ii) to review the January 2019 Appellate Division order, insofar as it seeks review of so much of the Appellate Division order as affirmed the denial of the motion for reassignment, dismissed upon the ground that such portion of the order of the Appellate Division does not “necessarily affect” the judgment sought to be appealed from within the meaning of CPLR 5602 (a) (1) (ii); motion for leave to appeal otherwise granted.

JPMORGAN CHASE BANK, NATIONAL ASSOCIATION, Respondent, v
ROSS R. CALIGURI, Also Known as ROSS CALIGURI, Appel-
lant, et al., Defendants.

Submitted May 13, 2019; decided June 11, 2019

Reported below, 168 AD3d 819.

Motion for a stay granted.

NWM CAPITAL, LLC, Respondent, v MARK SCHARFMAN et al.,
Defendants, and FORT I GROUP, L.P., et al., Appellants.

Submitted March 18, 2019; decided June 11, 2019

Reported below, 168 AD3d 624.

Motion, insofar as defendants Fort I Group, L.P., et al. seek leave to appeal from so much of the Appellate Division order as affirmed the January 25, 2018 Supreme Court order denying their motion for attorneys' fees, dismissed upon the ground that such portion of the Appellate Division order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise dismissed upon the ground that defendants Fort I Group, L.P., et al. are not parties aggrieved by the remainder of the Appellate Division order (*see* CPLR 5511).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HOWARD GRIFFITH, Appellant.

Submitted April 8, 2019; decided June 11, 2019

Reported below, 166 AD3d 1518.

Motion for reconsideration of this Court's February 21, 2019 dismissal order denied [*see* 32 NY3d 1196 (2019)].

In the Matter of JAMES PETTUS, Appellant, et al., Petitioner, v BOARD OF DIRECTORS et al., Respondents.

Submitted April 1, 2019; decided June 11, 2019

Reported below, 169 AD3d 524.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

REMET CORPORATION, Appellant, v ESTATE OF JAMES R. PYNE, Deceased, et al., Respondents, et al., Defendant. (Appeal No. 1.)

REMET CORPORATION, Appellant, v ESTATE OF JAMES R. PYNE, Deceased, et al., Respondents, et al., Defendant. (Appeal No. 2.)

Submitted April 15, 2019; decided June 11, 2019

Reported below, 169 AD3d 1431; 169 AD3d 1432.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

RISK CONTROL ASSOCIATES INSURANCE GROUP, Appellant, v MALLOOF, LEBOWITZ, CONNAHAN & OLESKE, P.C., et al., Respondents.

Submitted April 8, 2019; decided June 11, 2019

Reported below, 151 AD3d 527.

Motion for reargument of motion for leave to appeal denied [see 32 NY3d 1196 (2019)].

Judge FEINMAN taking no part.

CHRISTOPHER J. SCULTI et al., Respondents, v BEN FINLEY et al., Defendants, and WESTCHESTER COUNTY et al., Appellants.

Submitted April 1, 2019; decided June 11, 2019

Reported below, 167 AD3d 796.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge DiFIORE taking no part.

PHILIP R. SHAW, Appellant, v ELIZABETH ELTING, Respondent.

Submitted April 8, 2019; decided June 11, 2019

Reported below, 169 AD3d 601.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of EQUARN WHITE, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted April 8, 2019; decided June 11, 2019

Reported below, 2019 NY Slip Op 63295(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ASPEN SPECIALTY INSURANCE COMPANY, Respondent, v IRON-SHORE INDEMNITY INCORPORATED, Appellant, et al., Defendant.

Submitted April 15, 2019; decided June 13, 2019

Reported below, 167 AD3d 420.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of KIMBERLY AUSTIN et al., Appellants, v MARIA MILIN, Respondent, and PS 157 LOFTS LLC et al., Respondents.

Submitted April 15, 2019; decided June 13, 2019

Reported below, 161 AD3d 675.

Motion for reargument of motion for leave to appeal denied [see 32 NY3d 916 (2019)].

MARILYN BLOCH, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted April 22, 2019; decided June 13, 2019

Reported below, 2019 NY Slip Op 62341(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

JOHN D. CADORE, Appellant, v STATE OF NEW YORK, Respondent.

Submitted May 6, 2019; decided June 13, 2019

Reported below, 170 AD3d 1531.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

41ST ROAD PROPERTIES, LLC, Respondent, v WANG REAL PROPERTY, LLC, et al., Appellants, et al., Defendants.

Submitted April 22, 2019; decided June 13, 2019

Reported below, 2018 NY Slip Op 91496(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of KYLE JIGGETTS, Appellant, v NEW YORK CITY HUMAN RESOURCES ADMINISTRATION et al., Respondents.

Submitted April 29, 2019; decided June 13, 2019

Reported below, 156 AD3d 552.

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* CPLR 5602). Motion for poor person relief etc. dismissed as academic.

NELLA MANKO, Appellant, v BERNARD H. BROOME et al., Respondents.

Submitted May 20, 2019; decided June 13, 2019

Reported below, 2013 NY Slip Op 62551(U); 2011 NY Slip Op 66529(U).

Motion for reargument of motions for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 21 NY3d 930 (2013); 21 NY3d 907 (2013)]. Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v BERNARD H. BROOME et al., Defendants, and PROFESSIONAL EVALUATION GROUP, INC., Respondent.

Submitted May 20, 2019; decided June 13, 2019

Reported below, 2012 NY Slip Op 94762(U).

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 21 NY3d 907 (2013)]. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Cross motion to hold plaintiff in contempt denied.

NELLA MANKO, Appellant, v LENOX HILL ANESTHESIOLOGY, PLLC, et al., Respondents.

Submitted April 22, 2019; decided June 13, 2019

Reported below, 2011 NY Slip Op 63512(U).

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 31 NY3d 903 (2018)]. Motion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted May 13, 2019; decided June 13, 2019

Reported below, 2018 NY Slip Op 86813(U).

Motion for reconsideration of this Court's March 21, 2019 dismissal order denied [*see* 32 NY3d 1212 (2019)]. Motion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted May 28, 2019; decided June 13, 2019

Reported below, 2018 NY Slip Op 86813(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v SHOREFRONT APARTMENTS, LLC, et al., Respondents.

Submitted May 13, 2019; decided June 13, 2019

Reported below, 2012 NY Slip Op 89175(U).

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 21 NY3d 898 (2013)]. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v ELTON STRAUSS et al., Respondents, et al., Defendants.

Submitted May 13, 2019; decided June 13, 2019

Reported below, 2013 NY Slip Op 87424(U); 2012 NY Slip Op 89175(U).

Motion for reargument of motions for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 22 NY3d 1112 (2014); 21 NY3d 898 (2013)]. Motion for poor person relief dismissed as academic.

TEDDY MOORE, Appellant, v FRANK GUERRA, Defendant, and CITY OF NEW YORK et al., Respondents.

Submitted April 22, 2019; decided June 13, 2019

Reported below, 2019 NY Slip Op 61208(U).

Motion for reargument of motion for leave to appeal denied [*see* 33 NY3d 970 (2019)].

In the Matter of the Claim of JONATHAN MULLANE, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted April 22, 2019; decided June 13, 2019

Reported below, 164 AD3d 984.

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 918 (2019)].

SCOTT MYERS, Appellant, v STATE FARM INSURANCE, Respondent.

Submitted April 29, 2019; decided June 13, 2019

Reported below, 2019 NY Slip Op 65327(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NATIONAL FUEL GAS DISTRIBUTION CORPORATION, Appellant, v PUBLIC SERVICE COMMISSION OF THE STATE OF N.Y., Respondent.

Submitted April 8, 2019; decided June 13, 2019

Reported below, 169 AD3d 1334.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SERGIO DEL ROSARIO, Appellant.

Submitted April 29, 2019; decided June 13, 2019

Reported below, 170 AD3d 759.

Motion for leave to appeal granted. Motion for poor person relief granted.

Chief Judge DiFiore taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWAYNE WEBB, Also Known as LATIF LAMAR, Appellant.

Submitted May 6, 2019; decided June 13, 2019

Reported below, 162 AD3d 918.

Motion for reargument of motion for leave to appeal denied [see 32 NY3d 904 (2018)].

RHONDA ROSENHECK, Respondent, v JONATHAN PETER SCHACHTER, Appellant.

Submitted May 6, 2019; decided June 13, 2019

Reported below, 166 AD3d 1354.

Motion for reargument of motion for leave to appeal denied [see 32 NY3d 919 (2019)].

In the Matter of SAVE AMERICA'S CLOCKS, INC., et al., Respondents, v CITY OF NEW YORK et al., Appellants.

Submitted May 13, 2019; decided June 13, 2019

Reported below, 157 AD3d 133.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [see 33 NY3d 198 (2019)].

Chief Judge DiFIORE taking no part.

SOLARTECH RENEWABLES, LLC, Respondent, v TECHCITY PROPERTIES, INC., et al., Appellants.

Submitted April 29, 2019; decided June 13, 2019

Reported below, 167 AD3d 1316.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MYRNA VAZQUEZ, as Administratrix of the Estate of LUIS VAZQUEZ, Deceased, Appellant, v HOWARD A. ZUCKER, M.D., et al., Respondents.

Submitted April 15, 2019; decided June 13, 2019

Reported below, 169 AD3d 576.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of J'MIN WARD, Appellant, v CRAIG BROWN, Respondent.

Submitted April 22, 2019; decided June 13, 2019

Reported below, 164 AD3d 679 (case No. 2017-12721).

Motion for reargument of motion for leave to appeal denied [see 32 NY3d 916 (2019)].

In the Matter of ADAM D. SCO FAMILY OF SERVICES et al.,
Respondents; VICTORIA C., Appellant. (Proceeding No. 1.)

In the Matter of ANN N.C. SCO FAMILY OF SERVICES et al.,
Respondents; VICTORIA C., Appellant. (Proceeding No. 2.)

In the Matter of KA'SHAWN D. SCO FAMILY OF SERVICES et al.,
Respondents; VICTORIA C., Appellant. (Proceeding No. 3.)

Submitted May 6, 2019; decided June 25, 2019

Reported below, 170 AD3d 1006.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of AKILAH A. ADMINISTRATION FOR CHILDREN'S
SERVICES, Respondent; BISHME A., Appellant.

Submitted May 13, 2019; decided June 25, 2019

Reported below, 167 AD3d 999.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

THE CHURCH OF JESUS CHRIST OF LATTER-DAY SAINTS, SERVANT:
XIU JUAN SUN, THE SPIRITUAL ADAM, Appellant, v WU HUA
JING, M.D., Ph.D., et al., Respondents.

Decided June 25, 2019

Reported below, 2019 NY Slip Op 67451(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question.

In the Matter of the Estate of ANDREW F. HARTUNG, Deceased.
ALICIA S. CALAGIOVANNI, Onondaga County Public Administra-
tor, C.T.A., Respondent, v JOSEPH H. HARTUNG, Objectant-
Appellant.

Decided June 25, 2019

Reported below, 170 AD3d 1635.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

ROBERT JONES, Appellant, v STATE OF NEW YORK, Respondent.

Decided June 25, 2019

Reported below, 171 AD3d 1362.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

KEYSPAN GAS EAST CORPORATION, Doing Business as NATIONAL GRID, Plaintiff, v SUPERVISOR OF TOWN OF NORTH HEMPSTEAD et al., Defendants and Third-Party Plaintiffs-Respondents. COUNTY OF NASSAU et al., Third-Party Defendants-Appellants.

Decided June 25, 2019

Reported below, 169 AD3d 659.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

KEYSPAN GAS EAST CORPORATION, Doing Business as KEYSPAN ENERGY DELIVERY LONG ISLAND, Plaintiff, v SUPERVISOR OF TOWN OF NORTH HEMPSTEAD et al., Defendants and Third-Party Plaintiffs-Respondents. COUNTY OF NASSAU et al., Third-Party Defendants-Appellants.

Decided June 25, 2019

Reported below, 169 AD3d 661.

Appeal dismissed without costs, by the Court sua sponte, upon the ground that no substantial constitutional question is directly involved.

GILBERT LAU, Appellant, v HUMAN RESOURCES ADMINISTRATION, CARE OF WAVERLY CENTER, et al., Respondents.

Decided June 25, 2019

Reported below, 168 AD3d 565.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MIA B., an Infant. JEFFREY WEINHOFFER, Respondent; AMY BAFUMO, Appellant.

Submitted May 29, 2019; decided June 25, 2019

Reported below, 171 AD3d 1328.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law (*see* CPLR 5601 [a]).

In the Matter of MID ISLAND THERAPY ASSOCIATES, LLC, Doing Business as ALL ABOUT KIDS, Appellant, v THOMAS P. DINAPOLI, as State Comptroller, et al., Respondents.

Decided June 25, 2019

Reported below, 170 AD3d 1468.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of MSK REALTY INTERESTS, LLC, Appellant, v DEPARTMENT OF FINANCE OF THE CITY OF NEW YORK, Respondent.

Decided June 25, 2019

Reported below, 170 AD3d 459.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the Claim of SANDRA L. O'DONNELL, Respondent, v ERIE COUNTY et al., Appellants. WORKERS' COMPENSATION BOARD, Respondent.

Submitted April 22, 2019; decided June 25, 2019

Reported below, 162 AD3d 1278.

Motion, insofar as it seeks to dismiss the appeal, denied; motion, insofar as it seeks an order “confirming its authority to correct its decision” and related relief, dismissed upon the ground that the Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

IN the Matter of ONONDAGA COUNTY DEPARTMENT OF SOCIAL SERVICES, on Behalf of DECEMBER R.M., Respondent, v MARCUS N.D., Appellant.

Submitted April 29, 2019; decided June 25, 2019

Reported below, 170 AD3d 1561.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v RASHID BILAL, Respondent.

Submitted June 10, 2019; decided June 25, 2019

Reported below, 170 AD3d 83.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL LAVELLE, Appellant.

Submitted March 18, 2019; decided June 25, 2019

Reported below, 169 AD3d 1127.

Motion for leave to appeal dismissed upon the ground that the order of the Appellate Division sought to be appealed from has been vacated and superseded by a subsequent order of that court.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ECHO WESTLEY
DIXON, Appellant, v R. COVENY, Respondent.

Decided June 25, 2019

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

JAMES PETTUS, Appellant, v BOARD OF DIRECTORS et al., Respondents.

Decided June 25, 2019

Reported below, 2019 NY Slip Op 68636(U)

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

JAMES PETTUS, Appellant, v IMPERIAL PARKING SYSTEMS, INC., Respondent.

Decided June 25, 2019

Reported below, 2019 NY Slip Op 68635(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

In the Matter of BARRY SCHWEIG et al., Appellants, v CITY OF
NEW ROCHELLE et al., Respondents.

Decided June 25, 2019

Reported below, 170 AD3d 863.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

VERIZON NEW YORK, INC., Formerly Known as New York Telephone Company, Plaintiff, v SUPERVISORS OF TOWN OF NORTH HEMPSTEAD et al., Defendants and Third-Party Plaintiffs-Respondents. COUNTY OF NASSAU et al., Third-Party Defendants-Appellants.

Submitted May 10, 2019; decided June 25, 2019

Reported below, 169 AD3d 740.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

BANK OF NY, Respondent, v HEATHER Y. HARPER, Appellant.

Submitted May 13, 2019; decided June 27, 2019

Reported below, 2018 NY Slip Op 89938(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ANTHONY E. BERG, Appellant, v MARY E. BERG, Respondent.

Submitted May 20, 2019; decided June 27, 2019

Reported below, 2015 NY Slip Op 76477(U).

Motion for reargument of motion for leave to appeal denied [see 32 NY3d 918 (2019)].

In the Matter of DENNIS BRENNAN, Appellant, v MICHAEL C. GREEN, as Executive Deputy Commissioner of Division of Criminal Justice Services, et al., Respondents.

Submitted April 29, 2019; decided June 27, 2019

Reported below, 167 AD3d 1482.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

CITY OF NEW YORK, Respondent, v SHELLBANK RESTAURANT
CORPORATION, Appellant.

Submitted May 13, 2019; decided June 27, 2019

Reported below, 169 AD3d 581.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of Will of SYDNEY H. FIELDS, Deceased.

RICHARD FIELDS, Appellant, v DIANA PALMERI, Respondent.

Submitted May 13, 2019; decided June 27, 2019

Reported below, 2018 NY Slip Op 91716(U).

Motion for reargument denied [*see* 33 NY3d 968 (2019)].

In the Matter of TREVIS L. FUNCHES, Appellant, v STATE OF
NEW YORK DEPARTMENT OF CORRECTIONS AND COMMUNITY
SUPERVISION, Respondent.

Submitted May 13, 2019; decided June 27, 2019

Reported below, 163 AD3d 1390.

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 1140 (2019)].

KEVIN PHILLIP, Appellant, v STATE OF NEW YORK, Respondent.

Submitted May 13, 2019; decided June 27, 2019

Reported below, 2019 NY Slip Op 66409(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of REGINA METROPOLITAN Co., LLC, Respondent,
v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY
RENEWAL, Appellant, and LESLIE E. CARR et al.,
Intervenors-Respondents.

In the Matter of LESLIE E. CARR, Respondent, v NEW YORK
STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Ap-
pellant, and REGINA METROPOLITAN Co., LLC, Intervenor-
Respondent.

Submitted May 20, 2019; decided June 27, 2019

Reported below, 164 AD3d 420.

Motion to strike granted to the extent that Points II and III
of the brief filed by respondents Leslie E. Carr et al. are
stricken and respondents Leslie E. Carr et al. are directed to
file and serve a revised brief within 20 days.

JACQUELINE SHABOT SVATOVIC, Respondent, v ZARKO SVATOVIC,
Appellant.

ZARKO SVATOVIC, Appellant, v JACQUELINE SHABOT SVATOVIC,
Respondent.

Submitted April 29, 2019; decided June 27, 2019

Reported below, 166 AD3d 484.

Motion, insofar as it seeks leave to appeal from so much of
the Appellate Division order as dismissed the appeal from the
September 2017 Supreme Court order of transfer, dismissed
upon the ground that such portion of the order sought to be ap-
pealed from does not finally determine the action within the
meaning of the Constitution; motion for leave to appeal
otherwise denied.

SCOTT WHITE et al., Appellants, v MARK P. PLEXOUSAKIS et al.,
Respondents.

Decided June 27, 2019

Appeal transferred without costs, by the Court of Appeals,
sua sponte, to the Appellate Division, Second Department, upon
the ground that a direct appeal does not lie when questions
other than the constitutional validity of a statutory provision
are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR
5601 [b] [2]).

XUE JIE HE, Appellant, v GUTTENBERG NJ POLICE et al., Respondents.

Submitted May 13, 2019; decided June 27, 2019

Reported below, 2018 NY Slip Op 90529(U); 2018 NY Slip Op 84341(U).

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3). Motion for poor person relief dismissed as academic.

[128 NE3d 172, 104 NYS3d 45]

In the Matter of TYRELL FF., Alleged to Be a Neglected Child.
SCHENECTADY COUNTY DEPARTMENT OF SOCIAL SERVICES,
Respondent; JAQUASISA GG., Appellant.

Decided June 25, 2019

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 21, 2018. The Appellate Division, with two Justices dissenting, dismissed, as moot, an appeal from an order of the Family Court of Schenectady County (Jill S. Polk, J.), entered in a proceeding pursuant to Family Court Act article 10, which had temporarily removed the child from respondent's custody.

Matter of Tyrell FF. (Jaquasisa GG.), 166 AD3d 1331, appeal dismissed.

HEADNOTE

Appeal — Finality of Judgments and Orders — Appeal from Family Court Temporary Removal Order

An appeal to the Court of Appeals from an Appellate Division order, which dismissed, as moot, an appeal from a Family Court order temporarily removing the child from respondent mother's custody in a proceeding pursuant to Family Court Act article 10, was dismissed upon the ground that the order appealed from did not finally determine the proceeding within the meaning of the Constitution.

APPEARANCES OF COUNSEL

Karen R. Crandall, Glenville, for appellant.

Christopher H. Gardner, County Attorney, Schenectady (*Michael R. Godlewski* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

[128 NE3d 173, 104 NYS3d 46]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES R. McINTOSH, Appellant.

Argued June 6, 2019; decided June 27, 2019

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered June 15, 2018. The Appellate Division modified, on the law, a judgment of the Monroe County Court (Vincent M. Dinolfo, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree and manslaughter in the first degree. The modification consisted of reversing that part convicting defendant of manslaughter in the first degree and dismissing count two of the indictment. The Appellate Division affirmed the judgment as modified.

People v McIntosh, 162 AD3d 1612, affirmed.

HEADNOTE**Crimes — Harmless and Prejudicial Error — Refusal to Charge Remote Lesser Included Offenses**

In a prosecution for murder in the second degree and manslaughter in the first degree, any error in the trial court's denial of defendant's request to submit to the jury the lesser included offenses of manslaughter in the second degree and criminally negligent homicide was harmless. Furthermore, defendant's conviction of the lesser inclusory count of first-degree manslaughter, which the Appellate Division dismissed as required by CPL 300.40 (3) (b), did not change the harmless error analysis. The jury's guilty verdict on the indictment's highest count despite the availability of the next lesser included offense for their consideration foreclosed defendant's challenge to the court's refusal to charge the remote lesser included offenses, because it dispelled any speculation as to whether the jury might have reached a guilty verdict on the still lower degrees of homicide.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (*James A. Hobbs* of counsel), for appellant.

Sandra Doorley, District Attorney, Rochester (Scott Myles of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Even assuming the court erred in denying defendant's request to submit the crimes of manslaughter in the second degree and criminally negligent homicide to the jury as lesser included offenses of the charged crimes of murder in the second degree and manslaughter in the first degree, the error was harmless (*People v Johnson*, 87 NY2d 357, 361 [1996]; *People v Boettcher*, 69 NY2d 174, 180 [1987]; *People v Brown*, 203 NY 44, 50-51 [1911]; *People v Granger*, 187 NY 67, 73 [1907]). The Appellate Division properly concluded that defendant's conviction of the lesser inclusory count of first-degree manslaughter, which it dismissed as required by CPL 300.40 (3) (b), did not change the harmless error analysis. Under the circumstances presented here, the jury's guilty verdict on the indictment's highest count despite the availability of the next lesser included offense for their consideration, "forecloses [defendant's] challenge to the court's refusal to charge the remote lesser included offenses" (*Boettcher*, 69 NY2d at 180), because it dispels any speculation as to whether the jury might have reached a guilty verdict on "still lower degree[s] of homicide" (*Brown*, 203 NY at 50).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

Order affirmed, in a memorandum.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(June 1, 2019 through June 30, 2019)

People v Abreu	App Div, 4th Dept: 2019 NY Slip Op 67876(U) (Monroe)	dismissed 6/7/19 (DiFiore, Ch. J.)
People v Acevedo	2d Dept: 160 AD3d 975 (Westchester)	denied 6/13/19 (Stein, J.)
People v Adams	1st Dept: 171 AD3d 561 (Bronx)	denied 6/18/19 (Fahey, J.)
People v Adelman	App Term, 2d Dept, 9th & 10th Jud Dists: 62 Misc 3d 141(A) (Orange)	denied 6/17/19 (Garcia, J.)
People v Adger	4th Dept: 170 AD3d 1619 (Monroe)	denied 6/3/19 (Feinman, J.)

People v Alcantara	App Div, 2d Dept: 2019 NY Slip Op 66850(U) (Richmond)	dismissed 6/17/19 (Rivera, J.)
People v Alexander	2d Dept: 170 AD3d 738 (Kings)	denied 6/27/19 (Feinman, J.)
People v Allen	4th Dept: 171 AD3d 1507 (Onondaga)	denied 6/21/19 (DiFiore, Ch. J.)
People v Anderson	1st Dept: 171 AD3d 618 (NY)	denied 6/11/19 (Fahey, J.)
People v Anonymous	1st Dept: 172 AD3d 468 (NY)	denied 6/20/19 (Feinman, J.)
People v Archer	3d Dept: 171 AD3d 1404 (Franklin)	denied 6/25/19 (Fahey, J.)
People v Arias	1st Dept: 170 AD3d 576 (NY)	denied ¹ 6/4/19 (Garcia, J.)
People v Arscott	App Term, 2d Dept, 9th & 10th Jud Dists: 63 Misc 3d 130(A) (Westchester)	denied 6/3/19 (Feinman, J.)
People v Badji	1st Dept: 171 AD3d 499 (NY)	granted 6/19/19 (Garcia, J.)
People v Barnes (Gregory)	2d Dept: 171 AD3d 1082 (Suffolk)	denied 6/18/19 (Garcia, J.)
People v Barnes (William)	4th Dept: 167 AD3d 1589 (Niagara)	denied reconsideration 6/10/19 (Stein, J.)
People v Bassier	2d Dept: 171 AD3d 1083 (Kings)	denied 6/7/19 (Rivera, J.)
People v Beaupre	2d Dept: 170 AD3d 1031 (Dutchess)	denied 6/21/19 (Wilson, J.)
People v Becerra	2d Dept: 171 AD3d 938 (Kings)	denied 6/14/19 (Stein, J.)
People v Bedeau	1st Dept: 172 AD3d 430 (NY)	denied 6/29/19 (DiFiore, Ch. J.)
People v Bellinger	1st Dept: 169 AD3d 553 (NY)	denied 6/21/19 (DiFiore, Ch. J.)
People v Birchall	App Div, 3d Dept: 2019 NY Slip Op 68505(U) (Ulster)	dismissed 6/18/19 (Fahey, J.)
People v Blanding	App Div, 1st Dept: 2019 NY Slip Op 65862(U) (NY)	dismissed 6/7/19 (DiFiore, Ch. J.)
People v Blocker	2d Dept: 171 AD3d 1083 (Queens)	denied 6/12/19 (Rivera, J.)
People v Blount	1st Dept: 171 AD3d 428 (NY)	denied 6/3/19 (Stein, J.)
People v Bradley	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 63 Misc 3d 139(A) (Kings)	denied 6/20/19 (DiFiore, Ch. J.)
People v Bray	4th Dept: 170 AD3d 1538 (Niagara)	denied 6/3/19 (Stein, J.)
People v Brissett	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 149(A) (Richmond)	denied 6/20/19 (Wilson, J.)
People v Brooks	1st Dept: 170 AD3d 621 (NY)	denied 6/12/19 (DiFiore, Ch. J.)

1. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Delorbe* (165 AD3d 531 [1st Dept 2018], *lv granted* 32 NY3d 1125 [2018]).

MEMORANDA

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People v Brown (Michael)	App Term, 1st Dept: 63 Misc 3d 138(A) (NY)	denied 6/7/19 (Rivera, J.)
People v Brown (Paris)	1st Dept: 172 AD3d 41 (Bronx)	denied 6/28/19 (Feinman, J.)
People v Brown (Robert)	1st Dept: 172 AD3d 437 (NY)	denied 6/25/19 (Fahey, J.)
People v Buchanan	2d Dept: 171 AD3d 1084 (Queens)	denied 6/20/19 (Rivera, J.)
People v Burgess	2d Dept: 172 AD3d 738 (Kings)	denied 6/12/19 (Rivera, J.)
People v Burns	App Div, 2d Dept: 2019 NY Slip Op 67975(U) (Suffolk)	dismissed 6/26/19 (Garcia, J.)
People v Burroughs	1st Dept: 171 AD3d 482 (Bronx)	denied 6/20/19 (DiFiore, Ch. J.)
People v Bynum	2d Dept: 171 AD3d 1204 (Kings)	denied 6/26/19 (Garcia, J.)
People v Cadigan	1st Dept: 171 AD3d 611 (NY)	denied 6/14/19 (Feinman, J.)
People v Caldara	2d Dept: 170 AD3d 1191 (Queens)	denied 6/7/19 (Feinman, J.)
People v Calkins	4th Dept: 171 AD3d 1475 (Steuben)	denied 6/20/19 (DiFiore, Ch. J.)
People v Camacho	1st Dept: 171 AD3d 472 (NY)	denied 6/6/19 (Garcia, J.)
People v Carmichael	2d Dept: 170 AD3d 742 (Queens)	denied 6/19/19 (Stein, J.)
People v Castro	2d Dept: 170 AD3d 1034 (Suffolk)	denied 6/10/19 (Stein, J.)
People v Chapman	3d Dept: 168 AD3d 1315 (Warren)	denied 6/11/19 (Fahey, J.)
People v Chazbani	2d Dept: 167 AD3d 1034 (Queens)	denied 6/14/19 (Stein, J.)
People v Cintron	2d Dept: 169 AD3d 1058 (Orange)	denied 6/11/19 (Garcia, J.)
People v Ciquera (Marc)	App Term, 2d Dept, 9th & 10th Jud Dists: 64 Misc 3d 130(A), 2019 NY Slip Op 51035(U) (Nassau)	denied 6/14/19 (Rivera, J.)
People v Ciquera (Marc)	App Term, 2d Dept, 9th & 10th Jud Dists: 64 Misc 3d 130(A), 2019 NY Slip Op 51036(U) (Nassau)	denied 6/14/19 (Rivera, J.)
People v Clark	2d Dept: 171 AD3d 942 (Nassau)	denied 6/20/19 (Stein, J.)
People v Clarke	2d Dept: 170 AD3d 1191 (Kings)	denied 6/18/19 (Feinman, J.)
People v Cleverin	2d Dept: 171 AD3d 1086 (Kings)	denied 6/11/19 (Fahey, J.)
People v Cobb	App Term, 1st Dept: 63 Misc 3d 126(A) (Bronx)	denied 6/11/19 (Fahey, J.)
People v Coger	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 63 Misc 3d 136(A) (Queens)	denied 6/26/19 (Garcia, J.)

People v Coleman (Joshua)	4th Dept: 170 AD3d 1661 (Erie)	denied 6/28/19 (Rivera, J.) (Appeal No. 1)
People v Coleman (Joshua)	4th Dept: 170 AD3d 1662 (Erie)	denied 6/28/19 (Rivera, J.) (Appeal No. 2)
People v Colon	App Term, 1st Dept: 62 Misc 3d 137(A) (Bronx)	denied 6/11/19 (Fahey, J.)
People v Corbett	1st Dept: 171 AD3d 528 (Bronx)	denied 6/7/19 (Wilson, J.)
People v Cordero	1st Dept: 171 AD3d 516 (NY)	denied 6/6/19 (Garcia, J.)
People v Corsini	App Term, 1st Dept: 61 Misc 3d 128(A) (NY)	denied reconsideration 6/20/19 (Stein, J.)
People v Cortez	2d Dept: 170 AD3d 744 (Suffolk)	denied 6/18/19 (Feinman, J.)
People v Cruz	1st Dept: 169 AD3d 611 (NY)	denied 6/3/19 (Stein, J.)
People v Davis	4th Dept: 171 AD3d 1511 (Erie)	denied 6/20/19 (Rivera, J.)
People v Dehoyos	4th Dept: 166 AD3d 1576 (Orleans)	denied 6/17/19 (Rivera, J.)
People v Delgado	2d Dept: 171 AD3d 784 (Richmond)	denied 6/7/19 (Rivera, J.)
People v Derby	4th Dept: 172 AD3d 1908 (Onondaga)	denied 6/29/19 (DiFiore, Ch. J.)
People v Diaby	1st Dept: 172 AD3d 473 (NY)	denied 6/21/19 (DiFiore, Ch. J.)
People v Diop	1st Dept: 172 AD3d 41 (Bronx)	denied 6/28/19 (Feinman, J.)
People v Doctor	1st Dept: 171 AD3d 658 (NY)	denied 6/26/19 (Garcia, J.)
People v Dorsey	3d Dept: 170 AD3d 1325 (Albany)	denied 6/6/19 (Garcia, J.)
People v Dudley	2d Dept: 169 AD3d 1059 (Nassau)	denied 6/20/19 (Stein, J.)
People v Dunham (Jermaine)	1st Dept: 170 AD3d 569 (Bronx)	denied 6/11/19 (Fahey, J.)
People v Dunham (Todd)	3d Dept: 172 AD3d 1462 (Essex)	denied 6/18/19 (Feinman, J.)
People v Evans	1st Dept: 172 AD3d 462 (NY)	denied 6/27/19 (Garcia, J.)
People v Everson	4th Dept: 169 AD3d 1441 (Onondaga)	denied 6/27/19 (Feinman, J.)
People v Ewell	1st Dept: 172 AD3d 479 (Bronx)	denied 6/25/19 (Feinman, J.)
People v Facey	2d Dept: 172 AD3d 741 (Kings)	denied 6/18/19 (Feinman, J.)
People v Ferrer	App Term, 1st Dept: 63 Misc 3d 126(A) (Bronx)	denied 6/11/19 (Fahey, J.)

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People v Figueroa	2d Dept: 171 AD3d 1089 (Kings)	denied 6/18/19 (Fahey, J.)
People v Fitch	4th Dept: 170 AD3d 1572 (Niagara)	denied 6/25/19 (Feinman, J.)
People v Freeman	3d Dept: 169 AD3d 1115 (Albany)	denied 6/20/19 (Wilson, J.)
People v Frierson	1st Dept: 167 AD3d 550 (Bronx)	denied ² 6/20/19 (Stein, J.)
People v Gaffney	App Div, 4th Dept, 5/1/19 (Onondaga)	dismissed 6/26/19 (Feinman, J.)
People v Gala	App Term, 1st Dept: 63 Misc 3d 141(A) (NY)	denied 6/18/19 (Feinman, J.)
People v Garcia (Frank)	App Div, 4th Dept: 2019 NY Slip Op 67888(U) (Monroe)	dismissed 6/12/19 (Rivera, J.)
People v Garcia (Pablo)	1st Dept: 170 AD3d 462 (Bronx)	denied ³ 6/27/19 (Rivera, J.)
People v Geddes	2d Dept: 171 AD3d 1210 (Nassau)	denied 6/18/19 (Feinman, J.)
People v Geer	4th Dept: 170 AD3d 1597 (Genesee)	denied 6/17/19 (DiFiore, Ch. J.)
People v Gibson	App Div, 4th Dept, 1/10/19 (Erie)	denied reconsideration 6/7/19 (Rivera, J.)
People v Goldman	1st Dept: 171 AD3d 581 (Bronx)	granted 6/18/19 (Fahey, J.)
People v Goode	1st Dept: 172 AD3d 433 (NY)	denied 6/21/19 (DiFiore, Ch. J.)
People v Gordon-Patterson	2d Dept: 170 AD3d 1037 (Suffolk)	denied 6/28/19 (Feinman, J.)
People v Graham (Marcus)	4th Dept: 171 AD3d 1559 (Erie)	denied 6/26/19 (Garcia, J.) (Appeal No. 1)
People v Graham (Marcus)	4th Dept: 171 AD3d 1561 (Erie)	denied 6/26/19 (Garcia, J.) (Appeal No. 2)
People v Grant	App Div, 1st Dept: 2019 NY Slip Op 65862(U) (NY)	dismissed 6/7/19 (DiFiore, Ch. J.)
People v Graves	1st Dept: 171 AD3d 674 (NY)	denied 6/28/19 (Feinman, J.)
People v Gray	1st Dept: 169 AD3d 560 (NY)	denied 6/13/19 (Stein, J.)
People v Green	1st Dept: 170 AD3d 632 (NY)	denied 6/7/19 (Wilson, J.)
People v Gross	1st Dept: 169 AD3d 498 (NY)	denied 6/14/19 (Feinman, J.)

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Foster-Bey* (158 AD3d 641 [2d Dept 2018], *lv granted* 32 NY3d 937 [2018]) or *People v Williams* (158 AD3d 471 [1st Dept 2018], *lv granted* 32 NY3d 942 [2018]).

3. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Foster-Bey* (158 AD3d 641 [2d Dept 2018], *lv granted* 32 NY3d 937 [2018]) and *People v Williams* (158 AD3d 471 [1st Dept 2018], *lv granted* 32 NY3d 942 [2018]).

People v Gross-Severino	1st Dept: 169 AD3d 498 (NY)	denied 6/14/19 (Feinman, J.)
People v Hagans	App Term, 2d Dept, 9th & 10th Jud Dist: 63 Misc 3d 139(A), 2019 NY Slip Op 50568(U) (Nassau)	denied 6/27/19 (Garcia, J.)
People v Hall	App Div, 2d Dept: 2019 NY Slip Op 64512(U) (Dutchess)	dismissed 6/20/19 (Wilson, J.)
People v Harwell	County Ct, 5/2/19 (Erie)	denied 6/7/19 (Rivera, J.)
People v Henry	3d Dept: 169 AD3d 1273 (Fulton)	denied 6/7/19 (Rivera, J.)
People v Hernandez (Marlon)	2d Dept: 171 AD3d 791 (Kings)	denied 6/20/19 (Rivera, J.)
People v Hernandez (Nando)	1st Dept: 171 AD3d 531 (Bronx)	denied 6/11/19 (Fahey, J.)
People v Holland	2d Dept: 170 AD3d 890 (Westchester)	denied 6/14/19 (Stein, J.)
People v Holmes	1st Dept: 162 AD3d 585 (NY)	denied 6/19/19 (Stein, J.)
People v Hunt	1st Dept: 171 AD3d 505 (NY)	denied 6/10/19 (Stein, J.)
People v Illa	1st Dept: 171 AD3d 488 (Bronx)	denied 6/7/19 (Rivera, J.)
People v Jackson	2d Dept: 170 AD3d 1040 (Westchester)	denied 6/11/19 (Fahey, J.)
People v Jacobs	2d Dept: 171 AD3d 793 (Nassau)	denied 6/25/19 (Fahey, J.)
People v James	1st Dept: 170 AD3d 477 (NY)	denied 6/14/19 (DiFiore, Ch. J.)
People v Johnson (Judith)	2d Dept: 171 AD3d 1215 (Kings)	denied 6/11/19 (Fahey, J.)
People v Johnson (Willie)	2d Dept: 171 AD3d 1089 (Suffolk)	denied 6/17/19 (Garcia, J.)
People v Jones	3d Dept: 171 AD3d 1249 (Albany)	denied 6/17/19 (DiFiore, Ch. J.)
People v King	2d Dept: 171 AD3d 1217 (Queens)	denied 6/20/19 (Feinman, J.)
People v Lakins	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 63 Misc 3d 139(A) (Queens)	denied 6/6/19 (Feinman, J.)
People v Lapham	3d Dept: 172 AD3d 1634 (Clinton)	denied 6/28/19 (Feinman, J.)
People v Laurent	App Term, 1st Dept: 63 Misc 3d 133(A) (Bronx)	denied 6/11/19 (Fahey, J.)
People v Lee (Chauncey)	2d Dept: 167 AD3d 778 (Kings)	denied 6/28/19 (Feinman, J.)
People v Lee (Nino)	1st Dept: 169 AD3d 404 (Bronx)	denied 6/21/19 (DiFiore, Ch. J.)
People v Leibovitz	App Term, 1st Dept: 61 Misc 3d 148(A) (NY)	denied 6/20/19 (Wilson, J.)
People v Lendof- Gonzalez (Benito)	4th Dept: 170 AD3d 1508 (Niagara)	denied 6/27/19 (Garcia, J.)

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People v Lendof-Gonzalez (Benito)	4th Dept: 170 AD3d 1508 (Niagara)	granted 6/27/19 (Garcia, J.)
People v Lewis	2d Dept: 172 AD3d 749 (Kings)	denied 6/21/19 (Wilson, J.)
People v Lijin	1st Dept: 171 AD3d 563 (NY)	denied 6/20/19 (Wilson, J.)
People v Linder	4th Dept: 170 AD3d 1555 (Onondaga)	denied 6/14/19 (DiFiore, Ch. J.)
People v Lyons	2d Dept: 171 AD3d 796 (Kings)	denied 6/11/19 (Fahey, J.)
People v Mack	2d Dept: 170 AD3d 891 (Queens)	denied 6/17/19 (Rivera, J.)
People v Martin	County Ct, 3/27/19 (Onondaga)	denied 6/12/19 (DiFiore, Ch. J.)
People v Maynard	1st Dept: 167 AD3d 550 (Bronx)	denied ⁴ 6/20/19 (Stein, J.)
People v McClelland	App Div, 4th Dept, 4/8/19 (Erie)	dismissed 6/26/19 (Garcia, J.)
People v McDay	App Div, 2d Dept: 2019 NY Slip Op 67499(U) (Kings)	dismissed 6/14/19 (Stein, J.)
People v McGee	1st Dept: 171 AD3d 504 (NY)	denied 6/3/19 (Stein, J.)
People v McMullan	1st Dept: 169 AD3d 608 (NY)	denied 6/20/19 (Wilson, J.)
People v McPherson	3d Dept: 170 AD3d 1255 (Chemung)	denied 6/12/19 (Rivera, J.)
People v Mees	App Term, 1st Dept: 2019 NY Slip Op 64973(U) (NY)	dismissed 6/11/19 (Fahey, J.)
People v Mercado	1st Dept: 171 AD3d 590 (Bronx)	denied 6/27/19 (Garcia, J.)
People v Mercedes	1st Dept: 172 AD3d 599 (NY)	denied 6/10/19 (Stein, J.)
People v Mercer	3d Dept: 169 AD3d 1112 (Ulster)	denied reconsideration 6/17/19 (Rivera, J.)
People v Miguel C.	App Term, 1st Dept: 63 Misc 3d 139(A) (Bronx)	denied 6/26/19 (Rivera, J.)
People v Mitchell	4th Dept: 170 AD3d 1522 (Monroe)	denied 6/18/19 (Stein, J.)
People v Molinar	2d Dept: 171 AD3d 1218 (Queens)	denied 6/18/19 (Feinman, J.)
People v Moore	1st Dept: 171 AD3d 406 (NY)	denied 6/26/19 (Rivera, J.)
People v Morrison	County Ct, 5/17/19 (Cayuga)	denied 6/18/19 (Wilson, J.)
People v Munroe	1st Dept: 172 AD3d 480 (NY)	denied 6/20/19 (Feinman, J.)

4. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Foster-Bey* (158 AD3d 641 [2d Dept 2018], *lv granted* 32 NY3d 937 [2018]) or *People v Williams* (158 AD3d 471 [1st Dept 2018], *lv granted* 32 NY3d 942 [2018]).

People v Murray	App Term, 2d Dept, 9th & 10th Jud Dists: 63 Misc 3d 130(A) (Orange)	denied 6/20/19 (Stein, J.)
People v Muti	4th Dept: 170 AD3d 1526 (Erie)	denied 6/20/19 (Wilson, J.)
People v Nunez-Reyes	1st Dept: 170 AD3d 518 (NY)	denied 6/7/19 (Wilson, J.)
People v Obregon	1st Dept: 171 AD3d 659 (NY)	denied 6/14/19 (Stein, J.)
People v Olivio	2d Dept: 171 AD3d 798 (Richmond)	denied 6/20/19 (Feinman, J.)
People v Ortiz	2d Dept: 170 AD3d 892 (Rockland)	denied 6/24/19 (Feinman, J.)
People v Paguay	2d Dept: 171 AD3d 799 (Queens)	denied 6/4/19 (Stein, J.)
People v Palmer	2d Dept: 172 AD3d 755 (Queens)	denied 6/14/19 (DiFiore, Ch. J.)
People v Panico	County Ct, 4/2/19 (Steuben)	denied 6/11/19 (Stein, J.)
People v Parker	1st Dept: 167 AD3d 550 (Bronx)	denied ⁵ 6/20/19 (Stein, J.)
People v Parra	1st Dept: 167 AD3d 550 (Bronx)	denied ⁶ 6/20/19 (Stein, J.)
People v Patterson	1st Dept: 170 AD3d 548 (Bronx)	denied 6/14/19 (DiFiore, Ch. J.)
People v Paulino	App Div, 1st Dept: 2018 NY Slip Op 75938(U) (Bronx)	denied 6/7/19 (Wilson, J.)
People v Pearsall	2d Dept: 171 AD3d 1096 (Nassau)	denied 6/14/19 (DiFiore, Ch. J.)
People v Peralta	2d Dept: 171 AD3d 948 (Nassau)	denied 6/25/19 (Fahey, J.)
People v Philbert	App Term, 1st Dept: 62 Misc 3d 152(A) (NY)	denied 6/4/19 (Stein, J.)
People v Picart	2d Dept: 171 AD3d 799 (Westchester)	denied 6/18/19 (Fahey, J.)
People v Pitt	3d Dept: 170 AD3d 1282 (Albany)	denied 6/28/19 (Feinman, J.)
People v Pointdujour	2d Dept: 171 AD3d 950 (Queens)	denied 6/6/19 (Garcia, J.)
People v “Poppy”	4th Dept: 166 AD3d 1576 (Orleans)	denied 6/17/19 (Rivera, J.)
People v Pressley	4th Dept: 170 AD3d 1645 (Monroe)	denied 6/12/19 (Rivera, J.)
People v Pruitt	2d Dept: 170 AD3d 1044 (Queens)	denied 6/11/19 (Fahey, J.)

5. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Foster-Bey* (158 AD3d 641 [2d Dept 2018], *lv granted* 32 NY3d 937 [2018]) or *People v Williams* (158 AD3d 471 [1st Dept 2018], *lv granted* 32 NY3d 942 [2018]).

6. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Foster-Bey* (158 AD3d 641 [2d Dept 2018], *lv granted* 32 NY3d 937 [2018]) or *People v Williams* (158 AD3d 471 [1st Dept 2018], *lv granted* 32 NY3d 942 [2018]).

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People v Rivera (Alfred)	1st Dept: 167 AD3d 550 (Bronx)	denied ⁷ 6/20/19 (Stein, J.)
People v Rivera (Angel)	1st Dept: 172 AD3d 441 (Bronx)	denied 6/21/19 (DiFiore, Ch. J.)
People v Rivera (Chico)	2d Dept: 171 AD3d 1097 (Kings)	denied 6/12/19 (DiFiore, Ch. J.)
People v Rivera (Clemente)	1st Dept: 170 AD3d 566 (NY)	denied 6/11/19 (Fahey, J.)
People v Robles	App Term, 1st Dept: 62 Misc 3d 149(A) (Bronx)	denied 6/3/19 (Stein, J.)
People v Rodriguez (David)	1st Dept: 167 AD3d 550 (Bronx)	denied ⁸ 6/20/19 (Stein, J.)
People v Rodriguez (Eduardo)	2d Dept: 170 AD3d 1045 (Kings)	denied 6/20/19 (Stein, J.)
People v Rodriguez (Ezequiel)	1st Dept: 172 AD3d 402 (NY)	denied 6/18/19 (Fahey, J.)
People v Rodriguez- Abreu	2d Dept: 170 AD3d 895 (Nassau)	denied 6/20/19 (DiFiore, Ch. J.)
People v Rogers (Artic)	2d Dept: 171 AD3d 1098 (Kings)	denied 6/27/19 (Garcia, J.)
People v Rogers (Jeffrey)	2d Dept: 171 AD3d 951 (Queens)	denied 6/6/19 (Garcia, J.)
People v Rosario	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 147(A) (Queens)	denied 6/24/19 (Feinman, J.)
People v Ruiz	1st Dept: 171 AD3d 486 (NY)	denied 6/7/19 (Rivera, J.)
People v Sage	4th Dept: 171 AD3d 1510 (Erie)	denied 6/20/19 (Feinman, J.)
People v Scott	2d Dept: 170 AD3d 1203 (Dutchess)	denied 6/6/19 (Garcia, J.)
People v Silva	App Term, 2d Dept, 9th & 10th Jud Dists: 62 Misc 3d 142(A) (Suffolk)	denied 6/19/19 (Garcia, J.)
People v Singleton	App Div, 4th Dept, 12/19/18 (Ontario)	denied reconsideration 6/7/19 (Wilson, J.)
People v Smith (Adam)	4th Dept: 170 AD3d 1528 (Cayuga)	denied 6/27/19 (Feinman, J.)
People v Smith (Carl)	2d Dept: 171 AD3d 1101 (Kings)	denied 6/21/19 (DiFiore, Ch. J.)
People v Smith (Geraldine)	2d Dept: 171 AD3d 803 (Kings)	denied 6/28/19 (Feinman, J.)
People v Smith (Robert)	1st Dept: 171 AD3d 523 (NY)	denied 6/29/19 (DiFiore, Ch. J.)
People v Smith (Shannon)	2d Dept: 171 AD3d 1102 (Queens)	denied 6/6/19 (Feinman, J.)

7. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Foster-Bey* (158 AD3d 641 [2d Dept 2018], *lv granted* 32 NY3d 937 [2018]) or *People v Williams* (158 AD3d 471 [1st Dept 2018], *lv granted* 32 NY3d 942 [2018]).

8. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Foster-Bey* (158 AD3d 641 [2d Dept 2018], *lv granted* 32 NY3d 937 [2018]) or *People v Williams* (158 AD3d 471 [1st Dept 2018], *lv granted* 32 NY3d 942 [2018]).

People v Stevens	2d Dept: 171 AD3d 1106 (Suffolk)	denied 6/18/19 (Feinman, J.)
People v Stokes	1st Dept: 166 AD3d 489 (NY)	denied 6/17/19 (Wilson, J.)
People v Stuart	App Term, 1st Dept: 63 Misc 3d 138(A) (NY)	denied 6/3/19 (Stein, J.)
People v Sydney	1st Dept: 172 AD3d 408 (NY)	denied 6/21/19 (DiFiore, Ch. J.)
People v Taft	3d Dept: 169 AD3d 1266 (Clinton)	denied 6/21/19 (DiFiore, Ch. J.)
People v Teaque	2d Dept: 170 AD3d 1203 (Kings)	denied 6/18/19 (Fahey, J.)
People v Thompson	4th Dept: 169 AD3d 1473 (Ontario)	denied 6/20/19 (Wilson, J.)
People v Tiburcio	2d Dept: 170 AD3d 1204 (Richmond)	denied 6/11/19 (Garcia, J.)
People v Timmons	4th Dept: 171 AD3d 1501 (Onondaga)	denied 6/20/19 (Rivera, J.)
People v Tobias	2d Dept: 172 AD3d 757 (Kings)	denied 6/12/19 (Rivera, J.)
People v Triplett	App Div, 1st Dept: 2017 NY Slip Op 95153(U) (NY)	denied reconsideration 6/7/19 (DiFiore, Ch. J.)
People v Trowell	2d Dept: 172 AD3d 1112 (Queens)	denied 6/28/19 (Feinman, J.)
People v Underdue	App Div, 3d Dept: 2019 NY Slip Op 67788(U) (Albany)	denied 6/27/19 (Garcia, J.)
People v Utley	2d Dept: 170 AD3d 757 (Queens)	denied 6/20/19 (Wilson, J.)
People v Valdez	2d Dept: 172 AD3d 762 (Kings)	denied 6/21/19 (DiFiore, Ch. J.)
People v Vega	3d Dept: 170 AD3d 1266 (Rensselaer)	denied 6/19/19 (Stein, J.)
People v Velez	1st Dept: 172 AD3d 537 (NY)	denied 6/25/19 (Fahey, J.)
People v Volkes	2d Dept: 172 AD3d 764 (Richmond)	denied 6/25/19 (Fahey, J.)
People v Wagoner	App Div, 4th Dept, 3/4/19 (Cattaraugus)	dismissed 6/17/19 (Garcia, J.)
People v Walker (Deondra)	4th Dept: 171 AD3d 1501 (Onondaga)	denied 6/26/19 (Rivera, J.)
People v Walker (Tiquan)	2d Dept: 171 AD3d 1109 (Queens)	denied 6/11/19 (Fahey, J.)
People v Ward	3d Dept: 171 AD3d 1312 (Schenectady)	denied 6/25/19 (Fahey, J.)
People v Wearen	2d Dept: 167 AD3d 784 (Nassau)	denied 6/4/19 (Feinman, J.)
People v Wearon	2d Dept: 167 AD3d 784 (Nassau)	denied 6/4/19 (Feinman, J.)

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People v Weather	App Div, 4th Dept, 4/15/19 (Oneida)	dismissed 6/29/19 (DiFiore, Ch. J.)
People v Webb	2d Dept: 172 AD3d 764 (Kings)	denied 6/26/19 (Rivera, J.)
People v Whitaker	App Term, 1st Dept: 63 Misc 3d 134(A) (NY)	denied 6/11/19 (Garcia, J.)
People v White (Giovanni)	1st Dept: 171 AD3d 589 (NY)	denied 6/14/19 (DiFiore, Ch. J.)
People v White (Willie)	App Div, 4th Dept, 4/8/19 (Erie)	dismissed 6/26/19 (Garcia, J.)
People v Whiting	4th Dept: 170 AD3d 1654 (Erie)	denied reconsideration 6/26/19 (Rivera, J.)
People v Wiggins	2d Dept: 170 AD3d 1046 (Orange)	denied 6/26/19 (Garcia, J.)
People v Williams (Aaron)	2d Dept: 171 AD3d 1109 (Kings)	denied 6/25/19 (Feinman, J.)
People v Williams (Anthony)	1st Dept: 169 AD3d 567 (Bronx)	denied 6/14/19 (Stein, J.)
People v Willis	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 62 Misc 3d 144(A), 2019 NY Slip Op 50151(U) (Richmond)	denied 6/20/19 (Wilson, J.)
People v Works	4th Dept: 170 AD3d 1670 (Erie)	denied 6/17/19 (Stein, J.)
People v Worrell	2d Dept: 170 AD3d 1048 (Queens)	denied 6/6/19 (Garcia, J.)
People v Wynn	App Div, 1st Dept: 2018 NY Slip Op 86142(U) (NY)	denied reconsideration 6/10/19 (Stein, J.)
People v Young	1st Dept: 171 AD3d 667 (NY)	denied 6/26/19 (Garcia, J.)
People v Yusuf	2d Dept: 170 AD3d 1051 (Richmond)	denied 6/3/19 (Stein, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices *

(June 1, 2019 through June 30, 2019)

People v Ellis	1st Dept: 2d Dept: 166 AD3d 993 (Queens)	granted 6/11/19 (Barros, J.)
People v Muhammad	1st Dept: 171 AD3d 442 (NY)	granted 6/4/19 (Renwick, J.)

* Includes only applications that were granted.

[128 NE3d 676, 104 NYS3d 598]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAY-
HEAME HILL, Appellant.

Decided June 27, 2019

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 1, 2017. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Albert Lorenzo, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree.

People v Hill, 153 AD3d 413, affirmed.

HEADNOTE**Crimes — Appeal — Appellate Division Review Power**

The order of the Appellate Division which had affirmed a judgment of Supreme Court convicting defendant of criminal possession of a weapon in the second degree was affirmed. On the record, there was no basis to disturb the suppression determination.

APPEARANCES OF COUNSEL

Dechert LLP, New York City (*Hector Gonzalez*, *Siobhan M. Namazi* and *Timothy Ly* of counsel), and *Janet E. Sabel*, *The Legal Aid Society*, New York City (*David Crow* and *Andrew C. Fine* of counsel), for appellant.

Darcel D. Clark, *District Attorney*, Bronx (*Shera Knight* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed. We conclude that, on this record, there is no basis to disturb the suppression determination. Contrary to the dissent, the Appellate Division did not run afoul of our decision in *People v LaFontaine* (92 NY2d 470 [1998]) or its progeny (see *People v Nicholson*, 26 NY3d 813, 826 [2016]).

FAHEY, J. (dissenting). I would reverse the order of the Appellate Division and remit the matter to Supreme Court for further proceedings.

Defendant challenges the Appellate Division's determination of the question whether the illegal search of his belongings impermissibly tainted the subsequent searches of a vehicle and of the apartment where defendant resided. Defendant preserved this issue at Supreme Court, but that court, which held that defendant lacked standing to challenge the later searches, did not rule on the question. Nevertheless, the Appellate Division, in affirming Supreme Court's order, explicitly reached the issue. In doing so, the Appellate Division exceeded its jurisdiction.

CPL 470.15 (1), as interpreted by this Court, precludes the Appellate Division, in reviewing a judgment, sentence, or order of a trial-level criminal court, from considering an issue that was "not decided adversely to the appellant by the trial court" (*People v Concepcion*, 17 NY3d 192, 195 [2011] [emphasis omitted]; see *People v LaFontaine*, 92 NY2d 470 [1998]). The statute is "a legislative restriction on the Appellate Division's power to review issues either decided in an appellant's favor, or not ruled upon, by the trial court" (*LaFontaine*, 92 NY2d at 474). Moreover, in an appeal from an Appellate Division affirmation, CPL 470.35 (1) grants this Court no broader power than that of the Appellate Division (see *Concepcion*, 17 NY3d at 195; *LaFontaine*, 92 NY2d at 474). Here, the issue on which defendant seeks reversal was decided by the Appellate Division in violation of CPL 470.15 (1), and our precedents prohibit us from affirming. We are obliged to reverse and remit to Supreme Court (see *People v Ingram*, 18 NY3d 948, 949 [2012]).

In discussing CPL 470.15 (1) in *People v Nicholson* (26 NY3d 813 [2016]), we drew a contrast between two types of appeal. In one category, the "trial court does not identify the predicate for its ruling" and the Appellate Division "consider[s] the record . . . to understand the context of the trial court's ultimate determination," ultimately affirming on that ground (*id.* at 825). In the other type, the trial court identifies the rationales for its ruling and nevertheless the Appellate Division "renders a decision on grounds explicitly different from those of the trial court, or on grounds that were clearly resolved in a defendant's favor" (*id.* at 826). We explained that the latter situation is "the type of appellate overreaching prohibited by CPL 470.15 (1)" (*id.*, citing *Concepcion*, 17 NY3d at 195). "[W]here the trial court's decision is fully articulated the Appellate Division's review is limited to those grounds" (*id.*).

The present case clearly falls into the category where the trial court's decision has discrete sections enabling an appel-

late court to discern which issues it has considered and decided, and yet the Appellate Division reviewed an issue that the trial court had not decided adversely to defendant, offering “an entirely distinct alternative ground for affirmance” (*People v Garrett*, 23 NY3d 878, 885 n 2 [2014]). If a suppression court writes a “fully articulated” decision adverse to a defendant (*Nicholson*, 26 NY3d at 826), but omits discussion of a particular issue raised by the defendant, our law mandates that an appellate court cannot resolve the issue and must remit. Whether our interpretation of CPL 470.15 (1), in *LaFontaine* and its progeny, is “undesirable from a policy point of view” (*Concepcion*, 17 NY3d at 202 [Smith, J., dissenting]) is a question for another day. *LaFontaine* is the law and, until such time as that precedent is overruled, “we are constrained by that decision, and . . . cannot be arbitrary in applying it” (*People v Fernandez*, 20 NY3d 44, 58 [2012, Pigott, J., dissenting]).

Chief Judge DiFIORE and Judges STEIN, GARCIA and FEINMAN concur; Judge FAHEY dissents in an opinion in which Judges RIVERA and WILSON concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[128 NE3d 673, 104 NYS3d 595]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWARD MALLOY, Also Known as EB, Appellant.

Decided June 25, 2019

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered November 21, 2018. The Appellate Division affirmed a judgment of the Supreme Court, Albany County (Richard L. Mott, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree and criminal possession of a weapon in the second degree.

People v Malloy, 166 AD3d 1302, affirmed.

HEADNOTES

Crimes — Jurors — Selection of Jury — Trial Court’s Resolution of *Batson* Challenge

1. The trial court’s credibility determination regarding whether the prosecutor’s peremptory strike of an African American prospective juror was racially motivated was supported by the record and it could not be said as a matter of law that the proffered reason was pretextual. In response to defense counsel’s *Batson* challenge, the prosecutor stated that the prospective juror was “[d]ismissive and rude,” and the trial court accepted that race-neutral explanation after thorough questioning.

Crimes — Sentence — Concurrent and Consecutive Terms — Unlawful Possession of Loaded Weapon and Subsequent Crime with That Weapon

2. The trial court lawfully imposed consecutive sentences for defendant’s convictions of second-degree murder (Penal Law § 125.25 [1]) and second-degree criminal possession of a weapon (Penal Law § 265.03 [3]), where video surveillance showed him in possession of a gun several minutes before approaching the victim, supporting the conclusion that he possessed the weapon for a sufficient period of time before forming the specific intent to kill.

APPEARANCES OF COUNSEL

Law Office of Paul J. Connolly, Delmar (*Paul J. Connolly* of counsel), for appellant.

P. David Soares, District Attorney, Albany (*Vincent Stark* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

[1] Defendant Edward Malloy asserts several meritless challenges to his conviction by jury verdict of second-degree murder (Penal Law § 125.25 [1]) and second-degree criminal possession of a weapon (Penal Law § 265.03 [3]). As relevant here, during jury selection, defense counsel objected to the prosecutor’s peremptory strike of an African American prospective juror as racially motivated, in violation of *Batson v Kentucky* (476 US 79 [1986]). The prosecutor responded that the prospective juror was “[d]ismissive and rude,” and Supreme Court accepted the prosecutor’s race-neutral explanation after thorough questioning. We accord “great deference on appeal” to a trial judge’s resolution of a *Batson* challenge, including a determination regarding discriminatory motive (*Hernandez v New York*, 500 US 352, 364 [1991]; see also *People v Hecker*, 15 NY3d 625, 656 [2010]). Here, the court’s credibility determination is supported by the record and we cannot say as a matter of law that the proffered reason was “pretext for racial discrimination” (*Hernandez*, 500 US at 363).

[2] We also reject defendant’s argument that Supreme Court unlawfully imposed consecutive sentences for the criminal weapon possession and murder counts. “So long as a defendant knowingly unlawfully possesses a loaded firearm before forming the intent to cause a crime with that weapon, the possessory crime has already been completed, and consecutive sentencing is permissible” (*People v Brown*, 21 NY3d 739, 751 [2013]). Here, the record supports Supreme Court’s imposition of consecutive sentences. Video surveillance evidence showed defendant in possession of the gun several minutes before approaching the victim, supporting the conclusion that defendant possessed the weapon for a sufficient period of time before forming the specific intent to kill. Thus, consecutive sentencing was permissible.

Defendant’s challenges to the grand jury proceedings and sufficiency of the evidence lack merit. His pro se claims are either unpreserved or similarly meritless.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

On review of the submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[128 NE3d 674, 104 NYS3d 596]

TOMHANNOCK, LLC, Respondent, v ROUSTABOUT RESOURCES, LLC, Appellant, et al., Defendants.

Argued June 4, 2019; decided June 25, 2019

SUMMARY

APPEAL from a final order of the Supreme Court, Rensselaer County (Patrick J. McGrath, J.), entered June 27, 2018. The Supreme Court, among other things, resettled a prior order of that court to reflect that the court granted all the relief sought by plaintiff and that there were no further proceedings necessary on the first cause of action. The appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered April 6, 2017. The Appellate Division, with two Justices dissenting, had affirmed an order of that Supreme Court entered April 21, 2016, which had (1) denied the motion of defendant Roustabout Resources, LLC for summary judgment dismissing the

complaint; (2) granted plaintiff's cross motion for summary judgment seeking specific performance of an option agreement to the extent of directing defendant Roustabout Resources, LLC to sign the reconveyance deed; and (3) denied plaintiff's cross motion for summary judgment to the extent it sought specific performance that included defendant's signature on the RP-5217.

Tomhannock, LLC v Roustabout Resources, LLC, 149 AD3d 1219, affirmed.

HEADNOTE

Specific Performance — Contract for Sale of Real Property — Option to Demand Reconveyance of Portion of Land

Plaintiff, which entered into an option agreement as part of the sale of a parcel of land to defendant's predecessor-in-title, giving plaintiff the option to demand reconveyance of a portion of the land in consideration for a reduction in the purchase price and payment of a portion of the property taxes for the duration of the agreement, was entitled to specific performance to the extent of delivery of the signed deed because it had fully complied with the agreement's pre-conveyance terms. Plaintiff fulfilled the only precondition in the agreement to the parcel's reconveyance when it made a timely written demand within the 10-year option period, which was the only requirement expressly set forth in the agreement that it had to meet to trigger defendant's obligation to execute and deliver the deed. The agreement did not condition reconveyance on plaintiff securing subdivision approval in accordance with local law, and failure to obtain such approval did not render title to the parcel unmarketable.

APPEARANCES OF COUNSEL

Gilchrist Tingley, P.C., Troy (Andrew W. Gilchrist and Jonathan B. Tingley of counsel), for appellant.

The Spain Law Firm, PLLC, Troy (Thomas D. Spain of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The Supreme Court order appealed from and the Appellate Division order brought up for review should be affirmed, with costs.

In 2002, plaintiff Tomhannock, LLC sold a parcel of land to a predecessor-in-title of defendant Roustabout Resources, LLC. As part of the sale, the parties entered into an option agreement which gave Tomhannock the option to demand reconveyance of a portion of the land in consideration for a reduction in the purchase price and payment of a portion of the property taxes for the duration of the agreement. The agreement states, in relevant part,

“[buyer] agrees that upon written demand made by Tomhannock on or before the tenth (10th) anniversary of the recording of the Lot #2 Deed in the Office of the Rensselaer County Clerk, [buyer] will execute a bargain and sale deed with covenant against grantor’s acts, conveying the Reconveyance Parcel to Tomhannock to [sic] its designee.”

Interpreting a contract “is the process of determining from the words and other objective manifestations of the parties what must be done or forborne by the respective parties in order to conform to the terms of their agreements” (11 Richard A. Lord, *Williston on Contracts* § 30:1 [4th ed May 2019 update]). “The best evidence of what parties to a written agreement intend is what they say in their writing” (*Slamow v Del Col*, 79 NY2d 1016, 1018 [1992]). Under long-standing rules of contract interpretation, “[w]here the terms of a contract are clear and unambiguous, the intent of the parties must be found within the four corners of the contract, giving a practical interpretation to the language employed and reading the contract as a whole” (*Ellington v EMI Music, Inc.*, 24 NY3d 239, 244 [2014], citing *Greenfield v Philles Records*, 98 NY2d 562, 569 [2002]; *W.W.W. Assoc. v Giancontieri*, 77 NY2d 157, 162-163 [1990]).

Tomhannock fulfilled the only precondition in the agreement to the parcel’s reconveyance when it made a timely written demand. Contrary to Roustabout’s arguments, this was the only requirement expressly set forth in the agreement that Tomhannock had to meet to trigger Roustabout’s obligation to execute and deliver the deed. The agreement does not condition reconveyance on Tomhannock securing subdivision approval in accordance with local law, and failure to obtain such approval does not render title to the parcel unmarketable (see *Voorheesville Rod & Gun Club v E.W. Tompkins Co.*, 82 NY2d 564, 572 [1993]). Tomhannock is entitled to specific performance to the extent of delivery of the signed deed because it has fully complied with the agreement’s pre-conveyance terms.

Chief Judge DiFIORE and Judges RIVERA, FAHEY, GARCIA, WILSON and FEINMAN concur; Judge STEIN taking no part.

Order appealed from and order of the Appellate Division, Third Department, brought up for review affirmed, with costs, in a memorandum.

[130 NE3d 873, 106 NYS3d 277]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EM-MANUEL ALMONTE, Appellant.

Argued June 6, 2019; decided June 27, 2019

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 26, 2018. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (James M. Kindler, J.), which had convicted defendant, upon a jury verdict, of robbery in the second degree (two counts), attempted assault in the first degree and assault in the second degree.

People v Almonte, 160 AD3d 594, affirmed.

HEADNOTES

Crimes — Lesser Included Offense — Robbery and Assault

1. In a prosecution in which defendant was convicted of two counts of robbery in the second degree, attempted assault in the first degree and assault in the second degree, the trial court properly denied defendant's request to charge the jury on the lesser included offense of assault in the third degree (Penal Law § 120.00 [1]) where defendant failed to show that there was a reasonable view of the evidence that would support a finding that he committed the lesser included offense but not the greater. Moreover, charging the lesser included offense would have forced the jury to resort to sheer speculation.

Crimes — Harmless and Prejudicial Error — Admission of 911 Call

2. In a robbery and assault prosecution, the trial court's admission of the call between the victim and the 911 operator under the excited utterance exception to the hearsay rule did not require reversal. Assuming, without deciding, that it was error to admit the 911 call, any such error would have been harmless.

APPEARANCES OF COUNSEL

Davis Polk & Wardwell LLP, New York City (*David J. Robles*, *Avi Gesser* and *Tyler K. Infinger* of counsel), and *Janet E. Sabel*, *The Legal Aid Society*, New York City (*Justine M. Lungo* and *David A. Crow* of counsel), for appellant.

Darcel D. Clark, *District Attorney*, Bronx (*Joshua P. Weiss*, *Nancy D. Killian* and *Noah J. Chamoy* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

[1] Supreme Court properly denied defendant's request to charge the jury on the lesser included offense of assault in the third degree (Penal Law § 120.00 [1]). Defendant failed to "show that there [was] a reasonable view of the evidence in the particular case that would support a finding that [he] committed the lesser included offense but not the greater" (*People v Rivera*, 23 NY3d 112, 120 [2014]). Although "[i]n determining whether such a reasonable view exists, the evidence must be viewed in the light most favorable to [the] defendant" (*People v Martin*, 59 NY2d 704, 705 [1983]), charging the lesser included offense here "would [have] force[d] the jury to resort to sheer speculation" (*People v Discala*, 45 NY2d 38, 43 [1978] [internal quotation marks and citations omitted]; see *Rivera*, 23 NY3d at 121).

[2] Nor does Supreme Court's admission of the call between the victim and the 911 operator require reversal. "A 'spontaneous declaration or excited utterance—made contemporaneously or immediately after a startling event—which asserts the circumstances of that occasion as observed by the declarant' is an exception to the prohibition on hearsay" (*People v Cummings*, 31 NY3d 204, 209 [2018], quoting *People v Edwards*, 47 NY2d 493, 496-497 [1979]). "The test is whether the utterance was made 'before there has been time to contrive and misrepresent, i.e., while the nervous excitement may be supposed still to dominate and the reflective powers to be yet in abeyance' " (*People v Brown*, 70 NY2d 513, 518 [1987], quoting *People v Marks*, 6 NY2d 67, 72 [1959]; see also *People v Nieves*, 67 NY2d 125, 135 [1986]). Assuming, without deciding, that it was error to admit the 911 call, any such error would have been harmless (see *People v Kello*, 96 NY2d 740, 744 [2001]; *People v Crimmins*, 36 NY2d 230, 241-242 [1975]).

Finally, defendant's contention regarding the continued viability of the excited utterance exception to the hearsay rule is not preserved for appellate review.

RIVERA, J. (dissenting). Defendant Emmanuel Almonte challenges his convictions for second-degree robbery, second-degree assault, and attempted first-degree assault on the grounds that the trial court failed to properly charge the jury on a lesser included count of assault and erroneously admitted the victim's out-of-court statements under the excited utterance exception to the rule against hearsay. The People's case rested upon the victim's testimony that defendant and codefendant stole his

cell phone during a beating at gunpoint.¹ The jury—as the fact-finder—was entitled to accept or reject all or part of that testimony, based on the credibility determinations it made and the inferences it drew from the properly admitted evidence. Then, in accordance with the trial court’s instructions, the jury should have applied the law to its factual determinations to reach a verdict on all the criminal counts appropriately submitted by the court. That did not happen here because the jury was not given an opportunity to consider all the verdict options mandated by law and the jury heard inadmissible evidence that bolstered the victim’s testimony. Therefore, I would reverse the Appellate Division order because defendant is entitled to a new trial on the assault counts.

I.

The People’s case turned on the credibility of the sole eyewitness to the robbery and assault, victim JC. At trial, JC testified that he knew both defendant and codefendant personally for years: he had attended the same middle school as defendant and knew codefendant from high school. He then recounted how these two young men attacked him one night in the stairway outside his apartment.

JC testified that defendant’s cousin responded to an advertisement JC had posted to social media offering to sell a pair of popular sneakers for \$500. Around 11:00 p.m., JC texted the cousin, agreeing to sell him the sneakers that night. The cousin replied that “his cousin” would come to JC’s home to pick up the sneakers. At approximately midnight, JC heard his doorbell. He testified that he had a “gut feeling” that something was wrong. Though he had agreed to the late-night sale and could not explain why he felt uncomfortable, he exited the apartment without the sneakers.

As soon as JC walked out the door of his apartment, he saw defendant and codefendant come at him from the stairway above his apartment and attack him at gunpoint. JC said he had an unobstructed view of the attackers’ faces, that codefendant struck him on the back of the head with a gun, and that this caused him to fall onto the stairs. Defendant and codefendant then kicked him, and defendant took JC’s cell phone out of his pants pocket. According to JC, as the assault continued, he grabbed the handrail of the stairway, at which

1. Codefendant, who was adjudicated a youthful offender, pleaded guilty to first-degree robbery prior to trial.

point, defendant kned him in his face, codefendant hit him in the head with the gun again, and they dragged him down the staircase. In an effort to escape, JC threw himself down the stairs towards the lobby, and tried to jump over the railing. As he held onto the railing, defendant punched his legs. JC then pleaded with defendant and codefendant not to kill him and offered to get the sneakers. Defendant and codefendant then walked JC back upstairs to his apartment at gunpoint. When JC rang the doorbell, his sister answered. JC and his sister yelled at each other and she closed the door. At some point after hearing JC's mother's voice from inside the apartment, the attackers dragged JC back down towards the area between the lobby and the second floor. JC testified that he again pleaded with his assailants and told them he would get the sneakers. However, after JC's mother opened the door and yelled downstairs, the attackers fled.

JC testified that at this point he was bleeding from his head. In response to the prosecutor's question "do you know when, at what point, you got these cuts on your head?" JC answered, "[a]t the point right when it happened, when I got pistol-whipped against the pole and I got kned on my head by [defendant] and when [codefendant] comes again to get me off the rail hits me again with the gun." JC stated he was hit with the gun a total of three times.

After the attackers left, JC ran back up to the apartment. When his mother opened the door and saw him, she screamed because she saw he was covered in blood. "[R]ight after [this]" his sister phoned 911. JC testified that he was in the bathroom cleaning himself and speaking with his mother while his sister spoke to the 911 operator.

The audio recording of this call was played for the jury. On the recording, the sister tells the dispatcher that "some guys" put a gun to her brother's head and that he is bleeding. When the dispatcher asks if they tried to rob JC, the sister can be heard asking "they take anything from you?" and after a pause responds to the dispatcher "No." The sister also initially told the dispatcher that her brother was shot, but moments later said she did not know why her brother was bleeding. JC testified that he did not talk to his sister while she was on the phone and that he did not tell her he was shot, because "[b]etter off she didn't understand what was going on with the situation." He did admit that he was talking to his mother during this call.

Within a couple of minutes, the dispatcher called back, and JC answered. In the recording of this call, which was played for the jury over defendant's objection, JC is heard in quick succession responding to a series of questions.

"[JC:] Hello?

"[DISPATCHER:] Yes?

"[JC:] Hello? [inaudible] Can you send an ambulance to 150—

"[DISPATCHER:] Listen, listen, listen, listen, listen to me. The police are there. What happened?

"[JC:] Somebody put a gun to my head and they beat me up. They assaulted me.

"[DISPATCHER:] OK. The police are there, OK? [inaudible] You're still in the apartment?

"[JC:] Can I get

"[DISPATCHER:] OK, hold on. And what did they look like?

"[JC:] [inaudible] stitches to my head.

"[DISPATCHER:] What did they look like? How many were there and what did they look like?

"[JC:] There was two, there was two. One of them had a, they had their hoodies on [inaudible] coats.

"[DISPATCHER:] But were they black, white, or Hispanic?

"[JC:] They were Dominican.

"[DISPATCHER:] They were Hispanic. And they were wearing what color hoodie?

"[JC:] They were wearing a navy blue, a navy blue, um, navy blue sweater.

"[DISPATCHER:] Navy blue sweater?

"[JC:] Yeah.

"[DISPATCHER:] Where did they run off towards?

"[JC:] With a hoodie—they had a hoodie.

“[DISPATCHER:] Where did—where did they run off towards?”

“[JC:] They just ran down the stairs, [inaudible] outside my house.

“[DISPATCHER:] OK.

“[JC:] They had, they had, one of them had a tattoo on their hand [inaudible].

“[DISPATCHER:] Alright. Can you open the door for the police? Or, were you shot sir, or no?”

“[JC:] Huh?”

“[DISPATCHER:] Were you shot?”

“[JC:] No, no, they put a gun to my head and they assaulted me.

“[DISPATCHER:] OK, alright, I’m going to let the police know. Can you open the door?”

Defendant and the People do not dispute the trial court’s factual finding that the incomprehensible voice in the background throughout the call is JC’s mother yelling.

During JC’s testimony, the prosecutor played the building’s surveillance video. The video is poor quality and does not capture the entire stairwell where the attack occurred. To the extent human images are visible, they are difficult to discern and to interpret. However, JC testified that the partial scenes in the video represent the lobby and first level stairway and depict JC as he tries to jump over the railing to escape and then holds the railing while being attacked by defendant and codefendant.

Given that no gun was recovered, and no forensic evidence tied defendant to the attack, the People’s case would rest on the jury’s determination of JC’s credibility. JC’s criminal history was thus a probative issue. During direct examination, JC explained that while working at a large department store, he filled two gift cards for himself, and changed one of them for cash back at a different branch. On cross-examination, defense counsel questioned JC in greater detail—emphasizing that the thefts occurred after the assault and that JC’s crimes involved lying to his employer. JC admitted that he had used another coworker’s identification number to create the gift cards and that while he knew it placed that employee at risk of being arrested, he “didn’t care.” Defense counsel also challenged JC’s

credibility by repeatedly asking JC for any reason or motive that his two schoolmates, with whom he had been on good terms, would violently attack him. JC gave no reasons but offered that he had never robbed defendant or his cousin and had no issues with them, to which defense counsel asked rhetorically, “[w]e only have your word for that; is that right?”

To corroborate JC’s testimony, the prosecutor presented testimony from two police officers; one had responded to the 911 call, the other spoke to JC at the precinct. Both officers observed that JC was bleeding from the head. According to the officer who arrived at the apartment within a “few minutes” of the callback, JC described the two attackers as light-skinned Dominican men with light eyes, whom he knew from the neighborhood. Inexplicably, JC did not provide the officer with their names or the codefendant’s address, not even while the police drove him around in search of the attackers. The police subsequently took JC to the hospital where he was treated for his injuries. At the precinct the next day, JC identified defendant and codefendant.

The People also presented testimony from the physician who treated JC at the hospital. The physician explained that JC reported he had been hit with a gun. When the prosecutor asked whether JC’s injuries were consistent “with being struck with a hard metal object,” the physician opined: “[t]he lacerations [were] consistent with being hit by an object. I couldn’t necessarily say if it was metal or wood or glass. It’s not just fists. This wouldn’t cause those lacerations on the back and the top of the head.” On cross-examination, defense counsel asked if the lacerations could be caused by a metal railing, to which the physician replied, “I would assume that a sharp edge would cause the lacerations on the head, though I can’t say what type of sharp object that was.”

During the charge conference, defense counsel objected to the prosecutor’s request to withdraw the charge of third-degree assault. Counsel argued the charge was a lesser-included offense of second-degree assault and must be submitted to the jury because the injuries could have been caused without the use of a dangerous instrument, an element required for second-degree assault but not third-degree assault. He asserted that the injuries could have occurred “from [JC] falling, hitting his head. I mean, you know—the medical professional testified that could have happened any number of ways. There was a melee.” Over counsel’s objection, the court did not submit this

count, stating “the CPL gives the Court considerable discretion as to which counts are being submitted.”

The court submitted first-degree robbery, two counts of second-degree robbery, attempted first-degree assault and second-degree assault. Accordingly, the jury was instructed as follows. To find defendant guilty of robbery in the first degree (Penal Law § 160.15 [3]), the jury must have found that defendant, personally or by acting in concert with another person, forcibly stole property from JC, and “that in the course of the commission of the crime or in the immediate flight therefrom, the defendant or another participant in the crime possessed a dangerous instrument and used or threatened to use that dangerous instrument.” On the first count of second-degree robbery (Penal Law § 160.10 [1]), the People must have proved that defendant forcibly stole property from JC and was aided by another person actually present. As to the second count of second-degree robbery (Penal Law § 160.10 [2] [a]), the People must have proved that defendant either personally or by acting in concert with another person forcibly stole property from JC and that “in the course of the commission of the crime the [defendant] or another participant in the crime cause[d] physical injury to [JC and JC was] not a participant in the crime.”

With regards to the assault counts, the court explained that in order to find defendant guilty of attempted first-degree assault (Penal Law §§ 110, 120.10 [1]), the jury must find that defendant “personally or by acting in concert with another person attempted to cause serious physical injury to [JC] by means of a dangerous instrument” and “that the defendant did so with the intent to cause serious physical injury to [JC].” For the count of second-degree assault (Penal Law § 120.25 [2]), the People must have proved that defendant “personally or by acting in concert with another person caused physical injury to [JC] by means of a dangerous instrument” and “that the defendant did so with the intent to cause physical injury to [JC].”

During deliberations, the jury sent a note requesting to hear the 911 calls, which were played twice in quick succession. The jury also sent a note requesting clarification on the definition of a dangerous instrument:

“We would also like to request the clarification as to what a dangerous instrument is, specifically if a dangerous instrument can be part of the surround-

ing crime scene, for example, the railing or the stairs? Does it have to be a structure that can be physically transportable?”

In response, the judge instructed the jury as follows:

“under the circumstances of this case . . . a dangerous instrument cannot be part of the surrounding crime scene, can’t be the railing or the stairs. It does have to be an instrument that could be physically transportable and, as you know, it’s the People’s theory that the dangerous instrument was a pistol in this case.”

The jury convicted defendant of both counts of second-degree robbery and both assault counts, and acquitted defendant of first-degree robbery. The Appellate Division affirmed the judgment and a Judge of this Court granted leave to appeal (*People v Almonte*, 160 AD3d 594 [1st Dept 2018], *lv granted* 32 NY3d 934 [2018]).

II.

Defendant challenges his conviction on three grounds: (1) the trial court erroneously refused to charge the jury on the lesser included offense of assault in the third degree; (2) JC’s 911 callback statements were not admissible under the excited utterance exception to the rule against hearsay; and (3) the Court should abolish the excited utterance exception because it is based on erroneous assumptions about human behavior that have been disproven by scientific evidence. I agree that defendant’s first two claims have merit.

As defendant argues, there is a reasonable view of the evidence that JC’s injuries were caused by something other than a dangerous instrument or deadly weapon, supporting a verdict of third-degree assault. Defendant is also correct that there is record evidence that JC’s 911 callback statements were calculated responses intended to omit key information, and thus were a product of reflective capacity and not within the excited utterance exception to the hearsay rule. Although he presents an interesting argument, defendant’s macro level attack on the excited utterance exception is not properly before the Court, as trial counsel failed to create a record of the scientific evidence appellate counsel now relies upon to support the abolition of the exception.

A. Lesser Included Offense Jury Charge

Under CPL 300.50 (1), a trial court may “submit in the alternative any lesser included offense if there is a reasonable

view of the evidence which would support a finding that the defendant committed such lesser offense but did not commit the greater.” However, if either party requests that a lesser included offense be submitted, and such offense meets the standard of CPL 300.50 (1), the court must submit it to the jury (CPL 300.50 [2]). In other words, the court has no discretion when the evidence supports the request to charge the lesser included offense.

The Court has consistently held that the standard for submitting a lesser included offense sets a low threshold that favors the moving party. At its core, the standard reflects the jury’s authority to make findings of fact and power to dispense mercy. Juries are “free to accept or reject part or all of the defense or prosecution’s evidence” and may find a defendant guilty of a lesser offense even where there is convincing evidence of guilt on a greater charge (*People v Henderson*, 41 NY2d 233, 236 [1976]; see also *People v Malave*, 21 NY2d 29 [1967]). Thus, when deciding whether a jury should contemplate a lesser included offense, “[o]ur inquiry is not directed at whether persuasive evidence of guilt of the greater crime exists . . . but whether, under any reasonable view of the evidence, it is possible for the trier of facts to acquit defendant on the higher count and still find [defendant] guilty of the lesser one” (*People v Van Norstrand*, 85 NY2d 131, 136 [1995]; see *People v Discala*, 45 NY2d 38, 42 [1978]; *Henderson*, 41 NY2d at 236). Indeed, we have held that the “appraisal of the persuasiveness of the evidence indicating guilt of the higher count is irrelevant” (*Henderson*, 41 NY2d at 236). To that end, the Court must view the evidence in the light most favorable to the defendant, with due regard to all proper inferences to be drawn from the record (see *Van Norstrand*, 85 NY2d at 136 [finding that the jury could infer defendant lacked the requisite mens rea for first-degree assault]; *Henderson*, 41 NY2d at 236 [finding that the jury could infer that defendant lacked the intent required for burglary and instead convict defendant of trespass]; *Malave*, 21 NY2d at 29 [finding that the jury could infer that defendant possessed, but did not sell, narcotics, based on his testimony that he was a drug user]). We have long recognized that “[t]he net effect of submitting the lesser charge may be that the jury will simply extend mercy, but this is acknowledged to be an ‘inevitable consequence of the jury system’ ” (*Discala*, 45 NY2d at 42, quoting *People v Mussenden*, 308 NY 558, 562 [1955]).

Here, the trial court refused to instruct the jury on third-degree assault, which requires that the defendant, with intent to cause physical injury to another person, cause such injury (Penal Law § 120.00). Thus, the court failed to submit the only assault count requested that did not require a factual finding that defendant caused physical injury by means of a dangerous instrument. On the facts of this case, that was error.

No gun was recovered and according to JC, he was in direct contact with the railing, a pole, and the steps during the attack. Specifically, JC testified that the attackers twice dragged him down the stairs, he threw himself down the stairs towards the lobby, and he grabbed the railing while he was pummeled by his attackers until they forced him to let go. He stated that his head injuries were inflicted when he was “pistol-whipped against [a] pole” and kned in the head by defendant, and when codefendant hit him with the gun while he held onto the railing. Additionally, the treating physician stated that she could not identify the object that caused the lacerations on JC’s head.

Based on the record before us, there was a reasonable view of the evidence to support a jury finding defendant guilty of third-degree assault but not guilty of the higher assault counts. The evidence, viewed, as it must, in the light most favorable to defendant, permitted the jury to conclude that JC’s injuries were not caused by a gun or another dangerous instrument, but instead by a sharp edge that he hit as he was knocked around the staircase, dragged down multiple steps, holding onto the railing, throwing himself down the stairs, or kned in the head while against a pole.

Contrary to the People’s assertion, the jury would not have to engage in “sheer speculation” to doubt JC’s narrative that a gun caused his head injuries. The jury was free to reject JC’s testimony that he was injured when codefendant hit him in the head with a gun (*see Henderson*, 41 NY2d at 236), and the jury’s actions suggest they did. The jury acquitted defendant of a count of first-degree robbery that required the use or threatened use of a dangerous instrument—which, under the court’s instruction, could only have been a gun—while convicting him of two counts of second-degree robbery that only required the use of force (*see* Penal Law §§ 160.15 [3]; 160.10 [1], [2] [a]). Significantly, the jury also sent a note to the court during deliberations asking whether the railing or stairs could be a dangerous instrument. The jury would have no reason to ask this question if it was not specifically considering an

alternative view of the evidence explaining the cause of JC's injuries. Lastly, the jury had ample basis to question JC's credibility and his motive for claiming that he was assaulted at gunpoint. JC failed to identify defendant on the 911 callback and to the officers during the neighborhood canvas in search of the attackers, and he previously used an innocent coworker's company registration number to steal from his employer, admitting that he did not care that he placed her at risk of arrest for his criminal actions.

To the extent the People argue that inferences cannot be drawn in favor of defendant, we have never refused to apply the usual rules of inferential fact-finding when evaluating a request for a lesser included offense charge (*see Van Norstrand*, 85 NY2d at 136; *Henderson*, 41 NY2d at 236; *Malave*, 21 NY2d at 29; CJI2d[NY] Evidentiary Inferences ["In evaluating the evidence, you may consider any fact that is proven and any inference which may be drawn from such fact"]). Nor have we expressly held that evidence supporting a lesser included offense charge may only come from direct testimony or incontrovertible proof. Apart from an unprecedented rejection of our traditional rules, the People's narrow view of the trial evidence would turn a standard favorable to the defendant into an insurmountable obstacle in cases, such as defendant's, where the sole eyewitness is also the victim. Here, the People's approach would require JC to expressly reject his own testimony by stating that his injuries were or could have been caused by something other than a gun. However, such a counter-narrative is not required for the lesser included offense charge because the jury could reject JC's testimony that he was hit by a gun on the basis of credibility determinations that were informed by evidence supporting a different cause of the injury. Any analysis that forecloses the submission of the lesser included offense by precluding the jury from crediting that portion of JC's testimony that suggests his injuries were sustained when he was kicked, kneed, and dragged down a staircase, while also discrediting the portion of his testimony that his injuries were caused by a gun, would be in contravention of the jury's quintessential fact-finding role (*Henderson*, 41 NY2d at 236).

The People also unpersuasively argue that the verdict on the higher assault counts establishes that the jury determined that a dangerous instrument caused JC's head injuries, especially given that the judge instructed the jury that a railing or stairwell could not constitute a dangerous instrument. This

view does not square with defendant's acquittal on the first-degree robbery count, which required the use of a dangerous instrument or deadly weapon. Equally unpersuasive is the People's argument that the jury may have exercised mercy or concluded that codefendant used the dangerous instrument during the assault but not during the commission of the robbery to forcibly steal JC's cellular phone. This view of the evidence is belied by JC's testimony that the assault was fast-paced and violent, that he was hit with the gun a second time after defendant removed the phone from his pants, and that he was sufficiently frightened to plead for his life.

The People essentially urge us to let stand convictions that may have resulted from a choice between acquittal and conviction of the offense charged even if the jury would have chosen otherwise. We have previously rejected just such a choice because of its coercive framing (*see People v Green*, 56 NY2d 427, 433 [1982] ["From the perspective of the accused, submission of a lesser included offense enables the jury to extend mercy by providing a less drastic alternative than the choice between acquittal and conviction of the offense charged"]; *People v Granger*, 187 NY 67, 72 [1907] ["Of course, the court could not coerce the jurors and force a conviction for a greater crime than they would otherwise have found him guilty of, by withholding from their consideration a lesser degree authorized by the evidence and instructing them to acquit if they did not find him guilty of the greater crime"]). The People's view is also at odds with our directive that consideration of a lesser included offense must focus exclusively on whether, under a reasonable view of the evidence, it is possible for a jury to convict defendant of the lesser offense and acquit of the greater offense, without regard to persuasive evidence of guilt on the greater offense (*see Van Norstrand*, 85 NY2d at 136).

In sum, there is a reasonable view of the evidence based on JC's testimony about the location and nature of the attack; the physician's testimony that the injuries were caused by a sharp object of uncertain material; and JC's impeached credibility that would permit the jury to draw the inference that JC's injuries were inflicted by a sharp edge in the stairwell, and not by a gun. This is like any other reasonable inference that a jury may draw based on evidence of injuries inflicted in the course of a struggle or attack involving dangerous surroundings, or even from a fall or misstep down a staircase. The trial court should have charged the jury on the lesser included assault offense.

Defendant contends this error warrants reversal on all counts. As defendant sees it, the counts are factually related because the People's theory of the case was that the cell phone was stolen during the course of the assault in the stairwell. Defendant's argument is fundamentally flawed. The trial court instructed, and the jury convicted defendant, on one count of robbery that required the People to prove beyond a reasonable doubt that defendant forcibly stole property from JC with the aid of another person actually present (Penal Law § 160.10 [1]). The court also instructed, and the jury convicted defendant, of another count of robbery that required the People to prove that defendant personally, or in concert with another, forcibly stole property from JC, and that in the course of the crime defendant or another caused JC physical injury (Penal Law § 160.10 [2] [a]). The jury thus convicted defendant of robbery counts that did not require forcible stealing with the threat or use of the gun. The failure to submit the option of third-degree assault did not taint the robbery convictions as the jury necessarily rejected a robbery verdict based on JC's testimony about the attackers' use of the gun in furtherance of the theft of his phone.

For the reasons I have discussed, the trial court's erroneous denial of the request to submit the third-degree assault count to the jury, based on its presumed discretionary authority where the law provides for none, requires reversal of defendant's second-degree assault and attempted first-degree assault convictions.

B. Excited Utterance Exception as Applied at Defendant's Trial

It is undisputed that JC's statements to the 911 dispatcher are hearsay as they are out-of-court statements offered by the People for the truth of the matter asserted, i.e. to establish that JC's injuries were caused by a hit to the head with a gun used by the attackers during the assault. Defendant claims the court should not have admitted this hearsay. The People assert that the callback statements are admissible under the excited utterance exception because JC was under the effect of a startling event, having been beaten minutes before making the statements, and having suffered injuries to his head that left him bleeding and in need of medical attention. In rejecting defendant's argument, the majority assumes error and finds it to be harmless (majority mem at 1084). I need not assume what is plain from the record: JC's statements were a product of his calculated choice to withhold identifying information about his

attackers, evincing a reflective capacity that takes the statements outside the ambit of the excited utterance exception.

In *People v Cummings* (31 NY3d 204 [2018]), we reiterated the purpose and elements of the excited utterance exception and confirmed our intent that this judicially created exception encompass a narrow category of statements, unscripted and born of impulse. We explained that

“[a]lthough hearsay, excited utterances may be admissible because, ‘as the impulsive and unreflecting responses of the declarant to the injury or other startling event, they possess a high degree of trustworthiness, and, as thus expressing the real tenor of said declarant’s belief as to the facts just observed by [the declarant], may be received as testimony of those facts’ ” (*id.* at 209 [emphasis omitted], quoting *People v Caviness*, 38 NY2d 227, 231 [1975]).

“Excited utterances are exceptions to the hearsay rule because the declarant is exposed to a startling or upsetting event that is ‘sufficiently powerful to render [the declarant’s] normal reflective processes inoperative’ ” (*People v Cantave*, 21 NY3d 374, 381 [2013], quoting *People v Vasquez*, 88 NY2d 561, 574 [1996]). Accordingly, in order to qualify as an excited utterance, a statement must be “made contemporaneously or immediately after a startling event which affected or was observed by the declarant, and relate to the event” (*People v Nieves*, 67 NY2d 125, 135 [1986]; see *People v Edwards*, 47 NY2d 493, 496-497 [1979]).

As a threshold matter, the question presented in this appeal is whether the record evidence supports the trial court’s conclusion that the victim lacked reflective capacity, based on the facts as found by that court. Defendant maintains that the record is to the contrary: JC’s misrepresentations to the 911 dispatcher, and specifically his omission of the identity of his assailants, established that he did not lack reflective capacity. I agree.

First, as the trial court found, several minutes elapsed between the attack and the victim’s statements to the dispatcher, providing JC with ample opportunity to reflect on the events and to decide what he would say about the attackers. Second, as the trial court also found, and JC conceded, during the moments immediately after the attack and before talking to the dispatcher, he spoke to his mother and chose not to tell his

sister what happened because it was “[b]etter off she didn’t understand what was going on with the situation.” Third, JC did not call 911 seeking immediate medical assistance for his injuries or to report the crime, but instead answered the phone when the dispatcher called back.

JC’s statements during the callback are particularly notable and revealing. He did not say he knew the attackers and did not provide their names or the codefendant’s address, despite knowing this information. These were strange omissions given that he knew defendant and codefendant for years, had attended school with them, and had clearly recognized them when he stepped out of his apartment. When asked what happened, he said only that “somebody” attacked him and when first asked what they looked like, he said he needed stitches. JC made no reference to the theft of his cell phone. When asked again what the assailants looked like and how many were involved, he identified them by their subethnic group and eye color. Subsequently, when asked where the attackers fled, he answered down the stairs and offered an additional response, unrelated to that question, saying that one of them had a tattoo on his hand. All the while, JC failed to provide the most crucial identifying information—name and address—that would best enable the police to find the attackers and distinguish them from the hundreds of other young males in the neighborhood. Indeed, if JC had the presence of mind to say what these attackers wore, and that one of them had a tattoo, it is incredible that he would not also think to say who they were supposedly because it did not come to mind. It requires a strained view of these events to conclude that JC spoke on impulse, automatically, without a second thought, to identify these former schoolmates as “Dominicans” rather than by their names. Even under a moment of incredible stress, if you have just been attacked by someone you know well, is your first thought to tell the police the attacker’s ethnic origin rather than their name?

Even if, as the trial court found, the victim sounded excited within minutes of the attack, his speech pattern alone does not establish that his statements were spontaneous. A declarant can sound excited and still quickly act on deliberative intent (see *Cantave*, 21 NY3d at 382). Just so here, where JC’s statements evinced calculated choices to withhold information from the police and his family. In this regard, defendant’s case is similar to *Cantave*, where a recorded 911 call was deemed not

an excited utterance because the declarant reported an assault but omitted the facts that he personally knew the assailant and had injured him (*id.*). Similarly, JC's choice to omit both of the attackers' names makes his statements anything but spontaneous and without forethought.

As the record does not support the trial court's conclusion that JC lacked reflective capacity, the statements are not an excited utterance as a matter of law. Thus, they were not admissible under this hearsay exception.

Neither is the error harmless as the majority concludes. JC's statements to the 911 operator were crucial to support his narrative. The People heavily relied on the statements, playing the recording of the 911 callback during its case-in-chief and summation, to argue that JC was attacked with a gun even though one was never found. The jury considered the statements significant, as it requested to hear the recording twice during deliberations.

Contrary to the People's argument, JC's statements were not cumulative because the only other evidence that a gun was used came from his in-court testimony. Nor is admission of the statements excusable because JC took the stand and was cross-examined, as this allowed the People to capitalize on JC's unreliable out-of-court statements to bolster his in-court credibility before the jury. It undermines the purpose of the rule against hearsay: to exclude out-of-court statements because their unreliability may have an adverse impact on the truth-seeking process (*see People v Brown*, 80 NY2d 729, 736 [1993] [noting that hearsay is admissible only where there are "sufficient safeguards to assure the statement's reliability"]; Michael M. Martin, Daniel J. Capra & Faust F. Rossi, *New York Evidence Handbook* §§ 8.1, 8.1.2 n 13 [2d ed 2003] ["(T)he traditional definition of 'hearsay' insists upon the opportunity for contemporaneous cross-examination—that is, cross-examination at the time the statement is first made, not later—at the time the witness repeats it on the stand"]²).

III.

Alternatively, defendant argues that the excited utterance exception should be abolished because the exception is unwork-

2. Any unpreserved potential alternative ground to admit JC's 911 callback statements is not properly before us on this appeal. Accordingly, I do not address the People's argument that the statements were otherwise admissible.

able and fails to serve its intended purpose. In support of these arguments, defendant cites to judicial opinions and scholarly articles that have advocated for abandoning the exception (*see Cummings*, 31 NY3d at 213-214 [Rivera, J., concurring]; *United States v Boyce*, 742 F3d 792, 801-802 [7th Cir 2014] [Posner, J., concurring]; Steve Baicker-McKee, *The Excited Utterance Paradox*, 41 Seattle U L Rev 111, 163 [2017]; Alan G. Williams, *Abolishing the Excited Utterance Exception to the Rule Against Hearsay*, 63 U Kan L Rev 717, 719-720 [2015]; Aviva Orenstein, “My God!”: A Feminist Critique of the Excited Utterance Exception to the Hearsay Rule, 85 Calif L Rev 159, 178 [1997]).

Defendant asserts that trial counsel’s argument that JC’s statements were not spontaneous was sufficient to preserve a challenge to the excited utterance exception. Defendant is incorrect. The record establishes that counsel’s arguments focused on whether the facts established the application of the existing rule to defendant’s case, not that the rule should be abolished or disavowed because it is unworkable as a general matter. Nor did the court below decide the question presented, which would have preserved the question for our review (CPL 470.05 [2]), because the trial judge considered only the events related to the attack and JC’s 911 callback statements in deciding that the exception applied.

While only this Court can determine whether to abolish this judicially created exception to our hearsay rules, that does not provide grounds for us to consider his challenge. Our review is strictly limited to questions of law (NY Const, art VI, § 3 [a]; *People v Leonti*, 18 NY2d 384, 390 [1966]). Given that defendant’s arguments in our Court are based, in part, on academic literature, and the scientific community’s evolving understanding of human behavior and an individual’s capacity to fabricate under stressful conditions, defendant should have developed a record below on the state of the science. This would have permitted the trial court to render a decision on whether, apart from the legal scholars’ criticism of the exception, there is support for the proposition he asserts here, and also would have allowed the People to respond.

IV.

I would reverse the Appellate Division order because defendant is entitled to a new trial on the assault counts. Under our well-settled law, because a reasonable view of the evidence supports the lesser included offense charge of third-degree as-

sault requested by defendant, the court had no choice but to submit this count for the jury's consideration. Compounding the error, the court applied the excited utterance exception expansively to statements that evinced the declarant's reflection on the events, in contravention of existing law. The exception does not apply when the declarant makes a calculated decision to withhold critical information about the startling event. Regardless of the declarant's motivation, such deliberately crafted statements are not impulsive and cannot be treated as reliable. I dissent.

WILSON, J. (dissenting) . I concur in Judge Rivera's dissenting opinion except that I agree with the majority that the admission of the audio recording of the 911 call was harmless on the facts present here.

Judges STEIN, FAHEY, GARCIA and FEINMAN concur; Judge RIVERA dissents in an opinion; Judge WILSON dissents in a separate dissenting opinion; Chief Judge DiFIORE taking no part.

Order affirmed, in a memorandum.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF
COURT OF APPEALS OR ON CONSENT**

(July 1, 2019 through July 31, 2019)

Dagan B., Matter of (Calla B.),	4th Dept: 172 AD3d 1905 (Appeal No. 1)	7/16/19
Dagan B., Matter of (Calla B.)	4th Dept: 172 AD3d 1906 (Appeal No. 2)	7/16/19
Montefiore Med. Ctr. v Jefferson	App Div, 1st Dept: 2018 NY Slip Op 75914(U)	7/25/19

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(July 1, 2019 through July 31, 2019)

People v Adger	App Div, 4th Dept: 2019 NY Slip Op 70014(U) (Wyoming)	dismissed 7/15/19 (Feinman, J.)
People v Akbar	2d Dept: 169 AD3d 708 (Queens)	dismissed 7/18/19 (Wilson, J.)
People v Albritton	App Div, 1st Dept: 2018 NY Slip Op 69447(U) (NY)	dismissed 7/2/19 (Rivera, J.)
People v Alexis	2d Dept: 172 AD3d 1223 (Queens)	denied 7/25/19 (Fahey, J.)
People v Alfano	4th Dept: 172 AD3d 1920 (Yates)	denied 7/19/19 (Wilson, J.)

People v Allen	County Ct, 3/26/19 (Onondaga)	denied reconsideration 7/31/19 (Rivera, J.)
People v Almonte	1st Dept: 171 AD3d 470 (NY)	denied 7/17/19 (Wilson, J.)
People v Amien	2d Dept: 172 AD3d 736 (Kings)	denied 7/12/19 (Wilson, J.)
People v Andolina	2d Dept: 171 AD3d 1201 (Richmond)	denied 7/9/19 (Rivera, J.)
People v Aroer	2d Dept: 172 AD3d 736 (Kings)	denied 7/22/19 (DiFiore, Ch. J.)
People v Avilacruz	2d Dept: 172 AD3d 1398 (Suffolk)	denied 7/30/19 (Fahey, J.)
People v Ayala	2d Dept: 172 AD3d 1085 (Kings)	denied 7/29/19 (Garcia, J.)
People v Azor	2d Dept: 172 AD3d 1087 (Queens)	denied 7/29/19 (Garcia, J.)
People v Bailey	1st Dept: 172 AD3d 482 (NY)	denied 7/11/19 (Garcia, J.)
People v Barone	2d Dept: 172 AD3d 737 (Queens)	denied 7/3/19 (Wilson, J.)
People v Baxtrum	4th Dept: 170 AD3d 1535 (Monroe)	denied 7/23/19 (Wilson, J.)
People v Benjamin	1st Dept: 173 AD3d 504 (Bronx)	denied 7/31/19 (Feinman, J.)
People v Bermudez	1st Dept: 168 AD3d 446 (NY)	denied 7/12/19 (Wilson, J.)
People v Birch	2d Dept: 171 AD3d 938 (Queens)	denied 7/1/19 (Stein, J.)
People v Black	2d Dept: 172 AD3d 895 (Dutchess)	denied 7/17/19 (Feinman, J.)
People v Blassingame	1st Dept: 173 AD3d 463 (Bronx)	denied 7/31/19 (Rivera, J.)
People v Bris	2d Dept: 172 AD3d 1108 (Queens)	denied 7/29/19 (Garcia, J.)
People v Brown	1st Dept: 173 AD3d 548 (NY)	denied 7/25/19 (Fahey, J.)
People v Bryan	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 63 Misc 3d 156(A) (Kings)	denied 7/19/19 (Feinman, J.)
People v Burks	3d Dept: 172 AD3d 1640 (Albany)	denied 7/30/19 (Fahey, J.)
People v Burrell	1st Dept: 172 AD3d 528 (NY)	denied 7/15/19 (Feinman, J.)
People v Caceres	1st Dept: 170 AD3d 626 (NY)	denied 7/11/19 (Stein, J.)
People v Calderon	1st Dept: 171 AD3d 422 (NY)	denied 7/1/19 (Stein, J.)
People v Cantey	App Div, 3d Dept: 2019 NY Slip Op 71546(U) (Albany)	dismissed 7/19/19 (DiFiore, Ch. J.)

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People v Caro	1st Dept: 162 AD3d 546 (Bronx)	denied 7/16/19 (Garcia, J.)
People v Carr	1st Dept: 168 AD3d 551 (Bronx)	denied 7/1/19 (Stein, J.)
People v Casillas	4th Dept: 171 AD3d 1487 (Erie)	denied 7/17/19 (Wilson, J.)
People v Castillo	App Term, 1st Dept: 63 Misc 3d 153(A) (NY)	denied 7/16/19 (DiFiore, Ch. J.)
People v Caswell	4th Dept: 171 AD3d 1572 (Monroe)	denied 7/15/19 (Feinman, J.)
People v Cepeda	2d Dept: 171 AD3d 940 (Kings)	denied 7/11/19 (Stein, J.)
People v Cherry	2d Dept: 163 AD3d 706 (Queens)	denied 7/17/19 (Wilson, J.)
People v Clark	1st Dept: 172 AD3d 462 (NY)	denied 7/12/19 (Wilson, J.)
People v Clemmons	2d Dept: 171 AD3d 1207 (Dutchess)	denied 7/1/19 (Stein, J.)
People v Connors	2d Dept: 170 AD3d 743 (Putnam)	denied 7/23/19 (Wilson, J.)
People v Corrado	County Ct, 5/7/19 (Otsego)	denied 7/23/19 (Feinman, J.)
People v Cosme	1st Dept: 173 AD3d 445 (NY)	denied 7/29/19 (Garcia, J.)
People v Cotter	4th Dept: 170 AD3d 1523 (Genesee)	denied ¹ 7/31/19 (Feinman, J.)
People v Crawford	1st Dept: 173 AD3d 484 (NY)	denied 7/31/19 (DiFiore, Ch. J.)
People v Croom	2d Dept: 171 AD3d 781 (Queens)	denied 7/12/19 (Wilson, J.)
People v Crowder	App Div, 2d Dept: 2019 NY Slip Op 69020(U) (Kings)	dismissed 7/16/19 (DiFiore, Ch. J.)
People v Cruz	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 63 Misc 3d 150(A) (Queens)	denied 7/19/19 (Wilson, J.)
People v Cunningham (Jarell)	1st Dept: 171 AD3d 669 (NY)	denied 7/17/19 (Garcia, J.)
People v Cunningham (John)	2d Dept: 171 AD3d 1207 (Queens)	denied 7/24/19 (Fahey, J.)
People v Curry	App Div, 2d Dept: 2019 NY Slip Op 67978(U) (Queens)	dismissed 7/31/19 (Stein, J.)
People v Davis	2d Dept: 171 AD3d 1209 (Queens)	denied 7/11/19 (Garcia, J.)
People v Dean	App Div, 4th Dept, 2/7/19 (Ontario)	dismissed 7/17/19 (Wilson, J.)
People v Deas	2d Dept: 172 AD3d 1400 (Kings)	denied 7/31/19 (Stein, J.)
People v Defretas	2d Dept: 172 AD3d 1089 (Kings)	denied 7/15/19 (Wilson, J.)

1. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Lang* (165 AD3d 1584 [2018], *lv granted* 32 NY 3d 1174 [2019]).

People v Delvalle	2d Dept: 172 AD3d 1090 (Queens)	denied 7/31/19 (Garcia, J.)
People v Deming	3d Dept: 171 AD3d 1400 (Rensselaer)	denied 7/26/19 (DiFiore, Ch. J.)
People v Diallo	App Term, 1st Dept: 63 Misc 3d 141(A) (NY)	denied 7/30/19 (Wilson, J.)
People v Dai Ma	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 63 Misc 3d 159(A) (Queens)	denied 7/31/19 (Stein, J.)
People v Diaz	2d Dept: 172 AD3d 740 (Kings)	denied 7/24/19 (Fahey, J.)
People v Dixon	4th Dept: 171 AD3d 1470 (Steuben)	denied 7/26/19 (Feinman, J.)
People v Dizak (Stuart)	App Div, 4th Dept: 2019 NY Slip Op 70016(U) (Monroe)	dismissed 7/17/19 (Feinman, J.)
People v Dizak (Stuart)	App Div, 4th Dept: 2019 NY Slip Op 65933(U) (Monroe)	dismissed 7/17/19 (Feinman, J.)
People v Dozier	App Term, 1st Dept: 63 Misc 3d 153(A) (NY)	denied 7/22/19 (DiFiore, Ch. J.)
People v Dublino	4th Dept: 171 AD3d 1507 (Niagara)	denied 7/1/19 (Stein, J.)
People v Eury	1st Dept: 172 AD3d 401 (NY)	denied 7/23/19 (Feinman, J.)
People v Ferry	3d Dept: 171 AD3d 1398 (Schenectady)	denied 7/24/19 (Fahey, J.)
People v Figueroa	1st Dept: 171 AD3d 549 (NY)	denied 7/30/19 (Wilson, J.)
People v Flores	1st Dept: 171 AD3d 411 (NY)	denied 7/12/19 (Wilson, J.)
People v Fox	4th Dept: 173 AD3d 1680 (Niagara)	denied 7/31/19 (Rivera, J.)
People v Francisco	1st Dept: 171 AD3d 536 (NY)	denied 7/11/19 (Stein, J.)
People v French	4th Dept: 172 AD3d 1909 (Monroe)	denied 7/29/19 (Garcia, J.)
People v Gates	1st Dept: 171 AD3d 543 (NY)	denied 7/2/19 (Rivera, J.)
People v Golson	2d Dept: 173 AD3d 764 (Queens)	denied 7/22/19 (Feinman, J.)
People v Gomez	2d Dept: 171 AD3d 944 (Suffolk)	denied 7/12/19 (Wilson, J.)
People v Goodman	4th Dept: 171 AD3d 1515 (Ontario)	denied 7/24/19 (Fahey, J.)
People v Graham (Charles)	4th Dept: 171 AD3d 1566 (Onondaga)	denied 7/16/19 (Garcia, J.)
People v Graham (Chuck)	4th Dept: 171 AD3d 1566 (Onondaga)	denied 7/16/19 (Garcia, J.)
People v Graham (Darrell)	App Div, 4th Dept, 4/21/19 (Erie)	dismissed 7/9/19 (Rivera, J.)
People v Graham (Osmond)	2d Dept: 172 AD3d 902 (Kings)	denied 7/16/19 (Rivera, J.)

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People v Gray	App Div, 3d Dept: 2019 NY Slip Op 67789(U) (Ulster)	denied 7/15/19 (Feinman, J.)
People v Grose	2d Dept: 172 AD3d 1092 (Kings)	denied 7/29/19 (Garcia, J.)
People v Gross (Ira)	2d Dept: 169 AD3d 159 (Suffolk)	applications denied 7/15/19 (Garcia, J.)
People v Gross (Marcus)	2d Dept: 172 AD3d 741 (Westchester)	denied 7/8/19 (Garcia, J.)
People v Gumbs	3d Dept: 169 AD3d 1119 (Albany)	denied 7/17/19 (Wilson, J.)
People v Guzman	1st Dept: 173 AD3d 447 (NY)	denied 7/24/19 (Feinman, J.)
People v Hall (Ralph)	App Div, 1st Dept: 2019 NY Slip Op 64003(U) (NY)	dismissed 7/1/19 (Stein, J.)
People v Hall (Ralph)	App Div, 1st Dept: 2019 NY Slip Op 67463(U) (NY)	denied 7/1/19 (Stein, J.)
People v Hand	App Div, 1st Dept: 2019 NY Slip Op 69393(U) (NY)	denied 7/15/19 (Feinman, J.)
People v Harris	2d Dept: 171 AD3d 1214 (Kings)	denied 7/1/19 (Stein, J.)
People v Hassan	2d Dept: 172 AD3d 744 (Nassau)	denied 7/24/19 (Fahey, J.)
People v Head	4th Dept: 172 AD3d 1917 (Wyoming)	denied 7/31/19 (Rivera, J.)
People v Heaven	2d Dept: 172 AD3d 1404 (Queens)	denied 7/31/19 (Rivera, J.)
People v Hernandez	App Div, 2d Dept: 2019 NY Slip Op 60717(U) (Nassau)	dismissed 7/30/19 (Fahey, J.)
People v Herrera	2d Dept: 161 AD3d 1006 (Queens)	denied 7/26/19 (Feinman, J.)
People v Hickey (Christopher)	4th Dept: 171 AD3d 1465 (Onondaga)	denied 7/19/19 (Wilson, J.)
People v Hickey (Timothy)	2d Dept: 172 AD3d 745 (Suffolk)	denied 7/9/19 (Rivera, J.)
People v Hicks	4th Dept: 172 AD3d 1938 (Onondaga)	denied 7/31/19 (DiFiore, Ch. J.)
People v Hines	2d Dept: 172 AD3d 1225 (Nassau)	denied 7/31/19 (DiFiore, Ch. J.)
People v Holloway	4th Dept: 171 AD3d 1572 (Monroe)	denied 7/2/19 (Rivera, J.)
People v Ming Guang Huang	1st Dept: 173 AD3d 496 (NY)	denied 7/31/19 (DiFiore, Ch. J.)
People v Hunter (Jerrod)	App Div, 4th Dept, 4/17/19 (Monroe)	dismissed 7/30/19 (Wilson, J.)
People v Hunter (Sean)	4th Dept: 171 AD3d 1534 (Onondaga)	denied 7/30/19 (Wilson, J.)
People v Introne	3d Dept: 172 AD3d 1538 (Fulton)	denied 7/23/19 (Feinman, J.)
People v Johnson (Bruce)	2d Dept: 172 AD3d 902 (Queens)	denied 7/17/19 (Feinman, J.)

People v Johnson (Latisha)	2d Dept: 171 AD3d 1216 (Queens)	denied 7/17/19 (Wilson, J.)
People v Jones	App Term, 1st Dept: 63 Misc 3d 154(A) (Bronx)	denied 7/29/19 (Garcia, J.)
People v Juarez	2d Dept: 172 AD3d 1231 (Kings)	denied 7/31/19 (Rivera, J.)
People v Judkins	1st Dept: 171 AD3d 569 (NY)	denied 7/11/19 (Stein, J.)
People v Kelley	2d Dept: 172 AD3d 1406 (Queens)	denied 7/25/19 (Fahey, J.)
People v Kirkley	3d Dept: 172 AD3d 1541 (Albany)	denied 7/31/19 (Rivera, J.)
People v Kulczyk	4th Dept: 171 AD3d 1514 (Erie)	denied 7/22/19 (DiFiore, Ch. J.)
People v LaPorte	1st Dept: 172 AD3d 622 (NY)	denied 7/29/19 (Feinman, J.)
People v Lathrop	4th Dept: 171 AD3d 1473 (Monroe)	denied 7/24/19 (Fahey, J.)
People v Lebron	2d Dept: 171 AD3d 1092 (Queens)	denied ² 7/24/19 (Fahey, J.)
People v Lentini	2d Dept: 172 AD3d 1099 (Rockland)	denied 7/9/19 (Rivera, J.)
People v Lithgow	1st Dept: 171 AD3d 517 (NY)	denied 7/17/19 (Wilson, J.)
People v Long	2d Dept: 171 AD3d 794 (Westchester)	denied 7/1/19 (Stein, J.)
People v Mamadou	3d Dept: 172 AD3d 1524 (Chemung)	denied 7/17/19 (DiFiore, Ch. J.)
People v Marcus	2d Dept: 171 AD3d 1093 (Queens)	denied 7/24/19 (Fahey, J.)
People v Marshall	4th Dept: 166 AD3d 1543 (Monroe)	denied reconsideration 7/23/19 (Wilson, J.)
People v Marti	App Term, 1st Dept: 63 Misc 3d 148(A) (NY)	denied 7/29/19 (Feinman, J.)
People v Martinez	1st Dept: 169 AD3d 587 (NY)	denied 7/17/19 (DiFiore, Ch. J.)
People v Mason	2d Dept: 172 AD3d 1234 (Rockland)	denied 7/26/19 (DiFiore, Ch. J.)
People v McCalla	2d Dept: 172 AD3d 750 (Nassau)	denied 7/1/19 (Stein, J.)
People v McCants	2d Dept: 172 AD3d 904 (Westchester)	denied 7/24/19 (Fahey, J.)
People v McCarthy	App Term, 2d Dept, 9th & 10th Jud Dists: 64 Misc 3d 20 (Nassau)	denied 7/24/19 (Feinman, J.)

2. Denied, with leave to renew within 30 days after the Court of Appeals renders decisions in *People v Velez* (164 AD3d 622 [2018], *lv granted* 32 NY3d 1129 [2018]) and *People v Tsintzelis* (153 AD3d 558 [2017], *lv denied* 30 NY3d 1120 [2018], *lv granted upon reconsideration* 31 NY3d 1153 [2018]).

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People v McClenos	3d Dept: 172 AD3d 1638 (Rensselaer)	denied 7/25/19 (Fahey, J.)
People v McMillan	App Term, 1st Dept: 63 Misc 3d 126(A) (NY)	denied 7/1/19 (Stein, J.)
People v McNear	4th Dept: 171 AD3d 1572 (Genesee)	denied 7/31/19 (DiFiore, Ch. J.)
People v Metales	4th Dept: 171 AD3d 1562 (Monroe)	denied 7/9/19 (Rivera, J.)
People v Morales	2d Dept: 171 AD3d 945 (Queens)	denied 7/24/19 (Fahey, J.)
People v Morse	2d Dept: 172 AD3d 751 (Queens)	denied 7/17/19 (Wilson, J.)
People v Murray	4th Dept: 170 AD3d 1650 (Onondaga)	denied 7/12/19 (Wilson, J.)
People v Myles	2d Dept: 172 AD3d 752 (Suffolk)	denied 7/8/19 (Garcia, J.)
People v Nickey	2d Dept: 169 AD3d 931 (Westchester)	denied 7/18/19 (Wilson, J.)
People v Nieves	4th Dept: 169 AD3d 1459 (Monroe)	denied 7/12/19 (Wilson, J.)
People v Owens	App Term, 1st Dept: 63 Misc 3d 141(A) (NY)	denied 7/3/19 (Wilson, J.)
People v Paul (Shondell)	4th Dept: 171 AD3d 1467 (Onondaga)	denied 7/31/19 (DiFiore, Ch. J.)
People v Paul (Tajuan)	4th Dept: 171 AD3d 1555 (Onondaga)	denied 7/31/19 (DiFiore, Ch. J.)
People v Paulino	1st Dept: 172 AD3d 488 (NY)	denied 7/8/19 (Garcia, J.)
People v Pierre-Louis	2d Dept: 171 AD3d 949 (Kings)	denied 7/1/19 (Stein, J.)
People v Pinchback (Jamal)	2d Dept: 173 AD3d 772 (Queens)	denied 7/31/19 (Stein, J.)
People v Pinchback (Jamal)	2d Dept: 173 AD3d 773 (Queens)	denied 7/31/19 (Stein, J.)
People v Pinkston	1st Dept: 169 AD3d 520 (NY)	denied 7/24/19 (Fahey, J.)
People v Pruitt	App Div, 2d Dept: 2019 NY Slip Op 67997(U) (Queens)	dismissed 7/24/19 (Fahey, J.)
People v Quinlan	App Term, 1st Dept: 63 Misc 3d 148(A) (NY)	denied 7/1/19 (Stein, J.)
People v Ramacca	2d Dept: 171 AD3d 1097 (Queens)	denied 7/8/19 (Garcia, J.)
People v Ramos	1st Dept: 164 AD3d 1154 (Bronx)	denied 7/17/19 (Wilson, J.)
People v Rasul	App Div, 3d Dept: 2019 NY Slip Op 70180(U) (Albany)	dismissed 7/31/19 (Garcia, J.)
People v Rawlinson	3d Dept: 170 AD3d 1425 (Albany)	denied 7/25/19 (Fahey, J.)
People v Reed	1st Dept: 169 AD3d 573 (Bronx)	denied 7/31/19 (Rivera, J.)

People v Riddles	1st Dept: 172 AD3d 658 (NY)	denied 7/26/19 (DiFiore, Ch. J.)
People v Rivera	1st Dept: 169 AD3d 520 (NY)	denied 7/24/19 (Fahey, J.)
People v Rodriguez	1st Dept: 172 AD3d 637 (NY)	denied 7/31/19 (Rivera, J.)
People v Roebach	App Term, 1st Dept: 64 Misc 3d 126(A) (NY)	denied 7/31/19 (Rivera, J.)
People v Rogers	App Div, 4th Dept, 4/17/19 (Onondaga)	dismissed 7/11/19 (Garcia, J.)
People v Rosa	2d Dept: 171 AD3d 1099 (Queens)	denied 7/31/19 (DiFiore, Ch. J.)
People v Sanders	4th Dept: 171 AD3d 1460 (Erie)	denied 7/8/19 (Garcia, J.)
People v Sandson	2d Dept: 173 AD3d 905 (Queens)	denied 7/31/19 (Fahey, J.)
People v Saunders	2d Dept: 172 AD3d 756 (Kings)	denied 7/15/19 (Feinman, J.)
People v Seay	2d Dept: 172 AD3d 756 (Queens)	denied 7/30/19 (Wilson, J.)
People v Sell	App Div, 4th Dept, 3/6/19 (Erie)	denied reconsideration 7/16/19 (Rivera, J.)
People v Sewell	4th Dept: 171 AD3d 1509 (Erie)	denied 7/16/19 (Rivera, J.)
People v Sicilianonunez	2d Dept: 172 AD3d 912 (Suffolk)	denied 7/17/19 (Garcia, J.)
People v Simmon	1st Dept: 171 AD3d 557 (NY)	denied 7/16/19 (DiFiore, Ch. J.)
People v Singh	2d Dept: 171 AD3d 953 (Queens)	denied 7/2/19 (Rivera, J.)
People v Sloan	1st Dept: 172 AD3d 654 (NY)	denied 7/24/19 (Fahey, J.)
People v Smiley	2d Dept: 172 AD3d 1107 (Suffolk)	denied 7/24/19 (Fahey, J.)
People v Smith	2d Dept: 168 AD3d 885 (Queens)	denied 7/15/19 (Feinman, J.)
People v Stebbins	3d Dept: 171 AD3d 1395 (Rensselaer)	denied 7/29/19 (Garcia, J.)
People v Steinbrecher	4th Dept: 169 AD3d 1462 (Oswego)	denied 7/12/19 (Wilson, J.)
People v Stephensbush	2d Dept: 172 AD3d 1108 (Queens)	denied 7/29/19 (Garcia, J.)
People v Stevens	2d Dept: 172 AD3d 1410 (Kings)	denied ³ 7/31/19 (DiFiore, Ch. J.)

3. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Thomas* (158 AD3d 434 [2018], *lv granted* 31 NY3d 1088 [2018]), *People v Green* (160 AD3d 1422 [2018], *lv granted* 32 NY3d 1004 [2018]), and *People v Lang* (165 AD3d 1584 [2018], *lv granted* 32 NY3d 1174 [2019]).

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People v Stewart	2d Dept: 172 AD3d 1247 (Suffolk)	denied 7/26/19 (Feinman, J.)
People v Strong (Terrance)	4th Dept: 172 AD3d 1927 (Monroe)	denied 7/31/19 (DiFiore, Ch. J.) (Appeal No. 1)
People v Strong (Terrance)	4th Dept: 172 AD3d 1929 (Monroe)	denied 7/31/19 (DiFiore, Ch. J.) (Appeal No. 2)
People v Suarez	1st Dept: 171 AD3d 612 (NY)	denied 7/24/19 (Fahey, J.)
People v Swails	1st Dept: 172 AD3d 579 (NY)	denied 7/29/19 (Garcia, J.)
People v Swann	2d Dept: 172 AD3d 1110 (Queens)	denied 7/24/19 (Feinman, J.)
People v Takie	2d Dept: 172 AD3d 1249 (Queens)	denied 7/23/19 (Feinman, J.)
People v Taylor	2d Dept: 172 AD3d 1110 (Kings)	denied 7/11/19 (Garcia, J.)
People v Teran	1st Dept: 172 AD3d 447 (NY)	denied 7/29/19 (Garcia, J.)
People v Terry	2d Dept: 169 AD3d 938 (Suffolk)	applications denied 7/1/19 (Stein, J.)
People v Thomas	1st Dept: 172 AD3d 443 (Bronx)	denied 7/31/19 (Rivera, J.)
People v Tietje	3d Dept: 171 AD3d 1355 (Ulster)	denied 7/17/19 (Wilson, J.)
People v Townsend	4th Dept: 171 AD3d 1479 (Monroe)	denied 7/31/19 (DiFiore, Ch. J.)
People v Tucker	1st Dept: 172 AD3d 547 (Bronx)	denied 7/25/19 (Fahey, J.)
People v Turner	App Div, 1st Dept: 2019 NY Slip Op 66475(U) (NY)	dismissed 7/17/19 (Wilson, J.)
People v Utsler	App Term, 1st Dept: 63 Misc 3d 154(A) (NY)	denied 7/17/19 (Garcia, J.)
People v Van Hooser	App Div, 4th Dept, 5/22/19 (Onondaga)	dismissed 7/31/19 (Rivera, J.)
People v Vanalst	3d Dept: 171 AD3d 1349 (Schenectady)	denied 7/8/19 (Garcia, J.)
People v Viera	2d Dept: 172 AD3d 762 (Kings)	denied 7/30/19 (Fahey, J.)
People v Wade	3d Dept: 172 AD3d 1644 (Rensselaer)	denied 7/18/19 (Garcia, J.)
People v Wassell	4th Dept: 171 AD3d 1499 (Chautauqua)	withdrawn 7/3/19 (Wilson, J.)
People v Watkins	2d Dept: 172 AD3d 1411 (Suffolk)	denied 7/31/19 (Garcia, J.)
People v Werkheiser	3d Dept: 171 AD3d 1297 (Tioga)	denied 7/30/19 (Wilson, J.)

People v White	3d Dept: 172 AD3d 1822 (Schenectady)	denied 7/31/19 (Fahey, J.)
People v Womack	3d Dept: 172 AD3d 1819 (Schenectady)	denied 7/31/19 (Rivera, J.)
People v Zelaya	2d Dept: 170 AD3d 1206 (Suffolk)	denied 7/23/19 (Wilson, J.)

BILL BIRDS, INC., et al., Appellants, v STEIN LAW FIRM, P.C., et al., Respondents.

Submitted June 24, 2019; decided August 29, 2019

Reported below, 164 AD3d 635.

Motion by Anita Bernstein for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

TOBIAS BERMUDEZ CHAVEZ et al., Respondents, v OCCIDENTAL CHEMICAL CORPORATION, Individually and as a Successor to OTHER OCCIDENTAL CHEMICAL COMPANY OTHER OCCIDENTAL CHEMICAL AGRICULTURAL PRODUCTS INC. OTHER HOOKER CHEMICAL AND PLASTICS OTHER OCCIDENTAL CHEMICAL COMPANY OF TEXAS OTHER BEST FERTILIZER COMPANY, Appellant.

Decided August 29, 2019

See 933 F3d 186.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

DANIEL COLLAZO et al., Appellants, v NETHERLAND PROPERTY ASSETS LLC et al., Respondents.

Submitted August 5, 2019; decided August 29, 2019

Reported below, 155 AD3d 538.

Motion by New York State Division of Housing and Community Renewal et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of EMERALD INTERNATIONAL HOLDINGS LTD., Appellant, v TAX APPEALS TRIBUNAL OF THE STATE OF NEW YORK et al., Respondents.

Decided August 29, 2019

Reported below, 2019 NY Slip Op 66114(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

ROBERT D. HAAR, Appellant, v NATIONWIDE MUTUAL FIRE INSURANCE COMPANY, Respondent, et al., Defendants.

Submitted August 5, 2019; decided August 29, 2019

See 918 F3d 231.

Motion by New York Insurance Association, Inc., et al. for leave to appear amici curiae on the certified question herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, nine copies filed, and the brief submitted in digital format within seven days.

Judge GARCIA taking no part.

HOWARD LEADER et al., Respondents, v PARKSIDE GROUP et al., Appellants.

Submitted August 5, 2019; decided August 29, 2019

Reported below, 174 AD3d 420.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of NICHOLAS LeCLAIR, Appellant, v JEFFREY WAIT, Respondent.

Decided August 29, 2019

Reported below, 2019 NY Slip Op 72635(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of LIANG-HOUH SHIEH, a Disbarred Attorney, Appellant. COMMITTEE ON PROFESSIONAL STANDARDS, Now Known as ATTORNEY GRIEVANCE COMMITTEE FOR THE THIRD JUDICIAL DEPARTMENT, Respondent.

Decided August 29, 2019

Reported below, 162 AD3d 1393.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that, as to the appeal from the June 2018 Appellate Division order, no appeal lies from this order from which an appeal has already been taken and dismissed (*see Matter of Liang-Houh Shieh*, 32 NY3d 1083 [2018]), and that, as to the appeal from the January 2019 letter, this letter is not a judgment or order from which an appeal to this Court may be taken (*see* CPLR 5512 [a]; CPLR 5601).

PETER LINDNER, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted May 28, 2019; decided August 29, 2019

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5602 [a]). Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of LUIS S., Consecutive No. 21916, for Discharge from Central New York Psychiatric Center Pursuant to Mental Hygiene Law § 10.09, Appellant, v STATE OF NEW YORK et al., Respondents.

Submitted July 1, 2019; decided August 29, 2019

Reported below, 166 AD3d 1550.

Motion for poor person relief granted.

THERESA MADDICKS et al., Respondents, v BIG CITY PROPERTIES, LLC, et al., Defendants, and BIG CITY REALTY MANAGEMENT, LLC, et al., Appellants.

Submitted August 19, 2019; decided August 29, 2019

Reported below, 163 AD3d 501.

Motion by Lower Seaman Tenants Association et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of MICAH T., an Infant. JOSETTE D., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

In the Matter of JAHKNAI K.-C.D. and Others, Infants. JOSETTE D., Appellant; CHILDREN'S AID SOCIETY, Respondent.

Decided August 29, 2019

Reported below, 171 AD3d 546.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it does not lie (*see* CPLR 5601).

In the Matter of NAHZZEAR Y.G. and Another, Infants. TANISHA N., Appellant; ABBOTT HOUSE, Respondent.

Submitted June 24, 2019; decided August 29, 2019

Reported below, 172 AD3d 526.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RALPH
ALICEA, Appellant.

Submitted July 15, 2019; decided August 29, 2019

Reported below, 159 AD3d 532.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FRED-
ERIC BADJI, Appellant.

Submitted July 15, 2019; decided August 29, 2019

Reported below, 171 AD3d 499.

Motion for assignment of counsel granted and Janet E. Sabel, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BRANDY
J. BREITHAUP, Appellant.

Submitted July 8, 2019; decided August 29, 2019

Reported below, 171 AD3d 1311.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MI-
CHAEL CUBERO, Appellant.

Submitted August 12, 2019; decided August 29, 2019

Reported below, 160 AD3d 1298.

Motion by New York County Lawyers Association Committee on Appellate Courts et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Chief Judge DiFiore taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT ELLIS, Appellant.

Submitted July 15, 2019; decided August 29, 2019

Reported below, 166 AD3d 993.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JHONEL FELICIANO, Appellant.

Submitted August 19, 2019; decided August 29, 2019

Reported below, 166 AD3d 451.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v REGINALD GOLDMAN, Respondent.

Submitted July 15, 2019; decided August 29, 2019

Reported below, 171 AD3d 581.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDRE JEAN, Appellant.

Submitted July 15, 2019; decided August 29, 2019

Reported below, 60 Misc 3d 141(A), 2018 NY Slip Op 51303(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ZHAKARIYYA MUHAMMAD, Appellant.

Submitted July 1, 2019; decided August 29, 2019

Reported below, 171 AD3d 442.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MOUHAMED THIAM, Respondent.

Submitted August 12, 2019; decided August 29, 2019

Reported below, 59 Misc 3d 126(A), 2018 NY Slip Op 50339(U).

Motion by The Bronx Defenders et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of RANDY PEYTON, Respondent, and HILLEL HOFFMAN et al., Intervenor-Respondents, v NEW YORK CITY BOARD OF STANDARDS AND APPEALS et al., Appellants.

Submitted August 12, 2019; decided August 29, 2019

Reported below, 166 AD3d 120.

Motion by The Real Estate Board of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

KEITH POOLER, Appellant, v STATE OF NEW YORK, Respondent.

Decided August 29, 2019

Appeal transferred without costs, by the Court of Appeals sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

In the Matter of PUAH B. and Others, Infants. AUTUMN B., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent, and HEMERD B., Respondent.

Decided August 29, 2019

Reported below, 173 AD3d 422.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

R.F. SCHIFFMANN ASSOCIATES, INC., et al., Appellants, v BAKER & DANIELS LLP, Respondent, et al., Defendant.

Decided August 29, 2019

Reported below, 171 AD3d 657.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

In the Matter of SAMUEL D., Appellant. MID-HUDSON FORENSIC PSYCHIATRIC CENTER, Respondent.

Decided August 29, 2019

Reported below, 171 AD3d 1172.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of RICHARD P. SAVITT (Admitted as RICHARD PAUL SAVITT), a Suspended Attorney, Appellant. ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted June 10, 2019; decided August 29, 2019

Reported below, 170 AD3d 24.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of SEBASTIAN R. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; DEBRA S., Appellant, et al., Respondent.

Submitted May 28, 2019; decided August 29, 2019

Reported below, 171 AD3d 928.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as dismissed the appeal from the portion of the Family Court order as was entered on consent, dismissed upon the ground that movant is not a party aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise denied.

DEBORAH SUGAMELE, Individually and as an Administratrix of the Estate of JOSEPH SUGAMELE, Deceased, Respondent, v TOWN OF HEMPSTEAD, Appellant. (Action No. 1.)

JAMES FEYNMAN, as Executor of the Estate of THERESA MANIACANNI, Deceased, et al., Appellants, v TOWN OF HEMPSTEAD, Respondent. (Action No. 2.)

BARBARA ERICSON, as Administratrix of the Estate of PETER SOFIA, Deceased, Appellant, v TOWN OF HEMPSTEAD, Respondent. (Action No. 3.)

Decided August 29, 2019

Reported below, 169 AD3d 852.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the actions within the meaning of the Constitution.

[131 NE3d 901, 107 NYS3d 794]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DON P. SIPP, Appellant.

Decided August 29, 2019

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered February 1, 2019. The Appellate Division affirmed a judgment of the Seneca County Court (Dennis F. Bender, J.), which had convicted defendant, upon a jury verdict, of assault in the second degree.

People v Sipp, 169 AD3d 1423, affirmed.

HEADNOTE

Crimes — Lesser Included Offense — Assault in Third Degree as Lesser Included Offense of Assault in Second Degree

In a prosecution for assault in the second degree arising from defendant slashing his former girlfriend's face and neck with a sharp instrument and repeatedly stomping on her head with his boot-clad foot, defendant was not entitled to an instruction on a lesser-included charge of assault in the third degree, since no reasonable view of the evidence supported a finding that the victim sustained anything less than a serious physical injury (*see* Penal Law § 10.00 [10]). Both live and photographic evidence at trial, 10 months after the attack, demonstrated that the victim's face was disfigured with scars above one eyebrow, under the other eye, on her lip and across her neck, and that apart from the scars, her facial structure and appearance had changed significantly. Testimony from her treating physician established that she suffered at least five displaced fractures around her eye sockets and nose, which were left to heal as displaced.

APPEARANCES OF COUNSEL

J. Scott Porter, Seneca Falls, for appellant.

Mark S. Sinkiewicz, Acting District Attorney, Waterloo, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. At a jury trial, defendant was convicted of assault in the second degree for slashing his former girlfriend's face and neck with a sharp instrument and repeatedly stomping on her head with his boot-clad foot. His counsel requested that the court charge the jury with assault in the third degree as a lesser-included offense; the court declined to do so.

Both live and photographic evidence at trial, 10 months after the attack, demonstrated that the victim's face was disfigured with scars above one eyebrow, under the other eye, on her lip and across her neck, and that apart from the scars, her facial structure and appearance had changed significantly. Testimony from her treating physician established that she suffered at least five displaced fractures around her eye sockets and nose, which were left to heal as displaced. Viewed in a light most favorable to defendant (*see People v Van Norstrand*, 85 NY2d 131, 135 [1995]; *People v Henderson*, 41 NY2d 233, 236 [1976]), we agree that no reasonable view of the evidence could support a finding that the victim sustained anything less than a serious physical injury (*see Penal Law* § 10.00 [10]; *People v McKinnon*, 15 NY3d 311, 315 [2010]). Accordingly, defendant was not entitled to an instruction on a lesser-included charge of assault in the third degree.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

CARMINE DELL AQUILA, Respondent, v THOMAS RUBIO, Administrator of the Estate of JOSEPH O. RUBIO, Deceased, et al., Appellants, et al., Defendant.

Submitted June 3, 2019; decided September 5, 2019

Reported below, 171 AD3d 863.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CITIMORTGAGE, INC., Respondent, v NORA C. FERRARI et al., Appellants, et al., Defendants.

Submitted June 3, 2019; decided September 5, 2019

Reported below, 171 AD3d 1005.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JAY HOWELL, Appellant, et al., Plaintiffs, v CITY OF NEW YORK et al., Respondents.

Submitted May 20, 2019; decided September 5, 2019

Reported below, 165 AD3d 567.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MURLAR EQUITIES PARTNERSHIP, Appellant, v FRANKLIN JIMINEZ, Respondent, et al., Defendants.

Submitted February 19, 2019; decided September 5, 2019

Reported below, 161 AD3d 569.

Motion, insofar as it seeks leave to appeal from the May 2018 Appellate Division order, dismissed upon the ground that it does not lie, appellant having previously moved for leave to appeal to this Court (*see* 32 NY3d 1142 [2019]) from the same Appellate Division order from which leave to appeal is currently sought (*see Selinger v Selinger*, 90 NY2d 842 [1997]); motion, insofar as treated as seeking leave to appeal from the July 2018 Supreme Court “judgment/order,” denied. Cross motion for the imposition of sanctions denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL McNEIL, Appellant.

Submitted May 20, 2019; decided September 5, 2019

Reported below, 171 AD3d 562.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in Criminal Court of the City of New York, Bronx County (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* WANTU ACKERMAN, Appellant, *v* S. KICKBUSH, Respondent.

Submitted June 3, 2019; decided September 5, 2019

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* EDWARD BROWN, Appellant, *v* MICHAEL CAPRA, Respondent.

Submitted May 28, 2019; decided September 5, 2019

Reported below, 2019 NY Slip Op 64688(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601). Motion for poor person relief dismissed as academic.

EUGENIA PINKARD, Appellant, *v* NEW YORK CITY DEPARTMENT OF EDUCATION *et al.*, Respondents.

Submitted May 28, 2019; decided September 5, 2019

Reported below, 168 AD3d 474.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for ancillary relief dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of LISA MEREDITH PRESTON, Respondent, v YONATHAN HORMADALY, Appellant.

Submitted May 13, 2019; decided September 5, 2019

Reported below, 171 AD3d 926.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of HARINDER JEET SINGH, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted May 20, 2019; decided September 5, 2019

Reported below, 2019 NY Slip Op 67605(U).

Motion for leave to appeal dismissed upon the ground that the April 2019 order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of NEELAM TANEJA UPPAL, Appellant, v NEW YORK STATE DEPARTMENT OF HEALTH, Respondent.

Submitted May 28, 2019; decided September 5, 2019

Reported below, 2019 NY Slip Op 60604(U); 2018 NY Slip Op 87903(U).

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

In the Matter of VICKTORIYA DD. and Others, Alleged to be Neglected Children. SARATOGA COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; SHERYL EE., Appellant.

Submitted May 28, 2019; decided September 5, 2019

Reported below, 172 AD3d 1470.

Motion for leave to appeal dismissed upon the ground that movant is not a party aggrieved (*see* CPLR 5511).

[131 NE3d 902, 107 NYS3d 795]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JONATHAN MONFORTE, Also Known as J-5, Appellant.

Decided September 5, 2019

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 15, 2018. The Appellate Division affirmed a judgment of the Supreme Court, Schenectady County (Matthew J. Sypniewski, J.), which had convicted defendant, upon his plea of guilty, of manslaughter in the first degree.

People v Monforte, 166 AD3d 1222, reversed.

HEADNOTE

Crimes — Indictment — Improper Waiver

Where a felony complaint charged defendant with second-degree murder, a class A felony with a maximum sentence of life imprisonment, his waiver of indictment was improper, and the trial court improperly proceeded by a superior court information charging only first-degree manslaughter and lacked jurisdiction to accept his guilty plea to that offense. Under both the New York State Constitution and Criminal Procedure Law, a defendant who is held for the action of the grand jury on a class A felony punishable by life imprisonment may not waive indictment by the grand jury and agree to be prosecuted for a lesser included offense in order to facilitate a plea bargain on the homicide offense (NY Const, art I, § 6; CPL 195.10). Defendant, having been held for action of the grand jury on the class A felony, could not effectively waive indictment and agree to be prosecuted by information for first-degree manslaughter.

APPEARANCES OF COUNSEL

Law Office of Craig Meyerson, Peru (*Craig Meyerson* of counsel), for appellant.

Robert M. Carney, District Attorney, Schenectady (*Peter H. Willis* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, the guilty plea vacated, superior court information dismissed, felony complaint reinstated, and the case remitted to County Court for further proceedings in accordance with this memorandum.

Defendant Jonathan Monforte challenges his conviction of first-degree manslaughter (Penal Law § 125.20 [2]). Defendant

was arrested and arraigned upon a felony complaint charging him with second-degree murder and first-degree criminal use of a firearm (Penal Law §§ 125.25, 265.09). Defendant, after being held for the action of the grand jury, waived his right to indictment, agreed to be prosecuted by a superior court information charging only first-degree manslaughter (Penal Law § 125.20 [2]) and pleaded guilty to that offense. County Court accepted defendant's waiver of indictment and guilty plea and sentenced him, in accordance with the plea agreement, to a 25-year term of imprisonment. Defendant now argues that his conviction must be vacated because his waiver of indictment was improper and County Court lacked jurisdiction to accept his plea. We agree.

As a threshold matter, this Court may consider defendant's jurisdictional claim on his direct appeal despite his guilty plea and failure to raise the claim below (*see People v Zanghi*, 79 NY2d 815, 817 [1991]).

The New York State Constitution provides that “[n]o person shall be held to answer for a capital or otherwise infamous crime . . . unless on indictment of a grand jury” (NY Const, art I, § 6). The Constitution contains a limited exception to this jurisdictional requirement:

“a person held for the action of a grand jury upon a charge for such an offense, other than one punishable by death or life imprisonment, with the consent of the district attorney, may waive indictment by a grand jury and consent to be prosecuted on an information filed by the district attorney” (*id.*).

In addition, Criminal Procedure Law § 195.10 provides that a defendant may waive indictment by grand jury when, among other conditions, “the defendant is not charged with a class A felony punishable by death or life imprisonment” (CPL 195.10 [1] [b]). Accordingly, under both the Constitution and Criminal Procedure Law, a defendant who is held for the action of the grand jury on a class A felony punishable by life imprisonment may not waive indictment by the grand jury and agree to be prosecuted for a lesser included offense in order to facilitate a plea bargain on the homicide offense (*see People v Trueluck*, 88 NY2d 546, 551 [1996] [“The inescapable language of the State Constitution and its directly implementing statute establish the authorizing boundary: when an accused is held for Grand Jury action upon a felony complaint that charges a class A

felony, as here, a waiver of indictment with respect to that felony complaint is unauthorized”]).

Here, the felony complaint charged defendant with second-degree murder, a class A felony, with a maximum sentence of life imprisonment. Contrary to the People’s argument, under the circumstances here, *Trueluck* controls. In accordance with the Constitution, the Criminal Procedure Law, and our established precedent, defendant, having been held for action of the grand jury on the class A felony, could not effectively waive indictment and agree to be prosecuted by superior court information for the crime of manslaughter in the first degree. County Court improperly proceeded by information and lacked jurisdiction to accept his guilty plea (*see id.*). The People’s remaining contentions are without merit.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 200.11), order reversed, guilty plea vacated, superior court information dismissed, felony complaint reinstated and case remitted to County Court, Schenectady County, for further proceedings in accordance with the memorandum herein.

[131 NE3d 904, 107 NYS3d 797]

BENEDICTA BRITO, Respondent, v RAFAEL GOMEZ et al., Appellants.

Decided September 10, 2019

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered November 27, 2018. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Laura G. Douglas, J.), which had, to the extent appealed from as limited by the brief, denied defendants’ motion to strike the note of issue and to compel plaintiff to provide discovery relating to prior treatment of her knees. The following question was certified by the Appellate Division: “Was the order of the Supreme Court, as affirmed by this Court, properly made?”

Brito v Gomez, 168 AD3d 1, reversed.

HEADNOTE

Disclosure — Medical Records and Reports — Waiver of Physician-Patient Privilege — Issue Placed into Controversy

The trial court erred in denying defendants' motion to compel plaintiff to provide discovery related to the prior treatment of her knees, where plaintiff had affirmatively placed the condition of her knees into controversy by alleging that the underlying accident caused difficulties in walking and standing that affected her ambulatory capacity and resultant damages. Under the particular circumstances, plaintiff waived the physician-patient privilege with respect to the prior treatment and the discovery sought by authorizations pertaining to the treatment was "material and necessary" to defendants' defense of the action (CPLR 3101 [a]).

APPEARANCES OF COUNSEL

Lewis Brisbois Bisgaard & Smith LLP, New York City (*Nicholas P. Hurzeler* of counsel), for appellants.

Pollack, Pollack, Isaac & De Cicco, LLP, New York City (*Brian J. Isaac* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, the case remitted to Supreme Court for further proceedings in accordance with this memorandum, and the certified question answered in the negative.

Plaintiff affirmatively placed the condition of her knees into controversy through allegations that the underlying accident caused difficulties in walking and standing that affect her ambulatory capacity and resultant damages (*see generally Arons v Jutkowitz*, 9 NY3d 393, 409 [2007]; *Dillenbeck v Hess*, 73 NY2d 278, 287 [1989]). Under the particular circumstances of this case, plaintiff therefore waived the physician-patient privilege with respect to the prior treatment of her knees and the discovery sought by authorizations pertaining to the treatment of plaintiff's knees is "material and necessary" to defendants' defense of the action (CPLR 3101 [a]). Accordingly, Supreme Court erred in denying defendants' motion to compel plaintiff to provide discovery related to the prior treatment of her knees.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, case remitted to Supreme Court, Bronx

County, for further proceedings in accordance with the memorandum herein and certified question answered in the negative.

BANK OF NEW YORK MELLON, Formerly Known as BANK OF NEW YORK, as Trustee, in TRUST FOR REGISTERED HOLDERS OF CWABS, INC., ASSET-BACK CERTIFICATES, SERIES 2005-IM3, Respondent, v ERIN SLAVIN, Also Known as ERIN MOHAMMED, Appellant, et al., Defendants.

Submitted June 17, 2019; decided September 10, 2019

Reported below, 156 AD3d 1073.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of LYSON BAZILE et al., Petitioners, and DAVID JACOBS, Appellant, v JAMES R. RUBIN, as Commissioner of New York State Homes and Community Renewal and New York State Division of Housing and Community Renewal, et al., Respondents.

Submitted July 1, 2019; decided September 10, 2019

Reported below, 165 AD3d 793.

Motion for reargument of motion for leave to appeal denied [see 33 NY3d 903 (2019)].

CARMEN BRITT, Individually and as Executor of the Estate of LULA BAITY, Deceased, Appellant, v BUFFALO MUNICIPAL HOUSING AUTHORITY et al., Respondents, et al., Defendants.

Submitted July 8, 2019; decided September 10, 2019

Reported below, 170 AD3d 1530.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FAHEY taking no part.

AGNIESZKA CHEN, Respondent, v WILLIAM CHEN, Appellant.

Submitted June 24, 2019; decided September 10, 2019

Reported below, 164 AD3d 1668 (Appeal Nos. 1 and 2).

Motion for reargument of motion for leave to appeal denied [see 33 NY3d 1011 (2019)].

In the Matter of the Claim of GUY COZZI, Appellant, v AMERICAN STOCK EXCHANGE et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted June 24, 2019; decided September 10, 2019

Reported below, 172 AD3d 1658.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

SOFIA FASOLAS, Respondent, v BOBCAT OF NEW YORK, INC., et al., Defendants, BOBCAT OF LONG ISLAND, INC., et al., Appellants, and PORT JEFFERSON RENTAL CENTER, INC., Doing Business as TAYLOR RENTAL CENTER, Respondent.

Submitted June 24, 2019; decided September 10, 2019

Reported below, 150 AD3d 147.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [see 33 NY3d 421 (2019)].

MICHELLE NAPPI, Appellant, v COMMUNITY ACCESS, INC., et al., Respondents.

Submitted June 10, 2019; decided September 10, 2019

Reported below, 169 AD3d 535.

Motion for reconsideration of this Court's May 2, 2019 dismissal order denied [see 33 NY3d 996 (2019)].

In the Matter of NATIONAL ENERGY MARKETERS ASSOCIATION et al., Appellants, v NEW YORK STATE PUBLIC SERVICE COMMISSION, Respondent. (And Two Other Related Proceedings.)

Submitted June 24, 2019; decided September 10, 2019

Reported below, 152 AD3d 1122.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 33 NY3d 336 (2019)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JAMES BERRY, Appellant, v J. OCASIO, Respondent.

Submitted July 1, 2019; decided September 10, 2019

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. VINCENT TORRES, Appellant, v HAROLD T. GRAHAM, Superintendent, Auburn Correctional Facility, Respondent.

Submitted June 10, 2019; decided September 10, 2019

Reported below, 167 AD3d 1582.

Motion for reargument of motion for leave to appeal denied [*see* 33 NY3d 902 (2019)].

Judge FAHEY taking no part.

SUSAN WEINMAN RESCH et al., Appellants, v STATE OF NEW YORK et al., Respondents.

Decided September 10, 2019

Reported below, 172 AD3d 460.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of SHALOM BAYIT, LLC, Respondent, v KALMON GLOVIN et al., Appellants.

Submitted July 8, 2019; decided September 10, 2019

Reported below, 58 Misc 3d 155(A), 2018 NY Slip Op 50190(U).

Motion for reargument of motion for leave to appeal denied [see 33 NY3d 1009 (2019)].

357 WEST 54TH STREET LLC, Respondent, v MADALINA IACOB, Appellant.

Submitted July 1, 2019; decided September 10, 2019

Reported below, 173 AD3d 419.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of CHASSIB WAHAB, Appellant, v MAPLE CREST GARDEN APARTMENTS et al., Respondents.

Decided September 10, 2019

Reported below, 171 AD3d 1193.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question.

In the Matter of MARTIN T. WALL, Appellant, v ANTHONY J. ANNUCCI, Respondent.

Decided September 10, 2019

Appeal transferred without costs, by the Court of Appeals sua sponte, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (see NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

RICHARD H. WARNER, Individually and as Guardian of MARY DOROTHY WARNER, an Incapacitated Person, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 98768.) (Appeal No. 1.)

RICHARD H. WARNER, as Executor of the Estate of MARY DOROTHY WARNER, Deceased, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 105712.) (Appeal No. 2.)

RICHARD H. WARNER, Individually and as Guardian of MARY DOROTHY WARNER, an Incapacitated Person, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 98768.)

RICHARD H. WARNER, as Executor of the Estate of MARY DOROTHY WARNER, Deceased, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 105712.) (Appeal No. 3.)

Submitted July 8, 2019; decided September 10, 2019

Reported below, 166 AD3d 1525, 1526, 1527.

Motion for reargument of motion for leave to appeal denied [see 33 NY3d 905 (2019)].

UPSTATE JOBS PARTY et al., Appellants, v DUSTIN M. CZARNY et al., Respondents.

Submitted September 9, 2019; decided September 11, 2019

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Fourth Department, upon the ground that the constitutional question presented on this direct appeal is not substantial (*see Gerzof v Gulotta*, 40 NY2d 825 [1976]). Motion for ancillary relief dismissed as academic.

In the Matter of ALLY FINANCIAL, INC., Respondent, v ALL COUNTY TOWING AND RECOVERY, Appellant, et al., Respondent.

Submitted August 12, 2019; decided September 12, 2019

Reported below, 166 AD3d 1442.

Motion for reargument of motion for leave to appeal denied [see 33 NY3d 910 (2019)].

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted July 15, 2019; decided September 12, 2019

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 33 NY3d 1011 (2019)].

CYPRESS GROUP HOLDINGS, INC., Appellant, v ONEX CORPORATION et al., Respondents.

Submitted June 17, 2019; decided September 12, 2019

Reported below, 165 AD3d 453.

Motion for leave to appeal dismissed upon the ground that simultaneous appeals do not lie to both the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]).

EUROTECH CONSTRUCTION CORP., Appellant, v FISCHETTI & PESCE, LLP, Respondent.

Submitted July 15, 2019; decided September 12, 2019

Reported below, 169 AD3d 597.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ROBERT D. HAAR, M.D., Appellant, v NATIONWIDE MUTUAL FIRE INSURANCE COMPANY, Respondent, et al., Defendants.

Submitted September 9, 2019; decided September 12, 2019

See 918 F3d 231.

Motion by Coalition Against Insurance Fraud et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Judge GARCIA taking no part.

ROSEMARIE A. HERMAN et al., Appellants, v 36 GRAMERCY PARK REALTY ASSOCIATES, LLC, et al., Respondents, et al., Defendants.

36 GRAMERCY PARK REALTY ASSOCIATES, LLC, et al., Respondents, v ROSEMARIE A. HERMAN, Appellant.

Submitted July 22, 2019; decided September 12, 2019

Reported below, 165 AD3d 405.

Motion for reargument of motion for leave to appeal denied [see 33 NY3d 1045 (2019)].

Judge FEINMAN taking no part.

MARSHA HEWITT, Appellant, v PALMER VETERINARY CLINIC, PC, Respondent, et al., Defendant.

Submitted September 9, 2019; decided September 12, 2019

Reported below, 167 AD3d 1120.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of KYLE JIGGETTS, Appellant, v NEW YORK CITY HUMAN RESOURCES ADMINISTRATION et al., Respondents.

Submitted July 29, 2019; decided September 12, 2019

Reported below, 156 AD3d 552.

Motion for reargument of motion for leave to appeal denied [see 33 NY3d 1050 (2019)].

In the Matter of BETHANY KOSMIDER, Respondent, v MARK WHITNEY, as Commissioner of the Essex County Board of Elections, Respondent, and ALLISON MCGAHAY, as Commissioner of the Essex County Board of Elections, et al., Appellants.

Submitted August 12, 2019; decided September 12, 2019

Reported below, 160 AD3d 1151.

Motion for reargument denied [*see* 34 NY3d 48 (2019)].

JOHN KUZMICH et al., Appellants, v 50 MURRAY STREET ACQUISITION LLC, Respondent.

Submitted August 12, 2019; decided September 12, 2019

Reported below, 157 AD3d 556.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 34 NY3d 84 (2019)].

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted June 24, 2019; decided September 12, 2019

Reported below, 2019 NY Slip Op 60317(U).

Motion for reconsideration of this Court's May 2, 2019 dismissal order denied [*see* 33 NY3d 995 (2019)].

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted August 12, 2019; decided September 12, 2019

Reported below, 2019 NY Slip Op 60317(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

SCOTT MYERS, Appellant, v STATE FARM INSURANCE, Respondent.

Submitted July 15, 2019; decided September 12, 2019

Reported below, 2019 NY Slip Op 65327(U).

Motion for reargument denied [*see* 33 NY3d 1052 (2019)].

159 MP CORP. et al., Appellants, v REDBRIDGE BEDFORD, LLC,
Respondent.

Submitted June 24, 2019; decided September 12, 2019

Reported below, 160 AD3d 176.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 33 NY3d 353 (2019)].

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DARRYL
BROWN, Respondent.

Submitted August 19, 2019; decided September 12, 2019

Reported below, 160 AD3d 39.

Motion for reargument denied [*see* 33 NY3d 316 (2019)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NICOLE
L. GREEN, Also Known as NICOLE GREEN, Appellant.

Submitted September 9, 2019; decided September 12, 2019

Reported below, 160 AD3d 1422.

Motion by New York County Lawyers Association Committee on Appellate Courts for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. EVANS D.
PRIESTON, on Behalf of KENEL BEAUBRUN, Respondent, v
NASSAU COUNTY SHERIFF'S DEPARTMENT, Appellant.

Submitted September 9, 2019; decided September 12, 2019

Reported below, 163 AD3d 512.

Motion by The Bronx Defenders et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

PHILIP R. SHAWE, Appellant, v KRAMER LEVIN NAFTALIS & FRANKEL LLP et al., Respondents.

Submitted June 24, 2019; decided September 12, 2019

Reported below, 167 AD3d 481.

Motion for reargument dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 33 NY3d 1009 (2019)].

In the Matter of PAUL WHITE, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted May 28, 2019; decided September 12, 2019

Reported below, 170 AD3d 1372.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

In the Matter of PAUL WHITE, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, et al., Respondents.

Submitted June 10, 2019; decided September 12, 2019

Reported below, 168 AD3d 1340.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of PAUL WHITE, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, et al., Respondents.

Submitted June 10, 2019; decided September 12, 2019

Reported below, 2019 NY Slip Op 68978(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground

that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of PAUL WHITE, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted July 8, 2019; decided September 12, 2019

Reported below, 2019 NY Slip Op 72142(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

DIGEST-INDEX

ABUSE OF PROCESS.

See PROCESS; TORTS

ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles

CLASS ACTIONS.

1. Class Certification — Home Health Care Aides Alleging Labor Law Minimum Wage Violations.—In two putative class actions by home health care aides seeking to recover damages for Labor Law § 652 minimum wage violations, class certification was not foreclosed by the fact that damages may vary by class member, notwithstanding the determination that the New York State Department of Labor's (DOL) interpretation of its miscellaneous industries and occupations minimum wage order (12 NYCRR 142-2.1 [b] [wage order]) with respect to aides working 24-hour shifts was rational. The legislature enacted CPLR 901 (a) with a specific allowance for class actions in cases where damages differed among plaintiffs. Thus, a difference in damage awards was an insufficient basis to deny certification as a matter of law where a class may rely on representative evidence of the class-wide violations. Here, under DOL's interpretation, live-in, nonresidential employees, which includes home health care aides, must be paid not less than for 13 hours per 24-hour period provided that they are afforded at least eight hours for sleep and actually receive five hours of uninterrupted sleep and are afforded three hours for meals. It was for the courts below to determine whether plaintiffs' claims regarding systematic violations of the wage order by home health aide employers warranted class certification. *Andryeyeva v New York Health Care, Inc.*, 33 NY3d 152.

ADMINISTRATIVE LAW.

JUDICIAL REVIEW.

1. Statutory Construction of Sales Tax Exclusion.—In the case of statutory tax exclusions, the presumption is in favor of the taxing power. In general, a statute which levies a tax is to be construed most strongly against the government and in favor of the citizen. The principle is, however, applicable only in determining whether property, income, a transaction, or event is subject to taxation. The rule is otherwise with respect to the taxpayers' right to exclude items from taxation. When the matter at issue is subject to the taxing statutes, but the question is whether taxation is negated by a statutory exclusion or exemption, a different rule applies. An exemption from taxation and, therefore, a deduction, must clearly appear, and the party claiming it must be able to point to some provision of law plainly giving the exemption. If a statute or regulation authorizing an exemption is found, it will be construed against the taxpayer. This is because an exemption is not a matter of right, but is allowed only as a matter of legislative grace. *Matter of Wegmans Food Mkts., Inc. v Tax Appeals Trib. of the State of N.Y.*, 33 NY3d 587.

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS

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See MARRIAGE

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

FINALITY OF JUDGMENTS AND ORDERS.

1. Appeal from Family Court Temporary Removal Order.—An appeal to the Court of Appeals from an Appellate Division order, which dismissed, as moot, an appeal from a Family Court order temporarily removing the child from respondent mother's custody in a proceeding pursuant to Family Court Act article 10, was dismissed upon the ground that the order appealed from did not finally determine the proceeding within the meaning of the Constitution. *Matter of Tyrell FF. (Jaquasisa GG.)*, 33 NY3d 1063.

PRESERVATION OF ISSUE FOR REVIEW.

2. Trustee's Ability to Refile Claim Based on Timely Commencement by Certificate Holder.—Plaintiff, the trustee of three residential mortgage-backed securities trusts whose consolidated action alleging that defendant violated representations and warranties regarding the quality of loans contained in the securitization trust instruments was dismissed with prejudice as untimely, failed to preserve its claim that it may refile the action under CPLR 205 (a) due to the timely commencement of the original action by a certificate holder. Defendant, in a footnote in its motion to dismiss, argued that plaintiff could not use CPLR 205 (a) to cure the pleading deficiency by refashioning the case with the trustee as plaintiff. In its response, the trustee made no mention of section 205 (a) and did not argue before Supreme Court that it should be considered the same plaintiff as the certificate holder for purposes of that section. Because defendant's argument by its terms sought to persuade Supreme Court to dismiss the claim with prejudice, plaintiff trustee was required to respond and present its view of CPLR 205 (a) to that court to preserve its argument on appeal. *U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 33 NY3d 84.

ARBITRATION.

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BANKS AND BANKING.

See, also, BILLS, NOTES AND CHECKS

BILLS, NOTES AND CHECKS.

See, also, BANKS AND BANKING

INTEREST.

1. Action to Recover on Missed Interest Payments after Claim on Principal Time-Barred Not Permitted.—The Court in *Amrusi v Nwaukoni* (155 AD3d 814 [2d Dept 2017]) impliedly permitted an action to recover on missed interest payments accruing after a claim on principal was time-barred. To the extent that the Court's decision has previously been read as endorsing that view, it should no longer be followed. *Ajdler v Province of Mendoza*, 33 NY3d 120.

2. Contractual Obligation to Make Post-Maturity Interest Payments.—Where an indenture provides that interest is due until the principal is paid, once an action to

BILLS, NOTES AND CHECKS—Cont'd

recover outstanding principal is time-barred, there can be no freestanding claim to enforce the obligation to make postmaturity interest payments. The date when principal is due—ordinarily the maturity date—serves as a legally significant benchmark because it marks the event upon which the obligation to pay postmaturity interest is conditioned. The obligation to pay postmaturity interest arises on the maturity date only if the bond issuer breaches the parties' agreement by failing to timely repay the principal. The recoverability of postmaturity interest payments is tethered to a claim for principal rather than a debt capable of a distinct claim. Once a creditor can no longer establish a right to repayment of principal, there is no basis or foundation upon which to allege a right to payment of postmaturity interest. *Ajdler v Province of Mendoza*, 33 NY3d 120.

CERTIORARI.

See PROCEEDING AGAINST BODY OR OFFICER

CHIROPRACTORS.

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CHURCHES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS

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See MUNICIPAL CORPORATIONS

CIVIL RIGHTS.**DISCRIMINATION BASED ON DISABILITY.**

1. Judicial Review.—In a proceeding pursuant to CPLR article 78 and Executive Law § 298 seeking to review a determination of respondent New York State Division of Human Rights, which adopted the finding of an administrative law judge, made after a hearing, that petitioners/cross respondents discriminated against the complainant on the basis of her disability, the Appellate Division erroneously set aside a portion of the agency's determination. Accordingly, the Appellate Division judgment, insofar as appealed from, was reversed, the petition dismissed in its entirety, and cross petition granted to the extent that respondent's determination was confirmed. *Matter of Delkap Mgt., Inc. v New York State Div. of Human Rights*, 33 NY3d 925.

CIVIL SERVICE.

See, also, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles

REINSTATEMENT.

1. Application of Civil Service Law § 71 to Labor Class Employees.—Petitioner, a labor class employee who suffered a workplace injury and was terminated after missing more than one year of work, did not fall within the ambit of Civil Service Law § 71, which governs reinstatement of public sector employees injured on the job, and, thus, respondent did not violate section 71 when it refused to reinstate petitioner. Section 71 was adopted to address the difficult situation created by the prolonged absence of a civil service employee due to injury. Under Civil Service Law § 75 delineated groups of employees may not be removed except for incompetency or misconduct shown after a hearing. Section 71 was designed to remove the procedural hurdle imposed by section 75 by allowing a state governmental employer to terminate an employee without resort to a disciplinary proceeding and providing the injured employee a mechanism for later reinstatement. Including petitioner within the coverage of section 71 would not serve its legislative purpose because, as a labor class employee, petitioner was not entitled to a disciplinary hearing before she was terminated. Moreover, even if respondent were forced to rehire petitioner, she could have been lawfully terminated the next

CIVIL SERVICE—Cont'd

day—an absurd result that would frustrate the statutory purpose. *Matter of Jordan v New York City Hous. Auth.*, 33 NY3d 408.

CLUBS.

See ASSOCIATIONS

COLLEGES AND UNIVERSITIES.**DISCIPLINARY PROCEEDINGS.**

1. Denial of Hearing Adjournment Request Abuse of Discretion.—In a CPLR article 78 proceeding brought by petitioner student enrolled at respondent college, who was accused of multiple disciplinary violations including sexual assault of another student, the petition insofar as it sought to annul respondents' disciplinary determination was granted and the matter remitted to the Appellate Division with directions to remand to respondents for a new disciplinary hearing. Under the particular circumstances, respondents abused their discretion as a matter of law by failing to grant petitioner's requested three-hour adjournment of his scheduled administrative hearing so that his attorney could attend the proceeding. *Matter of Bursch v Purchase Coll. of the State Univ. of N.Y.*, 33 NY3d 1014.

CONDEMNATION.

See EMINENT DOMAIN

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See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles

COUNTIES.

See, also, MUNICIPAL CORPORATIONS

INDUSTRIAL DEVELOPMENT AGENCY.

1. Obligation to File Annual, Budget and Independent Audit Reports with Authorities Budget Office — Nonprofit Corporation Legally Affiliated with Local Authority.—Respondent New York State Authorities Budget Office's (ABO) determination that petitioner Madison Grant Facilitation Corporation (MGFC), a nonprofit local development corporation created by and legally affiliated with petitioner Madison County Industrial Development Agency (MCIDA), was required to file separate reports was not irrational, arbitrary and capricious or contrary to law. Under the Public Authorities Accountability Act (PAAA), every "local authority" must submit to ABO and others in state and local government detailed annual, budget, independent audit and other reports (*see* Public Authorities Law §§ 6 [3]; 2800 [1] [a], [b]; [2] [a], [b]; 2801 [1], [2]; 2802 [1], [2]). ABO is required under section 6 to conduct reviews and analysis of the operations, practices and reports of state and local authorities to assess compliance, to maintain a comprehensive inventory of public authorities, and assist state and local authorities in improving management practices and procedures for public disclosure of financial information. The Public Authorities Law (§ 2 [2] [c], [d]) defines a "local authority" to include both a local industrial development agency (IDA) and a local development corporation which is affiliated with a local IDA. Regardless of whether MGFC is a subsidiary of MCIDA or whether MCIDA has the authority to create a subsidiary, MGFC is clearly an "affiliate" of MCIDA, and the PAAA does not contain a reporting exception for subsidiaries. While information on ABO's website suggested an agency policy permitting some subsidiaries of public authorities to file consolidated reports with the parent, ABO had never permitted a purported subsidiary of a local IDA to file consolidated reports. Given the uncertainty of MGFC's status, it was not irrational or an abuse of discretion to decline to treat MGFC as a subsidiary for the limited reporting purpose. ABO's action was consistent with the language of the PAAA and ABO's mandate to ensure transparency. *Matter of Madison County Indus. Dev. Agency v State of N.Y. Auths. Budget Off.*, 33 NY3d 131.

COURT OF CLAIMS.*See* STATE**COURTS.****JURISDICTION.**

1. Long-Arm Jurisdiction — Due Process.—In a personal injury action to recover for injuries sustained in a shooting, long-arm jurisdiction could not be exercised under well-established due process precedent over defendant Ohio firearm merchant, who sold a gun to an Ohio resident in Ohio which was subsequently resold on the black market and used in the shooting of plaintiff in New York, because defendant lacked minimum contacts with New York. Defendant was authorized to sell handguns only in Ohio and only to Ohio residents, which he primarily accomplished through retail sales at gun shows held in various locations in Ohio. He did not maintain a website, had no retail store or business telephone listing, and did no advertising of any kind, except by posting a sign at his booth when participating in a gun show. In a series of transactions defendant sold handguns to another Ohio resident who had indicated he was acquiring inventory for the eventual opening of a gun shop, but instead brought the firearms to New York, illegally reselling the handgun used in the shooting of plaintiff to a Buffalo gang member. Despite the buyer's stated aspiration to open a gun shop in Buffalo, the record was devoid of evidence supporting plaintiffs' theory that, merely by selling handguns to the buyer, defendant intended to serve the New York market. Even if the buyer indicated that there was a chance that he might—at some undefined point in the future—transport the firearms to New York, defendant could not be said to have forged constitutionally sufficient ties with New York as there was no evidence that he took purposeful action, motivated by the entirely understandable wish to sell his products here such that he availed himself of the privilege of conducting activities within New York. *Williams v Beemiller, Inc.*, 33 NY3d 523.

CRIMES.

See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles

APPEAL.

1. Appellate Division Review Power.—The order of the Appellate Division which had affirmed a judgment of Supreme Court convicting defendant of criminal possession of a weapon in the second degree was affirmed. On the record, there was no basis to disturb the suppression determination. *People v Hill*, 33 NY3d 1076.

2. Discovery of Purported Jury Note — Reconstruction Hearing.—Where appellate counsel discovered a purported jury note, marked as an exhibit, in the court file maintained by the county clerk, while preparing defendant's appeal, and the Appellate Division directed Supreme Court to conduct a reconstruction hearing to clarify whether the exhibit was, in fact, a jury note requesting further information or instruction from the court pursuant to CPL 310.30, after which the trial court concluded that the exhibit was a draft or derelict note that was discarded by the jury and never submitted to the court, the subsequent Appellate Division order that affirmed the judgment convicting defendant was affirmed. Where the record does not establish that counsel was provided meaningful notice of the contents of a substantive jury note, the sole remedy is reversal and a new trial, not a reconstruction hearing. However, the purpose of the reconstruction hearing at issue here was not to determine whether the court complied with the counsel notice requirements of CPL 310.30 and *People v O'Rama* (78 NY2d 270 [1991]). Instead, the hearing was to determine whether, in the first instance, the exhibit reflected a "jury . . . request [to] the court for further instruction or information" (CPL 310.30) such that those obligations were triggered. Moreover, the finding of the courts below, following the reconstruction hearing, that the exhibit was a draft note that the

CRIMES—Cont'd

jury discarded was supported by the record and, thus, beyond further review by the Court of Appeals. *People v Meyers*, 33 NY3d 1018.

3. Matters Reviewable — Mixed Question of Law and Fact — Challenge to Photographic Array.—Defendant's judgment of conviction did not warrant reversal on the basis of the suppression court's decision that an accidental viewing of his photograph by a witness to the events surrounding the underlying shooting was not police-arranged. Whether a photo display is unduly suggestive is a mixed question of law and fact and review by the Court of Appeals is limited to whether there is support in the record for the finding of the courts below. Here, such support existed. Moreover, the suppression court found the identification to be otherwise reliable. *People v Brown*, 33 NY3d 983.

4. Matters Reviewable — Reasonable Suspicion of Criminality.—The existence of record support for the determination of the courts below that the pursuit of defendant by the police was justified by a reasonable suspicion of criminal activity foreclosed further review by the Court of Appeals of that issue. *People v Gregory*, 33 NY3d 1017.

CONDUCT OF TRIAL JUDGE.

5. Personally Negotiating and Entering into Cooperation Agreement with Co-defendant — Fair Trial.—In the prosecution of defendant for robbery, the trial court judge, who personally negotiated and entered into a cooperation agreement with a codefendant requiring the codefendant to testify truthfully against defendant in exchange for a more lenient sentence, abandoned the role of a neutral arbitrator and assumed the function of an interested party, thereby creating a specter of bias and denying defendant his right to a fair trial. Every person accused of a crime has the right to a fair and impartial trial before an unbiased court and unprejudiced jury. In determining whether this right has been violated, the pertinent inquiry is not whether the judge is actually, subjectively biased, but whether the average judge in the same position is likely to be neutral, or whether there is an unconstitutional potential for bias. Although the law will allow a certain degree of judicial intervention in the presentation of evidence, the line is crossed when the judge takes on either the function or appearance of an advocate at trial. Here, whatever its subjective intentions, the trial court effectively procured a witness in support of the prosecution by inducing the codefendant to testify concerning statements the codefendant made to police, which identified defendant as one of the robbers, in exchange for the promise of a more lenient sentence. By tying its assessment of the truthfulness of the codefendant's testimony to that individual's prior statements to police, the trial court essentially directed the codefendant on how the codefendant must testify in order to receive the benefit of the bargain. Because the error was not subject to harmless error review, defendant was entitled to reversal of his conviction. *People v Towns*, 33 NY3d 326.

DISCLOSURE.

6. Failure to Disclose Exculpatory Material.—Defendant was entitled to reversal of his murder conviction and a new trial where the People committed a *Brady* violation by failing to disclose a surveillance video from a camera inside the lobby of the building in front of which the victim was shot, which the prosecutor had reviewed before trial, and which, having captured the scene at the time of the shooting, including images of the victim and a key prosecution witness, would have changed the tenor of the trial. Where defendant did not specifically request the exculpatory or impeachment material, the test for whether the suppressed evidence is material is whether there is a reasonable probability that had it been disclosed to the defense, the result would have been different. Defendant need only show that the favorable evidence could reasonably be taken to put the whole case in such a different light as to undermine confidence in the verdict. Here, the case against defendant, who was arrested more than a year after the shooting, relied principally on witness testimony as there was no forensic evidence linking him to the murder. The video evidence could have been used to impeach the eyewitnesses, particularly the key witness's testimony that he was alone with the victim shortly before and after the shooting. The video showed people entering and exiting the

CRIMES—Cont'd

building, and an additional person at the scene interacting with the victim as he lay on the ground. The evidence of these other potential unidentified eyewitnesses could have been used to argue that the police did not conduct a thorough investigation. Moreover, the prosecutor's summation statements indicating that no video existed, in response to defense counsel having pointed out that no surveillance video from the lobby of the building had been introduced, characterized defense counsel's summation as a desperate attempt to distract the jury from the proof by reference to phantom evidence. *People v Ulett*, 33 NY3d 512.

7. Failure to Disclose Exculpatory Material — Prosecutor's Involvement with Witness's Burglary Case and Drug Treatment Program.—On defendant's motion to vacate his convictions based on a *Brady* violation, the Appellate Division erred in its determination that the trial jury could have found a tacit understanding that a witness who had testified against defendant at trial would receive or hoped to receive a benefit in his pending burglary case for his testimony. A witness's subjective hope of favorable treatment, absent any objective circumstances that reasonably substantiate that expectation, cannot unilaterally form the basis of a tacit understanding. Defendant's own witnesses at the CPL 440.10 hearing proved that there was no agreement with the witness—tacit or otherwise. The witness did not speak with law enforcement about defendant's case until after he had already brokered his agreement on his burglary case, pleaded guilty, and obtained a promise of a conditional sentence that left the possibility of a complete dismissal of his burglary conviction within his own control if he successfully completed a drug treatment program. The witness was the only one to testify that an agreement existed, and his testimony was found to be incredible by the hearing court. On the other hand, the trial prosecutor, after admitting to having appeared for the People at a hearing involving the trial witness after he had absconded from drug treatment, testified that she did not consider him a witness in defendant's case at that time as she had yet to investigate his statement, and that she asked to approach the bench at that appearance solely for the witness's safety. Moreover, one year after defendant's conviction, the trial witness was ultimately sentenced to the maximum term on his burglary conviction upon his failure to successfully complete drug treatment. A prosecutor's duty to disclose the existence of an agreement arises from the fact that the prosecutor and the witness have reached an understanding in which the witness's cooperation has been exchanged for some quid pro quo on the part of the prosecutor. That type of understanding, or the making of any assurances creating an expectation of some benefit, was plainly absent here. *People v Giuca*, 33 NY3d 462.

8. Failure to Disclose Exculpatory Material — Prosecutor's Involvement with Witness's Burglary Case and Drug Treatment Program — Materiality.—The Appellate Division, in failing to do the required materiality analysis after determining that a *Brady* violation occurred when the People failed to disclose favorable impeachment material derived from the circumstances of a prosecution witness's pending burglary case, erred in granting defendant's motion to vacate his convictions. To make a successful *Brady* claim, a defendant must show that the evidence is favorable to the defendant because it is either exculpatory or impeaching in nature; the evidence was suppressed by the prosecution; and prejudice arose because the suppressed evidence was material. A new trial is not automatically required whenever a combing of the prosecutors' files after the trial has disclosed evidence possibly useful to the defense but not likely to have changed the verdict. Assuming the People had an obligation to disclose the information about the witness, there was no reasonable possibility that it would have resulted in a different verdict. At trial, defendant's counsel accessed the witness's court file on his open burglary case and his extensive criminal history, emphasized that the witness was a career criminal, that the detective on defendant's case and a "DA" had appeared at the witness's drug court hearing, and that he continued to be released without bail despite repeated violations. This provided ample basis for counsel to argue that the witness had a bias in favor of the People, with the People's failure to request bail as the benefit conferred. Moreover, there was strong evidence of defendant's guilt at trial, including his incriminating statements to friends, his ef-

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forts to dispose of the gun shortly after the murder, and the physical evidence at the crime scene linking him to the murder. *People v Giuca*, 33 NY3d 462.

EVIDENCE.

9. Hearsay — Past Recollection Recorded Exception.—In the prosecution of defendant for assault arising from an altercation outside a bar during which the victim suffered lacerations to his neck and face, Supreme Court did not abuse its discretion in admitting as a past recollection recorded the grand jury testimony of one of the arresting officers who testified at trial, but could not recall the circumstances leading to defendant's arrest. At trial, when a witness testifies in the presence of the defendant and before the trier of fact, the evidentiary doctrine of past recollection recorded allows a memorandum made of a fact known or an event observed in the past of which the witness lacks sufficient present recollection to be received in evidence as a supplement to the witness's oral testimony where the foundational requirements are met. Here, at trial the officer stated that he had previously testified truthfully and accurately at the grand jury to an event he had observed when that event was still fresh in his mind, and that reading the official minutes of the prior testimony did not refresh his present recollection. Although the officer, based on his lack of independent recollection, could not swear that the transcription of his testimony was accurate, the court stenographer's certification of the grand jury testimony, together with the officer's statement that he had testified truthfully and accurately, satisfied the requirement that the transcript of the official minutes was a correct representation of the prior testimony. A trivial typographical error in the transcript of the officer's testimony did not create an improper foundation, particularly where defendant fully explored the discrepancy on cross-examination. *People v Tapia*, 33 NY3d 257.

10. Photographic Evidence — Authentication.—In a prosecution for rape in the second degree and related crimes, the trial court did not abuse its discretion in admitting into evidence contested photographs, as they were sufficiently authenticated through the testimony of the complainant and the law enforcement agents who extracted them from defendant's cell phone and computers. *People v Pendell*, 33 NY3d 972.

11. Tape Recordings — Release of Recording of Telephone Calls Made by Defendant from Correctional Facility.—A correctional facility's release to prosecutors or law enforcement agencies of recordings of nonprivileged telephone calls made by pretrial detainees, who are notified that their calls will be monitored and recorded, does not violate the Fourth Amendment. Defendant inmate did not retain a reasonable expectation of privacy once the calls were intercepted by the correctional facility and there were no additional Fourth Amendment protections that would prevent the correctional facility from releasing the recording to prosecutors absent a warrant. Even if defendant subjectively believed that his calls were private—a notion that was largely belied by the record—that expectation was not objectively reasonable. Given the government's weighty interest in ensuring institutional security and order, surveillance is ubiquitous in the prison context. Where detainees are aware that their phone calls are being recorded, all reasonable expectation of privacy in the content of those phone calls is lost and there is no legitimate reason to think that the recordings, like any other evidence lawfully discovered, would not be admissible. *People v Diaz*, 33 NY3d 92.

12. Use of Prior Testimony.—In the prosecution of defendant for assault arising from an altercation outside a bar, Supreme Court's admission of the grand jury testimony of one of the arresting officers who testified at trial, but could not recall the circumstances leading to defendant's arrest, did not violate CPL 670.10. That section sets forth three specific types of former testimony to be admitted into evidence when the declarant is subsequently proved unable to attend trial for certain reasons, such as death, illness or incapacity, or that the declarant cannot with due diligence be found, or that the declarant is outside the state or in federal custody and cannot with due diligence be brought before the court. The admissible categories of prior testimony adhere to the constitutional right to confrontation by providing the defendant with an opportunity to cross-examine the declarant: testimony

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that was given at a trial on the accusatory instrument, at a preliminary hearing on the felony complaint, or at a conditional examination under CPL article 660. In the absence of defendant's forfeiture of the right of confrontation, CPL 670.10 does not allow the People's use of grand jury testimony of an unavailable witness for the reason that there was no cross-examination in the prior proceeding. Here, however, the officer took the stand before the trier of fact, without objection by defendant, as a People's witness and was cross-examined by defendant. Those factors rendered the purpose of CPL 670.10 inapplicable here. Moreover, the People did not seek to introduce the grand jury testimony under section 670.10, but rather laid an adequate foundation for admission of the testimony as a past recollection recorded. *People v Tapia*, 33 NY3d 257.

HARMLESS AND PREJUDICIAL ERROR.

13. Admission of 911 Call.—In a robbery and assault prosecution, the trial court's admission of the call between the victim and the 911 operator under the excited utterance exception to the hearsay rule did not require reversal. Assuming, without deciding, that it was error to admit the 911 call, any such error would have been harmless. *People v Almonte*, 33 NY3d 1083.

14. Admission of Statements under Pedigree Exception.—The Appellate Division order affirming a judgment that had convicted defendant of various drug crimes was affirmed where, assuming, without deciding, that the trial court erroneously permitted testimony of defendant's response to custodial interrogation by police during the execution of a search warrant that he lived at the target premises as falling within the pedigree exception to *Miranda* requirements and CPL 710.30, such error was harmless. Given the jury's inability to reach a verdict on charges related to drugs found in an interior hallway closet of the apartment, the jury could not have relied on defendant's statement that he lived there to conclude that he possessed the drugs found in the bedroom where he was initially discovered by police, but not the drugs found outside that bedroom. The evidence of defendant's guilt was overwhelming and there was no reasonable possibility that, but for the error, the jury might have acquitted defendant of possession for the drugs in the bedroom. *People v Martin*, 33 NY3d 929.

15. DNA Evidence Not Relevant to Determinative Issue.—In a rape prosecution, any error in admitting DNA evidence in violation of defendant's Sixth Amendment rights by allowing an analyst who did not generate the DNA profile taken from defendant's buccal swab to testify at trial was harmless, where the DNA evidence did not go to the determinative issue of consent. The issue was whether the victim consented to sexual contact with defendant; identification was not at issue. *People v Lopez-Mendoza*, 33 NY3d 565.

16. Refusal to Charge Remote Lesser Included Offenses.—In a prosecution for murder in the second degree and manslaughter in the first degree, any error in the trial court's denial of defendant's request to submit to the jury the lesser included offenses of manslaughter in the second degree and criminally negligent homicide was harmless. Furthermore, defendant's conviction of the lesser inclusory count of first-degree manslaughter, which the Appellate Division dismissed as required by CPL 300.40 (3) (b), did not change the harmless error analysis. The jury's guilty verdict on the indictment's highest count despite the availability of the next lesser included offense for their consideration foreclosed defendant's challenge to the court's refusal to charge the remote lesser included offenses, because it dispelled any speculation as to whether the jury might have reached a guilty verdict on the still lower degrees of homicide. *People v McIntosh*, 33 NY3d 1064.

INDICTMENT.

17. Improper Waiver.—Where a felony complaint charged defendant with second-degree murder, a class A felony with a maximum sentence of life imprisonment, his waiver of indictment was improper, and the trial court improperly proceeded by a superior court information charging only first-degree manslaughter and lacked jurisdiction to accept his guilty plea to that offense. Under both the New York State Constitution and Criminal Procedure Law, a defendant who is held for the action

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of the grand jury on a class A felony punishable by life imprisonment may not waive indictment by the grand jury and agree to be prosecuted for a lesser included offense in order to facilitate a plea bargain on the homicide offense (NY Const, art I, § 6; CPL 195.10). Defendant, having been held for action of the grand jury on the class A felony, could not effectively waive indictment and agree to be prosecuted by information for first-degree manslaughter. *People v Monforte*, 33 NY3d 1124.

JURORS.

18. Selection of Jury — Trial Court's Resolution of *Batson* Challenge.—The trial court's credibility determination regarding whether the prosecutor's peremptory strike of an African American prospective juror was racially motivated was supported by the record and it could not be said as a matter of law that the proffered reason was pretextual. In response to defense counsel's *Batson* challenge, the prosecutor stated that the prospective juror was "[d]ismissive and rude," and the trial court accepted that race-neutral explanation after thorough questioning. *People v Malloy*, 33 NY3d 1078.

JUSTIFICATION.

19. Initial Aggressor.—In the prosecution of defendant for fatally shooting his daughter's boyfriend, who was unarmed and had swiped at defendant's gun after defendant wielded it during an argument between the two in the lobby of defendant's apartment building, the trial court's refusal to charge justification was not error, because defendant was the initial aggressor as a matter of law. A defendant is never justified in using deadly physical force if that defendant is the "initial aggressor": the first person in an altercation who uses or threatens the imminent use of deadly physical force (Penal Law § 35.15 [1] [b]). To determine who the initial aggressor is, both the sequence of the attacks (or imminently threatened attacks) and the nature of those attacks matter, and the question is which attacks were physical force and which attacks were deadly physical force. The imminent threat to use a gun against another is a threat of deadly physical force, and the first person to make such an imminent threat is the initial aggressor with respect to deadly physical force. Here, defendant placed his gun in a position where he was readily able to aim and fire it imminently, and did so before the victim's efforts to "swipe" at the gun. The circumstances surrounding that act—where a verbal altercation between defendant and the victim preceded it, where the victim was unarmed, where the armed defendant pursued the victim into the building's lobby, and where both defendant's daughter and the victim himself expressed their subjective belief that defendant had threatened the imminent use of deadly force—provided further support for the trial court's conclusion that defendant's drawing of a gun could only be understood as an imminent threat of deadly physical force. As no reasonable jury could conclude based on the evidence either that defendant withdrew from the encounter after drawing his gun, communicated that withdrawal to the victim, and the victim thereafter used or threatened imminent use of deadly physical force, or that the victim himself was the initial "deadly force" aggressor, the initial aggressor rule barred defendant from claiming justification. *People v Brown*, 33 NY3d 316.

20. Jury Instruction — Crime Containing Dangerous Instrument Element.—A defendant charged with a crime containing a dangerous instrument element may, in a rare case, be entitled to a jury instruction on the justified use of non-deadly (or "ordinary") physical force. While deadly physical force requires force which, under the circumstances in which it is used, is readily capable of causing death or other serious physical injury, and a dangerous instrument is defined as an instrument which, under the circumstances in which it is used, attempted to be used or threatened to be used, is readily capable of causing death or other serious physical injury, there is no per se rule regarding which justification instructions are appropriate based solely on the fact that the defendant has been charged with second-degree assault with a dangerous instrument (Penal Law § 120.05 [2]). Rather, the trial court must determine whether any reasonable view of the evidence would permit the factfinder to conclude that defendant's conduct was justified, and, if so, which instructions are applicable. *People v Vega*, 33 NY3d 1002.

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21. Jury Instruction — Second-Degree Assault with Dangerous Instrument.—In a prosecution arising from defendant beating the victim with a belt, wherein one count of second-degree assault required the People to prove that with intent to cause physical injury to the victim, defendant caused such injury by means of a dangerous instrument, i.e., the belt with a metal buckle (Penal Law § 120.05 [2]), the jury instruction regarding justification did not require reversal. The trial court instructed the jury on the justified use of non-deadly physical force in connection with the lesser included offense of third-degree assault, which does not contain a dangerous instrument element (Penal Law § 120.00 [1]), and, at the People's request, instructed the jury that if it found beyond a reasonable doubt that defendant used a dangerous instrument, then it should apply the legal rules pertaining to the justified use of deadly physical force (Penal Law § 35.15 [2]). There was no reasonable view of the evidence that defendant merely "attempted" or "threatened" to use the belt in a manner readily capable of causing death or serious physical injury (Penal Law § 10.00 [13]) but that he did not "use" it in that manner (Penal Law § 10.00 [11]), under the statutory definitions of "dangerous instrument" and "deadly physical force." *People v Vega*, 33 NY3d 1002.

22. Use of Deadly Physical Force — Second-Degree Assault with Dangerous Instrument.—In a prosecution arising from an altercation in which defendant struck the complainant on the head with a pint glass, defendant was not entitled to a deadly force justification charge with respect to a charge of second-degree assault by means of a dangerous instrument (Penal Law § 120.05 [2]). Based on the record, in order to convict defendant of that charge, the jury would necessarily determine that defendant employed deadly, rather than ordinary, physical force. The evidence at trial, including video surveillance, showed that, at the time defendant employed deadly physical force, the complainant had merely pushed defendant and then rested his hands at his sides while another person attempted to separate him from defendant. Defendant could not have reasonably believed that the complainant was using or about to use deadly physical force (Penal Law § 35.15 [2]). *People v Rkein*, 33 NY3d 1001.

LESSER INCLUDED OFFENSE.

23. Assault in Third Degree as Lesser Included Offense of Assault in Second Degree.—In a prosecution for assault in the second degree arising from defendant slashing his former girlfriend's face and neck with a sharp instrument and repeatedly stomping on her head with his boot-clad foot, defendant was not entitled to an instruction on a lesser-included charge of assault in the third degree, since no reasonable view of the evidence supported a finding that the victim sustained anything less than a serious physical injury (*see* Penal Law § 10.00 [10]). Both live and photographic evidence at trial, 10 months after the attack, demonstrated that the victim's face was disfigured with scars above one eyebrow, under the other eye, on her lip and across her neck, and that apart from the scars, her facial structure and appearance had changed significantly. Testimony from her treating physician established that she suffered at least five displaced fractures around her eye sockets and nose, which were left to heal as displaced. *People v Sipp*, 33 NY3d 1119.

24. Robbery and Assault.—In a prosecution in which defendant was convicted of two counts of robbery in the second degree, attempted assault in the first degree and assault in the second degree, the trial court properly denied defendant's request to charge the jury on the lesser included offense of assault in the third degree (Penal Law § 120.00 [1]) where defendant failed to show that there was a reasonable view of the evidence that would support a finding that he committed the lesser included offense but not the greater. Moreover, charging the lesser included offense would have forced the jury to resort to sheer speculation. *People v Almonte*, 33 NY3d 1083.

PLEA BARGAINING.

25. Enforcement of Agreement — Scope of Cooperation Agreement.—In a prosecution for murder and assault, where defendant confessed to the crimes and explained that they were retaliation for a prior invasion of his home by the murder

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victim and others and then entered into a written cooperation agreement in exchange for a favorable sentence, the trial court properly determined that defendant's refusal to testify in connection with the home invasion prosecution against an associate of the murder victim, who was also an alleged perpetrator of the home invasion, violated the express terms of his cooperation agreement. The plain language of the agreement whereby defendant promised to "cooperate completely and truthfully . . . on all matters in which his cooperation [was] requested, including but not limited to" the prosecution of his accomplices on charges related to the murder and assault, was objectively susceptible to but one interpretation. The trial court, therefore, did not abuse its discretion by denying defendant's motion to withdraw his guilty plea based on his claimed subjective misinterpretation of the agreement or by concluding, to the contrary, that defendant reasonably understood that his cooperation in the home invasion prosecution was required. When defendant signed the agreement, he already had testified to the associate's involvement in the home invasion before the grand jury in the murder and assault prosecution, and he also had assisted the police with their investigation of the home invasion by identifying that individual in a photo array. *People v Rodriguez*, 33 NY3d 956.

RIGHT OF CONFRONTATION.

26. Admission of Prior Grand Jury Testimony of Trial Witness.—In a prosecution for assault arising from an altercation outside a bar, defendant's Sixth Amendment right to confrontation was not violated when the trial court admitted as a past recollection recorded the grand jury testimony of one of the arresting officers who testified at trial, but could not recall the circumstances leading to defendant's arrest. The right to confrontation guarantees the right to cross-examine all witnesses and the ability to literally confront the witness who is providing testimony against the accused in a face-to-face encounter before the trier of fact. The Confrontation Clause is satisfied when those requirements are fulfilled, even if the witness's memory is faulty. When the declarant appears for cross-examination at trial, the Confrontation Clause places no constraints at all on the use of his or her prior testimonial statements. Thus, the arresting officer's presence at trial as a testifying witness, where he was subjected to cross-examination before the trier of fact who must assess the credence and weight to be accorded to his testimony as a whole, precluded defendant's Confrontation Clause argument. *People v Tapia*, 33 NY3d 257.

RIGHT TO COUNSEL.

27. Effective Representation — Appellate Counsel.—Defendant was provided with meaningful representation on his direct criminal appeal under the New York State Constitution notwithstanding counsel's failure to challenge defendant's sentence as unduly harsh and severe, and claimed deficiencies in the quality of both the appellate brief and appellate counsel's communication with defendant. The fairness of defendant's direct appeal was not compromised by appellate counsel's performance. Apart from his own allegation, defendant provided no proof that his appellate counsel failed to adequately communicate with him. While the brief filed by appellate counsel was somewhat terse, could have been better drafted, and was not a model to be emulated, it demonstrated appellate counsel's grasp of the relevant facts and law. Appellate counsel raised four reviewable issues that triggered plenary review by the Appellate Division, which ultimately addressed each issue on the merits. Given the heinous nature of defendant's violent crimes, as well as defendant's lamentable behavior and lack of remorse at sentencing, it could not be said that appellate counsel lacked a sound, strategic reason to forgo pursuing a discretionary reduction of defendant's sentence that had little chance of success. *People v Alvarez*, 33 NY3d 286.

28. Effective Representation — Failure to File Criminal Leave Application.—Appellate counsel's failure to file a criminal leave application with the Court of Appeals did not, on its own, constitute ineffective assistance of counsel under either the Federal or State Constitutions. Defendant did not identify any claim that should have been raised in a criminal leave application, and the only claim he faulted counsel for failing to raise in the Appellate Division—that the sentence

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was unduly harsh and severe—would be unreviewable by the Court of Appeals. *People v Alvarez*, 33 NY3d 286.

29. Effective Representation — Failure to Review Surveillance Video Evidence — Insufficient Record.—The record in defendant's rape prosecution was insufficient to show that defendant was denied the effective assistance of counsel based on trial counsel's alleged failure to review or to comprehend the significance of surveillance video evidence contradicting defendant's grand jury testimony of a consensual sexual encounter with the victim and to call defendant to the stand after promising in his opening statement to do so. Although it cannot be said that a total failure to investigate the facts of a case, or review pertinent records, constitutes a trial strategy resulting in meaningful representation, the limited record in this case did not conclusively establish that counsel was ineffective. On its own, the decision not to call a witness after promising to do so does not establish ineffective assistance of counsel as a matter of law. Further, the jury never learned of defendant's grand jury testimony and he was never subjected to cross-examination with it. But on the record, it could not be determined whether that was part of a strategy employed by counsel, because the record did not address defense counsel's strategic trial decisions, if any. In addition, because the question of whether counsel viewed the entirety of the surveillance footage was never addressed head on, the record did not indicate whether defense counsel reviewed the video before determining a trial strategy. Accordingly, it could not be determined whether, before trial, counsel reviewed and understood the import of the video evidence. Moreover, it was also possible—and undeterminable on the record—that defendant, having heard the trial evidence, himself decided not to testify. *People v Lopez-Mendoza*, 33 NY3d 565.

30. Effective Representation — Jury Nullification Defense.—In the prosecution of defendant for second-degree burglary and petit larceny after he admitted to and was caught on surveillance video on two occasions unlawfully entering a multi-residential apartment building and stealing the contents of packages from the mailbox area of the lobby, the representation by defense counsel, who advanced a jury nullification defense at trial, did not constitute ineffective assistance of counsel when viewed as a whole on the record. While jury nullification is not a legally sanctioned function of a jury and should not be encouraged by a court, there is nothing to prevent a jury from exercising mercy by acquitting a defendant although finding the prosecution has proved its case. Defense counsel argued, without much interference from the trial court, that the burglary charges did not fit the facts because defendant did not break any locks, did not enter anyone's apartment, did not possess burglar's tools, and took only mail packages containing pairs of pants and dog training pads. Given the overwhelming evidence against his client and constrained by the limited defense strategies available, counsel raised what he reasonably perceived could be factual issues in the case, such as the method of defendant's entry into the building. His performance included cogent opening and closing arguments, a motion to dismiss after the People's case-in-chief, and thorough cross-examination of the People's witnesses. Moreover, the trial court did not curb counsel's jury nullification summation arguments. *People v Mendoza*, 33 NY3d 414.

RIGHT TO REPRESENTATION PRO SE.

31. Denial of Request — Malingering.—The trial court did not abuse its discretion in denying defendant's request to proceed pro se, inasmuch as defendant engaged in conduct which would prevent the fair and orderly exposition of the issues. The trial court had concluded—based upon, among other things, its own observations of defendant's conduct throughout lengthy proceedings and the testimony of defendant's attending physician—that defendant engaged in malingering insofar as he was competent to proceed but persisted in his efforts to avoid trial. *People v Gregory*, 33 NY3d 1017.

SENTENCE.

32. Concurrent and Consecutive Terms — Unlawful Possession of Loaded Weapon and Subsequent Crime with That Weapon.—The trial court lawfully

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imposed consecutive sentences for defendant's convictions of second-degree murder (Penal Law § 125.25 [1]) and second-degree criminal possession of a weapon (Penal Law § 265.03 [3]), where video surveillance showed him in possession of a gun several minutes before approaching the victim, supporting the conclusion that he possessed the weapon for a sufficient period of time before forming the specific intent to kill. *People v Malloy*, 33 NY3d 1078.

33. Second Felony Offender — Predicate Conviction — Controlling Sentencing Date.—In determining a defendant's predicate felony status, the date on which sentence was first imposed upon a prior conviction—not the date of any subsequent resentencings on that same conviction—is the relevant date for purposes of determining when “[s]entence upon such prior conviction [was] imposed” (Penal Law § 70.06 [1] [b] [ii]). A prior conviction will not constitute a predicate felony unless it satisfies the “sequentiality requirement”—namely, that the “[s]entence upon such prior conviction must have been imposed before commission of the present felony” (Penal Law § 70.06 [1] [b] [ii]). Relatedly, the sentence also must have been imposed not more than 10 years before commission of the present felony (Penal Law § 70.06 [1] [b] [iv]). A resentence on a prior conviction imposed after the commission of a subsequent crime does not disrupt sequentiality such that the sentence upon such prior conviction can no longer be considered to have been imposed prior to commission of the present felony. The statutory text of Penal Law § 70.06, itself, establishes that the term “sentence” is not synonymous with the term “resentence.” Specifically, for purposes of the sequentiality requirement and 10-year look-back period, the definition of a “sentence” is set forth in section 70.06 (1) (b) (iii), and it does not include any reference to a “resentence.” The express language of the predicate felony statutes, not the plenary or clerical nature of the resentencing, determines the date that sentence upon the prior conviction was imposed. Moreover, the legislature has determined that merely hearing a sentence imposed should deter further unlawful conduct. Accordingly, defendant's motion to set aside his sentence as a second felony offender on the ground that his prior convictions were no longer predicate felonies because he was resentenced on both after the commission of the present felony was denied. *People v Thomas*, 33 NY3d 1.

SEX OFFENDERS.

34. Sex Offender Registration Act — Failure to Register or Verify as Sex Offender — Failure to Register Facebook Account.—A Facebook account is not an “Internet identifier” which a sex offender must disclose to the Division of Criminal Justice Services (DCJS) pursuant to Correction Law § 168-f (4), as neither Facebook nor the Facebook account is an email address or a “designation[] used for the purposes of chat, instant messaging, social networking or other similar internet communication” (Correction Law § 168-a [18]). Accordingly, the indictment charging defendant with failing to register or verify as a sex offender in violation of Correction Law § 168-f (4) on the theory that he failed to disclose his Facebook account as an Internet identifier was jurisdictionally defective. The Internet identifier an offender uses to access the Facebook account must be disclosed to DCJS, and here, defendant disclosed the email address that he used to access his Facebook account. Similarly, the name one uses to interact with other users on Facebook may be an Internet identifier that must be disclosed to DCJS, and there was no dispute that defendant used his real, full name to interact with other Facebook users. The legislature could have easily included among the mandatory disclosure provisions of Correction Law § 168-f (4) the “authorized Internet entities” that a sex offender uses, such as Facebook. Presently, however, that statute does not require sex offenders to disclose to DCJS the authorized Internet entities that they use. The indictment therefore accused defendant of performing acts that simply did not constitute a crime. *People v Ellis*, 33 NY3d 582.

UNLAWFUL SEARCH AND SEIZURE.

35. Encounter Rising Beyond Level-One Request.—Police officers, having observed defendant exit and reenter a building in a public housing development several times, possessed the requisite objective credible reason to approach him and ask briefly about his identity, destination, or reason for being in the area.

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However, after defendant explained that he was visiting a friend who lived in the building, and provided his identification, the encounter rose beyond a level-one request for information, which the People failed to justify as lawful. An officer took defendant's identification to the eleventh floor of the building to verify whether the occupant of the apartment defendant identified knew him, while another officer instructed defendant to "stand right there" under the watch of two officers, and when the first officer returned, having determined that the occupant of the apartment did not know defendant, defendant was arrested for trespassing. Accordingly, defendant's motion to suppress drugs recovered from his person during a search incident to his arrest was granted. *People v Hill*, 33 NY3d 990.

VACATUR OF JUDGMENT OF CONVICTION.

36. Improper Summary Denial of CPL 440.10 Motion — Possible Conflict of Interest Arising from Concurrent Representation.—The Supreme Court abused its discretion in determining that a hearing was not warranted to address the allegations contained in defendant's CPL 440.10 motion regarding his trial attorney's concurrent representation of a witness to the crimes, on unrelated charges, and whether any conflict of interest existed warranting reversal of his judgment of conviction. Upon a CPL 440.10 motion, the court must consider "all papers of both parties . . . and . . . all documentary evidence or information, if any, . . . for the purpose of ascertaining whether the motion is determinable without a hearing to resolve questions of fact" (CPL 440.30 [1] [a]). A court may deny a motion to vacate a judgment of conviction without conducting a hearing in certain specific circumstances (*see* CPL 440.30 [4]). Here, although defendant had informed Supreme Court during a pretrial conflicts inquiry that he or his family had hired his trial attorney, he alleged in his postconviction motion that the witness paid the attorney to represent defendant, resulting in an undisclosed and "unwaivable" conflict, and that the attorney failed to explain any possible conflict of interest related to the witness's payment of defendant's legal fees. Furthermore, defendant submitted an affirmation from his current appellate counsel, who relayed details of a conversation he affirmed he had with the trial attorney about the payment of defendant's legal fees, and recorded prison phone calls, which purportedly corroborated defendant's allegation that the witness hired and paid for his trial attorney. *People v Brown*, 33 NY3d 983.

WITNESSES.

37. Failure to Call Witness — Missing Witness Charge.—In a prosecution arising from a shooting that resulted in serious injury to the victim, Supreme Court abused its discretion in declining to give a missing witness charge with respect to the victim's boyfriend, who was originally on the People's witness list and who had seen the shooter before the victim and attempted to push the victim out of the way before fleeing the scene. The proponent of a missing witness charge initially must demonstrate that there is an uncalled witness believed to be knowledgeable about a material issue pending in the case, that the witness can be expected to testify favorably to the opposing party, and that the opposing party has failed to call the witness. While the party opposing the charge can defeat an initial prima facie showing by accounting for the witness's absence or demonstrating that the charge would not be appropriate, a burden that can be met by demonstrating, among other things, that the witness's testimony would be cumulative, the proponent is never required to negate cumulativeness to meet its initial burden. The proponent lacks the information necessary to know what the uncalled witness would have said, and thus whether the testimony would be cumulative. Here, defendant established that the victim's boyfriend likely was knowledgeable about the identity of the man who shot the victim, as he was the only eyewitness to the shooting other than the victim. In addition, inasmuch as the boyfriend was on the People's initial witness list, he had cooperated to some extent with the People, and was thus under their control and would be expected to testify favorably to them. The burden then shifted to the People to establish why the charge would be inappropriate, and their simple assertion, without explanation, that there was no indication that the boyfriend's testimony would provide anything that was not provided by

CRIMES—Cont'd

the victim was insufficient to satisfy that burden. Instead, the record evidence, including the victim's inconsistencies in the descriptions of the incident, indicated that the boyfriend's testimony would not have been cumulative. *People v Smith*, 33 NY3d 454.

38. Failure to Call Witness — Missing Witness Charge.—Under *People v Gonzalez* (68 NY2d 424 [1986]), the proponent of a missing witness charge initially must demonstrate that there is an uncalled witness believed to be knowledgeable about a material issue pending in the case, that the witness can be expected to testify favorably to the opposing party, and that the opposing party has failed to call the witness. The party opposing the charge can defeat an initial prima facie showing by accounting for the witness's absence or demonstrating that the charge would not be appropriate, a burden that can be met by demonstrating, among other things, that the witness's testimony would be cumulative. If the party opposing the charge meets its burden by rebutting the prima facie showing, the proponent retains the ultimate burden to show that the charge would be appropriate. Appellate Division decisions placing the burden of negating cumulativeness on the charge's proponent have misapplied that established precedent. The Court of Appeals reaffirms again the long-standing rule established in *Gonzalez*, and rejects any decisions placing the initial cumulativeness burden on the proponent of a missing witness charge (see e.g. *People v Chestnut*, 149 AD3d 772, 773 [2d Dept 2017], *lv denied* 29 NY3d 1077 [2017]; *People v McBride*, 272 AD2d 200, 200 [1st Dept 2000], *lv denied* 95 NY2d 868 [2000]; *People v Townsley*, 240 AD2d 955, 958 [3d Dept 1997], *lv denied* 90 NY2d 943 [1997], *denied upon reconsideration* 90 NY2d 1014 [1997]). *People v Smith*, 33 NY3d 454.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS

DEPOSITIONS.

See DISCLOSURE

DISCLOSURE.**MEDICAL RECORDS AND REPORTS.**

1. Waiver of Physician-Patient Privilege — Issue Placed into Controversy.—The trial court erred in denying defendants' motion to compel plaintiff to provide discovery related to the prior treatment of her knees, where plaintiff had affirmatively placed the condition of her knees into controversy by alleging that the underlying accident caused difficulties in walking and standing that affected her ambulatory capacity and resultant damages. Under the particular circumstances, plaintiff waived the physician-patient privilege with respect to the prior treatment and the discovery sought by authorizations pertaining to the treatment was "material and necessary" to defendants' defense of the action (CPLR 3101 [a]). *Brito v Gomez*, 33 NY3d 1126.

DISCONTINUANCE.

See DISMISSAL AND NONSUIT

DISCOVERY AND INSPECTION.

See DISCLOSURE

DIVORCE.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

DOUBLE JEOPARDY.

See CRIMES

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles

EXAMINATION BEFORE TRIAL.

See DISCLOSURE

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK

FORMER ADJUDICATION.

See JUDGMENTS

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY)

FRATERNAL ORDERS.

See ASSOCIATIONS

GAS AND OIL.

See, also, PUBLIC UTILITIES

GUARANTEE.

See SURETYSHIP AND GUARANTEE

HOTELS.

See INNKEEPERS

HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT, CHILD AND FAMILY; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles

IMMIGRATION.

See ALIENS

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; PARENT, CHILD AND FAMILY; SCHOOLS; SOCIAL SERVICES, and other specific titles

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

INSURANCE—Cont'd**NO-FAULT AUTOMOBILE INSURANCE.**

1. Recovery of First Party No-Fault Benefits — Fraudulent Incorporation Defense.—A finding of common-law fraud is not required for an insurer to withhold payments to a medical service corporation improperly controlled by nonphysicians, and the trial court did not err in declining to give a charge requiring the jury to find fraudulent intent or conduct tantamount to fraud by plaintiff corporation in order to reach a verdict in favor of defendant insurer. A corporate practice that shows willful and material failure to abide by licensing and incorporation statutes may support a finding that the provider is not an eligible recipient of reimbursement under 11 NYCRR 65-3.16 (a) (12) or the interpretation of that regulation in *State Farm Mut. Auto. Ins. Co. v Mallela* (4 NY3d 313 [2005]) without meeting the traditional elements of common-law fraud. A jury is not required to evaluate the extent to which corporate misconduct approximates fraud. The no-fault insurance regulations make providers ineligible for reimbursement when their violations of Business Corporation Law §§ 1507, 1508 or Education Law § 6507 (4) (c) are more than merely technical and rise to the level of a grave violation such as fraud. Here, the jury's finding that plaintiff was in material breach of the foundational rule for professional corporation licensure—namely that it be controlled by licensed professionals—was enough to render plaintiff ineligible for reimbursement under 11 NYCRR 65-3.16 (a) (12). Nor could the improper control of plaintiff by unlicensed persons be considered simply an instance of improper fee splitting of a professional corporation's profits with a nonphysician as the jury determined that plaintiff was controlled by unlicensed persons rather than merely splitting fees with them. *Andrew Carothers, M.D., P.C. v Progressive Ins. Co.*, 33 NY3d 389.

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION

INTERVENTION.

See PARTIES

JUDGES.**REMOVAL FROM OFFICE.**

1. The Court of Appeals, on its own motion, removed a Town Court Justice from office pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8). *Matter of Winchester*, 33 NY3d 970.

JUDGMENTS.

See, also, EXECUTION, and other specific titles

JUDICIAL NOTICE.

See EVIDENCE

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

HOURS AND WAGES.

1. Home Health Care Aide Employees — Department of Labor's Interpretation of Minimum Wage Order Regarding 24-Hour Shifts.—In two putative class actions by home health care aides seeking to recover damages for Labor Law § 652 minimum wage violations, the Appellate Division erroneously disregarded the New York State Department of Labor's (DOL) interpretation of its miscellaneous industries and occupations minimum wage order (12 NYCRR 142-2.1 [b] [wage order]) with respect to aides working 24-hour shifts in determining that class certifi-

LABOR—Cont'd

cation was appropriate. Section 142-2.1 (b) provides that “minimum wage shall be paid for the time an employee is permitted to work, or is required to be available for work at a place prescribed by the employer,” but that, for residential employees, such time does not include the employee’s normal sleeping hours solely because the employee is required to be on call during those hours, or any time the employee is free to leave the place of employment. In response to questions about the application of the wage order to home health care aides, DOL issued an opinion letter, stating that live-in, nonresidential employees, which includes home health care aides, must be paid not less than for 13 hours per 24-hour period provided that they are afforded at least eight hours for sleep and actually receive five hours of uninterrupted sleep and are afforded three hours for meals. This interpretation was consistent with how DOL interpreted the wage order for decades, and reflected informed judgment grounded in its specialized knowledge of the home health care industry. DOL gave meaning to the language “available for work” as used in the wage order by interpreting it in the context of a 24-hour shift to exclude the hours when the employee is not working because the employee is on a scheduled sleep and meal break. The interpretation also harmonized with the federal approach, and there was nothing unreasonable or irrational about recognizing the similarities and dissimilarities between residential and nonresidential employees to reach the conclusion that a home health care aide assigned to a 24-hour shift should have significant amounts of regularly scheduled work-free periods. If the aide does not receive the minimum break time because the patient needs assistance, the aide is paid for 24 hours of work time. *Andryeyeva v New York Health Care, Inc.*, 33 NY3d 152.

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES)

YELLOWSTONE INJUNCTION.

1. Waiver in Commercial Lease of Right to Commence Declaratory Judgment Action.—Plaintiff commercial tenants’ waiver of the right to commence a declaratory judgment action as to the terms of their leases was not rendered unenforceable because it resulted in an inability to obtain *Yellowstone* relief (*First Natl. Stores v Yellowstone Shopping Ctr.*, 21 NY2d 630 [1968]). *Yellowstone* relief is not an end in itself but merely a means of maintaining the status quo by tolling a contractual cure period during a pending action, permitting a tenant who loses on the merits of the lease dispute to cure the defect and retain the tenancy. A *Yellowstone* injunction is not essential to protect property rights in a commercial tenancy which are governed by the terms of the lease negotiated by the parties. Plaintiffs’ inability to obtain *Yellowstone* relief did not prevent them from raising defenses in summary proceedings if commenced and thus vindicating their rights under the leases if defendant owner’s allegations of default were baseless. If plaintiffs believed defendant was not performing its respective obligations under the leases, they could bring an action in Supreme Court for breach of contract and request specific performance. While *Yellowstone* injunctions are useful procedural tools for tenants seeking to litigate notices of default, there is no strong societal interest in the ability of commercial entities to seek such a remedy that would justify voiding an unambiguous declaratory judgment waiver negotiated at arm’s length, merely because that incidentally precluded access to *Yellowstone* relief. *159 MP Corp. v Redbridge Bedford, LLC*, 33 NY3d 353.

LEASE.

2. Waiver in Commercial Lease of Right to Commence Declaratory Judgment Action.—The waiver clause in the parties’ leases whereby plaintiff commercial tenants unambiguously agreed to waive the right to commence a declaratory judgment action as to the terms of their leases was not void as against public policy and was enforceable. The declaratory judgment waiver was clear and unambiguous, was adopted by sophisticated parties negotiating at arm’s length, and did not violate the type of public policy interest that would outweigh the strong public policy in favor of freedom of contract. There is nothing in contemporary statutory,

LANDLORD AND TENANT—Cont'd

constitutional, or decisional law indicating that the interest in access to declaratory judgment actions, or more generally, to a full suite of litigation options without limitation, is so weighty and fundamental that it cannot be waived by sophisticated, counseled parties in a commercial lease. While access to declaratory relief benefits the parties as well as society in quieting disputes, a declaratory judgment is merely one form of relief available to litigants in enforcing a contract. Critically, the waiver clause at issue here did not preclude access to the courts but left available other judicial avenues through which plaintiffs might adjudicate their rights under the leases. Moreover, arbitration clauses, which are routinely enforced, provide no access to court for initial litigation of the merits and limited judicial review and are more restrictive than the declaratory judgment waiver here, which permitted judicial resolution of the parties' dispute in a RPAPL article 7 proceeding with full appellate review. *159 MP Corp. v Redbridge Bedford, LLC*, 33 NY3d 353.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles

LIMITATION OF ACTIONS.**COMMENCEMENT OF ACTION AFTER TERMINATION OF PRIOR ACTION.**

1. CPLR 205 (a) applies to a residential mortgage-backed securities (RMBS) trustee's second action when its timely first action is dismissed for failure to comply with a contractual condition precedent. If a timely brought action has been terminated for any reason other than one specified in CPLR 205 (a), the plaintiff may commence another action based on the same transaction or occurrence within six months of the dismissal of the first action, even if the second action would be subject to a statute of limitations defense, so long as the second action would have been timely if commenced when the first action was brought. The statute applies in instances where an action has been terminated for some fatal flaw unrelated to the merits of the underlying claim and is to be liberally construed. Since RMBS notice and sole remedy provisions are not substantive elements of the cause of action, but rather are procedural prerequisites, they are not related to the merits of a claim based on alleged violations of representations and warranties and they do not affect when the statute of limitations commences because the limitations clock begins to run when the contract is executed. Here, plaintiff, the trustee of an RMBS trust, commenced an action against defendant, the original purchaser of the loans who was contractually required to cure a breach or repurchase a loan in the event that the loan originator was unable, within six years of the execution of the pooling and servicing agreement (PSA) and the reconstitution agreement containing the representations and warranties. Plaintiff's cause of action was timely as it accrued upon execution of the PSA, i.e., when defendant agreed to act as a backstop to the loan originator's obligations. Because plaintiff's failure to comply with the contractual notice and cure or repurchase condition within the limitations period did not foreclose its refiling of its action under CPLR 205 (a), its claims were properly dismissed without prejudice. *U.S. Bank N.A. v DLJ Mgt. Capital, Inc.*, 33 NY3d 72.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS

MEDICAL REPORTS.

See DISCLOSURE

MOTELS.

See INNKEEPERS

MOTOR VEHICLES.**CHEMICAL TESTS.**

1. Refusal — Revocation of Operator's License.—Respondent New York State Department of Motor Vehicles' determination revoking petitioner's driver's license for refusing to submit to a chemical test in violation of Vehicle and Traffic Law § 1194 was supported by substantial evidence. At the administrative hearing, the arresting police officer's testimony, articulating credible facts to support a reasonable belief that petitioner violated Vehicle and Traffic Law § 1128 (a) (failure to remain in lane), established that he had probable cause to stop petitioner's vehicle. The officer pulled over the vehicle after observing it make an erratic movement, leaving the paved roadway and then returning to its original lane of travel. During the stop, he noticed that petitioner smelled of alcohol and exhibited signs of inebriation. After failing field sobriety tests and a preliminary breath test given at the scene, at the precinct, petitioner refused to take a chemical test despite receiving appropriate warnings. *Matter of Schoonmaker v New York State Dept. of Motor Vehs.*, 33 NY3d 926.

OPERATING VEHICLE WHILE UNDER INFLUENCE OF ALCOHOL OR DRUGS.

2. Sufficiency of Accusatory Instrument.—The order of the Appellate Term reversing a trial court judgment which had convicted defendant of common-law driving while intoxicated and resisting arrest was reversed and the case remitted to the Appellate Term for consideration of the facts and issues raised, but not determined, on the appeal to that Court. The factual allegations in the accusatory instrument were sufficient to support the inference that defendant was the operator of the vehicle involved in the accident and, thus, Appellate Term erroneously dismissed the accusatory instrument on that ground. *People v Esposito*, 33 NY3d 1016.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles

LANDMARKS.

1. Authority to Regulate Interior Landmarks — Mechanical Clocktower.—A determination of the New York City Landmarks Preservation Commission (LPC) to issue a certificate of appropriateness (COA) with respect to a proposal to redevelop a historic building in Lower Manhattan, which building and parts of its interior had previously been designated as landmarks, into private residences and to convert the landmark clocktower from mechanical to electric operation and limit public access thereto constituted a rational exercise of LPC's discretion based on its unique expertise. Under the Landmarks Preservation Law, the LPC has broad discretion to designate landmarks for the purpose of furthering the protection, enhancement, perpetuation and use thereof, as well as strengthening the economy of the City (Administrative Code of City of NY §§ 25-301 [b]; 25-303 [a]). If an application seeks to alter or demolish a landmark, the LPC must determine whether the proposed work would be appropriate for and consistent with the purposes of the Landmarks Preservation Law (§ 25-307 [a]). Here, the LPC made its determination and findings following an extensive deliberative process, including multiple public hearings (§ 25-313 [b]). The COA described the approved proposal, including as it related to the clocktower and mechanism, and found that the main lobby, stair hall, clocktower rooms and banking hall would be fully restored and the clock

MUNICIPAL CORPORATIONS—Cont'd

mechanism and faces retained. While the definition of “interior landmark” states that it is “customarily open or accessible to the public” (§ 25-302 [m]), public access is a threshold condition, not an ongoing one. The COA process presumes change, sometimes drastic change. *Matter of Save America's Clocks, Inc. v City of New York*, 33 NY3d 198.

SIDEWALKS.

2. Prior Notice of Defective Condition — Stairway Connecting Public Road to Municipal Parking Lot.—In a personal injury action arising from plaintiff's fall while descending an exterior stairway that connected a public road to a municipal parking lot, the courts below correctly held that the stairway at issue functionally fulfilled the same purpose as a standard sidewalk, and therefore plaintiff was required to show that defendant village received prior written notice of the allegedly defective condition under the village code, which required prior written notice as a prerequisite to an action for personal injury sustained as a result of a defect in “any street, highway, bridge, culvert, sidewalk or crosswalk” (*see also* Village Law § 6-628). Since defendant established that plaintiff failed to plead or prove prior written notice, and plaintiff did not raise a triable issue of fact in opposition, summary judgment was properly awarded to defendant. *Hinton v Village of Pulasaki*, 33 NY3d 931.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles

NEGOTIABLE INSTRUMENTS.

See BILLS, NOTES AND CHECKS

NEWSPAPERS.

See, also, LIBEL AND SLANDER, and other specific titles

OPTICIANS.

See LICENSES; PHYSICIANS AND SURGEONS

OPTOMETRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

PARENT, CHILD AND FAMILY.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; INFANTS; SCHOOLS; SOCIAL SERVICES, and other specific titles

PARTIES.**STANDING.**

1. Organizational Standing — Mental Hygiene Legal Service — Proceeding to Compel Psychiatric Center to Provide Patient Records Prior to Retention Hearings.—Petitioner Mental Hygiene Legal Service did not have organizational standing to initiate a proceeding in its own name seeking a writ of mandamus to compel respondent psychiatric hospital to provide copies of a patient's entire clinical chart when it provides notice of a request for an admission or retention hearing, even if petitioner is viewed as an “organization” with “members.” To the extent petitioner, a government entity that performs legal services, could be said to have “members” they would not be its clients. Petitioner did not demonstrate that it had been harmed—not just its clients—by respondent's alleged interference with rights and interests protected under the statute, which requires a facility to provide notice of a hearing request with “a record of the patient” to petitioner (Mental Hygiene Law

PARTIES—Cont'd

§ 9.31 (b)). The statutory scheme already provides a vehicle for adjudication of the rights of injured clients. Every patient subject to Mental Hygiene Law § 9.31 (b) is represented by counsel—petitioner—who has ample opportunity within an existing legal proceeding to object on the patient's behalf to any alleged violation of the statute. To the extent petitioner argues that its clients are unable to pursue their rights as a result of their illnesses, the legislature created petitioner and made its services available to all patients in mental health facilities to ensure that the constitutional and statutory interests of each individual would be protected. If a hospital violates notice or disclosure obligations, the court can fashion an appropriate remedy. Petitioner need not sue in its own name to enforce its clients' procedural rights, which can be protected in the ordinary course by traditional legal advocacy. *Matter of Mental Hygiene Legal Serv. v Daniels*, 33 NY3d 44.

2. Proceeding Brought by Mental Hygiene Legal Service to Compel Psychiatric Center to Provide Patient Records Prior to Retention Hearings — Injury-in-Fact.—Petitioner Mental Hygiene Legal Service did not have standing to initiate a proceeding in its own name seeking a writ of mandamus to compel respondent psychiatric hospital to provide copies of a patient's entire clinical chart when it provides notice of a request for an admission or retention hearing. Petitioner failed to allege—much less establish—that it had suffered an injury-in-fact within the protected zone of interests as a result of the asserted violation of Mental Hygiene Law § 9.31 (b), which requires a facility to provide notice of a hearing request with “a record of the patient” to petitioner. Petitioner did not show with any particularity that it suffered an actual harm to its own interests as opposed to those of the patients it serves. Rather, petitioner couched its interest in the dispute exclusively in terms of the needs and rights of its clients, noting that a complete copy of the clinical chart must accompany the Mental Hygiene Law § 9.31 notice because it “is necessary to protect the [client's] due process rights” and clients must receive adequate “notice of the evidence being used against them.” There was no allegation relating to the number of hours that petitioner's employees would need to expend to copy records or the non-reimbursable expense, if any, that would be incurred if they were not supplied by respondent hospital. As respondent had never before provided copies of a patient's clinical file as part of the section 9.31 (b) notice, petitioner was well-positioned to describe the burden, if any, imposed on the agency and its attorneys as a result of respondent's long-standing practice, but it failed to do so. *Matter of Mental Hygiene Legal Serv. v Daniels*, 33 NY3d 44.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK

PHYSICAL EXAMINATIONS.

See DISCLOSURE

PLEADING.**AMENDMENT.**

1. Relation Back Doctrine.—An untimely filed consolidated complaint by plaintiff, the trustee of three residential mortgage-backed securities trusts, alleging that defendant violated representations and warranties regarding the quality of loans contained in the securitization trust instruments, could not relate back under CPLR 203 (f) to a certificate holder's timely filed actions. CPLR 203 (f) applies only in those cases where a valid preexisting action has been filed. Here, the three trusts were each governed by a separate pooling and servicing agreement (PSA) that included a no action clause and mandatory remedial provisions requiring any party that discovered a breach to promptly notify the other relevant party and allow defendant to remedy the defect. While the certificate holder filed timely separate summonses and notice for each trust within six years of the execution of the PSAs, the lower courts concluded that under the no action clause the certificate holder could not bring the action on behalf of itself, any other certificate holder, or the trustee. Thus, there was no valid preexisting action to which a claim

PLEADING—Cont'd

in a subsequent amended pleading could relate back. *U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 33 NY3d 84.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

POLITICAL PARTIES.

See ELECTIONS

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles

PRODUCTS LIABILITY.**DEFECTIVELY DESIGNED PRODUCT.**

1. Absence of Optional Safety Feature — Product Sold to Rental Company — Liability of Manufacturer and Seller.—The exception to the general rule of strict products liability for design defects set forth in *Scarangella v Thomas Built Buses* (93 NY2d 655 [1999]), where the manufacturer offers a product with an optional safety device and the purchaser chooses not to obtain it, is not categorically unavailable when the allegedly defective product came into the injured end user's hands through the rental market, rather than by a purchase transaction. Under *Scarangella*, a product is not defective—and a manufacturer or seller is not strictly liable for a design defect based upon a claim that optional safety equipment should have been a standard feature—when the buyer is thoroughly knowledgeable regarding the product and its use and is actually aware that the safety feature is available; there exist normal circumstances of use in which the product is not unreasonably dangerous without the optional equipment; and the buyer is in a position, given the range of uses of the product, to balance the benefits and the risks of not having the safety device in the specifically contemplated circumstances of the buyer's use of the product. Here, in an action alleging that the loader plaintiff's decedent had rented was defectively designed because it did not incorporate an optional door kit, the buyer's status as a retail rental company did not establish, as a matter of law, that it was not in a position to engage in the balancing analysis contemplated by the third prong of *Scarangella*. Nor was the *Scarangella* exception categorically unavailable to defendant manufacturer because the person making the purchasing decision on the rental company's behalf was not at risk of personal harm through use of the loader without the optional safety device, as there is no "risk of personal harm" requirement. By charging the jury that it should consider whether the loader was safe without the door kit for use "in the rental market"—rather than safe for its intended and reasonably foreseeable uses—the trial court put its imprimatur on plaintiff's expert's rental market theory. As the charge impermissibly expanded the universe of circumstances where the jury could have found the product to be defective, a new trial as to defendant manufacturer's liability was required. *Fasolas v Bobcat of N.Y., Inc.*, 33 NY3d 421.

EXPOSURE TO TOXIC SUBSTANCES.

2. Failure to Warn — What Constitutes Product — Industrial Coke Ovens.—Defendant, the successor in interest to a company that designed, constructed, maintained and repaired the industrial coke ovens that were in the steel plant where plaintiff's decedent worked and was exposed to coke emissions that allegedly contributed to his fatal lung cancer, failed to meet its burden on its summary judgment motion to show that the ovens were not "products" as a matter of law to which strict products liability can attach under a failure-to-warn theory. Because many products in the context of industrial machines can create circumstances where the danger from use is likely to be disastrous, the focus is on the potential dangers rather than the product's physical characteristics. Here, regardless of alterations decedent's employer may have made to the scale and specifications of the coke oven battery at large, the ovens themselves served one function: the pro-

PRODUCTS LIABILITY—Cont'd

duction of coke. The process was standard across all variations of ovens that defendant's predecessor sold, placing the hazardous thing at issue within the category of products to which liability has attached. Defendant's predecessor exerted full control over the manner in which the ovens were built, furnished necessary materials in their production, placed them into the stream of commerce, marketed them with brochures, and derived a financial benefit from its role in the process. Thus, it was in the best position to assess the safety of the ovens based on its superior knowledge of their intended functionality. That the ovens were built into the large structures that made up the oven battery did not take them out of the products liability context, as items beyond tangible personal property distributed commercially for use are products when the context of their distribution and use is sufficiently analogous to the distribution and use of tangible personal property. Moreover, while strict products liability does not apply to a transaction for services, where a good is sold in the course of a transaction, the mere presence of a service component, here the installation of the ovens, does not mean that the item is not a product to which a duty to warn may apply. *Matter of Eighth Jud. Dist. Asbestos Litig.*, 33 NY3d 488.

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles

PUBLIC UTILITIES.

PUBLIC SERVICE COMMISSION.

1. Authority to Require Energy Service Companies to Comply with Price Cap — Utilities' Transportation of Energy Service Companies' Gas and Electricity.—Respondent Public Service Commission (PSC), under its authority to regulate utilities' transportation of energy service companies' (ESCOs) gas and electricity, may condition access to utility infrastructure upon ESCOs' compliance with a price cap on gas or electricity. Under Public Service Law § 5 (1) (b), the PSC's "jurisdiction, supervision, powers and duties" extend to "the manufacture, conveying, transportation, sale or distribution of gas . . . and electricity for light, heat or power," as well as "to gas plants and to electric plants and to the persons or corporations owning, leasing or operating the same." The PSC is not charged solely with monitoring abuses of monopoly power by "electric corporations" and "gas corporations," but also has the additional duty of preventing extortionate competition and oppressive or discriminating charges. In giving the PSC discretionary power to require gas corporations to transport energy sold by ESCOs "upon such terms and subject to such conditions as the [PSC] considers just and reasonable," Public Service Law § 66-d (2) directs the PSC to determine the terms and conditions under which utilities will be required to transport ESCOs' gas through their delivery infrastructure. Nothing in the language of the relevant statutory provisions limits the PSC's consideration of what is just and reasonable to ensuring only that utilities receive a fair price for transporting ESCOs' energy. *Matter of National Energy Marketers Assn. v New York State Pub. Serv. Commn.*, 33 NY3d 336.

RATE MAKING.

2. Gas Corporation or Electric Corporation.—Petitioner energy service companies (ESCOs) did not fall within the definitions of "gas corporations" and "electric

PUBLIC UTILITIES—Cont'd

corporations” under Public Service Law § 2 (11) and (13) such that they were subject to respondent Public Service Commission’s (PSC) direct rate-making authority under Public Service Law article 4. By definition, gas and electric companies are entities or persons who own, operate or manage a “gas plant” or “electric plant,” which are defined as encompassing “all real estate, fixtures and personal property” used for, among other things, the sale of gas and electricity (*see* § 2 [10], [12]). Here, the PSC’s interpretation, concluding that ESCOs fall within the relevant definitions because they use personal property in the sale of gas and electricity, contradicted the plain language of the statute, which requires the use of real estate, fixtures and personal property, not just personal property. Moreover, if the definitions of gas and electric corporations in section 2 covered ESCOs, it would have been meaningless for the legislature to enact Public Service Law § 53, which provides that “a reference to a gas corporation, an electric corporation, a utility company, or a utility corporation shall include, but is not limited to, any entity that, in any manner, sells or facilitates the sale or furnishing of gas or electricity to residential customers.” *Matter of National Energy Marketers Assn. v New York State Pub. Serv. Commn.*, 33 NY3d 336.

RAILROADS.

See, also, CARRIERS

REAL ESTATE BROKERS.

See BROKERS

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles

RELEASE.

SCOPE OF RELEASE.

1. Release by Seaman of Claims Related to Asbestos Exposure — Burden to Prove Validity of Release in Mesothelioma Action.—In an action arising from plaintiff’s decedent’s contraction of mesothelioma, defendant, the successor by merger to the company that owned ships upon which decedent was exposed to asbestos while working as a merchant marine, had the burden to prove that a release signed by decedent upon settlement with defendant’s predecessor of maritime asbestos claims by him and other plaintiffs was valid. A seaman in admiralty who attacks a release executed by him or her in favor of a shipowner has no burden to show the invalidity of the release. Instead, the burden is on the entity who sets up a seaman’s release to show that it was executed freely, without deception or coercion, and that it was made by the seaman with full understanding of his or her rights. *Matter of New York City Asbestos Litig.*, 33 NY3d 20.

RES JUDICATA.

See JUDGMENTS

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles

RESIDENCE.

See DOMICILE

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles

SEAMEN.**JONES ACT.**

1. Release of Claims Related to Asbestos Exposure — Effectiveness of Release to Extinguish Future Mesothelioma Claim.—In an action seeking damages for plaintiff's decedent's contraction of mesothelioma, defendant, the successor to the company that owned ships upon which decedent was exposed to asbestos while working as a merchant marine, did not meet its burden to show that a release, signed by decedent upon settlement with the predecessor of maritime asbestos claims by him and other plaintiffs, entitled it to summary judgment. A release constituting a compromise enabling the parties to settle their dispute without litigation is not prohibited under the Federal Employers' Liability Act and the Jones Act (45 USC § 55; 46 USC § 30104). However, a merchant marine is entitled to heightened protections of the admiralty law, placing the burden on the entity who set up the release to show that it was executed freely, without deception or coercion, and that it was made by the seaman with full understanding of his or her rights, adequate consideration, and the benefit of medical and legal advice. Here, defendant failed to show that the release unambiguously extinguished a future claim for mesothelioma, a term the release did not even mention. At the time of execution, decedent only suffered from a nonmalignant asbestos-related pulmonary disease. Inasmuch as the complaint in the action resulting in the release mentioned mesothelioma among a list of diseases followed by language indicating that plaintiff suffered from such diseases "either singularly or in combination," defendant's predecessor knew that asbestos exposure could cause mesothelioma, but omitted it from the release. Moreover, while the release recited that decedent knew he was relinquishing his rights, the record did not establish his full understanding of what he was extinguishing or that he had any communications with counsel about the settlement. The record was also ambiguous about the adequacy of the consideration and silent as to the medical advice decedent received prior to signing. *Matter of New York City Asbestos Litig.*, 33 NY3d 20.

SEPARATION.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

SLANDER.

See LIBEL AND SLANDER

SPECIFIC PERFORMANCE.**CONTRACT FOR SALE OF REAL PROPERTY.**

1. Option to Demand Reconveyance of Portion of Land.—Plaintiff, which entered into an option agreement as part of the sale of a parcel of land to defendant's predecessor-in-title, giving plaintiff the option to demand reconveyance of a portion of the land in consideration for a reduction in the purchase price and payment of a portion of the property taxes for the duration of the agreement, was entitled to specific performance to the extent of delivery of the signed deed because it had fully complied with the agreement's pre-conveyance terms. Plaintiff fulfilled the only precondition in the agreement to the parcel's reconveyance when it made a timely written demand within the 10-year option period, which was the only

SPECIFIC PERFORMANCE—Cont'd

requirement expressly set forth in the agreement that it had to meet to trigger defendant's obligation to execute and deliver the deed. The agreement did not condition reconveyance on plaintiff securing subdivision approval in accordance with local law, and failure to obtain such approval did not render title to the parcel unmarketable. *Tomhannock, LLC v Roustabout Resources, LLC*, 33 NY3d 1080.

SPORTING EVENTS.

See THEATRES AND SHOWS

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS

SUBPOENA.

See WITNESSES

SUMMONS.

See PROCESS

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS

TAXATION.**ASSESSMENT.**

1. Challenge to Condominium Complex Tax Assessment — Authority of Board of Managers to Proceed on Behalf of Unit Owners.—Real Property Law § 339-y (4), which provides that the board of managers of a condominium complex “may act as an agent of each unit owner who has given . . . written authorization to seek administrative and judicial review of [a real property tax] assessment,” allows a standing authorization issued by the unit owner to confer authority upon a board to act on behalf of that owner for the tax year in which that authorization was issued and in all subsequent tax years, unless the authorization is cancelled or retracted. The statute created a condition precedent to a board of managers acting on behalf of an individual unit owner, and thus unit owners are required to give authorization for each tax year for which the assessment is challenged. Tax statutes relating to review of assessments are remedial and should be liberally construed and any ambiguity therein should be resolved in favor of the taxpayer. Nothing in section 339-y (4) prohibits a standing authorization or otherwise renders lasting permission defective, regardless of whether the singular “assessment” in the statute refers to one assessment that remains effective until changed by a town assessor or to an assessment effective for one tax year. A new grievance is required for each year. However, absent any written authorization, no agency relationship exists and proceedings cannot be brought on behalf of unit owners who do not authorize the board to act accordingly. Thus, here, the unit owners who provided petitioner condominium board a “standing” agency authorization were entitled to a refund if petitioner prevailed at trial for each tax year disputed, beginning with the tax year in which the owner's written authorization was signed, and regardless of whether the owner signed an authorization each year. *Matter of Eastbrooke Condominium v Ainsworth*, 33 NY3d 139.

2. Standing to Maintain Tax Certiorari Proceeding.—Petitioner restaurant operator, which was the sole occupant of the real property and paid the entirety of the real property taxes directly to the taxing authority for the tax years in question but was not the owner of the real property or legally bound to pay the taxes or authorized to pursue the proceedings it brought challenging the tax assessments, was not an “aggrieved party” within the meaning of RPTL article 7. In the absence

TAXATION—Cont'd

of a direct contractual obligation, the tax assessment's remote and consequential impact on petitioner was inadequate to confer standing to maintain a tax certiorari proceeding pursuant to RPAPL article 7. Although petitioner, like any taxpaying tenant, was not immune from the impact of an increased tax obligation, petitioner could have ceased paying the property taxes at any time without incurring any direct legal consequence vis-à-vis the taxing authority or the property owner. While paying taxes always has a direct adverse effect on one's pecuniary interest, that alone has never been enough. Only a lessee who is obligated to pay an assessment is sure to lose something from the lessee's own property or means. *Matter of Larchmont Pancake House v Board of Assessors and/or the Assessor of the Town of Mamaroneck*, 33 NY3d 228.

SALES AND USE TAXES.

3. Exclusion for Personal or Individual Information Services.—Respondent Tax Appeals Tribunal of the State of New York rationally determined that petitioner supermarket chain's purchase of competitive price audits and the corresponding reports from a data collection service did not constitute "the furnishing of information which is personal or individual in nature" excluded from the sales tax imposed by Tax Law § 1105 (c) (1). The information compiled and the reports furnished to petitioner derived from a non-confidential and widely-accessible source, the supermarket shelves of petitioner's competitors. There was nothing about the information itself that was personal or individual in nature. The service simply collected the prices of products at grocery stores and compiled that information into reports which it furnished to petitioner. Respondent rationally concluded that the information was not personal or individual in nature because it was collected from prices on supermarket shelves, which were publicly available, widely-accessible, and not confidential. Moreover, under the circumstances, it was rational for respondent to determine that the service's customization of the publicly-available information it collected from supermarket shelves into a report format did not render the furnished information personal or individual in nature. *Matter of Wegmans Food Mkts., Inc. v Tax Appeals Trib. of the State of N.Y.*, 33 NY3d 587.

TOWNS.

See MUNICIPAL CORPORATIONS

TRIAL.**HARMLESS AND PREJUDICIAL ERROR.**

1. Permitting Deposition Testimony of Nonparty Witness Who Invoked Privilege against Self-Incrimination.—Any error by the trial court in admitting the deposition testimony of nonparty witnesses, the nonphysicians who controlled plaintiff medical service corporation, in which they repeatedly invoked their Fifth Amendment privilege against self-incrimination, and in giving the jury an adverse inference instruction was harmless as there was no reasonable view of the evidence under which plaintiff could have prevailed. Based on the trial evidence the jury could rationally infer only one conclusion: plaintiff was in violation of the requirement of Business Corporation Law § 1507 that a professional service corporation be owned and controlled solely by licensed professionals. *Andrew Carothers, M.D., P.C. v Progressive Ins. Co.*, 33 NY3d 389.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION

VILLAGES.

See MUNICIPAL CORPORATIONS

WELFARE.

See SOCIAL SERVICES

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles

WORKERS' COMPENSATION.

INJURIES ARISING OUT OF AND IN COURSE OF EMPLOYMENT.

1. The Appellate Division properly concluded that on the record, substantial evidence supported the Workers' Compensation Board's determination that claimant's injury was not compensable. *Matter of Grover v State Ins. Fund*, 33 NY3d 971.

ZONING.

See MUNICIPAL CORPORATIONS

TABLE OF STATUTES AND RULES CONSTRUED

BUSINESS CORPORATION LAW.

§ 1507 (Professional service corporations; issuance of shares). *Andrew Carothers, M.D., P.C. v Progressive Ins. Co.*, 33 NY3d 389.

§ 1508 (Professional service corporations; directors and officers). *Andrew Carothers, M.D., P.C. v Progressive Ins. Co.*, 33 NY3d 389.

CIVIL PRACTICE LAW AND RULES.

203 (f) (Method of computing periods of limitation generally; claim in amended pleading). *U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 33 NY3d 84.

205 (a) (Limitations of time; termination of action; new action by plaintiff). *U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 33 NY3d 72.

901 (a) (Prerequisites to class action; common questions of law or fact). *Andryeyeva v New York Health Care, Inc.*, 33 NY3d 152.

CIVIL SERVICE LAW.

§ 71 (Reinstatement after separation for disability). *Matter of Jordan v New York City Hous. Auth.*, 33 NY3d 408.

§ 75 (Removal and other disciplinary action). *Matter of Jordan v New York City Hous. Auth.*, 33 NY3d 408.

CORRECTION LAW.

§ 168-a (18) (Sex Offender Registration Act; “Internet identifiers” defined). *People v Ellis*, 33 NY3d 582.

§ 168-f (4) (Sex Offender Registration Act; duty to register and to verify). *People v Ellis*, 33 NY3d 582.

CRIMINAL PROCEDURE LAW.

670.10 (Use in criminal proceeding of testimony given in previous proceeding; when authorized). *People v Tapia*, 33 NY3d 257.

EDUCATION LAW.

§ 6507 (4) (c) (Administration by Education Department; issuance of certificates of authority to qualified professional service corporations). *Andrew Carothers, M.D., P.C. v Progressive Ins. Co.*, 33 NY3d 389.

LABOR LAW.

§ 652 (Minimum wage). *Andryeyeva v New York Health Care, Inc.*, 33 NY3d 152.

MENTAL HYGIENE LAW.

§ 9.31 (Involuntary admission on medical certification; patient’s right to hearing; obligation to forward copy of notice and record of patient). *Matter of Mental Hygiene Legal Serv. v Daniels*, 33 NY3d 44.

NEW YORK CITY ADMINISTRATIVE CODE.

§ 25-301 (b) (Landmarks preservation and historic districts; purpose and declaration of public policy). *Matter of Save America’s Clocks, Inc. v City of New York*, 33 NY3d 198.

§ 25-302 (m) (Landmarks preservation and historic districts; “interior landmark” defined). *Matter of Save America’s Clocks, Inc. v City of New York*, 33 NY3d 198.

§ 25-307 (a) (Landmarks preservation and historic districts; factors governing issuance of certificate of appropriateness). *Matter of Save America’s Clocks, Inc. v City of New York*, 33 NY3d 198.

NEW YORK CITY ADMINISTRATIVE CODE—Continued

§ 25-313 (b) (Landmarks preservation and historic districts; public hearings; conferences). *Matter of Save America's Clocks, Inc. v City of New York*, 33 NY3d 198.

PENAL LAW.

§ 35.15 (1) (b) (Justification; use of physical force in defense of person; actor as initial aggressor). *People v Brown*, 33 NY3d 316.

§ 70.06 (1) (b) (ii) (Sentence of imprisonment for second felony offender; definition of second felony offender; timing of sentence upon prior conviction). *People v Thomas*, 33 NY3d 1.

§ 70.06 (1) (b) (iii) (Sentence of imprisonment for second felony offender; definition of second felony offender; "sentence" defined). *People v Thomas*, 33 NY3d 1.

PUBLIC AUTHORITIES LAW.

§ 2 (2) ("Local authority" defined). *Matter of Madison County Indus. Dev. Agency v State of N.Y. Auths. Budget Off.*, 33 NY3d 131.

§ 6 (Powers and duties of Authorities Budget Office). *Matter of Madison County Indus. Dev. Agency v State of N.Y. Auths. Budget Off.*, 33 NY3d 131.

PUBLIC SERVICE LAW.

§ 2 (11) ("Gas corporation" defined). *Matter of National Energy Marketers Assn. v New York State Pub. Serv. Commn.*, 33 NY3d 336.

§ 2 (13) ("Electric corporation" defined). *Matter of National Energy Marketers Assn. v New York State Pub. Serv. Commn.*, 33 NY3d 336.

§ 5 (1) (b) (Jurisdiction, powers and duties of Public Service Commission). *Matter of National Energy Marketers Assn. v New York State Pub. Serv. Commn.*, 33 NY3d 336.

§ 53 (Residential gas, electric and steam utility service; application). *Matter of National Energy Marketers Assn. v New York State Pub. Serv. Commn.*, 33 NY3d 336.

§ 66-d (2) (Provisions relating to gas and electric corporations; regulation of price of gas and electricity; contract carrier authorization). *Matter of National Energy Marketers Assn. v New York State Pub. Serv. Commn.*, 33 NY3d 336.

REAL PROPERTY LAW.

§ 339-y (4) (Condominium Act; separate taxation; board of managers as agent). *Matter of Eastbrooke Condominium v Ainsworth*, 33 NY3d 139.

REAL PROPERTY TAX LAW.

Art 7 (Judicial review). *Matter of Larchmont Pancake House v Board of Assessors and/or the Assessor of the Town of Mamaroneck*, 33 NY3d 228.

REGULATIONS OF DEPARTMENT OF FINANCIAL SERVICES, INSURANCE DIVISION.

11 NYCRR 65-3.16 (a) (12) (Claims for personal injury protection benefits; eligibility of health care providers for reimbursement; fraudulent incorporation). *Andrew Carothers, M.D., P.C. v Progressive Ins. Co.*, 33 NY3d 389.

REGULATIONS OF DEPARTMENT OF LABOR.

12 NYCRR 142-2.1 (b) (Minimum wage orders; miscellaneous industries and occupations; basic minimum hourly wage rate and allowances). *Andryeyeva v New York Health Care, Inc.*, 33 NY3d 152.

TAX LAW.

§ 1105 (c) (1) (Imposition of sales tax; furnishing of personal or individual information excluded). *Matter of Wegmans Food Mkts., Inc. v Tax Appeals Trib. of the State of N.Y.*, 33 NY3d 587.

UNITED STATES CODE.

45 USC § 55 (Federal Employers' Liability Act; contract, rule, regulation, or device exempting from liability; setoff). *Matter of New York City Asbestos Litig.*, 33 NY3d 20.

UNITED STATES CODE—Continued

46 USC § 30104 (Jones Act; personal injury to or death of seaman). *Matter of New York City Asbestos Litig.*, 33 NY3d 20.

UNITED STATES CONSTITUTION.

4th Amend (Unreasonable searches and seizures prohibited). *People v Diaz*, 33 NY3d 92.

6th Amend (Jury trials for crimes; right to confront witnesses). *People v Tapia*, 33 NY3d 257.

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

- | | |
|--|---|
| 1. 19 NY2d 159 (Thrasher v United States Liab. Ins. Co.) | At 19 NY2d 168, line 4 from the bottom of the page, change insurer's to insured's. |
| 2. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change defendant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 3. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy. |
| 4. 45 NY2d 233 (Simonds v Simonds) | At 45 NY2d 241, line 3 of last full paragraph, change constructive to constructive. |
| 5. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 6. 54 NY2d 137 (People v Baldi) | At 54 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 7. 64 NY2d 966 (Slatt v Slatt) | At 64 NY2d 967, line 15, change <i>Marlee Sales Corp. v Manufactur-ers Trust Co.</i> to <i>Morlee Sales Corp. v Manufacturers Trust Co.</i> |
| 8. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 9. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |

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| 10. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 11. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |
| 12. 80 NY2d 1030 (People v Sallito) | Change the title entry from Salito to Sallito. |
| 13. 85 NY2d 139 (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) | At 85 NY2d 146, second paragraph, line 13, change lead to led. |
| 14. 88 NY2d 41 (Town of Orangetown v Magee) | At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733. |
| 15. 88 NY2d 400 (People v Huston) | At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c]. |
| 16. 90 NY2d 717 (Panepinto v New York Life Ins. Co.) | At 90 NY2d 720, line 1, change date of October 28, 1996 to October 28, 1986 and at 90 NY2d 720, line 5, change date of October 28, 1996 to October 28, 1986. |
| 17. 93 NY2d 382 (BDO Seidman v Hirshberg) | At 93 NY2d 391, line 25, change former employer to former employee. |
| 18. 97 NY2d 709 | In Criminal Leave Table, first 13 entries on this page (from <i>People v Santos</i> through and including <i>People v Stallone</i>), change the year within the decision date from “/01” to “/02.” |
| 19. 100 NY2d 960 (Vernon v Vernon) | At 100 NY2d 967, line 7 of second paragraph, change degree to decree. |

Errata

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20. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).
21. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).
22. **4 NY3d 739** (Matter of Peter R. [Stacey R.]) Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.
23. **4 NY3d 857** (People v Smith [DeJesus]) Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).
24. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.
25. **6 NY3d 427** (People v Boyer) At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.
26. **7 NY3d 703** (Matter of Park v Kapica) Change the page number of the reported below citation from 802 to 801.
27. **8 NY3d 944** (People v Charriez) In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U).
28. **9 NY3d 923** (People v Jacobs) In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868.
29. **11 NY3d 875** (People v Ford) On line 5 of the Summary, change Bronx County to New York County.

30. **13 NY3d 511** (Matter of Goldstein v New York Urban Dev. Corp.) At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition].
31. **18 NY3d 667** (People v Rodriguez) At 18 NY3d 671, second line from bottom of the page, change CPL 410.30 to CPL 430.10.
32. **19 NY3d 1058** (Matter of 677 New Loudon Corp. v State of N.Y. Tax Appeals Trib.) At 19 NY3d 1058, line 4 of the headnote, and at page 1159, third paragraph, line 4 of the Memorandum, change 10% to 10¢.
33. **21 NY3d 1043** (People v Mackey-Meggs) Change defendant's name in title from Mackey-Meggs to Marquan M.
34. **22 NY3d 648** (Union Sq. Park Community Coalition, Inc. v New York City Dept. of Parks & Recreation) At 22 NY3d 654, eighth line of third paragraph, change 22,000 acres to 22,000 square feet.
35. **23 NY3d 455** (People v Golb) At 23 NY3d 461, in second full paragraph the email address "newsmedia.ucla.edu" should read "newsmedia@ucla.edu"
At 23 NY3d 461, in third full paragraph the email address "steve.goransongmail.com" should read "steve.goranson@gmail.com"
At 23 NY3d 462, in the first paragraph the email address "frank.cross2gmail.com" should read "frank.cross2@gmail.com"
At 23 NY3d 462, in the second full paragraph the email address "larry.schiffmangmail.com" should read "larry.schiffman@gmail.com"
At 23 NY3d 463, in the second full paragraph the email address "seidel.jonathangmail.com" should read "seidel.jonathan@gmail.com"
36. **23 NY3d 665** (Norex Petroleum Ltd. v Blavatnik) At 23 NY3d 668, footnote 3, last sentence on page should read For purposes of discussion in this opinion, we simply assume that, within the meaning of section 205 (a), Norex's federal action was not

terminated on the merits, and Norex's state court action alleges claims "upon the same transaction or occurrence" as its federal predecessor

37. **24 NY3d 294** (People v Silva) At 24 NY3d 296, change attorney's name for appellant in the second above-entitled action from Steven R. Bernard to Steven R. Bernhard.
38. **25 NY3d 906** (Richard H. v State of New York) Change 1324 to 1306 in the middle column of the motion for leave to appeal table.
39. **26 NY3d - 28 NY3d** Change the spelling of "irrevelant" to "irrelevant" throughout.
40. **26 NY3d 903** (McMillin v Grimditch) Change the reported below citation from 130 AD3d 150 to 131 AD3d 150.
41. **26 NY3d 903** (Town of N. Elba v Grimditch) Change the reported below citation from 130 AD3d 150 to 131 AD3d 150.
42. **27 NY3d 1079** (People ex rel. Monte v Mingo) Change respondents' name in title from *Warden* to *Warden Maxsolaine Mingo*.
43. **28 NY3d 1123** (People v Faeth) In Criminal Leave Table, middle column, change App Div, 4th Dept: 2016 NY Slip Op 68866(U) (Wayne) to App Div, 4th Dept, 9/6/16 (Wayne).